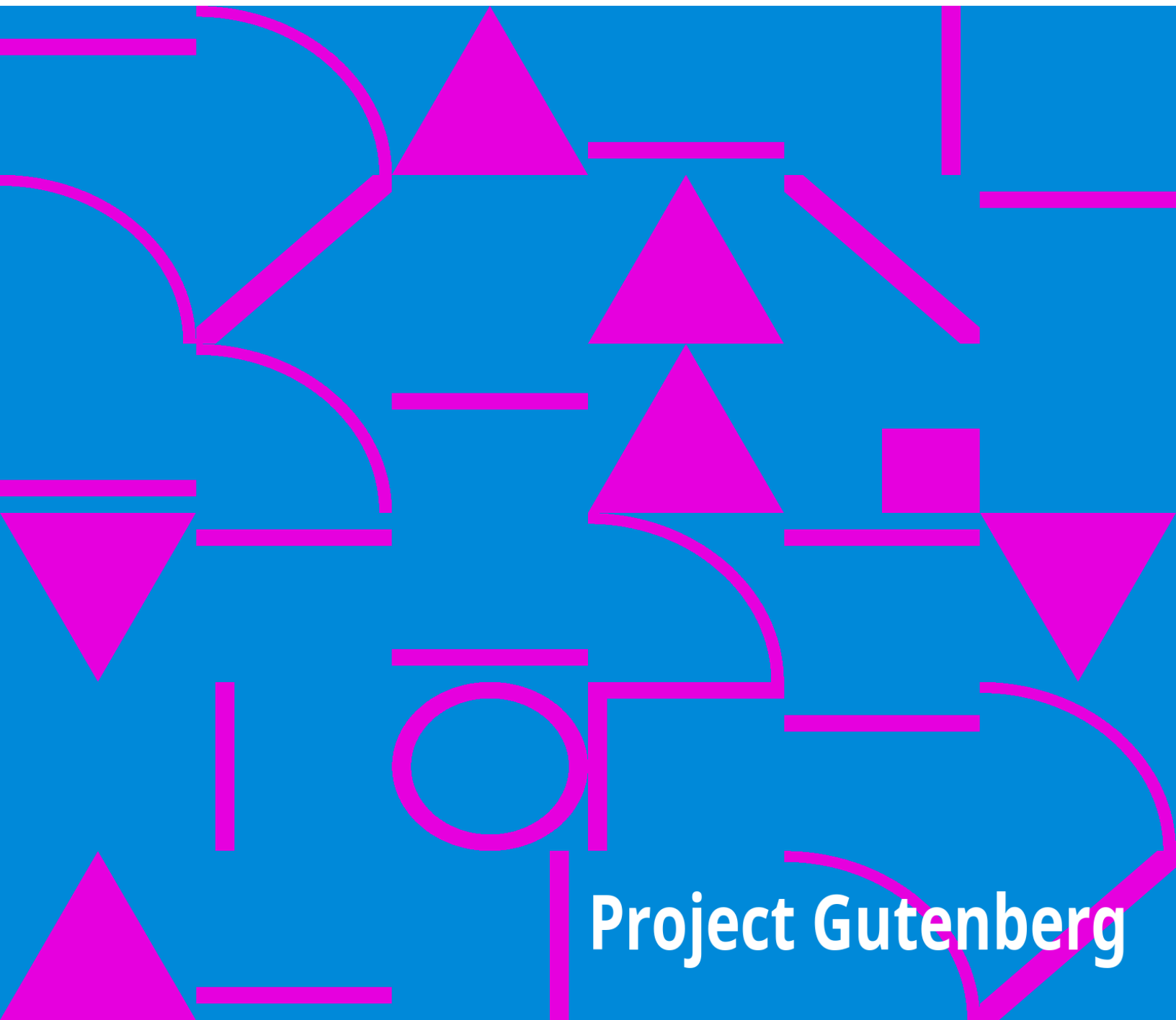


Diary in America, Series Two

Frederick Marryat

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Captain Marryat

"Diary in America, Series Two"

Volume One—Chapter One.

Travelling.

I believe that the remarks of a traveller in any country not his own, let his work be ever so trifling or badly written, will point out some peculiarity which will have escaped the notice of those who were born and reside in that country, unless they happen to be natives of that portion of it in which the circumstance alluded to was observed. It is a fact that no one knows his own country; from assuetude and, perhaps, from the feelings of regard which we naturally have for our native land, we pass over what nevertheless does not escape the eye of a foreigner. Indeed, from the consciousness that we can always see such and such objects of interest whenever we please, we very often procrastinate until we never see them at all. I knew an old gentleman who having always resided in London, every year declared his intention of seeing the Tower of London with its Curiosities. He renewed this declaration every year, put it off until the next, and has since left the world without having ever put his intention into execution.

That the Americans would cavil at portions of the first part of my work, I was fully convinced, and as there are many observations quite new to most of them, they are by them considered to be false; but the United States, as I have before observed, comprehend an immense extent of territory, with a population running from a state of refinement down to one of positive barbarism; and although the Americans travel much, they travel the well beaten paths, in which that which is peculiar is not so likely to meet the eye or even the ear. It does not, therefore, follow that because what I remark is new to many of them, that therefore it is false. The inhabitants of the cities in the United States, (and it is those who principally visit this country),

know as little of what is passing in Arkansas and Alabama as a cockney does of the manners and customs of Guernsey, Jersey, and the Isle of Man.

The other day, one American lady observed that, "it was too bad of Captain Marryat to assert that ladies in America carried pigtail in their work-boxes to present to the gentlemen;" adding, "I never heard or saw such a thing in all my life." Very possible; and had I stated that at New York, Philadelphia, Boston, or Charleston, such was the practice, she then might have been justifiably indignant. But I have been very particular in my localities, both in justice to myself and the Americans, and if they will be content to confine their animadversions to the observations upon the State to which they belong, or my general observations upon the country and government, I shall then be content; if, on the contrary, their natural vanity will not allow any remarks to be made upon the peculiarities of one portion of society without considering them as a reflection upon the whole of the Union, all I can say is that they must, and will be annoyed.

The answer made to the lady who was "wrathy" about the pigtail was, "Captain M has stated it to be a custom in one State. Have you ever been in that State?"

"No, I have not," replied the lady, "but I have never heard of it." So then, on a vast continent, extending almost from the Poles to the Equator, because one individual, one mere mite of creation among the millions (who are but a fraction of the population which the country will support), has not heard of what passes thousands of miles from her abode, therefore it cannot be true! Instead of cavilling, let the American read, mark, learn, and inwardly digest all that I have already said, and all that I intend to say in these volumes; and although the work was not written for them, but for my own countrymen, they will find that I have done them friendly service.

There is much comprehended in the simple word "travelling" which heads this chapter, and it is by no means an unimportant subject, as the degree of civilisation of a country, and many important

peculiarities, bearing strongly upon the state of society, are to be gathered from the high road, and the variety of entertainment for man and horse; and I think that my remarks on this subject will throw as much light upon American society as will be found in any chapter which I have written.

In a country abounding as America does with rivers and railroads, and where locomotion by steam, wherever it can be applied, supersedes every other means of conveyance, it is not to be expected that the roads will be remarkably good; they are, however, in consequence of the excellent arrangements of the townships and counties, in the Eastern States, as good, and much better, than could be expected. The great objection to them is that they are not levelled, but follow the undulations of the country, so that you have a variety of short, steep ascents and descents which are very trying to the carriage-springs and very fatiguing to the traveller. Of course in a new country you must expect to fall in with the delightful varieties of *Corduroy*, etcetera, but wherever the country is settled, and the population sufficient to pay the expense, the roads in America may be said to be as good as under circumstances could possibly be expected. There are one or two roads, I believe, not more, which are government roads; but, in general, the expense of the roads is defrayed by the States.

But, before I enter into any remarks upon the various modes of travelling in America, it may be as well to say a few words upon the horses, which are remarkably good in the United States: they appear to be more hardy, and have much better hoofs, than ours in England; throwing a shoe therefore is not of the same consequence as it is with us, for a horse will go twenty miles afterwards with little injury. In Virginia and Kentucky the horses are almost all thorough-bred, and from the best English stock.—The distances run in racing are much longer than ours, and speed without bottom is useless.

The Americans are very fond of fast trotting horses; I do not refer to rackers, as they term horses that trot before and gallop behind, but fair trotters, and they certainly have a description of horse that we

could not easily match in England. At New York, the Third Avenue, as they term it, is the general rendezvous, I once went out there mounted upon Paul Pry, who was once considered the fastest horse in America; at his full speed he performed a mile in two minutes and thirty seconds, equal to twenty-four miles per hour. He took me at this devil of a pace as far as Hell Gate; not wishing "to intrude," I pulled up there, and went home again. A pair of horses in harness were pointed out to me who could perform the mile in two minutes fifty seconds. They use here light four-wheeled vehicles which they call wagons, with a seat in the front for two persons and room for your luggage behind; and in these wagons, with a pair of horses, they think nothing of trotting them seventy or eighty miles in a day, at the speed of twelve miles an hour; I have seen the horses come in, and they did not appear to suffer from the fatigue. You seldom see a horse bent forward, but they are all daisy cutters.

The gentlemen of New York give very high prices for fast horses; 1,000 dollars is not by any means an uncommon price. In a country where time is every thing, they put a proportionate value upon speed. Paul Pry is a tall grey horse (now thirteen years old); to look at, he would not fetch 10 pounds,—the English omnibuses would refuse him.

Talking about omnibuses, those of New York, and the other cities in America, are as good and as well regulated as those of Paris; the larger ones have four horses. Not only their omnibuses, but their hackney coaches are very superior to those in London; the latter are as clean as private carriages; and with the former there is no swearing, no dislocating the arms of poor females, hauling them from one omnibus to the other,—but civility without servility.

The American stage-coaches are such as experience has found out to be most suitable to the American roads, and you have not ridden in them five miles before you long for the delightful springing of four horses upon the level roads of England. They are something between an English stage (see note 1) and a French diligence, built with all the panels open, on account of the excessive heat of the

summer months. In wet weather these panels are covered with leather aprons, which are fixed on with battons, a very insufficient protection in the winter, as the wind blows through the intermediate spaces, whistling into your ears, and rendering it more piercing than if all was open. Moreover, they are no protection against the rain or snow, both of which find their way in to you. The coach has three seats, to receive nine passengers; those on the middle seat leaning back upon a strong and broad leather brace, which runs across. This is very disagreeable, as the centre passengers, when the panels are closed, deprive the others of the light and air from the windows. But the most disagreeable feeling arises from the body of the coach not being upon springs, but hung upon leather braces running under it and supporting it on each side; and when the roads are bad, or you ascend or rapidly descend the pitches (as they term short hills) the motion is very similar to that of being tossed in a blanket, often throwing you up to the top of the coach, so as to flatten your hat—if not your head.

The drivers are very skilful, although they are generally young men—indeed often mere boys—for they soon better themselves as they advance in life. Very often they drive six in hand; and if you are upset, it is generally more the fault of the road than of the driver. I was upset twice in one half hour when I was travelling in the winter time; but the snow was very deep at the time, and no one thinks anything of an upset in America. More serious accidents do, however, sometimes happen. When I was in New Hampshire, a neglected bridge broke down, and precipitated coach, horses, and passengers into a torrent which flowed into the Connecticut river. Some of the passengers were drowned. Those who were saved, sued the township and recovered damages; but these mischances must be expected in a new country. The great annoyance of these public conveyances is, that neither the proprietor or driver consider themselves the servants of the public; a stage-coach is a speculation by which as much money is to be made as possible by the proprietors; and as the driver never expects or demands a fee from the passengers, they or their comforts are no concern of his. The

proprietors do not consider that they are bound to keep faith with the public, nor do they care about any complaints.

The stages which run from Cincinnati to the eastward are very much interfered with when the Ohio river is full of water, as the travellers prefer the steam-boats; but the very moment that the water is so low on the Ohio that the steam-boats cannot ascend the river up to Wheeling, double the price is demanded by the proprietors of the coaches. They are quite regardless as to the opinion or good-will of the public; they do not care for either, all they want is their money, and they are perfectly indifferent whether you break your neck or not. The great evil arising from this state of hostility, as you may almost call it, is the disregard of life which renders travelling so dangerous in America. You are completely at the mercy of the drivers, who are, generally speaking, very good-tempered, but sometimes quite the contrary; and I have often been amused with the scenes which have taken place between them and the passengers. As for myself, when the weather permitted it, I invariably went outside, which the Americans seldom do, and was always very good friends with the drivers. They are full of local information, and often very amusing. There is, however, a great difference in the behaviour of the drivers of the mails, and coaches which are *timed* by the post-office, and others which are not. If beyond his time, the driver is mulcted by the proprietors; and when dollars are in the question, there is an end to all urbanity and civility.

A gentleman of my acquaintance was in a mail which was behind time, and the driver was proceeding at such a furious pace that one jerk threw a lady to the top of the coach, and the teeth of her comb entering her head, she fainted with pain. The passengers called out to the driver to stop. "What for?" "That last jerk has struck the lady, and she has fainted." "Oh, that's all! Well, I reckon I'll give her another jerk, which will bring her to again." Strange to say, he prophesied right; the next jerk was very violent, and the lady recovered her senses.

Mr E, an employé of the American government, was travelling in the state of Indiana—the passengers had slept at an inn, and the coach was ready at the door, but Mr E had not quite finished his toilet; the driver dispatched the bar-keeper for him, and Mr E sent word he would be down immediately.

“What is he about?” said the driver impatiently to the bar-keeper when he came down again.

“Cleaning his teeth.”

“*Cleaning his teeth!*” roared the driver, indignantly; “by the —,” and away went the horses at a gallop, leaving Mr E behind.

The other passengers remonstrated, but without avail; they told him that Mr E was charged with government despatches—he didn’t care; at last, one of them offered him a dollar if he would go back. They had proceeded more than a mile before the offer was made; the man immediately wheeled his horses round, and returned to the inn.

The Rev. Mr Reid gives an anecdote very characteristic of American stage-coach travelling, and proving how little the convenience of the public is cared for.

“When we stopped at Lowell to change horses, a female wished to secure a place onward. We were already, as the phrase is, more than full; we had nine persons, and two children, which are made to go for nothing, except in the way-bill. Our saucy driver opened the door, and addressing two men, who, with us, would have been outside passengers—‘now, I say, I want one of you to ride with me, and let a lady have your seat.’ The men felt they were addressed by a superior, but kept their places. ‘Come, I say,’ he continued, ‘you shall have a good buffalo and *umbrel*, and nothing will hurt you.’ Still they kept their places, and refused him. His lordship was offended, and ready to lay hands on one of them; but, checking himself, exclaimed, ‘Well, if I can’t get you out, hang it if I’ll take you on till one of you gets out.’ And there we stood for some time; and he gained his point at last, and in civiler terms, by persuading the

persons on the middle seat to receive the lady; so that we had now twelve inside.”

I once myself was in a stage-coach, and found that the window glasses had been taken out; I mentioned this to the driver, as it rained in very fast—“Well, now,” replied he, “I reckon you’d better ax the proprietors; my business is to drive the coach.” And that was all the comfort I could procure. As for speaking to them about stopping, or driving slow, it is considered as an unwarrantable interference.

I recollect an Englishman at New York telling me, that when in the Eastern States, he had expressed a wish to go a little faster—“Oh,” said the driver, “you do, do you; well, wait a moment, and I’ll go faster than you like.” The fellow drove very slow where the road was good; but as soon as he came to a bad piece, he put his horses to the gallop, and, as my friend said, they were so tossed and tumbled about, that they hardly knew where they were. “Is that fast enough, Mister,” said the driver, leering in at the coach window.

As for stopping, they will stop to talk to any one on the road about the price of the markets, the news, or any thing else; and the same accommodation is cheerfully given to any passenger who has any business to transact on the way. The Americans are accustomed to it, and the passengers never raise any objections. There is a spirit of accommodation, arising from their natural good temper (note 2).

I was once in a coach when the driver pulled up, and entered a small house on the road side; after he had been there some time, as it was not an inn, I expressed my wonder what he was about. “I guess I can tell you,” said a man who was standing by the coach, and overheard me; “there’s a pretty girl in that house, and he’s doing a bit of courting, I expect.” Such was the fact: the passengers laughed, and waited for him very patiently. He remained about three-quarters of an hour, and then came out. The time was no doubt to him very short; but to us it appeared rather tedious.

Mrs Jamieson, in her last work, says: “One dark night, I remember, as the sleet and rain were falling fast, and our Extra was slowly

dragged by wretched brutes of horses through what seemed to me 'Sloughs of Despond,' some package ill stowed on the roof, which in the American stages presents no resting-place for man or box, fell off. The driver alighted to fish it out of the mud. As there was some delay, a gentleman seated opposite to me put his head out of window to inquire the cause; to whom the driver's voice replied, in an angry tone, 'I say, you mister, don't you sit jabbering there; but lend a hand to heave these things aboard!' To my surprise, the gentleman did not appear struck by the insolence of this summons, but immediately jumped out and rendered his assistance. This is merely the *manner* of the people. The driver intended no insolence, nor was it taken as such; and my fellow-travellers could not help laughing at my surprise."

I have mentioned these little anecdotes, as they may amuse the reader; but it must be understood that, generally speaking, the drivers are very good-natured and obliging, and the passengers very accommodating to each other, and submitting with a good grace to what cannot be ameliorated.

Note 1. Miss Martineau in her work speaks of that most *delightful* of all conveyances—an American stage-coach; but Miss M is so very peculiar in her ideas, that I am surprised at nothing that she says. I will, however, quote the Reverend Mr Reid against her:—

"I had no sooner begun to enter the coach than splash went my foot in mud and water. I exclaimed with surprise. 'Soon be dry, sir,' was the reply; while he withdrew the light; that I might not explore the cause of complaint. The fact was, that the vehicle, like the hotel and steam-boat, was not water-tight, and the rain had found an entrance. There was, indeed, in this coach, as in most others, a provision in the bottom, of holes, to let off both water and dirt; but here the dirt had become mud, and thickened about the orifices, so as to prevent escape. I found I was the only passenger; the morning was damp and chilly; the state of the coach added to the sensation; and I eagerly looked about for some means of protection. I drew up the

wooden windows; out of five small panes of glass in the sashes three were broken. I endeavoured to secure the curtains; two of them had most of the ties broken, and flapped in one's face. There was no help in the coach, so I looked to myself. I made the best use I could of my garments, and put myself as snugly as I could in the corner of a stage meant to accommodate nine persons. My situation just then was not among the most cheerful. I could see nothing; every where I could feel the wind drawn in upon me; and as for sounds I had the calls of the driver, the screeching of the wheels, and the song of the bull-frog for my entertainment."—Rev. Mr Reid's Tour, vol. I, page 100.—Very delightful, indeed!

Note 2. This spirit of accommodation produces what would at first appear to be rudeness, but is not intended for it. When you travel, or indeed when walking the streets in the Western country, if you have a cigar in your mouth, a man will come up—"Beg pardon, stranger," and whips your cigar out of your mouth, lights his own, and then returns yours. I thought it rather cool at first, but as I found it was the practice, I invariably did the same whenever I needed a light.

Volume One—Chapter Two.

Travelling.

In making my observations upon the rail-road and steam-boat travelling in the United States, I shall point out some facts with which the reader must be made acquainted. The Americans are a restless, locomotive people: whether for business or pleasure, they are ever on the move in their own country, and they move in masses. There is but one conveyance, it may be said, for every class of people, the coach, rail-road, or steam-boat, as well as most of the hotels, being open to all; the consequence is that the society is very much mixed—the millionaire, the well-educated woman of the highest rank, the senator, the member of Congress, the farmer, the emigrant, the swindler, and the pick-pocket, are all liable to meet together in the

same vehicle of conveyance. Some conventional rules were therefore necessary, and those rules have been made by public opinion—a power to which all must submit in America. The one most important, and without which it would be impossible to travel in such a gregarious way, is an universal deference and civility shewn to the women, who may in consequence travel without protection all over the United States without the least chance of annoyance or insult. This deference paid to the sex is highly creditable to the Americans; it exists from one end of the Union to the other; indeed, in the Southern and more lawless States, it is even more chivalric than in the more settled. Let a female be ever so indifferently clad, whatever her appearance may be, still it is sufficient that she is a female; she has the first accommodation, and until she has it, no man will think of himself. But this deference is not only shewn in travelling, but in every instance. An English lady told me, that wishing to be present at the inauguration of Mr Van Buren, by some mistake, she and her daughters alighted from the carriage at the wrong entrance, and in attempting to force their way through a dense crowd were nearly crushed to death. This was perceived, and the word was given—‘make room for the ladies.’ The whole crowd, as if by one simultaneous effort, compressed itself to the right and left, locking themselves together to meet the enormous pressure, and made a wide lane, through which they passed with ease and comfort. “It reminded me of the Israelites passing through the Red Sea with the wall of waters on each side of them,” observed the lady. “In any other country we must have been crushed to death.”

When I was on board one of the steam-boats, an American asked one of the ladies to what she would like to be helped. She replied, to some turkey, which was within reach, and off of which a passenger had just cut the wing and transferred it to his own plate. The American who had received the lady’s wishes, immediately pounced with his fork upon the wing of the turkey and carried it off to the young lady’s plate; the only explanation given, “a *lady*, Sir!” was immediately admitted as sufficient.

The authority of the captain of a steam-boat is never disputed; if it were, the offender would be landed on the beach. I was on board of a steam-boat when, at tea time, a young man sat down with his hat on.

“*You* are in the company of ladies, sir,” observed the captain very civilly, “and I must request you to take your hat off.”

“Are you the captain of the boat?” observed the young man, in a sulky tone.

“Yes, sir, I am.”

“Well, then, I suppose I must,” growled the passenger, as he obeyed.

But if the stewards, who are men of colour, were to attempt to enforce the order, they would meet with such a rebuff as I have myself heard given.

“If it’s the captain’s orders, let the captain come and give them. I’m not going to obey a *Nigger* like you.”

Perhaps it is owing to this deference to the sex that you will observe that the Americans almost invariably put on their best clothes when they travel; such is the case whatever may be the cause; and the ladies in America, travelling or not, are always well, if not expensively dressed. They don’t all swap bonnets as the two young ladies did in the stage-coach in Vermont.

But, notwithstanding the decorum so well preserved as I have mentioned, there are some annoyances to be met with from gregarious travelling. One is, that occasionally a family of interesting young citizens who are suffering from the whooping-cough, small-pox, or any other complaint, are brought on board, in consequence of the medical gentlemen having recommended change of air. Of course the other children, or even adults, may take the infection, but they are not refused admittance upon such trifling grounds; the profits of the steam boat must not be interfered with.

Of all travelling, I think that by railroad the most intriguing, especially in America. After a certain time the constant coughing of the locomotive, the dazzling of the vision from the rapidity with which objects are passed, the sparks and ashes which fly in your face and on your clothes become very annoying; your only consolation is the speed with which you are passing over the ground.

The railroads in America are not so well made as in England, and are therefore more dangerous; but it must be remembered that at present nothing is made in America but to last a certain time; they go to the exact expense considered necessary and no further, they know that in twenty years they will be better able to spend twenty dollars than one now. The great object is to obtain quick returns for the outlay, and, except in few instances, durability or permanency is not thought of. One great cause of disasters is, that the railroads are not fenced on the sides, so as to keep the cattle off them, and it appears as if the cattle who range the woods are very partial to take their naps on the roads, probably from their being drier than the other portions of the soil. It is impossible to say how many cows have been cut into atoms by the trains in America, but the frequent accidents arising from these causes has occasioned the Americans to invent a sort of shovel, attached to the front of the locomotive, which takes up a cow, tossing her off right or left. At every fifteen miles of the rail-roads there are refreshment rooms; the cars stop, all the doors are thrown open, and out rush the passengers like boys out of school, and crowd round the tables to solace themselves with pies, patties, cakes, hard-boiled eggs, ham, custards, and a variety of railroad luxuries, too numerous to mention. The bell rings for departure, in they all hurry with their hands and mouths full, and off they go again, until the next stopping place induces them to relieve the monotony of the journey by masticating without being hungry.

The Utica railroad is the best in the United States. The general average of speed is from fourteen to sixteen miles an hour; but on the Utica they go much faster. (See note 1.) A gentleman narrated to me a singular specimen of the ruling passion which he witnessed on

an occasion when the rail-cars were thrown off the road, and nearly one hundred people killed, or injured in a greater or less degree.

On the side of the road lay a man with his leg so severely fractured, that the bone had been forced through the skin, and projected outside his trousers. Over him hung his wife, with the utmost solicitude, the blood running down from a severe cut received on her head, and kneeling by his side was his sister, who was also much injured. The poor women were lamenting over him, and thinking nothing of their own hurts; and he, it appears, was also thinking nothing about his injury, but only lamenting the delay which would be occasioned by it.

“Oh! my dear, dear Isaac, what can be done with your leg?” exclaimed the wife in the deepest distress.

“What will become of my leg!” cried the man. “What’s to become of my business, I should like to know?”

“Oh! dear brother,” said the other female, “don’t think about your business now; think of getting cured.”

“Think of getting cured—I must think how the bills are to be met, and I not there to take them up. They will be presented as sure as I lie here.”

“Oh! never mind the bills, dear husband—think of your precious leg.”

“Not mind the bills! but I must mind the bills—my credit will be ruined.”

“Not when they know what has happened, brother. Oh! dear, dear—that leg, that leg.”

“D—n the leg; what’s to become of my business,” groaned the man, falling on his back from excess of pain.

Now this was a specimen of true commercial spirit. If this man had not been nailed to the desk, he might have been a hero.

I shall conclude this chapter with an extract from an American author, which will give some idea of the indifference as to loss of life in the United States.

“Every now and then is a tale of railroad disaster in some part of the country, at inclined planes, or intersecting points, or by running off the track, making splinters of the cars, and of men’s bones; and locomotives have been known to encounter, head to head, like two rams fighting. A little while previous to the writing of these lines, a locomotive and tender shot down the inclined plain at Philadelphia, like a falling star. A woman, with two legs broken by this accident, was put into an omnibus, to be carried to the hospital, but the driver, in his speculations, coolly replied to a man, who asked why he did not go on?—that he was waiting for a *full load*.”

Note 1. The railroads finished in America in 1835 amounted in length to 1,600 miles; those in progress, and not yet complete, to 1,270 miles more. The canals completed were in length 2,500 miles, unfinished 687 miles.

Volume One—Chapter Three.

Travelling.

The most general, the most rapid, the most agreeable, and, at the same time, the most dangerous, of American travelling is by steam boats. It will be as well to give the reader an idea of the extent of this navigation by putting before him the lengths of some of the principal rivers in the United States.

Miles.

Missouri and Mississippi	4490
Do. to its junction with the Mississippi	3181
Mississippi proper, to its junction with the Missouri	1600
Do. to the Gulf of Mexico	2910
Arkansas River, a branch of the Mississippi	2170
St. Lawrence River, including the Lakes	2075
Platte River, a branch of the Missouri	1600
Red River, a branch of the Mississippi	1500
Ohio River, Do. Do.	1372
Columbia River, empties into the Pacific Ocean,	1315
Kansas River, a branch of the Missouri	1200
Yellowstone Do. Do.	1100
Tennessee Do. Ohio	756
Alabama River, empties into the Gulf of Mexico	575
Cumberland River, a branch of the Ohio	570
Susquehanna River, empties into Chesapeake Bay	460
Illinois River, a branch of the Mississippi	430
Appalachicola River, empties into the Gulf of Mexico	425
St. John's River, New Brunswick, rises in Maine	415
Connecticut River, empties into Long Island Sound	410
Wabash River, a branch of the Ohio	360
Delaware River, empties into the Atlantic Ocean	355
James River, empties into Chesapeake Bay	350
Roanoke River, empties into Albemarle Sound	350
Great Pedee River, empties into Atlantic Ocean	350
Santee River, empties into Atlantic Ocean	340
Potomac River, empties into Chesapeake Bay	335
Hudson River, empties into Atlantic Ocean	320
Altamaha River, empties into Atlantic Ocean	300
Savannah River, empties into Atlantic Ocean	290

Voice from America.

Many of the largest of these rivers are at present running through deserts—others possess but a scanty population on their banks; but, as the west fills up, they will be teeming with life, and the harvest of industry will freight many more hundreds of vessels than those which at present disturb their waters.

The Americans have an idea that they are very far ahead of us in steam navigation, a great error which I could not persuade them of. In the first place, their machinery is not by any means equal to ours; in the next, they have no sea-going steam vessels, which after all is the great desideratum of steam navigation. Even in the number and tonnage of their mercantile steam vessels they are not equal to us, as I shall presently show, nor have they yet arrived to that security in steam navigation which we have.

The return of vessels belonging to the Mercantile Steam Marine of Great Britain, made by the Commissioners on the Report of steam-vessel accidents in 1839, is, number of vessels, 810; tonnage, 157,840; horse power, 63,250.

Mr Levi Woodbury's Report to Congress in December, 1838, states the number of American steam vessels to be 800, and the tonnage to be 155,473; horse power, 57,019.

It is but fair to state, that the Americans have the credit of having sent the first steam vessel across the Atlantic. In 1819, a steam vessel, built at New York, crossed from Savannah to Liverpool in twenty-six days.

The number of *sea-going* steam vessels in England is *two hundred and eighty-two*, while in the United States they have not more than ten at the outside calculation. In the size of our vessels also we are far superior to them. I here insert a table, shewing the dimensions of our largest vessels, as given in the Report to the House of Commons, and another of the largest American vessels collected from the Report of Mr Levi Woodbury to Congress.

Table shewing some of the Dimensions of the Hull and Machinery of the five largest ships yet built or building.

(Table to be added in a later edition.)

But the point on which we are so vastly superior to the Americans, is in our steam vessels of war. They have but one in the United States, named the *Fulton the Second*. The following is a list of those belonging to the Government of Great Britain, with their tonnage:—

	Tons.		Tons.		Tons.
Acheron	722	Fearless	165	Myrtle	116
Adder	237	Firebrand	495	Otter	237
Advice	475	Fire Fly	550	Phoenix	809
African	295	Flamer	496	Pigmy	230
Alban	294	Fury	166	Pike	112
Ariel	149	Gleaner	306	Pluto	365
Asp	112	Gorgon	1111	Prospero	244
Avon	361	Hecate	815	Redwing	139
Beaver	128	Hecla	815	Radamanthus	813
Blazer	527	Hermes	716	Salamander	818
Boxer	159	Hydra	818	Shearwater	343
Carron	294	Jasper	230	Spitfire	553
Charon	125	Kite	300	Sprightly	234
Columbia	360	Lightning	296	Strombolo	966
Comet	238	Lucifer	387	Swallow	133
Confiance	295	Medea	835	Tartarus	523
Cuckoo	234	Medusa	889	Urgent	583
Cyclops	1190	Megaera	717	Vesuvius	966
Dasher	260	Merlin	889	Volcano	720
Dee	704	Messenger	733	Widgeon	164
Doterel	723	Meteor	296	Wildfire	186

Echo 298 Monkey 211 Zephyr 237

Government Steam Vessels Building.

Alecto 799 Lizard 282 Polyphemus 799

Ardent 799 Locust 282 Prometheus 799

Dover Iron Medina 889

I trust that the above statement will satisfy the Americans that we are ahead of them in steam navigation. In consequence of their isolation, and having no means of comparison with other countries, the Americans see only their own progress, and seem to have forgotten that other nations advance as well as themselves. They appear to imagine that while they are going ahead all others are standing still: forgetting that England with her immense resources is much more likely to surpass them than to be left behind.

We must now examine the question of the proportionate security in steam boat travelling in the two countries. The following table, extracted from the Report of the Commissioners on Steam boat Accidents, will show the casualties which have occurred in this country in *ten* years.

Abstract of ninety-two Accidents. Table not included.

The principal portion of this loss of life has been occasioned by vessels having been built for *sale*, and not sea-worthy; an occurrence too common, I am afraid, in both countries.

The author of "A Voice from America" states the list of steamboat disasters, on the waters of the United States, for *twelve months* out of the years 1837-38, by bursting of boilers, burning, wrecks, etcetera, besides numerous others of less consequence, comprehends the total loss of eight vessels and *one thousand and eighty lives*.

So that we have in England, loss in ten years, 634; one year, 63.

In America, loss in one year, 1,080.

The report of Mr Woodbury to Congress is imperfect, which is not to be wondered at, as it is almost impossible to arrive at the truth; there is, however, much to be gleaned from it. He states that, since the employment of steam vessels in the United States, 1,300 have been built, and of them *two hundred and sixty* have been lost by accidents.

The greatest loss of life by collision and sinking, was in the Monmouth, (Indians transporting to the West), in 1837, by which three hundred lives were lost; Oronoka, by explosion, by which one hundred and thirty or more lives were lost and Moselle, at Cincinnati, by which from one hundred to one hundred and twenty lives were lost.

The greatest loss by shipwreck was in the case of the Home, on the coast of South Carolina, when one hundred lives were lost; the greatest by fire, the Ben Sherrod, in 1837, by which one hundred and thirty perished.

The three great casualties which occurred during my stay in America, were those of the Ben Sherrod, by fire; the Home, by wreck; and the Moselle, by explosion: and as I have authentic details of them, by Americans who were on board, or eye-witnesses, I shall lay them before my readers. The reader will observe that there is a great difference in the loss of life mentioned in Mr Woodbury's report and in the statements of those who were present. I shall hereafter state why I consider the latter as the more correct.

Loss of the Ben Sherrod, by a Passenger.

"On Sunday morning, the 6th of May 1837, the steam-boat Ben Sherrod, under the command of Captain Castleman, was preparing to leave the levée at New Orleans. She was thronged with

passengers. Many a beautiful and interesting woman that morning was busy in arranging the little things incident to travelling, and they all looked forward with high and certain hope to the end of their journey. Little innocent children played about in the cabin, and would run to the guards—the *guards* of an American steam-boat are an extension of the deck on each side, beyond the paddle boxes, which gives great width for stowage—now and then, to wonder, in infantine language, at the next boat, or the water, or something else that drew their attention. “Oh, look here, Henry—I don’t like that boat, Lexington.”—“I wish I was going by her,” said Henry, musingly. The men too were urgent in their arrangements of the trunks, and getting on board sundry articles which a ten days’ passage rendered necessary. In fine all seemed hope, and joy, and certainty.

“The cabin of the Ben Sherrod was on the upper deck, but narrow in proportion to her build, for she was what is technically called a Tennessee cotton boat. To those who have never seen a cotton boat loaded, it is a wondrous sight. The bales are piled up from the lower guards wherever there is a cranny until they reach above the second deck, room being merely left for passengers to walk outside the cabin. You have regular alleys left amid the cotton in order to pass about on the first deck. Such is a cotton boat carrying from 1,500 to 2,000 bales.

“The Ben’s finish and accommodation of the cabin was by no means such as would begin to compare with the regular passenger boats. It being late in the season, and but few large steamers being in port in consequence of the severity of the times, the Ben Sherrod got an undue number of passengers, otherwise she would have been avoided, for her accommodations were not enticing. She had a heavy freight on board, and several horses and carriages on the forecastle. The build of the Ben Sherrod was heavy, her timbers being of the largest size.

“The morning was clear and sultry—so much so, that umbrellas were necessary to ward off the sun. It was a curious sight to see the hundreds of citizens hurrying on board to leave letters, and to see

them coming away. When a steam-boat is going off on the Southern and Western waters, the excitement is fully equal to that attendant upon the departure of a Liverpool packet. About ten o'clock AM the ill-fated steamer pushed off upon the turbid current of the Mississippi, as a swan upon the waters. In a few minutes she was under way, tossing high in air, bright and snowy clouds of steam at every half revolution of her engine. Talk not of your northern steam-boats! A Mississippi steamer of seven hundred tons burthen, with adequate machinery, is one of the sublimities of poetry. For thousands of miles that great body forces its way through a desolate country, against an almost restless current, and all the evidence you have of the immense power exerted, is brought home to your senses by the everlasting and majestic burst of exertion from her escapement pipe, and the ceaseless stroke of the paddle wheels. In the dead of night, when amid the swamps on either side, your noble vessel winds her upward way—when not a soul is seen on board but the officer on deck—when nought is heard but the clang of the fire-doors amid the hoarse coughing of the engine, imagination yields to the vastness of the ideas thus excited in your mind, and if you have a soul that makes you a man, you cannot help feeling strongly alive to the mightiness of art in contrast with the mightiness of nature. Such a scene, and hundreds such have I realised, with an intensity that cannot be described, always made me a better man than before. I never could tire of the steam-boat navigation of the Mississippi.

“On Tuesday evening, the 9th of May 1837, the steam-boat *Prairie*, on her way to St. Louis, bore hard upon the *Sherrod*. It was necessary for the latter to stop at Fort Adams, during which the *Prairie* passed her. Great vexation was manifested by some of the passengers, that the *Prairie* should get to Natchez first. This subject formed the theme of conversation for two or three hours, the captain assuring them that he would beat her *any how*. The *Prairie* is a very fast boat, and under equal chances could have beaten the *Sherrod*. So soon as the business was transacted at Fort Adams, for which she stopped, orders were given to the men to keep up their fires to the extent. It was now a little after 11 p.m. The captain retired to his berth, with his clothes on, and left the deck in charge of an officer.

During the evening a barrel of whisky had been turned out, and permission given to the hands to do as they pleased. As may be supposed, they drew upon the barrel quite liberally. It is the custom on all boats to furnish the firemen with liquor, though a difference exists as to the mode. But it is due to the many worthy captains now on the Mississippi, to state that the practice of furnishing spirits is gradually dying away, and where they are given, it is only done in moderation.

“As the Sherrod passed on above Fort Adams towards the mouth of the Homochitta, the wood piled up in the front of the furnaces several times caught fire, and was once or twice imperfectly extinguished by the drunken hands. It must be understood by those of my readers who have never seen a western steamboat, that the boilers are entirely above the first deck, and that when the fires are well kept up for any length of time, the heat is almost insupportable. Were it not for the draft occasioned by the speed of the boat it would be very difficult to attend the fires. As the boat was booming along through the water close in-shore, for, in ascending the river, boats go as close as they can to avoid the current, a negro on the beach called out to the fireman that the wood was on fire. The reply was, “Go to h—l, and mind your own business,” from some half intoxicated hand. “Oh, massa,” answered the negro, “if you don’t take care, you will be in h—l before I will.” On, on, on went the boat at a tremendous rate, quivering and trembling in all her length at every revolution of the wheels. The steam was heated so fast, that it continued to escape through the safety valve, and by its sharp singing, told a tale that every prudent captain would have understood. As the vessel rounded the bar that makes off from the Homochitta, being compelled to stand out into the middle of the river in consequence, the fire was discovered. It was about one o’clock in the morning. A passenger had got up previously, and was standing on the boiler deck, when to his astonishment, the fire broke out from the pile of wood. A little presence of mind, and a set of men unintoxicated, could have saved the boat. The passenger seized a bucket, and was about to plunge it overboard for water, when he found it locked. An instant more, and the fire increased in volumes. The captain was

now awaked. He saw that the fire had seized the deck. He ran aft, and announced the ill-tidings. No sooner were the words out of his mouth, than the shrieks of mothers, sisters, and babes, resounded through the hitherto silent cabin in the wildest confusion. Men were aroused from their dreaming cots to experience the hot air of the approaching fire. The pilot, being elevated on the hurricane deck, at the instant of perceiving the flames, put the head of the boat shoreward. She had scarcely got under good way in that direction, than the tiller ropes were burnt asunder. Two miles at least, from the land, the vessel took a sheer, and, borne upon by the current, made several revolutions, until she struck off across the river. A (sand) bar brought her up for the moment.

“The flames had now extended fore and aft. At the first alarm several deck passengers had got in the yawl that hung suspended by the davits. A cabin passenger, endowed with some degree of courage and presence of mind, expostulated with them, and did all he could to save the boats for the ladies. ’Twas useless. One got out his knife and cut away the forward tackle. The next instant and they were all, to the number of twenty or more, launched onto the angry waters. They were seen no more.

“The boat being lowered from the other end, filled and was useless. Now came the trying moment. Hundreds leaped from the burning wreck into the waters. Mothers were seen standing on the guards with hair dishevelled, praying for help. The dear little innocents clung to the side of their mothers and with their tiny hands beat away the burning flames. Sisters calling out to their brothers in unearthly voices—‘Save me, oh save me, brother!’—wives crying to their husbands to save their children, in total forgetfulness of themselves,—every second or two a desperate plunge of some poor victim falling on the appalled ear,—the dashing to and fro of the horses on the forecastle, groaning audibly from pain of the devouring element—the continued puffing of the engine, for it still continued to go, the screaming mother who had leaped overboard in the desperation of the moment with her only child,—the flames mounting to the sky with the rapidity of lightning,—shall I ever forget that scene—that hour of

horror and alarm! Never, were I to live till the memory should forget all else that ever came to the senses. The short half hour that separated and plunged into eternity two human beings has been so burnt into the memory that even now I think of it more than half the day.

“I was swimming to the shore with all my might, endeavoured to sustain a mother and her child. She sank twice, and yet I bore her on. My strength failed me. The babe was nothing—a mere cork. ‘Go, go,’ said the brave mother, ‘save my child, save my—’ and she sank, to rise no more. Nerved by the resolution of that woman, I reached the shore in safety. The babe I saved. Ere I had reached the beach, the Sherrod had swung off the bar, and was floating down, the engine having ceased running. In every direction heads dotted the surface of the river. The burning wreck now wore a new, and still more awful appearance. Mothers were seen clinging, with the last hope to the blazing timbers, and dropping off one by one. The screams had ceased. A sullen silence rested over the devoted vessel. The flames became tired of their destructive work.

“While I sat dripping and overcome upon the beach, a steam boat, the Columbus, came in sight, and bore for the wreck. It seemed like one last ray of hope gleaming across the dead gloom of that night. Several wretches were saved. And still another, the Statesman, came in sight. More, more were saved.

“A moment *to me* had only elapsed, when high in the heavens the cinders flew, and the country was lighted all round. Still another boat came booming on. I was happy that more help had come. After an exchange of words with the Columbus, the captain continued on his way under full steam. Oh, how my heart sank within me! The waves created by his boat sent many a poor mortal to his long, long home. A being by the name of Dougherty was the captain of that merciless boat. Long may he be remembered!

“My hands were burnt, and now I began to experience severe pain. The scene before me—the loss of my two sisters and brother, whom I had missed in the confusion, all had steeled my heart. I could not

weep—I could not sigh. The cries of the babe at my side were nothing to me.

“Again—another explosion! and the waters closed slowly and sullenly over the scene of disaster and death. Darkness resumed her sway, and the stillness was only interrupted by the distant efforts of the Columbus and Statesman in their laudable exertions to save human life.

“Captain Castleman lost, I believe, a father and child. Some argue, this is punishment enough. No, it is not. He had the lives of hundreds under his charge. He was careless of his trust; he was guilty of a crime that nothing will ever wipe out. The bodies of two hundred victims are crying out from the depth of the father of waters for vengeance. Neither society nor law will give it. His punishment is yet to come. May I never meet him!

“I could tell of scenes of horror that would rouse the indignation of a stoic; but I have done. As to myself, I could tell you much to excite your interest. It was more than three weeks after the occurrence before I ever shed a tear. All the fountains of sympathy had been dried up, and my heart was as stone. As I lay on my bed the twenty-fourth day after, tears, salt tears, came to my relief, and I felt the loss of my sisters and brother more deeply than ever. Peace be to their spirits! they found a watery grave.

“In the course of all human events, scenes of misery will occur. But where they rise from sheer carelessness, it requires more than christian fortitude to forgive the being who is in fault. I repeat, may I never meet Captain Castleman or Captain Dougherty!

“I shall follow this tale of woe by some strictures on the mode of building steam-boats in the west, and show that human life has been jeopardised by the demoniac spirit of speculation, cheating and roguery. The fate of the Ben Sherrod shall be my text.”

It will be seen from this narrative, that the loss of the vessel was occasioned by racing with another boat, a frequent practice on the

Mississippi. That people should run such risk, will appear strange but if any of my readers had ever been on board of a steam vessel in a race, they would not be surprised; the excitement produced by it is the most powerful that can be conceived—I have myself experienced it, and can answer for the truth of it. At first, the feeling of danger predominates, and many of the passengers beg the captain to desist: but he cannot bear to be passed by, and left astern. As the race continues, so do they all warm up, until even those who, most aware of the danger, were at first most afraid, are to be seen standing over the very boilers, shouting, huzzaing, and stimulating the fireman to blow them up; the very danger gives an unwonted interest to the scene; and females, as well as men, would never be persuaded to cry out, “Hold, enough!”

Another proof of the disregard of human life is here given in the fact of one steam-boat passing by and rendering no assistance to the drowning wretches; nay, it was positively related to me by one who was in the water, that the blows of the paddles of this steam-boat sent down many who otherwise might have been saved.

When I was on the Lakes, the wood which was piled close to the fire-place caught fire. It was of no consequence, as it happened, for it being a well-regulated boat, the fire was soon extinguished; but I mention it to show the indifference of one of the men on board. About half an hour afterwards, one of his companions roused him from his berth, shaking him by the shoulder to wake him, saying, “Get up, the wood’s a-fire—quick.” “Well, I knew that ’fore I turn’d in,” replied the man, yawning.

The loss of the Home occasioned many of the first families in the states to go into deep mourning, for the major portion of the passengers were highly respectable. I was at New York when she started. I had had an hour’s conversation with Professor Nott and his amiable wife, and had made arrangements with them to meet them in South Carolina. We never met again, for they were in the list of those who perished.

Loss of the Home.

“The steam-packet Home, commanded by Capt. White, left New York, for Charleston, South Carolina, at four o'clock, p.m., on Saturday, the 7th Oct. 1837, having on board between eighty and ninety passengers, and forty-three of the boat's crew, including officers, making in all about one hundred and thirty persons. The weather at this time was very pleasant, and all on board appeared to enjoy, in anticipation, a delightful and prosperous passage. On leaving the wharf, cheerfulness appeared to fill the hearts and enliven the countenances of this floating community. Already had conjectures been hazarded, as to the time of their arrival at the destined port, and high hopes were entertained of an expeditious and pleasant voyage. Before six o'clock,—a check to these delusive expectations was experienced, by the boat being run aground on the Romer Shoal, near Sandy Hook. It being ebb tide, it was found impossible to get off before the next flood; consequently, the fires were allowed to burn out, and the boat remained until the flood tide took her off, which was between ten and eleven o'clock at night, making the time of detention about four or five hours. As the weather was perfectly calm, it cannot, reasonably, be supposed that the boat could have received any material injury from this accident; for, during the time that it remained aground, it had no other motion than an occasional roll on the keel from side to side. The night continued pleasant. The next morning, (Sunday,) a moderate breeze prevailed from the north-east. The sails were spread before the wind, and the speed of the boat, already rapid, was much accelerated. All went on pleasantly till about noon, when the wind had increased, and the sea became rough. At sunset, the wind blew heavily, and continued to increase during the night; at daylight, on Monday, it had become a gale. During the night, much complaint was made that the water came into the berths, and before the usual time of rising, some of the passengers had abandoned them on that account.

“The sea, from the violence of the gale, raged frightfully, and caused a general anxiety amongst the passengers; but still, they appeared to rely on the skill and judgment of the captain and officers,—

supposing, that every exertion would be used, on their part, for the preservation of so many valuable lives as were then entrusted to those who had the charge of this frail boat. Early on Monday, land was discovered, nearly ahead, which, by many, was supposed to be False Cape, on the northern part of Hatteras. Soon after this discovery, the course of the boat was changed from southerly to south-easterly, which was the general course through the day, though with some occasional changes. The condition of the boat was now truly alarming; it bent and twisted, when struck by a sea, as if the next would rend it asunder: the panels of the ceiling were falling from their places; and the hull, as if united by hinges, was bending against the feet of the braces. Throughout the day, the rolling and pitching were so great, that no cooking could be done on board.

“It has already been stated, that the general course of the boat was, during the day, south-easterly, and consequently in what is called the trough of the sea, as the wind was from the north-east. Late in the afternoon, the boat was reported to be in twenty-three fathoms of water, when the course was changed to a south-westerly. Soon after this, it was observed that the course was again changed, to north-westerly; when the awful truth burst upon us, that the boat must be filling; for we could imagine no other cause for this sudden change. This was but a momentary suspense; for within a few minutes, all the passengers were called on to bale, in order to prevent the boat from sinking. Immediately, all were employed, but with little effect; for, notwithstanding the greatest exertion on the part of the passengers, including even many of the ladies, the water was rapidly increasing, and gave most conclusive evidence, that, unless we reached the shore within a few hours, the boat must sink at sea, and probably not a soul be left to communicate the heart-rending intelligence to bereaved and disconsolate friends. Soon after the boat was headed towards the land, the water had increased so much, as to reach the fire under the boilers, which was soon extinguished. Gloomy indeed was the prospect before us. With one hundred and thirty persons in a sinking boat, far out at sea, in a dark and tempestuous night, with no other dependence for reaching the shore than a few small and tattered sails, our condition might be considered truly awful. But, with

all these disheartening circumstances, hope, delusive hope, still supported us. Although it was evident that we must soon sink, and our progress towards the land was very slow, still we cherished the expectation that the boat would finally be run on shore, and thus most of us be delivered from a watery grave. Early in the afternoon, the ladies had been provided with strips of blankets, that they might be lashed to such parts of the boat as would afford the greatest probability of safety.

“In this condition, and with these expectations, we gradually, but with a motion nearly imperceptible, approached, what to many of us was an untried, and almost an unknown shore. At about eleven o’clock, those who had been employed in baling were compelled to leave the cabin, as the boat had sunk until the deck was nearly level with the water, and it appeared too probable that all would soon be swallowed up by the foaming waves. The heaving of the lead indicated an approach to the shore. Soon was the cheering intelligence of ‘Land! land!’ announced by those on the look-out. This, for a moment, aroused the sinking energies of all, when a general bustle ensued, in the hasty, but trifling, preparations that could be made for safety, as soon as the boat should strike. But what were the feelings of an anxious multitude, when, instead of land, a range of angry breakers were visible just ahead; and land, if it could be seen at all, was but half perceptible in the distance far beyond.

“As every particular is a matter of interest, especially to those who had friends and relatives on board,—it may not be improper to state, that one individual urged the propriety of lowering the small boats, and putting the ladies and children into them for safety, with suitable persons to manage them, before we struck the breakers. By this arrangement, had it been effected, it is believed that the boats might have rode out the gale during the night, and have been rescued in the morning by passing vessels, and thus all, or nearly all, have been saved. But few supported this proposition, and it could not be done without the prompt interference of those who had authority to command, and who would be obeyed.

“Immediately before we struck, one or two passengers, by the aid of some of the seamen, attempted to seek safety in one of the bouts at the quarter, when a breaker struck it, swept it from the davits, and carried with it a seaman, who was instantly lost. A similar attempt was made to launch the long-boat from the upper deck, by the chief mate Mr Mathews, and others. It was filled with several passengers, and some of the crew; but, as we were already within the verge of the breakers, this boat shared the fate of the other, and all on board (about ten in number) perished.

“Now commenced the most heart-rending scene. Wives clinging to husbands,—children to parents,—and women who were without protectors, seeking aid from the arm of the stranger, all awaiting the results of a moment, which would bring with it either life or death. Though an intense feeling of anxiety must, at this time, have filled every breast, yet not a shriek was heard, nor was there any extraordinary exclamation of excitement or alarm. A slight agitation was, however, apparent in the general circle. Some few hurried from one part of the boat to another, as if seeking place of greater safety; yet most, and particularly those who had the melancholy charge of wives and children, remained quiet and calm observers of the scene before them.

“The boat, at length, strikes; it stops, as motionless as a bar of lead. A momentary pause follows, as if the angel of death shrunk from so dreadful a work of slaughter. But soon the work of destruction commenced. A breaker with a deafening crash, swept over the boat, carrying its unfortunate victims into the deep. At the same time, a simultaneous rush was made towards the bows of the boat. The forward deck was covered. Another breaker came, with irresistible force, and all within its sweep disappeared. Our numbers were now frightfully reduced. The roaring of the waters, together with the dreadful crash of breaking timbers, surpasses the power of description. Some of the remaining passengers sought shelter from the encroaching dangers, by retreating to the passage, on the lee side of the boat, that leads from the after to the forward deck, as if to be as far as possible from the grasp of death. It may not be improper

here to remark, that the destruction of the boat, and loss of life, was, doubtless, much more rapid than it otherwise would have been, from the circumstance of the boat heeling to windward, and the deck, which was nearly level with the water, forming, in consequence, an inclined plane, upon which the waves broke with their full force.

“A large proportion of those who rushed into this passage, were ladies and children, with a few gentlemen who had charge of them. The crowd was so dense, that many were in danger of being crushed by the irresistible pressure. Here were perhaps some of the most painful sights ever beheld. Before introducing any of the closing scenes of individuals, which the writer witnessed, or which he has gathered from his fellow passengers, he would beg to be understood, that it is not for the gratification of the idle curiosity of the careless and indifferent reader, or to pierce afresh the bleeding wounds of surviving friends, but to furnish such facts as may be interesting, and which, perhaps, might never be attained through any other channel.

“As the immediate connections of the writer are already informed of the particulars relating to his own unhappy bereavement, there is no necessity for entering in a minute detail of this melancholy event.

“This passage contained perhaps thirty or more persons, consisting of men, women and children, with no apparent possibility of escape; enclosed within a narrow aperture, over which was the deck, and both ends of which were completely closed by the fragments of the boat and the rushing of the waves. While thus shut up, death appeared inevitable. Already were both decks swept of everything that was on them. The dining cabin was entirely gone, and everything belonging to the quarter-deck was completely stripped off, leaving not even a stanchion or particle of the bulwarks; and all this was the work of about five minutes.

“The starboard wheel-house, and everything about it, was soon entirely demolished. As much of the ceiling forward of the starboard wheel had, during the day, fallen from its place, the waves soon found their way through all that remained to oppose them, and were

in a few minutes' time forcing into the last retreat of those who had taken shelter in the passage already mentioned.

"Every wave made a frightful encroachment on our narrow limits, and seemed to threaten us with immediate death. Hopeless as was the condition of those thus hemmed in, yet not a shriek was heard from them. One lady, unknown to the writer, begged earnestly for some one to save her. In a time of such alarm, it is not strange that a helpless female should plead with earnestness for assistance from those who were about her, or even offer them money for that aid which the least reflection would have convinced her it was not possible to render. Another scene, witnessed at this trying hour, was still more painful. A little boy was pleading with his father to save him. 'Father,' said the boy, 'you will save me, won't you? you can swim ashore with me, can't you, father?' But the unhappy father was too deeply absorbed in the other charges that leant on him, even to notice the imploring accents of his helpless child. For at that time, as near as the writer can judge, from the darkness of the place they were in, his wife hung upon one arm, and his daughter of seventeen upon the other. He had one daughter besides, near the age of this little boy, but whether she was at that time living or not, is uncertain.

"After remaining here some minutes, the deck overhead was split open by the violence of the waves, which allowed the writer an opportunity of climbing out. This he instantly did, and assisted his wife through the same opening. As he had now left those below, he is unable to say how they were finally lost; but, as that part of the boat was very soon completely destroyed, their further sufferings could not have been much prolonged. We were now in a situation which, from the time the boat struck, we had considered as the most safe, and had endeavoured to attain. Here we resolved to await our uncertain fate. From this place we could see the encroachment of the devouring waves, every one of which reduced our thinned numbers, and swept with it parts of our crumbling boat. For several hours previously, the gale had been sensibly abating; and, for a moment, the pale moon broke through the dispersing clouds, as if to witness this scene of terror and destruction, and to show to the

horror-stricken victims the fate that awaited them. How few were now left, of the many who, but a little before, inhabited our bark! While the moon yet shone, three men were seen to rush from the middle to the stern of the boat. A wave came rushing on. It passed over the deck. One only, of the three, was left. He attempted to gain his former position. Another wave came. He had barely time to reach a large timber, to which he clung, when this wave struck him, and he too was missing. As the wave passed away, the heads of two of these men were seen above the water; but they appeared to make no effort to swim. The probability is, that the violence with which they were hurled into the sea disabled them. They sunk to rise no more.

“During this time, Mr Lovegreen, of Charleston, continued to ring the boat’s bell, which added if possible to the gloom. It sounded, indeed, like the funeral knell over the departed dead. Never before, perhaps, was a bell tolled at such a funeral as this. While in this situation, and reflecting on the necessity of being always prepared for the realities of eternity, our attention was arrested by the appearance of a lady, climbing upon the outside of the boat, abaft the wheel near where we were. Her head was barely above the deck on which we stood, and she was holding to it, in a most perilous manner. She implored help, without which she must soon have fallen into the deep beneath, and shared the fate of the many who had already gone. The writer ran to her aid, but was unable to raise her to the deck. Mr Woodburn, of New York, now came, and, with his assistance, the lady was rescued; she was then lashed to a large piece of timber, by the side of another lady, the only remaining place that afforded any prospect of safety. The former lady (Mrs Shroeder) was washed ashore on this piece of wreck, one of the two who survived. The writer having relinquished to this lady the place he had occupied, was compelled to get upon a large piece of the boat, that lay near, under the lee of the wheel; this was almost immediately driven from its place into the breakers, which instantly swept him from it, and plunged him deep into the water. With some difficulty he regained his raft. He continued to cling to this fragment, as well as he could, but was repeatedly washed from it. Sometimes when plunged deep into the water, he came up under it. After encountering all the difficulties that seemed

possible to be borne, he was at length thrown on shore, in an exhausted state. At the time the writer was driven from the boat, there were but few left. Of these, four survived, viz. Mrs Shroeder and Mr Lovegreen, of Charleston; Mr Cohen, of Columbia; and Mr Vanderzee, of New York.

“On reaching the beach, there was no appearance of inhabitants; but after wandering some distance, a light was discovered, which proved to be from Ocracoke lighthouse, about six miles south-west of the place where the boat was wrecked. The inhabitants of the island, generally, treated us with great kindness, and, so far as their circumstances, would allow, assisted in properly disposing the numerous bodies thrown upon the shore.

“The survivors, after remaining on the island till Thursday afternoon, separated, some returning to New York, others proceeding on to Charleston. Acknowledgment is due to the inhabitants of Washington, Newbern, and Wilmington, as well as of other places through which we passed, for the kind hospitality we received, and the generous offers made to us. Long will these favours be gratefully remembered by the survivors of the unfortunate Home.”

Even if the captain of the Home was intoxicated, it is certain that the loss of the vessel was not occasioned by that circumstance, but by the vessel not having been built sea-worthy.

The narrative of the loss of the Moselle is the last which I shall give to the reader. It is written by Judge Hall, one of the best of the American writers.

Loss of the Moselle.

“The recent explosion of the steam-boat Moselle, at Cincinnati, affords a most awful illustration of the danger of steam navigation, when conducted by ignorant or careless men: and fully sustains the remark made in the preceding pages, that, ‘the accidents are almost wholly confined to insufficient or badly managed boats.’

“The Moselle was a new boat, intended to ply regularly between Cincinnati and St. Louis. She had made but two or three trips, but had already established a high reputation for speed; and, as is usual in such cases, those by whom she was owned and commanded, became ambitious to have her rated as a ‘crack boat,’ and spared no pains to exalt her character. The newspapers noticed the *quick trips* of the Moselle, and passengers chose to embark in this boat in preference to others. Her captain was an enterprising young man, without much experience, bent upon gaining for his boat, at all hazards, the distinction of being the fastest upon the river, and not fully aware, perhaps, of the inevitable danger which attended this rash experiment.

“On Wednesday the 25th of April, between four and five o’clock in the afternoon, this shocking catastrophe occurred. The boat was crowded with passengers; and, as is usually the case on our western rivers, in regard to vessels passing westerly, the largest proportion were emigrants. They were mostly deck passengers, many of whom were poor Germans, ignorant of any language but their own, and the larger portion consisted of families, comprising persons of all ages. Although not a large boat, there were eighty-five passengers in the cabin, which was a much larger number than could be comfortably accommodated; the number of deck passengers is not exactly known, but, as is estimated, at between one hundred and twenty and one hundred and fifty; and the officers and crew amounted to thirty, making in all about two hundred and sixty souls.

“It was a pleasant afternoon, and the boat, with steam raised, delayed at the wharf, to increase the number—already too great—of her passengers, who continued to crowd in, singly or in companies, all anxious to hurry onwards in the first boat, or eager to take passage in the *fast-running* Moselle. They were of all conditions—the military officer hastening to Florida to take command of his regiment—the merchant bound to St. Louis—the youth seeking a field on which to commence the career of life—and the indigent emigrant with his wife and children, already exhausted in purse and spirits, but still pushing onward to the distant frontier.

“On leaving the wharf, the boat ran up the river about a mile, to take in some families and freight, and having touched at the shore for that purpose, for a few minutes, was about to lay her course down the river. The spot at which she thus landed was at a suburb of the city, called Fulton, and a number of persons had stopped to witness her departure, several of whom remarked, from the peculiar sound of the steam, that it had been raised to an unusual height. The crowd thus attracted—the high repute of the Moselle—and certain vague rumours which began to circulate, that the captain had determined, at every risk, to beat another boat which had just departed—all these circumstances gave an unusual *éclat* to the departure of this ill-fated vessel.

“The landing completed, the bow of the boat was shoved from the shore, when an explosion took place, by which the whole of the forepart of the vessel was literally blown up. The passengers were unhappily in the most exposed positions on the deck, and particularly on the forward part, sharing the excitement of the spectators on shore, and anticipating the pleasure of darting rapidly past the city in the swift Moselle. The power of the explosion was unprecedented in the history of steam; its effect was like that of a mine of gunpowder. All the boilers, four in number, were simultaneously burst; the deck was blown into the air, and the human beings who crowded it hurried into instant destruction. Fragments of the boilers, and of human bodies, were thrown both to the Kentucky and the Ohio shore; and as the boat lay near the latter, some of these helpless victims must have been thrown a quarter of a mile. The body of Captain Perry, the master, was found dreadfully mangled, on the nearest shore. A man was hurled with such force, that his head, with half his body, penetrated the roof of a house, distant more than a hundred yards from the boat. Of the number who had crowded this beautiful boat a few minutes before, nearly all were hurled into the air, or plunged into the water. A few, in the after part of the vessel, who were uninjured by the explosion, jumped overboard. An eye-witness says that he saw sixty or seventy in the water at one time, of whom not a dozen reached the shore.

“The news of this awful catastrophe spread rapidly through the city, thousands rushed to the spot, and the most benevolent aid was promptly extended to the sufferers—to such, we should rather say, as were within the reach of human assistance—for the majority had perished.

“The writer was among those who hastened to the neighbourhood of the wreck, and witnessed a scene so sad that no language can depict it with fidelity. On the shore lay twenty or thirty mangled and still bleeding corpses, while others were in the act of being dragged from the wreck or the water. There were men carrying away the wounded, and others gathering the trunks, and articles of wearing apparel, that strewed the beach.

“The survivors of this awful tragedy presented the most touching objects of distress. Death had torn asunder the most tender ties; but the rupture had been so sudden and violent, that as yet none knew certainly who had been taken, nor who had been spared. Fathers were inquiring for children, children for parents, husbands and wives for each other. One man had saved a son, but lost a wife and five children. A father, partially deranged, lay with a wounded child on one side, a dead daughter on the other, and his wife, wounded, at his feet. One gentleman sought his wife and children, who were as eagerly seeking him in the same crowd—they met, and were reunited.

“A female deck passenger, that had been saved, seemed inconsolable for the loss of her relations. To every question put to her, she would exclaim, ‘Oh my father! my mother! my sisters!’ A little boy, about four or five years of age, whose head was much bruised, appeared to be regardless of his wounds, but cried continually for a lost father; while another lad, a little older, was weeping for his whole family.

“One venerable looking man wept a wife and five children; another was bereft of nine members of his family. A touching display of maternal affection was evinced by a lady who, on being brought to the shore, clasped her hands and exclaimed, ‘Thank God, I am safe!’

but instantly recollecting herself, ejaculated in a voice of piercing agony, 'where is my child!' The infant, which had been saved, was brought to her, and she fainted at the sight of it.

"A public meeting was called in Cincinnati, at which the mayor presided, when the facts of this melancholy occurrence were discussed, and among other resolutions passed, was one deprecating 'the great and increasing carelessness in the navigation of steam vessels,' and urging this subject upon the consideration of Congress. No one denied that this sad event, which had filled our city with consternation, sympathy, and sorrow, was the result of a reckless and criminal inattention to their duty, on the part of those having the care of the Moselle, nor did any one attempt to palliate their conduct. Committees were appointed to seek out the sufferers, and perform the various duties which humanity dictated. Through the exertions of the gentlemen appointed on this occasion, lists were obtained and published, showing the names of the passengers as far as could be obtained, and giving the following result:—"

Killed	81
Badly wounded	18
Missing	55
Saved	117
	266

"As many strangers entered the boat but a few minutes before its departure, whose names were not registered, it is probable that the whole number of souls on board was not less than *two hundred and eighty*. Of the missing, many dead bodies have since been found, but very few have been added to the list of *saved*. The actual number of lives lost, therefore, does not vary much from *one hundred and fifty*."

The following observations are made in the Report of the Committee, relative to the tremendous force of the steam:

“Of the immense force exerted in this explosion, there is abundant evidence: still in this extraordinary occurrence in the history of steam, I deem it important to be particular in noting the facts, and for that purpose I have made some measurements and calculations. The boat was one hundred and sixteen feet from the water’s edge, one hundred and ninety-two from the top of the bank, which was forty-three feet in perpendicular height above the water. The situations of projected bodies ascertained were as follows: Part of the body of a man, thrown nearly horizontally into a skiff at the water’s edge, one hundred and sixteen feet. The body of the captain thrown nearly to the top of the bank, two hundred feet. The body of a man thrown through the roof of a house, at the distance of one hundred and twelve feet, and fifty-nine feet above the water’s edge. A portion of the boiler, containing about sixty square feet, and weighing about four hundred and fifty pounds, thrown one hundred and seventy feet, and about two-thirds of the way up the bank. A second portion of the boiler, of about thirty-five square feet, and weighing about two hundred and forty-five pounds, thrown four hundred and fifty feet on the hill side, and seventy feet in altitude. A third portion of the boiler, twenty-one square feet, one hundred and forty-seven pounds, thrown three hundred and thirty feet into a tan-yard. A fourth portion, of forty-eight square feet, and weighing three hundred and thirty-six pounds, thrown four hundred and eighty feet into the garret of a back shop of a tan-yard; having broken down the roof and driven out the gable-end. The last portion must have been thrown to a very great height, as it had entered the roof of (sic) an angle of at least sixty degrees. A fifth portion, weighing two hundred and thirty-six pounds, went obliquely up the river eight hundred feet, and passing over the houses, landed on the side walk, the bricks of which had been broken and driven deeply into the ground by it. This portion had encountered some individual in its course, as it came stained with blood. Such was the situation of the houses that it must have fallen at an angle as high as forty-five degrees. It has been stated, that bodies of persons were projected quite across the river into Kentucky. I can find no evidence of the truth of this: on the contrary, Mr Kerr informs me that he made inquiries of the people on the opposite shore, and could not learn that anything was seen to fall

farther than half way across the river, which is at that place about sixteen hundred feet wide.”

I was at Cincinnati some time after the explosion, and examined the wreck which still lay on the Ohio shore. After the report was drawn up it was discovered that the force of the explosion had been even greater than was supposed, and that portions of the engine and boilers had been thrown to a much greater distance. It is to be remarked, that Mr Woodbury's report to Congress states from one hundred to one hundred and twenty persons as having been killed. Judge Hall, in the report of the committee, estimates it at one hundred and fifty; but there is reason to believe that the loss on this occasion, as well as in many others, was greater than even in the report of the committee. The fact is, it is almost impossible to state the loss on these occasions; the only data to go upon are the books in which the passengers' names are taken down when the fare is paid, and this is destroyed. In a country like America, there are thousands of people unknown to anybody, migrating here and there, seeking the Far West to settle in; they come and go, and nobody knows anything of them; there might have been one hundred more of them on board the Moselle at the time that she exploded; and as I heard from Captain Pearce, the harbour-master, and others, it is believed that such was the case, and that many more were destroyed than was at first supposed.

The American steam-boats are very different from ours in appearance, in consequence of the engines being invariably on deck. The decks also are carried out many feet wider on each side than the hull of the vessel, to give space; these additions to the deck are called guards. The engine being on the first deck, there is a second deck for the passengers, state-rooms, and saloons; and above this deck there is another, covered with a white awning. They have something the appearance of two-deckers, and when filled with company, the variety of colours worn by the ladies have a very novel and pleasing effect. The boats which run from New York to Boston, and up the Hudson river to Albany, are very splendid vessels; they have low-pressure engines, are well commanded, and I never heard

of any accident of any importance taking place; their engines are also very superior—one on board of the Narangassett, with a horizontal stroke, was one of the finest I ever saw. On the Mississippi, Ohio, and their tributary rivers, the high-pressure engine is invariably used; they have tried the low-pressure, but have found that it will not answer, in consequence of the great quantity of mud contained in solution on the waters of the Mississippi, which destroys all the valves and leathers; and this is the principal cause of the many accidents which take place. At the same time it must be remembered, that there is a recklessness—an indifference to life—shown throughout all America; which is rather a singular feature, inasmuch as it extends East as well as West. It can only be accounted for by the insatiate pursuit of gain among a people who consider that time is money, and who are blinded by their eagerness in the race for it, added to that venturous spirit so naturally imbibed in a new country, at the commencement of its occupation. It is communicated to the other sex, who appear equally indifferent. The Moselle had not been blown up two hours, before the other steamboats were crowded with women, who followed their relations on business or pleasure, up and down the river. “Go a-head,” is the motto of the country; both sexes join in the cry; and they do go a-head—that’s a fact!

I was amused with a story told me by an American gentleman: a steamboat caught fire on the Mississippi, and the passengers had to jump overboard and save themselves by swimming. One of those reckless characters, a gambler, who, was on board, having apparently a very good idea of his own merits, went aft, and before he leapt overboard, cried out, “Now, gallows, claim your own!”

The attention of the American legislature has at length been directed to the want of security in steam navigation; and in July, 1838, an act was passed to provide for the better security of the passengers. Many of the clauses are judicious, especially as far as the inspecting of them is regulated; but that of iron chains or rods for tiller ropes is not practicable on a winding river, and will be the occasion of many disasters. Had they ordered the boats to be provided with iron chains

or rods, to be used as preventive wheel-ropes, it would have answered the purpose. In case of fire they could easily be hooked on; but to steer with them in tide-ways and rapid turns is almost impossible. The last clause, No. 13, (page 170, Report) is too harsh, as a flue may collapse at any time, without any want of care or skill on the part of the builders or those on board.

It is to be hoped that some good effects will be produced by this act of the legislature. At present, it certainly is more dangerous to travel one week in America than to cross the Atlantic a dozen times. The number of lives lost in one year by accidents in steam boats, railroads, and coaches, was estimated, in a periodical which I read in America, at *one thousand seven hundred and fifty*.

Volume One—Chapter Four.

Travelling.

To one who has been accustomed to the extortion of the inns and hotels in England, and the old continent, nothing at first is more remarkable than to find that there are more remains of the former American purity of manners and primitive simplicity to be observed in their establishments for the entertainment of man and horse, than in any portion of public or private life. Such is the case, and the causes of the anomaly are to be explained.

I presume that the origin of hotels and inns has been much the same in all countries. At first the solitary traveller is received, welcomed, and hospitably entertained; but, as the wayfarers multiply, what was at first a pleasure becomes a tax. For instance, let us take Western Virginia, through which the first irruption to the Far West may be said to have taken place. At first every one was received and accommodated by those who had settled there; but as this gradually became inconvenient, not only from interfering with their domestic privacy, but from their not being prepared to meet the wants of the travellers, the inhabitants of any small settlement met together and

agreed upon one of them keeping the house of reception; this was not done with a view of profit, the travellers being only charged the actual value of the articles consumed. Such is still the case in many places in the Far West; a friend of mine told me that he put up at the house of a widow woman; he supped, slept, had his breakfast, and his horse was also well supplied. When he was leaving, he inquired what he had to pay, the woman replied—, “Well, if I don’t charge something, I suppose you will be affronted. Give me a shilling;” a sum not sufficient to pay for the horse’s corn.

The American innkeeper, therefore, is still looked upon in the light of your host; he and his wife sit at the head of the *table-d’hôte* at meal times; when you arrive he greets you with a welcome, shaking your hand; if you arrive in company with those who know him, you are introduced to him; he is considered on a level with you; you meet him in the most respectable companies, and it is but justice to say that, in most instances, they are a very respectable portion of society. Of course, his authority, like that of the captains of the steam-boats, is undisputed; indeed the captains of these boats may be partly considered as classed under the same head.

This is one of the most pleasing features in American society, and I think it is likely to last longer than most others in this land of change, because it is upheld by public opinion, which is so despotic. The mania for travelling, among the people of the United States, renders it most important that every thing connected with locomotion should be well arranged; society demands it, public opinion enforces it, and therefore, with few exceptions, it is so. The respect shown to the master of a hotel induces people of the highest character to embark in the profession; the continual streams of travellers which pours through the country, gives sufficient support by moderate profits, to enable the innkeeper to abstain from excessive charges; the price of every thing is known by all, and no more is charged to the President of the United States than to other people. Every one knows his expenses; there is no surcharge, and fees to waiters are voluntary, and never asked for. At first I used to examine the bill when presented, but latterly I looked only at the sum total at the bottom

and paid it at once, reserving the examination of it for my leisure, and never in one instance found that I had been imposed upon. This is very remarkable, and shows the force of public opinion in America; for it can produce, when required, a very scarce article all over the world, and still more scarce in the profession referred to, Honesty. Of course there will be exceptions, but they are very few, and chiefly confined to the cities. I shall refer to them afterwards, and at the same time to some peculiarities, which I must not omit to point out, as they affect society. Let me first describe the interior arrangements of a first-rate American hotel.

The building is very spacious, as may be imagined when I state that in the busy times, from one hundred and fifty to two, or even three hundred, generally sit down at the dinner-table. The upper stories contain an immense number of bed-rooms, with their doors opening upon long corridors, with little variety in their furniture and arrangement, except that some are provided with large beds for married people, and others with single beds. The basement of the building contains the dinner-room, of ample dimensions, to receive the guests, who at the sound of a gong rush in, and in a few minutes have finished their repast. The same room is appropriated to breakfast and supper. In most hotels there is but one dining-room, to which ladies and gentlemen both repair, but in the more considerable, there is a smaller dining-room for the ladies and their connexions who escort them. The ladies have also a large parlour to retire to; the gentlemen have the reading-room, containing some of the principal newspapers, and the *Bar*, of which hereafter. If a gentleman wants to give a dinner to a private party in any of these large hotels, he can do it; or if a certain number of families join together, they may also eat in a separate room (this is frequently done at Washington;) but if a traveller wishes to seclude himself à *l'Anglaise*, and dine in his own room, he must make up his mind to fare very badly, and, moreover, if he is a foreigner, he will give great offence, and be pointed out as an aristocrat—almost as serious a charge with the majority in the United States, as it was in France during the Revolution.

The largest hotels in the United States are Astor House, New York; Tremont House, Boston; Mansion house, Philadelphia; the hotels at West Point, and at Buffalo; but it is unnecessary to enumerate them all. The two pleasantest, are the one at West Point, which was kept by Mr Cozens, and that belonging to Mr Head, the Mansion House at Philadelphia; but the latter can scarcely be considered as a hotel, not only because Mr Head is, and always was, a gentleman with whom it is a pleasure to associate, but because he is very particular in whom he receives, and only gentlemen are admitted. It is more like a private club than any thing else I can compare it to, and I passed some of my pleasantest time in America at his establishment, and never bid farewell to him or his sons, or the company, without regret. There are some hotels in New York upon the English system: the Globe is the best, and I always frequented it; and there is an excellent French restaurateur's (Delmonico's).

Of course, where the population and traffic are great, and the travellers who pass through numerous, the hotels are large and good; where, on the contrary, the road is less and less frequented, so do they decrease in importance, size, and respectability, until you arrive at the farm-house entertainment of Virginia and Kentucky; the grocery, or mere grog-shop, or the log-house of the Far West. The way-side inns are remarkable for their uniformity; the furniture of the bar-room is invariably the same: a wooden clock, map of the United States, map of the State, the Declaration of Independence, a looking-glass, with a hair-brush and comb hanging to it by strings, *pro bono publico*; sometimes with the extra embellishment of one or two miserable pictures, such as General Jackson scrambling upon a horse, with fire or steam coming out of his nostrils, going to the battle of New Orleans, etcetera, etcetera.

He who is of the silver-fork school, will not find much comfort out of the American cities and large towns. There are no neat, quiet little inns, as in England. It is all the "rough and tumble" system, and when you stop at humble inns you must expect to eat peas with a two-pronged fork, and to sit down to meals with people whose exterior is any thing but agreeable, to attend upon yourself, and to

sleep in a room in which there are three or four other beds; (I have slept in one with nearly twenty,) most of them carrying double, even if you do not have a companion in your own.

A New York friend of mine travelling in an Extra with his family, told me that at a western inn he had particularly requested that he might not have a bed-fellow, and was promised that he should not. On his retiring, he found his bed already occupied, and he went down to the landlady, and expostulated. "Well," replied she, "it's only your own *driver*; I thought you wouldn't mind him."

Another gentleman told me, that having arrived at a place called Snake's Hollow, on the Mississippi, the bed was made on the kitchen-floor, and the whole family and travellers, amounting in all to seventeen, of all ages and both sexes, turned into the same bed altogether. Of course this must be expected in a new country, and is a source of amusement, rather than of annoyance.

I must now enter into a very important question, which is that of eating and drinking. Mr Cooper, in his remarks upon his own countrymen, says, very ill-naturedly—"The Americans are the grossest feeders of any civilised nation known. As a nation, their food is heavy, coarse, and indigestible, while it is taken in the least artificial forms that cookery will allow. The predominance of grease in the American kitchen, coupled with the habits of hearty eating, and of constant expectoration, are the causes of the diseases of the stomach which are so common in America."

This is not correct. The cookery in the United States is exactly what it is and must be every where else—in a ratio with the degree of refinement of the population. In the principal cities, you will meet with as good cookery in private houses as you will in London, or even Paris; indeed, considering the great difficulty which the Americans have to contend with, from the almost impossibility of obtaining good servants, I have often been surprised that it is so good as it is. At Delmonico's, and the Globe Hotel at New York, where you dine from the Carte, you have excellent French cookery; so you have at Astor House, particularly at private parties; and, generally speaking, the

cooking at all the large hotels may be said to be good; indeed, when it is considered that the American table-d'hôte has to provide for so many people, it is quite surprising how well it is done. The daily dinner, at these large hotels, is infinitely superior to any I have ever sat down to at the *public* entertainments given at the Free-Masons' Tavern, and others in London, and the company is usually more numerous. The bill of fare of the table-d'hôte of the Astor House is *printed every day*. I have one with me which I shall here insert, to prove that the eating is not so bad in America as described by Mr Cooper.

Astor House, *Wednesday, March 21, 1838.*

Table-d'Hôte

Vermicelli Soup

Boiled Cod Fish and Oysters

Do. Corn'd Beef

Do. Ham

Do. Tongue

Do. Turkey and Oysters

Do. Chickens and Pork

Do. Leg of Mutton

Oyster Pie

Cuisse de Poulet Sauce Tomato

Poitrine de Veau au Blanc

Ballon de Mouton au Tomato

Tête de Veau en Marinade

Salade de Volaille

Casserolle de Pomme de Terre garnie

Compote de Pigeon

Rolleau de Veau à la Jardinière

Côtelettes de Veau Sauté

Filet de Mouton Pique aux Oignons

Ronde de Boeuf
Fricandeau de Veau aux Epinards
Côtelettes de Mouton Panée
Macaroni au Parmesan
Roast Beef
Do. Pig
Do. Veal
Do. Leg of Mutton
Roast Goose
Do. Turkey
Roast Chickens
Do. Wild Ducks
Do. Wild Goose
Do. Guinea Fowl
Roast Brandt
Queen Pudding
Mince Pie
Cream Puffs
Dessert.

There are some trifling points relative to eating which I shall not remark upon until I speak of society, as they will there be better placed. Of course, as you advance into the country, and population recedes, you run through all the scale of cookery until you come to the "*corn bread, and common doings*," (i.e. bread made of Indian meal, and fat pork,) in the Far West. In a new country, pork is more easily raised than any other meat, and the Americans eat a great deal of pork, which renders the cooking in the small taverns very greasy; with the exception of the Virginian farm taverns, where they fry chickens without grease in a way which would be admired by Ude himself; but this is a State receipt, handed down from generation to generation, and called *chicken fixings*. The meat in America is equal to the best in England; Miss Martineau does indeed say that she

never ate good beef during the whole time she was in this country; but she also says that an American stage-coach is the most delightful of all conveyances, and a great many other things, which I may hereafter quote, to prove the idiosyncrasy of the lady's disposition; so we will let that pass, with the observation that there is no accounting for taste. The American markets in the cities are well supplied. I have been in the game market, at New York, and seen at one time nearly three hundred head of deer, with quantities of bear, racoons, wild turkeys, geese, ducks, and every variety of bird in countless profusion. Bear I abominate; racoon is pretty good. The wild turkey is excellent; but the great delicacies in America are the terrapin, and the canvas-back ducks. To like the first I consider as rather an acquired taste. I decidedly prefer the turtle, which are to be had in plenty, all the year round; but the canvas-back duck is certainly well worthy of its reputation. Fish is well supplied. They have the sheep's head, shad, and one or two others, which we have not. Their salmon is not equal to ours, and they have no turbot. Pine-apples, and almost all the tropical fruits, are hawked about in carts in the Eastern cities; but I consider the fruit of the temperate zone, such as grapes, peaches, etcetera, inferior to the English. Oysters are very plentiful, very large, and, to an English palate, rather insipid. As the Americans assert that the English and French oysters taste of copper, and that therefore they cannot eat them, I presume they do; and that's the reason why we do not like the American oysters, copper being better than no flavour at all.

I think, after this statement, that the English will agree with me that there are plenty of good things for the table in America; but the old proverb says, "God sends meat, and the devil sends cooks;" and such is, and unfortunately must be, the case for a long while, in most of the houses in America, owing to the difficulty of obtaining, or keeping servants. But I must quit the subject of eating, for one of much more importance in America, which is that of drinking.

I always did consider that the English and the Swiss were the two nations who most indulged in potations; but on my arrival in the United States, I found that our descendants, in this point most

assuredly, as they fain would be thought to do in all others, surpassed us altogether.

Impartiality compels me to acknowledge the truth; we must, in this instance, submit to a national defeat. There are many causes for this: first, the heat of the climate, next the coldness of the climate, then the changeableness of the climate; add to these, the cheapness of liquor in general, the early disfranchisement of the youth from all parental control, the temptation arising from the bar and association, and, lastly, the pleasantness, amenity, and variety of the potations.

Reasons, therefore, are as plentiful as blackberries, and habit becomes second nature.

To run up the whole catalogue of the indigenous compounds in America, from “iced water” to a “stone fence,” or “streak of lightning,” would fill a volume; I shall first speak of foreign importations.

The Port in America is seldom good; the climate appears not to agree with the wine. The quantity of Champagne drunk is enormous, and would absorb all the vintage of France, were it not that many hundred thousand bottles are consumed more than are imported.

The small state of New Jersey has the credit of supplying the *American* Champagne, which is said to be concocted out of turnip juice, mixed with brandy and honey. It is a pleasant and harmless drink, a very good imitation, and may be purchased at six or seven dollars a dozen. I do not know what we shall do when America fills up, if the demand for Champagne should increase in proportion to the population; we had better drink all we can now.

Claret, and the other French wines, do very well in America, but where the Americans beat us out of the field is in their Madeira, which certainly is of a quality which we cannot procure in England. This is owing to the extreme heat and cold of the climate, which ripens this wine; indeed, I may almost say, that I never tasted good Madeira, until I arrived in the United States. The price of wines, generally speaking, is very high, considering what a trifling duty is

paid, but the price of good Madeira is surprising. There are certain brands, which if exposed to public auction, will be certain to fetch from twelve to twenty, and I have been told even forty dollars a bottle. I insert a list of the wines at Astor House, to prove that there is no exaggeration in what I have asserted. Even in this list of a tavern, the reader will find that the best Madeira is as high as twelve dollars a bottle, and the list is curious from the variety which it offers.

But the Americans do not confine themselves to foreign wines or liquors; they have every variety at home, in the shape of compounds, such as mint-julep and its varieties; slings in all their varieties; cocktails, but I really cannot remember, or if I could, it would occupy too much time to mention the whole battle array against one's brains. I must, however, descant a little upon the mint-julep; as it is, with the thermometer at 100 degrees, one of the most delightful and insinuating potations that ever was invented, and may be drank with equal satisfaction when the thermometer is as low as 70 degrees. There are many varieties, such as those composed of Claret, Madeira, etcetera; but the ingredients of the real mint-julep are as follows. I learnt how to make them, and succeeded pretty well. Put into a tumbler about a dozen sprigs of the tender shoots of mint, upon them put a spoonful of white sugar, and equal proportions of peach and common brandy, so as to fill it up one third, or perhaps a little less. Then take rasped or pounded ice, and fill up the tumbler. Epicures rub the lips of the tumbler with a piece of fresh pine-apple, and the tumbler itself is very often incrustated outside with stalactites of ice. As the ice melts, you drink. I once overheard two ladies talking in the next room to me, and one of them said, "Well, we have a weakness for any one thing, it is for a mint-julep—" a very amiable weakness, and proving her good sense and good taste. They are, in fact, like the American ladies, irresistible.

The Virginians claim the merit of having invented this superb compound, but I must dispute it for my own country, although it has been forgotten of late. In the times of Charles the First and Second it must have been known, for Milton expressly refers to it in his *Comus*:

“Behold the cordial julep—here
Which flames and dances in its crystal bounds
With spirits of *balm* and *fragrant syrups* mixed.
Not that Nepenthes, which the wife of Thone
In Egypt gave to Jove-born Helena
Is of such power to stir up joy like this,
To life so friendly, or so *cool to thirst*.”

If that don't mean mint-julep, I don't know the English language.

The following lines, however, which I found in an American newspaper, dates its origin very far back, even to the period when the heathen gods were not at a discount as they are now.

Origin of Mint-Julep.

'Tis said that the gods, on Olympus of old,
(And who, the bright legend profanes, with a doubt,)
One night, 'mid their revels, by Bacchus were told
That his last butt of nectar had somewhat run out!

But determined to send round the goblet once more,
They sued to the fairer immortals—for aid
In composing a draught which, till drinking were o'er,
Should cast every wine ever drank in the shade.

Grave Cerce herself blithely yielded her corn,
And the spirit that lives in each amber-hued grain,
And which first had its birth from the dews of the morn,
Was taught to steal out in bright dew drops again.

Pomona, whose choicest of fruits on the board,
Were scattered profusely in every one's reach,
When called on a tribute to cull from the board,
Expressed the mild juice of the delicate peach.

The liquids were mingled while Venus looked on

With glances so fraught with sweet-magical power,
That the honey of Ilybla, e'en when they were gone,
Has never been missed in the draught from that hour.

Flora, then, from her bosom of fragrance shook,
And with roseate fingers pressed down in the bowl,
As dripping and fresh as it came from the brook,
The herb whose aroma should flavour the whole.

The draught was delicious, each god did exclaim,
Though something yet wanting they all did bewail,
But Julep the drink of immortals became,
When Jove himself added a handful of hail.

I have mentioned the principal causes to which must be assigned the propensity to drink, so universal in America. This is an undeniable fact, asserted by every other writer, acknowledged by the Americans themselves in print, and proved by the labours of their Temperance Societies. It is not confined to the lower classes, but pervades the whole mass: of course, where there is most refinement, there is less intoxication, and in the Southern and Western States, it is that the custom of drinking is most prevalent.

I have said that in the American hotels there is a parlour for the ladies to retire to: there is not one for the gentlemen, who have only the reading-room, where they stand and read the papers, which are laid out on desks, or the bar.

The bar of an American hotel is generally a very large room on the basement, fitted up very much like our gin palaces in London, not so elegant in its decorations indeed, but on the same system. A long counter runs across it, behind which stand two or three bar-keepers to wait upon the customers, and distribute the various potations, compounded from the contents of several rows of bottles behind them. Here the eye reposes on masses of pure crystal ice, large bunches of mint, decanters of every sort of wine, every variety of spirits, lemons, sugar, bitters, cigars and tobacco; it really makes one

feel thirsty, even the going into a bar. (See Note 3.) Here you meet every body and every body meets you. Here the senator, the member of Congress, the merchant, the store-keeper, travellers from the Far West, and every other part of the country, who have come to purchase goods, all congregate.

Most of them have a cigar in their mouth, some are transacting business, others conversing, some sitting down together whispering confidentially. Here you obtain all the news, all the scandal, all the politics, and all the fun; it is this dangerous propinquity, which occasions so much intemperance. Mr Head has no bar at the Mansion-house in Philadelphia, and the consequence is, that there is no drinking, except wine at dinner; but in all the other hotels, it would appear as if they purposely allowed the frequenters no room to retire to, so that they must be driven to the bar, which is by far the most profitable part of the concern.

The consequence of the bar being the place of general resort, is, that there is an unceasing pouring out, and amalgamation of alcohol, and other compounds, from morning to late at night. To drink with a friend when you meet him is good fellowship, to drink with a stranger is politeness, and a proof of wishing to be better acquainted.

Mr A is standing at the bar, enter B. "My dear B, how are you?"—"Quite well, and you?"—"Well, what shall it be?"—"Well, I don't care—a gin sling."—"Two gin slings, Bar-keeper." Touch glasses, and drink. Mr A has hardly swallowed his gin sling, and replaced his cigar, when, in comes Mr D. "A, how are you?"—"Ah! D, how goes it on with you?"—"Well, I thankey—what shall we have?"—"Well, I don't care; I say brandy cocktail."—"Give me another," both drink, and the shilling is thrown down on the counter.

Then B comes up again. "A, you must allow me to introduce my friend C."—"Mr A"—shake hands—"Most happy to make the acquaintance. I trust I shall have the pleasure of drinking—something with you?"—"With great pleasure, Mr A, I will take a julep."—"Two juleps, Bar-keeper."—"Mr C, your good health"—"Mr A, yours; if you should come our way, most happy to see you,"—drink.

Now, I will appeal to the Americans themselves, if this is not a fair sample of a bar-room.

They say that the English cannot settle any thing properly, without a dinner. I am sure the Americans can fix nothing, without a drink. If you meet, you drink; if you part, you drink; if you make acquaintance, you drink; if you close a bargain you drink; they quarrel in their drink, and they make it up with a drink. They drink, because it is hot; they drink because it is cold. If successful in elections, they drink and rejoice; if not, they drink and swear; they begin to drink early in the morning, they leave off late at night; they commence it early in life, and they continue it, until they soon drop into the grave. To use their own expression, the way they drink, is "quite a caution" (See Note 4.) As for water, what the man said, when asked to belong to the Temperance Society, appears to be the general opinion, "it's very good for navigation."

So much has it become the habit to cement all friendship, and commence acquaintance by drinking, that it is a cause of serious offence to refuse, especially in a foreigner, as the Americans like to call the English. I was always willing to accommodate the Americans in this particular, as far as I could; (there at least, they will do me justice;) that at times I drank much more than I wished is certain, yet still I gave most serious offence, especially in the West, because I would not drink early in the morning, or before dinner, which is a general custom in the States, although much more prevalent in the South and West, where it is literally, "Stranger, will you drink or fight?" This refusal on my part, or rather excusing myself from drinking with all those who were introduced to me, was eventually the occasion of much disturbance and of great animosity towards me—certainly, most unreasonably, as I was introduced to at least twenty every forenoon; and had I drunk with them all, I should have been in the same state as many of them were—that is, not really sober for three or four weeks at a time.

That the constitutions of the Americans must suffer from this habit is certain; they do not, however, appear to suffer so much as we

should. They say that you may always know the grave of a Virginian; as from the quantity of juleps he has drunk, mint invariably springs up where he has been buried. But the Virginians are not the greatest drinkers, by any means. I was once looking for an American, and asked a friend of his, where I should find him. "Why," replied he, pointing to an hotel opposite, "that is his *licking place*, (a term borrowed from deer resorting to lick the salt:) we will see if he is there." He was not; the bar-keeper said he had left about ten minutes. "Well, then, you had better remain here, he is certain to be back in ten more—if not sooner." The American judged his friend rightly; in five minutes he was back again, and we had a drink together, of course.

I did not see it myself, but I was told that somewhere in Missouri, or thereabouts, west of the Mississippi, all the bars have what they term a *kicking-board*, it being the custom with the people who live there, instead of touching glasses when they drink together, to kick sharply with the side of the foot against the board, and that after this ceremony you are sworn friends. I have had it mentioned to me by more than one person, therefore I presume it is the case. What the origin of it is I know not, unless it intends to imply, "I'm your's to the *last kick*."

Before I finish this article on hotels, I may as well observe here that there is a custom in the United States, which I consider very demoralising to the women, which is that of taking up permanent residence in large hotels.

There are several reasons for this: one is, that people marry so very early that they cannot afford to take a house with the attendant expenses, for in America it is cheaper to live in a large hotel than to keep a house of your own; another is, the difficulty of obtaining servants, and, perhaps, the unwillingness of the women to have the fatigue and annoyance which is really occasioned by an establishment in that country: added to which is the want of society, arising from their husbands being from morning to night plodding at their various avocations. At some of the principal hotels you will find

the apartments of the lodgers so permanently taken, that the plate with their name engraved on it is fixed on the door. I could almost tell whether a lady in America kept own establishment or lived at an hotel, the difference of manners are so marked; and, what is worse, it is chiefly the young married couples who are to be found there. Miss Martineau makes some very just comments upon this practice:

“The uncertainty about domestic service is so great, and the economy of boarding-house life so tempting to people who have not provided themselves with house and furniture, that it is not to be wondered at that many young married people use the accommodation provided. But no sensible husband, who could beforehand become acquainted with the liabilities incurred, would willingly expose his domestic peace to the fearful risk. I saw enough when I saw the elegantly dressed ladies repair to the windows of the common drawing-room, on their husbands’ departure to the counting-house after breakfast.

“I have been assured that there is no end to the difficulties in which gentlemen have been involved, both as to their commercial and domestic affairs, by the indiscretion of their thoughtless young wives, amidst the idleness and levities of boarding-house life. As for the gentlemen, they are much to be pitied. Public meals, a noisy house, confinement to one or two private rooms, with the absence of all gratifications of their own peculiar convenience and taste, are but a poor solace to the man of business, after the toils and cares of the day. When to these are added the snares to which their wives are exposed, it may be imagined that men of sense and refinement would rather bear with any domestic inconvenience from the uncertainty and bad quality of help, than give up housekeeping.”

If such is the case in boarding-houses, what must it be in hotels, where the male company is ever changing. It is one constant life of scandal, flirting, eating, drinking, and living in public; the sense of delicacy is destroyed, and the women remind you of the flowers that have been breathed upon till they have lost their perfume.

Miss M observes:—

“I can only say, that I unavoidably knew of more easings of lapse in highly respectable families in one State than ever came to my knowledge at home; and that they were got over with a disgrace far more temporary and superficial than they could have been visited with in England.”

If this observation is correct, it must, in my opinion, be considered as referring to that portion of the sex who live in *hotels*, certainly not to the mass, for reasons which I shall hereafter point out.

Indeed, what I have seen at some of the large hotels fully bears out her assertion. Miss M talks of young ladies being *taken* to the piano in a promiscuous company. I have seen them go to the piano without being taken there, sit down and sing with all the energy of peacocks, before total strangers, and very often without accompaniment. In the hotels, the private apartments of the boarders seldom consist of more than a large bed-room, and although company are admitted into it, still it is natural that the major portion of the women's time should be passed down below in the general receiving room. In the evening, especially in the large western cities, they have balls almost every night; indeed it is a life of idleness and vacuity of outward pretence, but of no real good feeling.

Scandal rages—every one is busy with watching her neighbour's affairs; those who have boarded there longest take the lead, and every newcomer or stranger is canvassed with the most severe scrutiny; their histories are ascertained, and they are very often sent to Coventry, for little better reason than the will of those who, as residents, lay down the law.

Indeed, I never witnessed a more ridiculous compound of pretended modesty, and real want of delicacy, than is to be found with this class of sojourners on the highway. Should any of their own sex arrive, of whom some little scandal has been afloat, they are up in arms, and down they plump in their rocking-chairs; and although the hotel may cover nearly an acre of ground, so afraid are they of contamination,

that they declare they will not go down to dinner, or eat another meal in the hotel, until the obnoxious parties “clear out.” The proprietors are summoned, husbands are bullied, and, rather than indignant virtue should starve in her rocking-chair, a committee is formed, and the libelled parties, guilty or not guilty, are requested to leave the hotel. As soon as this purification is announced, virtue, appeased, recovers her appetite, and they all eat drink, talk scandal, flirt, and sing without invitation as before.

I have been severe upon this class of society in America, not only because I consider that it deserves it, but because I wish to point out that Miss Martineau’s observations must be considered as referring to it, and not to the general character of the American woman.

Note 1. The Americans are apt to boast that they have not to pay for civility, as we do in England, by facing waiters, coachmen, etcetera. In some respects this is true, but in the cities the custom has become very prevalent. A man who attends a large dinner-table, will of course pay more attention to those who give him something, than to those who do not; one gives him something, and another, if he wishes for attention and civility, is obliged to do the same thing. In some of the hotels at New York, and in the principal cities, you not only must fee, but you must fee much higher than you do in England, if you want to be comfortable.

Note 2. If I am rightly informed; there are very unpleasant cutaneous diseases to which the Americans are subject, from the continual use of the same brush and comb, and from sleeping together, etcetera, but it is a general custom. At Philadelphia, a large ball was given, (called, I think, the Fireman’s Ball,) and at which about 1,500 people were present, all the fashion of Philadelphia; yet even here there were six combs, and six brushes, placed in a room with six looking-glasses for the use of *all* the gentlemen. An American has come into my room in New York, and *sans cérémonie* taken up my hair-brush, and amused himself with brushing his head. They are certainly very

unrefined in the toilet as yet. When I was travelling, on my arrival at a city I opened my dressing case, and a man passing by my room when the door was open, attracted by the glitter, I presume, came in and looked at the apparatus which is usually contained in such articles—"Pray, Sir," said he, "are you a *dentist*?"

Note 3. Every steam-boat has its bar. The theatres, all places of public amusement, and even the capitol itself; as I have observed in my Diary.

Note 4. It was not a bad idea of a man who, generally speaking, was very low-spirited, on being asked the cause, replied, that he did not know, but he thought "that he had been born with *three drinks too little* in him."

Note 5. In a chapter which follows this, I have said that the women of America are physically superior to the men. This may appear contradictory, as of course they could not be born so; nor are they, for I have often remarked how very fine the American male children are, especially those lads who have grown up to the age of fourteen or sixteen. One could hardly believe it possible that the men are the same youths, advanced in life. How is this to be accounted for? I can only suppose that it is from their plunging too early into life as men, having thrown off parental control, and commencing the usual excesses of young men in every country at too tender an age. The constant stimulus of drink must, of course, be another powerful cause; not that the Americans often become intoxicated, on the contrary, you will see many more in this condition every day in this country than you will in America. But occasional intoxication is not so injurious to the constitution as that continual application of spirits, which must enfeeble the stomach, and, with the assistance of tobacco, destroy its energies. The Americans are a *drinking* but not a *drunken*, nation, and, as I have before observed, the climate operates upon them very powerfully.

Volume One—Chapter Five.

Emigration and Migration.

In this chapter I shall confine myself to the emigration to the United States, reserving that to Canada until I remark upon that colony. In discussing this question I have no statistics to refer to, and must, therefore, confine myself to general observations.

What the amount of emigration from the Old Continent to the United States may be at present I do not think the Americans themselves can tell, as many who arrive at New York go on to the Canadas. The emigrants are, however, principally English, Irish, and German; latterly, the emigration to New South Wales, New Zealand, and particularly Texas, has reduced the influx of emigrants to the United States.

It ought to be pointed out, that among the emigrants are to be found the portion of the people in the United States the most disaffected and the most violent against England and its monarchical institutions; and who assist very much to keep up the feelings of dislike and ill-will which exist towards us. Nor is this to be wondered at; the happy and the wealthy do not go into exile; they are mostly disappointed and unhappy men, who attribute their misfortunes, often occasioned by their own imprudence, to any cause but the true one, and hate their own country and its institutions because they have been unfortunate in it. They form Utopian ideas of liberty and prosperity to be obtained by emigration; they discover that they have been deceived, and would willingly, if possible, return to the country they have abjured, and the friends they have left behind. This produces an increase of irritation and ill-will, and they become the more violent vituperative in proportion as they feel the change. (See Note 1.)

I have had many conversations with English emigrants in the United States, and I never yet found one at all respectable, who did not

confess to me that he repented of emigration. One great cause of this is honourable to them; they feel that in common plain-dealing they are no match for the keen-witted, and I must add unprincipled, portion of the population with which they are thrown in contact. They must either sacrifice their principle or not succeed.

Many have used the same expression to me. "It is no use, sir, you must either turn regular Yankee and do as they do, or you have no chance of getting on in this country."

These people are much to be pitied; I used to listen to them with feelings of deep compassion. Having torn themselves away from old associations, and broken the links which should have bound them to their native soil, with the expectation of finding liberty, equality, and competence in a new country, they have discovered when too late that they have not a fraction of the liberty which is enjoyed in the country which they have left; that they have severed themselves from their friends to live amongst those with whom they do not like to associate; that they must now labour with their own hands, instead of employing others; and that the competence they expected, if it is to be obtained, must be so by a sacrifice of those principles of honesty and fair-dealing imbibed in their youth, adhered to in their manhood, but which now that they have transplanted themselves, are gradually, although unwillingly, yielded up to the circumstances of their position.

I was once conversing with an Irishman; he was not very well pleased with his change; I laughed at him, and said, "But here you are free, Paddy."—"Free?" replied he, "and pray who the devil was to buy or sell me when I was in Ireland? Free! och! that's all talk; you're free to work as hard as a horse, and get but little for so doing."

The German emigrants are by far the most contented and well-behaved. They trouble themselves less about politics, associate with one another as much as possible, and when they take a farm, always, if they possibly can, get it in the neighbourhood of their own countrymen.

The emigrants most troublesome, but, at the same time, the most valuable to the United States, are the Irish. Without this class of people the Americans would not have been able to complete the canals and rail-roads, and many other important works. They are, in fact, the principal labourers of the country, for the poor Germans who come out prefer being employed in any other way than in agriculture, until they amass sufficient to obtain farms of their own. As for the Irish, there are not many of them who possess land in the United States, the major portion of them remain labourers, and die very little better off than when they went out. Some of them set up groceries (these are the most calculating and intelligent,)—and by allowing their countrymen to run in debt for liquor, etcetera, they obtain control over them, and make contracts with the government agents, or other speculators (very advantageous to themselves,) to supply so many men for public works; by these means a few acquire a great deal of money, while the many remain in comparative indigence.

We have been accustomed to ascribe the turbulence of the Irish lower classes to ill-treatment and a sense of their wrongs, but this disposition appears to follow them every where. It would be supposed that, having emigrated to America and obtained the rights of citizens, they would have amalgamated and fraternised to a certain degree with the people: but such is not the case; they hold themselves completely apart and distinct, living with their families in the same quarter of the city, and adhering to their own manners and customs. They are just as little pleased with the institutions of the United States as they are with the government at home; the fact is, that they would prefer no government at all, if (as Paddy himself would say) they knew where to find it. They are the leaders in all the political rows and commotions, and very powerful as a party in all elections, not only on account of their numbers (if I recollect rightly, they muster 40,000 at New York,) but by their violence preventing other people from coming to the poll; and, farther, by multiplying themselves, so as greatly to increase their force, by voting several times over, which they do by going from one ward to another. I was told by one of them that, on the last election he had voted seven times. (See Note 2.)

An American once said to me that the lower Irish ruled the United States, and he attempted to prove his assertion as follows:

The New York election is carried by the Irish; now the New York election has great influence upon the other elections, and often carries the State. The State of New York has great influence upon the elections of other States, and therefore the Irish of New York govern the country.—QED.

The Irish, in one point, appear to improve in the United States—they become much more provident, and many of them hoard their money. They put it into the Savings Banks, and when they have put in the sum allowed by law to one person, they deposite in other names.

A captain of one of the steam-boats told me an anecdote or two relative to the Irish emigrants, by which it would appear that they are more saving of their money than is quite consistent with honesty.

He constantly received them on board, and said that sometimes, if they were very few, they would declare at the end of the trip that they had no money, although when detained they never failed to produce it; if they were very numerous they would attempt to fight their way without paying. In one instance, an Irishman declared that he had no money, when the captain, to punish him, seized his old jacket, and insisted upon retaining it for payment. The Irishman suffered it to be taken off, expecting, it is to be presumed, that it would be returned to him as valueless, when the captain jerked it overboard. “Oh! murder!—captain, drop the boat,” cried Paddy; “pick my jacket up, or I’m a ruined man. *All my money’s in it.*” The jacket was fortunately picked up before it sank, and, on ripping it up, it was found to contain, sewed up in it, upwards of fifty sovereigns and gold eagles. The same captain narrated to me the particulars of one instance in which about one hundred Irish were on board, who when asked for payment, commenced an attack upon the captain and crew with their bludgeons; but, having before experienced such attempts, he was prepared for them, and receiving assistance from the shore, the Irishmen were worsted, and then every man paid his fare. The truth is that they are very turbulent, and the lower orders of the Americans

are very much enraged against them. On the 4th of July there were several bodies of Americans, who were out on the look-out for the Irish, after dark, and many of the latter were severely beaten, if not murdered; the Irish, however, have to thank themselves for it.

The spirit of the institutions of the States is so opposed to servitude, that it is chiefly from the emigrants that the Americans obtain their supply of domestics; the men servants in the private houses may be said to be, with few exceptions, either emigrants or free people of colour. Amongst other points upon which the Americans are to be pitied, and for which the most perfect of theoretical governments could never compensate, is the misery and annoyance to which they are exposed from their domestics. They are absolutely slaves to them, especially in the western free States; there are no regulations to control them. At any fancied affront they leave the house without a moment's warning, putting on their hats or bonnets, and walking out of the street-door, leaving their masters and mistresses to get on how they can. I remember when I was staying with a gentleman in the west, that, on the first day of my arrival, he apologised to me for not having a man servant, the fellow having then been drunk for a week; a woman had been hired to help for a portion of the day, but most of the labour fell upon his wife, whom I found one morning cleaning my room. The fellow remained ten days drunk, and then (all his money being spent) sent to his master to say that he would come back on condition that he would give him a little more liquor. To this proposition the gentleman was compelled to assent, and the man returned as if he had conferred a favour. The next day, at dinner, there being no porter up, the lady said to her husband, "Don't send for it, but go *yourself*, my dear; he is so very cross again that I fear he will leave the house." A lady of my acquaintance in New York told her coachman that she should give him warning; the reply from the box was—"I reckon I have been too long in the woods to be scared with an owl." Had she noticed this insolence, he would probably have got down from the box, and have left her to drive her own cattle. The coloured servants are, generally speaking, the most civil; after them the Germans; the Irish and English are very bad. At the hotels, etcetera, you very often find Americans in subordinate situations,

and it is remarkable that when they are so, they are much more civil than the imported servants. Few of the American servants, even in the large cities, understand their business, but it must be remembered that few of them have ever learnt it, and, moreover, they are expected to do three times as much as a servant would do in an English house. The American houses are much too large for the number of servants employed, which is another cause for service being so much disliked.

It is singular that I have not found in any one book, written by English, French, or German travellers, any remarks made upon a custom which the Americans have of almost entirely living, I may say, in the basement of their houses; and which is occasioned by their difficulties in housekeeping with their insufficient domestic establishments. I say custom of the Americans, as it is the case in nine houses out of ten; only the more wealthy travelled, and refined portion of the community in their cities deviating from the general practice.

I have before observed that, from the wish of display, the American houses are generally speaking, too large for the proprietors and for the domestics which are employed. Vying with each other in appearance, their receiving rooms are splendidly furnished, but they do not live in them.

The basement in the front area, which with us is usually appropriated to the housekeeper's-room and offices, is in most of their houses fitted up as a dining-room; by no means a bad plan, as it is cool in summer, warm in winter, and saves much trouble to the servants. The dinner is served up in it, direct from the kitchen, with which it communicates. The master of the house, unless he dines late, which is seldom the case in American cities, does not often come home to dinner, and the preparations for the family are of course not very troublesome. But although they go on very well in their daily routine, to give a dinner is to the majority of the Americans really an effort, not from the disinclination to give one, but from the indifference and ignorance of the servants; and they may be excused without being

taxed with want of hospitality. It is a very common custom, therefore, for the Americans to invite you to come and “*take wine*” with them, that is to come after dinner, when you will find cakes, ices, wine, and company, already prepared. But there is something unpleasant in this arrangement; it is too much like the bar of the tavern in the west, with—“Stranger, will you drink?” It must, however, be recollected that there are many exceptions to what I have above stated as the general practice. There are houses in the principal cities of the States where you will sit down to as well-arranged and elegant a dinner as you will find in the best circles of London and Paris; but the proprietors are men of wealth, who have in all probability been on the old continent, and have imbibed a taste for luxury and refinement generally unknown and unfelt in the new hemisphere.

I once had an instance of what has been repeatedly observed by other travellers of the dislike to be considered as servants in this land of equality.

I was on board of a steam-boat from Detroit to Buffalo, and entered into conversation with a young woman who was leaning over the taffrail. She had been in service, and was returning home.

“You say you lived with Mr W.?”

“No, I didn’t,” replied she, rather tartly; “I said I lived with *Mrs.* W.”

“Oh, I understand. In what situation did you live?”

“I lived in the house.”

“Of course you did, but what as?”

“What as? As a *gal* should live.”

“I mean what did you do?”

“I helped Mrs W.”

“And now you are tired of helping others?”

“Guess I am.”

“Who is your father?”

“He’s a doctor.”

“A doctor! and he allows you to go out?”

“He said I might please myself.”

“Will he be pleased at your coming home again?”

“I went out to please myself, and I come home to please myself. Cost him nothing for four months; that’s more than all gals can say.”

“And now you’re going home to spend your money?”

“Don’t want to go home for that, it’s all gone.”

I have been much amused with the awkwardness and nonchalant manners of the servants in America. Two American ladies who had just returned from Europe, told me that shortly after their arrival at Boston, a young man had been sent to them from Vermont to do the duty of footman. He had been a day or two in the house, when they rang the bell and ordered him to bring up two glasses of lemonade. He made his appearance with the lemonade, which had been prepared and given to him on a tray by a female servant, but the ladies, who were sitting one at each end of a sofa and conversing, not being ready for it just then, said to him—“We’ll take it presently, John.”—“Guess I can wait,” replied the man, deliberately taking his seat on the sofa between them, and placing the tray on his knees.

When I was at Tremont House, I was very intimate with a family who were staying there. One morning we had been pasting something, and the bell was rung by one of the daughters, a very fair girl with flaxen hair, who wanted some water to wash her hands. An Irish waiter answered the bell. “Did you ring, ma’am?”—“Yes, Peter, I want

a little warm water.”—“Is it to *shave with*, miss?” inquired Paddy, very gravely.

But the emigration from the old continent is of little importance compared to the migration which takes place in the country itself.

As I have before observed, all America is working west. In the north, the emigration by the lakes is calculated at 100,000 per annum, of which about 30,000, are foreigners; the others are the natives of New England and the other eastern States, who are exchanging from a sterile soil to one “flowing with milk and honey.” But those who migrate are not all of them agriculturalists; the western States are supplied from the north-eastern with their merchants, doctors, schoolmasters, lawyers, and, I may add, with their members of congress, senators, and governors. New England is a *school*, a sort of manufactory of various professions, fitted for all purposes—a talent bazaar, where you have every thing at choice; in fact, what Mr Tocqueville says is very true, and the States fully deserve the compliment.

“The civilisation of New England has been like a beacon lit upon a hill, which, after it has diffused its warmth around, tinges the distant horizon with its glory.”

From the great extent of this emigration to the west, it is said that the female population in the New England states is greater than the male. In the last returns of Massachusetts the total population was given, but males and females were not given separately, an omission which induces one to believe that such was the truth. (See note 3.)

But it is not only from the above States that the migration takes place; the fondness for “shifting right away,” the eagerness for speculation, and the by no means exaggerated reports of the richness of the western country, induce many who are really well settled in the States of New York, Pennsylvania, and other fertile States, to sell all and turn to the west. The State of Ohio alone is supposed to have added many more than a million to her population since the last census. An extensive migration of white population

takes place from North and South Carolina and the adjacent States, while from the eastern Slave States, there is one continual stream of black population pouring in, frequently the cavalcade headed by the masters of their families.

As the numerous tributary streams pour their waters into the Mississippi, so do rivers of men from every direction continually and unceasingly flow into the west. It is indeed the promised land, and that the whites should have been detained in the eastern States so long without a knowledge of the fertile soil beyond the Alleghanines, reminds you of the tarrying of the Jewish nation in the wilderness before they were permitted to take possession of their inheritance.

Here there is matter for deep reflection. I have already given my opinion upon the chances of the separation of the northern and Southern States upon the question of slavery; but it appears to me, that while the eyes of their legislators have been directed with so much interest to the prospects arising from the above question, that their backs have been turned to a danger much more imminent, and which may be attended by no less consequences than a convulsion of the whole Union.

The Southern and Northern States may separate on the question of slavery, and yet be in reality better friends than they were before: but what will be the consequence, when the Western States become, as they assuredly will, so populous and powerful, as to control the Union; for not only population, but power and wealth, are fast working their way to the west. New Orleans will be the first maritime port in the universe, and Cincinnati will not only be the Queen of the West, but Queen of the Western World. Then will come the real clashing of interests, and the Eastern States must be content to succumb and resign their present power, or the Western will throw them off, as an useless appendage to her might. This may at present appear chimerical to some, and would be considered by many others as too far distant; but be it remembered, that ten years in America, is as a century; and even allowing the prosperity of the United States to be checked, as very probably it may soon be, by any quarrel with a

foreign nation, the Western States will not be those who will suffer. Far removed from strife, the population hardly interfered with, when the Eastern resources are draining, they will continue to advance in population, and to increase in wealth. I refer not to the Slave States bordering on the Mississippi, although I consider that they would suffer little from a war, as neither England, nor any other nation, will ever be so unwise in future as to attack in a quarter, where she would have extended the olive branch, even if it were not immediately accepted. Whether America is engaged in war, therefore, or remains in peace, the Western States must, and will soon be the arbiters, and dictate as they please to the Eastern.

At present, they may be considered as infants, not yet of age, and the Eastern States are their guardians; the profits of their produce are divided between them and the merchants of the Eastern cities, who receive at least thirty per cent. as their share. This must be the case at present, when the advances of the Eastern capitalists are required by the cotton growers, who are precisely in the same position with the Eastern States, as the West India planters used to be with the merchants of London and Liverpool, to whom they consigned their cargoes for advances received. But the Western States (to follow up the metaphor) will soon be of age, and no longer under control: even last year, vessels were freighted direct from England to Vicksburg, on the Mississippi; in a few years, there will be large importing houses in the Far West, who will have their goods direct from England at one half the price which they now pay for them, when forwarded from New York, by canal, and other conveyances. (See Note 4.) Indeed, a very little inquiry will prove, that the prosperity of the Eastern free States depends in a great measure upon the Western and Southern. The Eastern States are the receivers and transporters of goods, and the carriers of most of the produce of the Union. They advance money on the crops, and charge high interest, commissions, etcetera. The transport and travelling between the Eastern, Southern, and Western States, are one great source of this prosperity, from the employment on the canals, rail roads, and steam boats.

All these are heavy charges to the Western States, and can be avoided by shipping direct from, and sending their produce direct to, the Old Continent. As the Western States advance in wealth, so will they advance in power, and in proportion as they so do, will the Eastern States recede, until they will be left in a small minority, and will eventually have little voice in the Union.

Here, then, is a risk of convulsion; for the clashing of interests, next to a war, is the greatest danger to which a democracy can be exposed. In a democracy, every one legislates, and every one legislates for his own interests. The Eastern States will still be wealthy and formidable, from their population; but the commerce of the principal Eastern cities will decrease, and they will have little or no staple produce to return to England, or elsewhere, whereas the Western States can produce every thing that the heart of man can desire, and can be wholly independent of them. They have, in the West, every variety of coal and mineral, to a boundless extent; a rich alluvial soil, hardly to be exhausted by bad cultivation, and wonderful facilities of transport; independent of the staple produce of cotton, they might supply the whole world with grain; sugar they already cultivate; the olive flourishes; wine is already produced on the banks of the Ohio, and the prospect of raising silk is beyond calculation. In a few days, the manufactures of the Old World can find their way from the mouth of the Mississippi by its thousand tributary streams, which run like veins through every portion of the country, to the confines of Arkansas and Missouri, to the head of navigation at St. Peter's, on again to Wisconsin, Michigan, and to the Northern lakes, at a *much cheaper rate* than they are supplied at present.

One really is lost in admiration when one surveys this great and glorious Western country, and contemplates the splendour and riches to which it must ultimately arrive.

As soon as the Eastern States are no longer permitted to remain the factors of the Western, they must be content to become manufacturing states, and probably will compete with England. The Western States, providentially, I may say, are not likely to be

manufacturers to any great extent, since they have not *water* powers; the valley of the Mississippi is an alluvial flat, and although the Missouri and Mississippi are swift streams, in general the rivers are sluggish, and, at all events, they have not the precipitate falls of water necessary for machinery, and which abound in the North-eastern States; indeed, if the Western States were to attempt to manufacture, as well as to produce, they would spoil the market for their own produce. Whatever may be the result, whether the Eastern States submit quietly to be shorn of their greatness, (a change which must take place,) or to contest the point until it ends in a separation, this is certain, that the focus of American wealth and power will eventually be firmly established in the Free States on the other side of the Alleghany mountains.

Note 1. I was once conversing with one who was formerly very popular with the democrats, but who was likely to be outset by another demagogue, who “went the whole hog,” down to the Agrarian system. “Captain,” said he, with his fist clenched, “I’m the very personification of democracy, but I’m out-Heroded by this fellow. The emigrants are a pack of visionaries, who don’t know what they want. The born Americans I can deal with, but with these newcomers democracy is not sufficient; they want a mobocracy, and I suppose we must have it.”—“You have it now,” replied I.—“Well, captain, I believe you’re right.”

Note 2. I don’t know why, but there is no scrutiny of the votes in American elections, or if there be, I never heard of one being made.

Note 3. “The young men of New England migrate in large numbers to the west, leaving an over proportion of female population, the amount of which I never could learn. Statements were made to me, but so incredible that I withhold them. Suffice it, that there were more women than men in from six to nine States in the Union.”—Miss Martineau.

Note 4. To give the reader some idea of the price of European articles in the Western country, I will mention cloth. A coat which costs 4 pounds in England, is charged 7 pounds 10 shillings at New York; and at Cincinnati, in the West, upwards of 10 pounds.

Volume One—Chapter Six.

Newspaper Press.

Mr Tocqueville observes, “that not a single individual of the twelve millions who inhabit the territory of the United States has as yet dared to propose any restrictions upon the liberty of the press.” This is true, and all the respectable Americans acknowledge that this liberty has degenerated into a licentiousness which threatens the most alarming results; as it has assumed a power, which awes not only individuals, but the government itself. A due liberty allowed to the press, may force a government to do right, but a licentiousness may compel it into error. The American author, Mr Cooper, very justly remarks: “It may be taken as a rule, that *without* the liberty of the press there can be no *popular liberty* in a nation, and without its licentiousness, neither *public honesty, justice*, or a proper regard for *character*. Of the two, perhaps, that people is the happiest which is deprived altogether of a free press, as private honesty and a healthful tone of the public mind are not incompatible with narrow institutions, though neither can exist under the corrupting action of a licentiousness press.”

And again—“As the press of this country now exists, it would seem to be expressly devised by the great agent of mischief, to depress and destroy all that is good, and to elevate and advance all that is evil in the nation. The little truth which is urged, is usually urged coarsely, weakened and rendered vicious by personalities, while those who live by falsehoods, fallacies, enmities, partialities, and the schemes of the designing, find the press the very instrument that devils would invent to effect their designs.”

A witty, but unprincipled statesman of our own times, has said, that “speech was bestowed on man to conceal his thoughts;” judging from its present condition, he might have added—“the press, in America, to *pervert truth*.”

But were I to quote the volumes of authority from American and English writers, they would tire the reader. The above are for the present quite sufficient to establish the fact, that the press in the United States is licentious to the highest possible degree, and defies control; my object is to point out the effect of this despotism upon society, and to show how injurious it is in every way to the cause of morality and virtue.

Of course, the newspaper press is the most mischievous, in consequence of its daily circulation, the violence of political animosity, and the want of respectability in a large proportion of the editors. The number of papers published and circulated in Great Britain, among a population of twenty-six millions, is calculated at about three hundred and seventy. The number published in the United States, among thirteen millions, are supposed to vary between *nine and ten thousand*. Now the value of newspapers may be fairly calculated by the capital expended upon them; and not only is not one-quarter of the sum expended in England, upon three hundred and seventy newspapers, expended upon the nine or ten thousand in America; but I really believe that the expense of the '*Times*' newspaper alone, is equal to at least five *thousand* of the *minor* papers in the United States, which are edited by people of no literary pretension, and at an expense so trifling as would appear to us not only ridiculous, but impossible. As to the capabilities of the majority of the editors, let the Americans speak for themselves.

"Every wretch who can write an English paragraph (and many who cannot,) every pettifogger without practice, every one whose poverty or crimes have just left him cash or credit enough to procure a press and types, sets up a newspaper."

Again—"If you be puzzled what to do with your son, if he be a born dunce, if reading and writing be all the accomplishments he can acquire, if he be horribly ignorant and depraved, if he be indolent and an incorrigible liar, lost to all shame and decency, and incurably dishonest, make a newspaper editor of him. Look around you, and see a thousand successful proofs that no excellence or acquirement,

moral or intellectual, is requisite to conduct a press. The more defective an editor is, the better he succeeds. We could give a thousand instances.”—*Boston News*.

These are the assertions of the Americans, not my own; that in many instances they are true, I have no doubt. In a country so chequered as the United States, such must be expected; but I can also assert, that there are many very highly respectable and clever editors in the United States. The New York papers are most of them very well conducted, and very well written. The New York Courier and Enquirer, Colonel Webb; the Evening Star, by Noah; the Albion, by Doctor Birtlett; Spirit of the Times, and many others, which are too numerous to quote, are equal to many of the English newspapers. The best written paper in the States, and the happiest in its sarcasm and wit, is the Louisville Gazette, conducted by Mr Prentice of Kentucky; indeed, the western papers, are, generally speaking, more amusing and witty than the eastern; the New Orleans Picayune, by Kendall, is perhaps, after Prentice's, the most amusing; but there are many more, which are too numerous to mention, which do great credit to American talent. Still the majority are disgraceful not only from their vulgarity, but from their odious personalities and disregard to truth. The bombast and ignorance shown in some of these is very amusing. Here is an extract or two from the small newspapers published in the less populous countries. An editor down East, speaking of his own merits, thus concludes—“I'm a real catastrophe—a small creation; Mount Vesuvius at the top, with red hot lava pouring out of the crater, and routing nations—my fists are rocky mountains—arms, whig liberty poles, with iron springs. Every step I take is an earthquake—every blow I strike is a clap of thunder—and every breath I breathe is a tornado. My disposition is Dupont's best, and goes off at a flash—when I blast there'll be nothing left but a hole three feet in circumference and no end to its depth.”

Another writes the account of a storm as follows:—

“On Monday afternoon, while the haymakers were all out gathering in the hay, in anticipation of a shower from the small cloud that was

seen hanging over the hilly regions towards the south-east, a tremendous storm suddenly burst upon them, and forced them to seek shelter from its violence. The wind whistled outrageously through the old elms, scattering the beautiful foliage, and then going down into the meadow, where the men had just abruptly left their work unfinished, and overturning the half-made ricks, whisked them into the air, and filled the *whole afternoon* full of hay.”

I copied the following from a western paper:—

“Yes, my countrymen, a dawn begins to open upon us; the crepusculous rays of returning republicanism are fast extending over the darkness of our political horizon, and before their brightness, those myrmidons shall slink away to the abode of the demons who have generated them, in the hollow caves of darkness.”

Again—“Many who have acquired great fame and celebrity in the world, began their career as printers. Sir William Blackstone, the learned English commentator of laws, was a printer by trade. *King Charles the Third* was a printer, and not unfrequently worked at the trade after he ascended the throne of England.”

Who Charles the Third of England was I do not know, as he is not yet mentioned in any of our histories.

The most remarkable newspaper for its obscenity, and total disregard for all decency and truth in its personal attacks, is the Morning Herald of New York, published by a person of the name of Bennett, and being published in so large a city, it affords a convincing proof with what impunity the most licentious attacks upon private characters are permitted. But Mr Bennett is *sui generis*; and demands particular notice. He is indeed a remarkable man, a species of philosopher, who acts up to his tenets with a moral courage not often to be met with in the United States. His maxim appears to be this—“Money will find me every thing in this world, and money I will have, at any risk, except that of my life, as, if I lost that, the money would be useless.” Acting upon this creed, he has lent his paper to the basest and most malignant purposes, to the hatred of all

that is respectable and good, defaming and inventing lies against every honest man, attacking the peace and happiness of private families by the most injurious and base calumny. As may be supposed, he has been horse-whipped, kicked, trodden under foot, and spat upon, and degraded in every possible way; but all this he courts, because it brings money. Horse-whip him, and he will bend his back to the lash, and thank you, as every blow is worth so many dollars. Kick him, and he will remove his coat tails, that you may have a better mark, and he courts the application of the toe, while he counts the total of the damages which he may obtain. Spit upon him, and he prizes it as precious ointment, for it brings him the sovereign remedy for his disease, a fever for specie.

The day after the punishment, he publishes a full and particular account of how many kicks, tweaks of the nose, or lashes he may have received. He prostitutes his pen, his talent, every thing for money. His glory is, that he has passed the rubicon of shame; and all he regrets is, that the public is at last coming to the unanimous opinion, that he is too contemptible, too degraded, to be even touched. The other, and more respectable editors of newspapers, avoid him, on account of the filth which he pours forth; like a polecat, he may be hunted down; but no dog will ever attempt to worry him, as soon as he pours out the contents of his foetid bag.

It is a convincing proof of the ardent love of defamation in this country, that this modern Thersites, who throws the former of that name so immeasurably into the background, has still great sway over men in office; every one almost, who has a character, is afraid of him, and will purchase his silence, if they cannot his good will.

During the crash at New York, when even the suspicion of insolvency was fatal, this miscreant published some of the most respectable persons of New York as bankrupts, and yet received no punishment. His paper is clever, that is certain; but I very much doubt if Bennett is the clever man—and my reason is this, Bennett was for some time in England, and during that time the paper, so far from falling off, was better written than before. I myself, before I had been six weeks in

the country, was attacked by this wretch, and, at the same time, the paper was sent to me with this small note on the margin:— “Send twenty dollars, and it shall be stopped.”—“I only wish you may get it,” said I to myself. (See Note 1.)

Captain Hamilton, speaking of the newspaper press in America, says —

“In order to form a fair estimate of their merit, I read newspapers from all parts of the union, and found them utterly contemptible, in point of talent, and dealing in abuse so virulent, as to excite a feeling of disgust,—not only with the writers, but with the public which afforded them support. Tried by this standard—and I know not how it can be objected to—the moral feeling of this people must be estimated lower than in any deductions from other circumstances I have ventured to rate it.”

In the following remarks, also, I most cordially agree with him. “Our newspaper and periodical press is bad enough. Its sins against propriety cannot be justified, and ought not to be defended. But its violence is meekness, its liberty restraint, and even its atrocities are virtues, when compared with that system of *brutal and ferocious outrage* which distinguishes the press in America. In England, even an insinuation against personal honour is intolerable. A hint—a breath—the contemplation even of a possibility of tarnish—such things are sufficient to poison the tranquillity, and, unless met by prompt vindication, to ruin the character of a public man; but in America, it is thought necessary to have recourse to other weapons. The strongest epithets of a ruffian vocabulary are put in requisition.”

It may be asked, how is it possible that an “enlightened nation” can permit such atrocity. It must be remembered, that newspapers are vended at a very low price throughout the States, and that the support of the major portion of them is derived from the ignorant and lower classes. Every man in America reads his newspaper, and hardly any thing else; and while he considers that he is assisting to govern the nation, he is in fact, the dupe of those who pull the strings in secret, and by flattering his vanity, and exciting his worst feelings,

make him a poor tool in their hands. People are too apt to imagine that the newspapers echo their own feelings; when the fact is, that by taking in a paper, which upholds certain opinions, the readers are, by daily repetition, become so impressed with these opinions, that they have become slaves to them. I have before observed, that learning to read and write is not education, and but too often is the occasion of the demoralisation of those, who might have been more virtuous and more happy in their ignorance. The other day when I was in a steam-vessel, going down to Gravesend, I observed a foot-boy sitting on one of the benches—he was probably ten or eleven years old, and was deeply engaged in reading a cheap periodical, mostly confined to the lower orders of this country called the Penny Paul Pry. Surely it had been a blessing to the lad, if he had never learnt to read or write, if he confined his studies, as probably too many do, from want of farther leisure, to such an immoral and disgusting publication.

In a country where every man is a politician, and flatters himself that he is assisting to govern the country, political animosities must of course be carried to the greatest lengths, and the press is the vehicle for party violence; but Captain Hamilton's remarks are so forcible, and so correct, that I prefer them to any I could make myself.

“The opponents of a candidate for office, are generally not content with denouncing his principles, or deducing from the tenor of his political life, grounds for questioning the purity of his motives. They accuse him boldly of *burglary* or *arson*, or at the very least, of petty larceny. *Time, place and circumstances*, are all stated. The candidate for Congress or the Presidency, is broadly asserted to have *picked pockets*, or pocketed silver spoons, or to have been guilty of something equally mean and contemptible. Two instances of this, occur at this moment to my memory. In one newspaper, a member of Congress was denounced as having feloniously broken open a scrutoire, and having thence stolen certain bills and banknotes; another was charged with selling franks at twopence a piece, and thus coppering his pockets at the expense of the public.”

But let me add the authority of Americans. Mr Webster, in his celebrated speech on the public lands, observes in that powerful and nervous language for which he is so celebrated:— “It is one of the thousand calumnies with which the press teemed, during an excited political canvass. It was a charge, of which there was not only no proof or probability, but which was, in itself, wholly impossible to be true. No man of common information ever believed a syllable of it. Yet it was of that class of falsehoods, which by continued repetition, through all the organs of detraction and abuse, are capable of misleading those who are already far misled, and of farther fanning passion, already kindled into flame. Doubtless, it served in its day, and, in greater or less degree, the end designed by it. Having done that, it has sunk into the general mass of stale and loathed calumnies. It is the very cast-off slough of a *polluted* and *shameless* press.” And Mr Cooper observes—“Every honest man appears to admit that the press in America is fast getting to be *intolerable*. In escaping from the tyranny of foreign aristocrats, we have created in our bosoms a *tyranny of a character so insupportable*, that a change of some sort is getting indispensable to peace.”

Indeed, the spirit of defamation, so rife in America, is so intimately connected with its principal channel, the press, that it is impossible to mention one, without the other, and I shall, therefore, at once enter into the question.

Defamation is the greatest curse in the United States, and its effects upon society I shall presently point out. It appears to be inseparable from a democratic form of government, and must continue to flourish in it, until it pleases the Supreme to change the hearts of men. When Aristides inquired of the countryman, who requested him to write down his own name on the oyster-shell, what cause of complaint he had against Aristides; the reply given was, “I have none; except, that I do not like to hear him always called the *Just*.” So it is with the free and enlightened citizens of America. Let any man rise above his fellows by superior talent, let him hold a consistent, honest career, and he is exalted only into a pillory, to be pelted at, and be defiled with ordure. False accusations, the basest insinuations, are

industriously circulated, his public and private character are equally aspersed, truth is wholly disregarded: even those who have assisted to raise him to his pedestal, as soon as they perceive that he has risen too high above them, are equally industrious and eager to drag him down again. Defamation exists all over the world, but it is incredible to what an extent this vice is carried in America. It is a disease which pervades the land; which renders every man suspicious and cautious of his neighbour, creates eye-service and hypocrisy, fosters the bitterest and most malignant passions, and unceasingly irritates the morbid sensibility, so remarkable among all classes of the American people.

Captain Hamilton, speaking of the political contests, says, "From one extremity of the Union to the other, the political war slogan is sounded. No quarter is given on either side; every printing press in the United States is engaged in the conflict. Reason, justice, and charity; the claims of age and of past services, of high talents and unspotted integrity, are forgotten. No lie is too malignant to be employed in this unhallowed contest, if it can but serve the purpose of deluding, even for a moment, the most ignorant of mankind. No insinuation is too base, no equivocation too mean, no artifice too paltry. The world affords no parallel to the scene of political depravity exhibited periodically in this free country."

Governor Clinton, in his address to the legislature in 1828, says—"Party spirit has entered the recesses of retirement, violated the sanctity of female character, invaded the tranquillity of private life, and visited with severe inflictions the peace of families. Neither elevation nor humility has been spared, nor the charities of life, nor distinguished public services,—nor the fire-side, nor the altar, been left free from attack; but a licentious and destroying spirit has gone forth, regardless of everything, but the gratification of malignant feelings and unworthy aspirations." And in the New York Annual Register, quoted by Captain Hamilton, we have the following remarks: "In conducting the political discussions which followed the adjournment of Congress, both truth and propriety were set at defiance. The decencies of private life were disregarded;

conversations and correspondence which should have been confidential, were brought before the public eye; the ruthless warfare was carried into the bosom of private life; neither age nor sex were spared, the daily press teemed with ribaldry and falsehood; and even the tomb was not held sacred from the rancorous hostility which distinguished the presidential election of 1828.”

I have considered it necessary thus to heap authority upon authority, as the subject is one of the most vital importance; and I must first prove the extent of this vice, without the chance of the shadow of contradiction, before I point out its fatal consequences.

That the political animosities arising from a free and enlightened people governing themselves, have principally engendered and fostered this vice, is most certain; and it would be some satisfaction, if, after the hostile feelings had subsided, the hydra also sank to repose.

But this cannot be the case. A vice, like detraction, so congenial to our imperfect natures, is not to be confined to one channel, and only resorted to, as a political weapon, when required. It is a vice which when once called into action, and unchecked by the fear of punishment or shame, must exist and be fed. It becomes a confirmed habit, and the effect upon society is dreadful. If it cannot aim its shafts at those who are in high places, if there is no noble quarry for its weapons, it will seek its food amongst smaller game, for it never tires. The consequence is, that it pervades and feeds upon society—private life is embittered; and, as Mr Cooper most justly observes, *“rendering men indifferent to character, and indeed rendering character of little avail.”*

Indeed, from the prevalence of this vice, society in America appears to be in a state of constant warfare—Indian warfare, as every one is crouched, concealed, watching for an opportunity to scalp the reputation of his neighbour! They exist in fear and trembling, afraid to speak, afraid to act, or follow their own will, for in America there is no free will. When I have asked why they do not this or that, the reply has invariably been, that they dare not. In fact, to keep their station

in society, they must be slaves—not merely slaves, for we are all so far slaves, that if we do that which is not right, we must be expelled from it; but abject and cowardly slaves, who dare not do that which is innocent, lest they should be misrepresented. This is the cause by there is such an attention to the *outward* forms of religion in the United States, and which has induced some travellers to suppose them a religious people, as if it were possible that any real religion could exist, where morality is at so low an ebb. When I first went to Boston, I did not go to church on the following day. An elderly gentleman called upon and pointed out to me that I had omitted this duty; “but,” continued he, “I have had it put into one of the newspapers that you attended divine service at such a church, so all is right.” All was right; yes, all was right, according to the American’s ideas of “all was right.” But I thought at the time, that my sin of omission was much more venial than his of commission.

When at Detroit, I was attacked in the papers because I returned a few calls on a Sunday. I mention this, not because I was justified in so doing, but because I wish to show the censorship exercised in this very moral country.

The prevalence of this evil acts most unfortunately upon society in other ways. It is the occasion of your hardly ever knowing whom you may, or whom you may not, be on terms of intimacy with, and of the introduction of many people into society, who ought to be wholly excluded. Where slander is so general, when in the space of five minutes you will be informed by one party, that Mr So and So is an excellent person, and by another that he is a great scoundrel, just as he may happen to be on their side or the opposite, in politics, or from any other cause, it is certain that you must be embarrassed as to the person’s real character; and as a really good man may be vituperated, so the reports against one who is unworthy, are as little credited: the fact is, you never know who you are in company with.

Almost all the duels which are so frequent in America, and I may add all the assassinations in the western country, arise principally from defamation. The law gives no redress, and there is no other way of

checking slander, than calling the parties to account for it. Every man is therefore ready and armed against his fellow.

Inadvertently affront any party, wound his self-love, and he will immediately coin some malignant report, which is sure to be industriously circulated. You are at the mercy of the meanest wretch in the country; for although praise is received with due caution, slander is everywhere welcomed. An instance occurred with respect to myself. I was at Lexington, and received great kindness and civility from Mr Clay. One day I dined at his table; there was a large party, and at the further end, at a distance where he could not possibly have heard what passed between Mr Clay and me, there sat a young man, whose name is not worth mentioning. When he returned to Louisville, he spread a report that I had grossly insulted Mr Clay at his own table. Now the catalogue of enormities circulated against me was already so extensive, that I was not in very good odour; but Mr Clay is so deservedly the idol of this State, and indeed of almost the whole Union, that there could not be a more serious charge against me—even those who were most friendly avoided me, saying, they could forgive me what I had formerly done, but to insult Mr Clay was too bad. So high was the feeling, and so industriously was the calumny circulated, that at last I was compelled to write to Mr Clay on the subject, and I received in return a most handsome letter, acquitting me of the malicious charge. This I showed to some, and they were satisfied; and they advised me to print it, that it might be better known. This was a compliment I did not choose to pay them; and the impression of the majority still is that I insulted Mr Clay. The affair being one of the many connected with myself, I should not have mentioned it, except to prove how lightly such a practice is estimated.

Whatever society permits, people will do, and moreover, will not think that they are wrong in so doing. In England, had a person been guilty of a deliberate and odious lie, he would have been scouted from society, his best friends would have cut him; but how was this person treated for his conduct? When I showed Mr Clay's letter, one said, "Well now, that was very wrong of A."—Another, "I did not believe

that A would have done so.”—A third, “that A ought to be ashamed of himself;” but they did not one of them, on account of this falsehood, think it necessary to avoid him. On the contrary, he was walking arm-in-arm with the men, dancing and flirting with the women just as before, although his slander, and the refutation of it, were both well known.

The reader will now perceive the great moral evil arising from this vice, which is, that it habituates people to falsehood. The lie of slander is the basest of all lies; and the practice of it, the most demoralising to the human heart. Those who will descend to such deliberate and malignant falsehood, will not scruple at any other description. The consequence is, that what the Americans have been so often taxed with, is but too prevalent, “a disregard to *truth*.”

To what must we ascribe the great prevalence of this demoralising habit in the United States? That the licentiousness of the press feeds it, it is true; but I am rather inclined to imagine that the real source of it is to be found in the peculiarity of their institutions. Under a democracy, there are but two means by which a man can rise above his fellows—wealth and character; and when all are equal, and each is struggling to rise above the other, it is to the principle that if you cannot rise above another by your own merit, you can at least so far equalise your condition by pulling him down to your own level, that this inordinate appetite for defamation must be ascribed. It is a state of ungenerous warfare, arising from there being no gradation, no scale, no discipline, if I may use the term, in society. Every one asserts his equality, and at the same time wishes to rise above his fellows; and society is in a state of perpetual and disgraceful scuffle. Mr Tocqueville says, “There exists in the human heart a depraved taste for equality, which impels the weak to attempt to lower the powerful to their own level, and induces men to prefer equality in slavery to inequality with freedom.”

In politics, especially, character becomes of much more importance than wealth, and if a man in public life can once be rendered odious, or be made suspected, he loses his supporters, and there is one

antagonist removed in the race for pre-eminence. Such is one of the lamentable defects arising from a democratical form of Government. How different from England, and the settled nations of the old world, where it may be said that everything and everybody is, comparatively speaking, in his place!

Although many will, and may justifiably, attempt to rise beyond his circumstances and birth, still there is order and regularity; each party knows the precise round in the ladder on which he stands, and the majority are content with their position.

It is lamentable to observe how many bad feelings, how many evil passions, are constantly in a state of activity from this unfortunate chaotical want of gradation and discipline, where all would be first, and every one considers himself as good as his neighbour.

The above-mentioned author observes—"The surface of American society is, if I may use the expression, covered with a layer of democracy, from beneath which the aristocratic colours sometimes peep."

In a moral sense, this is also true, the nobler virtues which are chiefly produced in the fertile field of aristocracy do occasionally appear; but the whole surface is covered with a layer of democracy, which like the lava which the volcano continually belches forth, has gradually poured down, and reduced the country round it to barrenness and sterility. (See Note 2.)

Note 1. *Some of the invented calumnies* against me found their way to this country. I consider the contents of this chapter to be a sufficient refutation, not only of what has been, but of what will in all probability be hereafter asserted against me by the American press.

Note 2. This chapter was in the press, when a paragraph, cut out of the Baltimore Chronicle, was received from an anonymous hand at New York. Whether with a friendly intention or otherwise, I am

equally obliged to the party, as it enables me to further prove, if it were necessary, the vituperation of the American press.

“Many persons in our country had an opportunity of becoming acquainted with the Captain. The fast-anchored isle never gave birth to a *more unmitigated blackguard*. His awkward, unwieldy misshapen body, was but a fair lodging for a low, depraved, licentious soul. Although liberally educated, he seemed insensible to any other enjoyments than those of sense. No human being could in his desires or habits approach more near to the animal than him. No gentleman ever sat down with him an hour without a sensation of loathing and disgust. ‘What kind of man is Captain Marryat?’ was once asked in our presence of a distinguished member of Congress, who had sojourned with him at the White Sulphur Springs. ‘He is no man at all,’ was the reply, ‘he is a beast.’”

This is really “going the whole hog” himself, and making me go it too. Now, if I receive such abuse for my first three volumes, in which I went into little or no analysis, what am I to expect for those which are about to appear? To the editor of the Baltimore Chronicle I feel indebted: but I suspect that the *respectable* portion of the American community will be very much annoyed at my thus giving his remarks more extensive circulation than he anticipated.

Volume One—Chapter Seven.

Authors, etc.

The best specimens of American writing are to be found in their political articles, which are, generally speaking, clear, argumentative, and well arranged. The President’s annual message is always masterly in composition, although disgraced by its servile adulation of the majority. If we were to judge of the degrees of enlightenment of the two countries, America and England, by the President’s message and the King’s speech, we should be left immeasurably in the back-ground—the message, generally speaking, being a model

of composition, while the speech is but too often a farrago of bad English. This is very strange, as those who concoct the speech are of usually much higher classical attainments than those who write the message. The only way to account for it, is, that in the attempt to condense the speech, they pare and pare away till the sense of it is almost gone; his Majesty's ministers perfectly understanding what they mean themselves, but forgetting that it is necessary that others should do the same. But in almost all branches of literature the Americans have no cause to be displeased with the labours of their writers, considering that they have the disadvantage of America looking almost entirely to the teeming press of England for their regular supply, and nowhere in that country can be said at present to be men of leisure and able to devote themselves to the pursuit. An author by profession would gain but a sorry livelihood in the United States, unless he happened to be as deservedly successful as Washington Irving or Cooper. He not only has to compete against the best English authors, but as almost all the English works are published without any sum being paid for the copyright, it is evident that he must sell his work at a higher price if he is to obtain any profit. An English work of fiction, for instance, is sold at a dollar and a quarter, while an American one costs two dollars.

This circumstance would alone break down the American literature if it were not for the generosity of England in granting their authors a copyright in this country; indeed, the American public pay that tacit compliment to us that they will hardly look at a work by one of their own citizens, until it has first been published in England, and received the stamp of approbation. Those American authors who have obtained a reputation look, therefore chiefly to the English copyright for remuneration; and if it were not for this liberality on our part, the American literature would not receive sufficient support from its own country to make it worth the while of any one to engage in it. The number of English works republished in America is very great, but the number of each work sold is much smaller than people here imagined.

The periodical literature of the United States is highly creditable. The American Quarterly Review; the New York Mirror, by George P Morris; the Knickerbocker, by Clarke; and the Monthly Magazine; all published at New York, are very good; so, indeed, are the magazines published at Philadelphia, and many others. It may be said that, upon the whole, the periodical press of America is pretty well on a par with that of this country. Periodical literature suits the genius of the Americans, and it is better supported by them than any other description.

The Americans are jealous of our literature, as they are, indeed, of everything connected with this country; but they do themselves injustice in this respect, as I consider that they have a very fair proportion of good writers. In history, and the heavier branches of literature, they have the names of Sparks, Prescott, Bancroft, Schoolcraft, Butler, Carey, Pitkin, etcetera. In general literature, they have Washington Irving, Fay, Hall, Willis, Sanderson, Sedgwick, Leslie, Stephens, Child and Neal. In fiction, they have Cooper, Paulding, Bird, Kennedy, Thomas, Ingraham, and many others. They have, notwithstanding the mosquitoes, produced some very good poets: Bryant, Halleck, Sigourney, Drake, etcetera; and have they not, with a host of polemical writers, Dr Channing, one of their greatest men, and from his moral courage in pointing out their errors, the best friend to his country that America has ever produced! Indeed, to these names we might fairly add their legal writers—Chancellor Kent and Judge Story, as well as Webster, Clay, Everett, Cass, and others, who are better known from their great political reputations than from their writings. Considering that they have but half our population, and not a quarter of the time to spare that we have in this country, the Americans have no want of good writers, although there are few of them well known to the British public. It must be pointed out that the American writers are under another disadvantage which we are not subject to in this country, which is, that freedom of opinion is not permitted to them; the majority will not allow it, except on points of religion, and in them they may speculate as much as they please, and publish their opinions, whether Deistical, Atheistical, or worse, if they can find worse out. It is true

than an author may, and some will, publish what they please, but if he does not wish to lose his popularity, and thereby lose his profits, he must not only not offend, but he must conciliate and flatter the nation: and such is the practice with the majority of American authors. Whether it be a work of fiction or one of history his countrymen must be praised, and, if it be possible to introduce it, there must be some abuse of England. This fact will account for the waning popularity of Mr Cooper; he has ventured to tell his countrymen the truth in more than (one) of his later works, and now the majority are against him. The work, which I have often quoted in these pages, called "The Democrat," fell dead from the press. I think it fortunate for Mr Cooper that it did, as people have been lynched who have not said half so much as he did in that work. His "Naval History" will reinstate him, and I suspect it has been taken up with that view, for, although Mr Cooper has shown a good deal of moral courage, he has not remained consistent. At one moment he publishes "The Democrat," and gives his countrymen a good *whipping*, and then he publishes his "Naval History," and *soft sawders* them. But, with the exception of Dr Channing, he almost stands alone in this particular.

One of the best authors of America is Judge Hall; he proves himself by his writings to be a shrewd, intelligent man, and yet in his "Statistics of the West" I was surprised to find the following paragraph, the substance of which was more than once repeated in the work. Speaking of the Indian hostilities, he says:—

"The mother country (England) never ceased to indulge in the hope of reuniting the colonies (that is the United States) to her empire, until the *war of eighteen hundred and twelve* crushed the last vestige of her delusive anticipations."

Such is his preposterous assertion, the absurdity of which will make an Englishman laugh; but the corollaries drawn from it are serious, as they are intended to feed the hostile feeling still existing against this country; for he attempts to prove that from the time the Independence was ratified by George the Third, that we have ever

been trying to reduce America again to our sway; and that all the hostile attempts of the various Indian tribes, all the murders of women and children, and scalping, since that date, were wholly to be ascribed to the agency and bribes of England, who hoped by such means to drive the Americans back to the sea coast, where they could be assailed by her navy.

A little reflection might satisfy any reasonable American, that when they wrestled by main force, and without regard to justice, those lands from the Indians which they had hunted over for so many generations, and which were their own property, it was very natural that the Indians should not surrender them without a struggle. But the wish of Judge Hall was to satisfy his countrymen that their exterminating wars against the Indians have been those of *self defence*, and not of *unpardonable aggression*. At that period there were many white men who had either joined, or, having been captured, had been adopted into, the Indian tribes. All these Judge Hall would make out to be English emissaries, especially one whom he very correctly designates as the “infamous Girty.” Unfortunately for Judge Hall the infamous Girty was an American, and born in Philadelphia, as is proved by American authority.

This obligation to write for their own countrymen, and for them alone, has very much injured the sale of American works in England, for publishers having read them find so many offensive and untrue remarks upon this country, that they will not print them. But it does more harm, as it cramps genius, harrows their ideas, and instead of leading in the advance, and the people looking up to them, they follow in the rear, and look up to the people, whom they flatter to obtain popularity; and thus the pen in America, as a moral weapon, is at present “*niddering*.”

The remarks of Miss Martineau on American literature are, as all her other remarks, to be received with great caution. Where she obtained her information I know very well, and certain it is that she has been most egregiously deceived. An American critic observes very truly:—

“It is the misfortune of professed book writers, when they arrive in the United States, to fall into the hands of certain cliques in our principal cities and town, who make themselves the medium of interpretation—their own modes of life, the representation of those of the *élite* of the country; their own opinions, the infallible criterion by which all others must be estimated. They surround the traveller with an atmosphere of their own, and hope to shine through it on the future pages of the grateful guest.

“This accounts satisfactorily for many things which are to be found in Miss Martineau’s work, for her numerous misapprehensions as to the character, taste, and occupations of the American women.

“She evidently mistakes the character of our merchants, and does our literature but meagre justice. To hold up some obscure publications from the pens of mere literary adventurers as the best works she has seen, and at the same time pronounce Mr Cooper’s much regretted failure, is a stretch of boldness, quite unwarranted by anything Miss Martineau has yet achieved in the republic of letters.”

Such was really the case; Miss Martineau fell into what was termed the Stockbridge clique, and pinned her faith upon the oracles which they poured into her ears. She says that in America, Hannah More is best known; on the contrary, Hannah More is hardly known in the United States.

She says that Wordsworth is much read. Mr Wordsworth has never even in this country been appreciated as he ought to be. In America it may almost be said that he has not been read; and she adds to this, that Byron is *little known*; this is really too bold an assertion. Miss Martineau was everywhere in the best society in America; and I believe that in nine drawing-rooms out of ten, she must have seen a copy of Byron lying on the table.

She says Mr Cooper is a failure. With the exception of Washington Irving, there never was an American writer so justly popular in America as Cooper. It is true that latterly he has displeased the majority, by pointing out to them their faults, and that he is not

always in a good humour when he writes about England. But to state the author of such works as "*The Pilot*", "*The Last of the Mohicans*", and "*The Prairie*", a failure, is really too absurd. The cause of this remark is said to be that Mr Cooper had a quarrel with Miss Martineau's particular friend Mr S—. There is only one remark in the whole of her observations which is in itself true. She says Bulwer is much read. Here she is correct: but the cause which she gives for his being so much read, is not the real one. She asserts it is on account of his liberal opinions; it is not on that account, it is from the interest of his stories, and the beauty of his writing.

But the assertion that seemed to me the most strange in Miss Martineau's work, was, that Mr Carlisle, the author of "*Sartor Resartus*", was the most read of any English author. Without intending to depreciate the works of Mr Carlisle, I felt convinced from my own knowledge, that this could not be a fact, for Mr Carlisle's works are not suited to the Americans. I, therefore, determined to ascertain how far it was correct. I went to the publishers, and inquired how many of Mr Carlisle's works had been printed. They replied that they had printed one edition of six hundred copies, which they had nearly sold; and were considering whether it would be worth their while to print a second; and in consequence of Miss Martineau's assertion, that Byron was little known, I applied to the largest publishers in New York and Philadelphia, to ascertain, if I could, how many copies of Byron had been published. The reply was, that it was impossible to say exactly, as there had been so many editions issued, by so many different publishers, but that they considered that from one hundred and fifty to two hundred thousand copies, must have been sold! so much for the accuracy of Miss Martineau. (See Note 1.)

I am afraid, that notwithstanding the eloquent and energetic exertions of the author of "*Ion*," we shall never be able to make the public believe that the creations of a man's brain are his own property, or effect any arrangement with foreign countries, so as to secure a copyright to the English author. As on my arrival in America it was reported in the newspapers that I had come out to ascertain

what could be done in that respect, and to follow up the petition of the English authors. The subject was, therefore, constantly introduced and canvassed; and I naturally took an interest in it. Every one almost was for granting it; but, at the same time, every one told me that we should not obtain it.

The petition of the English authors to Congress was warmly espoused by Mr Clay, who invariably leads the van in everything which is liberal and gentlemanlike. A select committee, of which Mr Clay was chairman, was formed to consider upon it, and the following was the result of their inquiry, and a bill was brought in, upon the report of the committee:—

“In Senate of the United States, Feb. 16, 1837.

“Mr Clay made the following report:—

“The select committee to whom was referred the address of certain British and the petition of certain American authors, have, according to order, had the same under consideration, and beg leave now to report:—

“That, by the act of Congress of 1831, being the law now in force regulating copyrights, the benefits of the act are restricted to citizens or residents of the United States; so that no foreigner, residing abroad, can secure a copyright in the United States for any work of which he is the author, however important or valuable it may be. The object of the address and petition, therefore, is to remove this restriction as to British authors, and to allow them to enjoy the benefits of our law.

“That authors and inventors have, according to the practice among civilised nations, a property in the respective productions of their genius is incontestible; and that this property should be protected as effectually as any other property is, by law, follows as a legitimate consequence. Authors and inventors are among the greatest benefactors of mankind. They are often dependent, exclusively, upon their own mental labours for the means of subsistence; and are

frequently, from the nature of their pursuits, or the constitutions of their minds, incapable of applying that provident care to worldly affairs which other classes of society are in the habit of bestowing. These considerations give additional strength to their just title to the protection of the law.

“It being established that literary property is entitled to legal protection, it results that this protection ought to be afforded wherever the property is situated. A British merchant brings or transmits to the United States a bale of merchandise, and the moment it comes within the jurisdiction of our laws they throw around it effectual security. But if the work of a British author is brought to the United States, it may be appropriated by any resident here, and republished, without any compensation whatever being made to the author. We should be all shocked if the law tolerated the least invasion of the rights of property, in the case of the merchandise, whilst those which justly belong to the works of authors are exposed to daily violation, without the possibility of their invoking the aid of the laws.

“The committee think that this distinction in the condition of the two descriptions of property is not just; and that it ought to be remedied by some safe and cautious amendment of the law. Already the principle has been adopted in the patent laws, of extending their benefits to foreign inventions and improvements. It is but carrying out the same principle to extend the benefit of our copyright laws to foreign authors. In relation to the subject of Great Britain and France, it will be but a measure of reciprocal justice; for, in both of those countries, our authors may enjoy that protection of their laws for literary property which is denied to their subjects here.

“Entertaining these views, the committee have been anxious to devise some measure which, without too great a disturbance of interests or affecting too seriously arrangements which have grown out of the present state of things, may, without hazard, be subjected to the test of practical experience. Of the works which have heretofore issued from the foreign press, many have already been

republished in the United States; others are in a progress of republication, and some probably have been stereotyped. A copyright law which should embrace any of these works, might injuriously affect American publishers, and lead to collision and litigation between them and foreign authors.

“Acting, then, on the principles of prudence and caution, by which the committee have thought it best to be governed, the bill which the committee intend proposing provides that the protection which it secures shall extend to those works only which shall be published after its passage. It is also limited to the subjects of Great Britain and France; among other reasons, because the committee have information that, by their laws, American authors can obtain there protection for their productions; but they have no information that such is the case in any other foreign country. But, in principle, the committee perceive no objection to considering the republic of letters as one great community, and adopting a system of protection for literary property which should be common to all parts of it. The bill also provides that an American edition of the foreign work for which an American copyright has been obtained, shall be published within reasonable time.

“If the bill should pass, its operation in this country would be to leave the public, without any charge for copyright, in the undisturbed possession of all scientific and literary works published prior to its passage—in other words, the great mass of the science and literature of the world; and to entitle the British or French author only to the benefit of every copyright in respect to works which may be published subsequent to the passage of the law.

“The committee cannot anticipate any reasonable or just objection to a measure thus guarded and restricted. It may, indeed, be contended, and it is possible that a new work, when charged with the expense incident to the copyright, may come into the hands of the purchaser at a small advance beyond what would be its price, if there were no such charge; but this is by no means certain. It is, on the contrary, highly probable that, when the American publisher has

adequate time to issue carefully an edition of the foreign work, without incurring the extraordinary expense which he now has to sustain to make a hurried publication of it, and to guard himself against dangerous competition, he will be able to bring it into the market as cheaply as if the bill were not to pass. But, if that should not prove to be the case, and if the American reader should have to pay a few cents to compensate the author for composing a work which he is instructed and profited, would it not be just in itself? Has any reader a right to the use, without remuneration, of intellectual productions which have not yet been brought into existence, but lie buried in the mind of genius? The committee think not; and they believe that no American citizen would not feel it quite as unjust, in reference to future publications, to appropriate to himself their use, without any consideration being paid to their foreign proprietors, as he would to take the bale of merchandise, in the case stated, without paying for it; and he would the more readily make this trifling contribution, when it secured to him, instead of the imperfect and slovenly book now often issued, a neat and valuable work, worthy of preservation.

“With respect to the constitutional power to pass the proposed bill, the committee entertain no doubt, and Congress, as before stated, has acted on it. The constitution authorises Congress to promote the progress of science and useful arts, by securing, for limited times, to authors and inventors, the exclusive right to their respective writings and discoveries. There is no limitation of the power to natives or residents of this country. Such a limitation would have been hostile to the object of the power granted. That object was to *promote* the progress of science and useful arts. They belong to no particular country, but to mankind generally. And it cannot be doubted that the stimulus which it was intended to give to mind and genius, in other words, the promotion of the progress of science and the arts, will be increased by the motives which the bill offers to the inhabitants of Great Britain and France.

“The committee conclude by asking leave to introduce the bill which accompanies this report.”

Let it not, however, be supposed that Mr Clay was unreported by the American press; on the contrary, a large portion of it espoused the cause of the English author in the most liberal manner, indeed the boon itself, if granted, would in reality be of more advantage to America than to us; as many of them argued. The New York Daily Express observes, "But another great evil resulting from the present law is, that most of the writers of our own country are utterly precluded from advancing our native literature, since they can derive no emolument or compensation for their labours; and it is idle to urge that the devotees of literature, any more than the ingenious artisan or mechanic, can be indifferent to the ultimate advantages which should result alike to both from the diligent use and studious application of their mental energies. We patronise and read the works of foreign writers, but it is at the expense of our own, the books of the English author being procured free of all cost, supersede those which would otherwise be produced by our own countrymen,—thus the foreigner is wronged, while the same wrong acts again as a tariff upon our American author and all this manifest injury is perpetuated without its being qualified by the most remote advantage to any of the parties concerned."

The Boston Atlas responded to this observation in almost the same language.

"This systematic, legalised depredation on English authors, is perfectly ruinous to all native literature. What writer can devote himself to a literary work, which he must offer on its completion, in competition with a work of the same description, perhaps, furnishing *printed copy* to the compositors, and to be had for the expense of a single London copy. What publisher would give its worth for a novel, in manuscript, supposing it to be equal to Bulwer's best, when he would get a novel of Bulwer himself, for a few shillings—with an English reputation at the back of it? This is the great reason that we have so few works illustrative of our own history—whether of fact or fiction. Our booksellers are supplied for nothing."

I extract the following from a very excellent article on the subject, in the North American Review.

Another bad consequence of the existing state of things is, that the choice of books, which shall be offered us, is in the wrong hands. Our publishers have, to no small extent, the direction of our reading, inasmuch as they make the selection of books for reprinting. They, of course, will choose those works which will command the readiest and most extensive sale; but it must be remembered, that in so doing, while they answer the demand of the most numerous class of readers, they neglect the wants of the more cultivated and intelligent class. Besides this, there are many admirable works, which might come into general use if they were presented to our reading public, but which are left unnoticed by the publishers, because their success is doubtful. Supposing Abbott's 'Young Christian,' for instance, a book which has had a more extensive circulation than any work of the present times, had been first published in England at the same moment that a good novel appeared, the American publishers would have given us immediately a horrid reprint of the novel; but we should have heard nothing of Abbott's book, till its success had been abundantly tried abroad; nor even then, if some ephemeral novel had started up which promised to sell better.

"Nor is it certain that the price of books would be seriously augmented by the passage of the copyright law. It must be remembered, that a great number of writers would thus be called into the field at once, English as well as American writers; for, if English authors could enjoy this benefit, they would soon begin to write expressly for America; and the competition would become so great, as to regulate the prices of books to a proper standard. But, even supposing the price to be considerably raised, it would certainly be better to pay two dollars for a handsome volume, which is worth keeping, and worth reading again, than to pay only one dollar for a book, which in five years will be worth no more than the same amount of brown paper. And, finally, there is the consideration of a native literature, which will, we presume, be placed by all reasonable and intelligent persons above that of cheap books."

Nevertheless, a large portion of the press took up the other side of the question, as may be inferred from a reply which I have inserted in the note beneath. (See note 2.)

The bill brought in was lost. Strange to say, the Southerner voted against, on the grounds that they would not give a copyright to Miss Martineau, to propagate her abolition doctrines in that country—forgetting, that as a copyright would increase the price of a work, it would be the means of checking its circulation, rather than of extending it.

When I arrived at Washington, I thought it would be worth while to ascertain the opinion of any of the members of Congress I might meet; and one fine morning, I put the question to one of the Loco foco delegates; when the following conversation took place:—

“Why, Captain, there is much to be said on this subject. Your authors have petitioned our Congress, I perceive. The petition was read last session.”

(Many of the Americans appeared to be highly gratified at the idea of an English petition having been sent to Congress.)

“I believe it was.”

“Well, now, you see, Captain—you will ask us to let you have your copyright in this country, as you allow our authors their copyright in yours; and I suppose you mean to say that if we do not, that our authors shall have no copyright in your country. We’ll allow that, but still I consider you ask too much, as the balance is on our side most considerably. Your authors are very numerous—ours are not. It is very true, that you can steal our copyrights, as well as we can yours. But if you steal ten, we steal a hundred. Don’t you perceive that you ask us to give up the advantage?”

“Oh, certainly,” replied I, “I have nothing more to say on the subject. I’m only glad of one thing.”

“And what may that be, Captain?”

“That I did not sign the petition.”

“No, we observed that your name was not down, which rather surprised us.”

To this cogent argument of the honourable member, I had no reply; and this was the first and last time that I broached the subject when at Washington; but after many conversations with American gentleman on the subject, and examination into the real merits of the case, came to the conclusion, that the English authors never would obtain a copyright in the United States, and as long as the present party are in power.

Their principal argument raised against the copyright, is as follows:—

“It is only by the enlightening and education of the people, that we can expect our institutions to hold together. You ask us to tax ourselves, to check the circulation of cheap literature, so essential to our welfare for the benefit of a few English authors? Are the interests of thirteen millions of people to be sacrificed? the foundation of our government and institutions to be shaken for such trivial advantages as would be derived by a few foreign authors. Your claim has the show of justice we admit, but when the sacrifice to justice must be attended with such serious consequences, must we not adhere to expediency?”

Now, it so happens that the very reverse of this argument has always proved to be the case from the denial of copyright. The enlightening of a people can only be produced by their hearing the truth, which they cannot, and do not, under existing regulations, receive from their own authors, as I have already pointed out; and the effects of their refusal of the copyright to English authors, is, that the American publishers will only send forth such works as are likely to have an immediate sale, such as the novels of the day, which may be said at present to comprise nearly the whole of American reading. Such works as might enlighten the Americans are not so rapidly saleable

as to induce an American publisher to risk publishing when there is such competition. What is the consequence that the Americans are amused, but not instructed or enlightened?

According to the present system of publication in America, the grant of copyright would prove to be of advantage only to a few authors—of course, I refer to the most popular. I had free admission to the books of one of the largest publishing houses in the United States, and I extracted from them the profits received by this house for works of a certain reputation. It will be perceived, that the editions published are not large. The profits of the American houses chiefly resulting from the number of works published, each of these yielding a moderate profit, which when collected together, swell into a large sum total.

	copies printed	Trade price	
Fielding	2,500	104 cents	many left unsold
Prior's Life of Goldsmith	750	200 cents	sold
Arethusa	1,250	70 cents	all sold
Abel Allnut	1,250	52 cents	almost all sold
Fellow Commoner	2,000	70 cents	many on hand
Rifle Brigade	2,000	37 cents	many on hand
Sharpe's Essays	1,000	54 cents	one half sold

Now, as there are one hundred cents to a dollar, and the expenses of printing, paper, and advertising have to be deducted, as well as the copies left on hand, it will be evident, that the profit on each of the above works, would be too small to allow the publishers in America to give even 20 pounds for the copyright, the consequence of a copyright would therefore be, that the major portion of the works printed would not be published at all, and better works would be substituted. Of course, such authors as Walter Scott, Byron, Bulwer,

etcetera, have a most extensive sale; and the profits are in proportion, but then it must be remembered that a great many booksellers publish editions, and the profits are divided accordingly. Could Sir Walter Scott have obtained a copyright in the United States, it would have been worth to him by this time at least 100,000 pounds.

The Americans talk so much about their being the most enlightened nation in the world, that it has been generally received to be the case. I have already stated my ideas on this subject, and I think that the small editions usually published, of works not standard or elementary, prove, that with the exception of newspapers, they are not a *reading* nation. The fact is, they have no time to read; they are all at work; and if they get through their daily newspaper, is quite as much as most of them can effect. Previous to my arrival in the United States, and even for some time afterwards, I had an idea that there was a much larger circulation of every class of writing in America, than there really is. It is only the most popular English authors, as Walter Scott, or the most fashionable, as Byron, which have any extensive circulation; the works which at present the Americans like best, are those of fiction in which there is anything to excite or amuse them, which is very natural, considering how actively they are employed during the major portion of their existence, and the consequent necessity of occasional relaxation. When we consider the extreme cheapness of books in the United States, and the enormous price of them in this country, the facilities of reading them there, and the difficulty attending it here from the above cause, I have no hesitation in saying, that as a *reading nation*, the United States cannot enter into comparison with us.

As I am upon this subject, I cannot refrain from making a few remarks upon it, as connected with this country. The price of a book now published is enormous, when the prime cost of paper and printing is considered; the actual value of each three volumes of a moderate edition, which are sold at a guinea and a half, being about four shillings and sixpence, and when the edition is large, as the outlay for putting up the type is the same in both, of course it is even

less; but the author must be paid, and upon the present small editions he adds considerably to the price charged upon every volume; then comes the expense of advertising, which is very heavy; the profits of the publisher, and the profits of the trade in general; for every book for which the public pay a guinea and a half, is delivered by the publisher to the trade, that is, to the booksellers, at 1 pound 1 shillings 3 pence. The allowance to the trade, therefore, is the heaviest tax of all; but it is impossible for booksellers to keep establishments, clerks, etcetera, without having indemnification. In all the above items, which so swells up the price of the book, there cannot well be any deduction made.

Let us examine into the division of profits. I am only making an approximation, but it is quite near enough for the purpose.

An edition of 1,000 copies at 1 pound 11 shillings 6 pence will give 1,575 pounds.

Positive Expenses to Publisher.

Trade allowance of 10 shillings. 3 pence per copy: 512 pounds 10 shillings.

Extra allowance. 25 for 24-40 copies: 63 pounds.

Printing and paper, 4 shillings 6 pence per copy: 225 pounds 0 shillings.

Advertising, equal to 2 shillings per copy: 100 pounds 0 shillings.

Presentations to Universities and Reviewers, say 30 copies: 47 pounds 5 shillings.

The author if he is well known, may be said to receive 7 shillings per copy: 250 pounds 0 shillings.

Leaving for the publisher: 277 pounds 0 shillings.

Total 1,575 pounds 0 shillings.

All the first expenses being positive, it follows that the struggle is between the publisher and the author, as to what division shall be made of the remainder. The publisher points out the risk he incurs, and the author his time and necessities; and when it is considered that many authors take more than a year to write a book, it must be acknowledged that the sum paid to them, as I have put it down, is not too great. The risk, however, is with the publisher, and the great profits with the trade, which is perhaps the reason why booksellers often make fortunes, and publishers as often become bankrupts. Generally speaking, however, the two are combined, the sure gain of the bookseller being as a set off against the speculation of the publisher.

But one thing is certain, the price of books in this country is much too high, and what are the consequences? First, that instead of purchasing books, and putting them into their libraries, people have now formed themselves into societies and book-clubs, or trust entirely to obtaining them from circulating libraries. Without a book is very popular, it is known by the publisher what the sale is likely to be, within perhaps fifty copies; for the book-clubs and libraries will, and must have it, and hardly anybody else will; for who will pay a guinea and a half for a book which may, after all, prove not worth reading! Secondly, it has the effect of the works being reprinted abroad, and sent over to this country; which, of course, decreases the sale of the English edition. At the Custom-House, they now admit English works printed in Paris, at a small duty, when brought over in a person's luggage for private reading; and these foreign editions are smuggled, and are to be openly purchased at most of the towns along the coast. This cannot be prevented—and as for any international copyright being granted by France or Belgium, I do not think that it ever will be; and if it were, it would be of no avail, for the pirating would then be carried on a little further off in the small German States; and if you drove it to China, it would take place there. We are running after a Will-o'-the-wisp in that expectation. The fault lies in

ourselves; the books are too dear, and the question now is, cannot they be made cheaper?

There is a luxury in printing, to which the English have been so long accustomed, that it would not do to deprive them of it. Besides, bad paper and bad type would make but little difference in the expense of the book, as my calculation will show; but if a three volume work (see Note 3) could be delivered to the public at ten shillings, instead of a guinea and a half, it would not only put a stop to piracy abroad, but the reduced price would induce many hundreds to put it into their library, and be independent of the hurried reading against time, and often against inclination, to which they are subject by book-clubs and circulating libraries; and that this is not the case, is the fault of the public itself, and not of the author, publisher, or any other party.

It is evident that the only way by which books may be made cheap, is by an extended sale—and "*Nicholas Nickleby*", and other works of that description, have proved that a cheap work will have an extended sale—always provided it is a really good one.

But it is impossible to break through the present arrangements which confine the sale of books, unless the public themselves will take it in hand—if they choose to exert themselves, the low prices may be firmly established with equal benefit to all parties, and with an immense increase in the consumption of paper. To prove that any attempt on the part of an author or publisher will not succeed unaided, it was but a few months ago, that Mr Bentley made the trial, and published the three volumes at one guinea; but he did not sell one copy more—the clubs and libraries took the usual number, and he was compelled to raise his price. The rapid sale of the *Standard Novels*, which have been read over and over again, when published at the price of five shillings, is another proof that the public has no objection to purchase when the price is within its means.

I can see but one way by which this great desideratum is to be effected; which is, by the public insuring by subscription any publisher or bookseller from loss, provided he delivers the works at the reduced price. At present, one copy of a book may be said to

serve for thirty people at least; but say that it serves for ten, or rather say that you could obtain five thousand, or even a less number, of people to put down their names as subscribers to all new works written by certain named authors, which should be published at the reduced price of ten shillings per copy. Let us see the result.

A ten shilling work under such auspices would be delivered to the trade at eight shillings.

The value of the five thousand copies to the publisher would be 2,000 shillings 0 shillings.

The expenses of printing and paper would be reduced to about 3 shillings a copy, which would be 750 pounds.

Advertising, as before, 100 pounds.

Extra 1 shilling 3 pence, 4 shillings, 5 shillings, about 16 pounds, subtotal 866 pounds.

Leaving a profit for author and publisher of 1,134 pounds 0 shillings.

Whereas, in the printing of a thousand copies, the profits of author 350 pounds, and of publisher 277 pounds 5 shillings, equalled only 627 pounds 5 shillings.

Extra profit to author and publisher 506 pounds 15 shillings.

Here the public would gain, the author would gain, and the publisher would gain; nor would any party lose; the profits of the trade would not be quite so great, being 500 pounds, instead of 575 pounds; but it must be remembered, that there are many who, not being subscribers, would purchase the book as soon as they found that it was approved of—indeed, there is no saying to what extent the sale might prove to be.

If any one publisher sold books at this price, the effect would be of reducing the price of all publications, for either the authors must

apply to the cheap publisher, or the other publishers sell at the same rate, or they would not sell at all. Book-clubs and circulating libraries would then rapidly break up, and we should obtain the great desideratum of cheap literature.

And now that I have made my statement, what will be the consequence? Why, people will say, “that’s all very well, all very true”—and nobody will take the trouble—the consequence is, that the public will go on, paying through the nose as before—and if so, let it not grumble; as it has no one to thank but itself for it. (See Note 4.)

The paper and printing in America is, generally speaking, so very inferior, that the books are really not worth binding, and are torn up or thrown away after they are read—not that they cannot print well; for at Boston particularly they turn out very excellent workmanship. Mr Prescott’s *“Ferdinand and Isabella”*, is a very good specimen, and so are many of the Bibles and Prayer books. In consequence of their own bad printing, and the tax upon English books, there are very few libraries in America: and in this point, the American government should make some alteration, as it will be beneficial to both countries. The English editions, if sent over, would not interfere with the sale of their cheap editions, and it would enable the American gentlemen to collect libraries. The duty, at present, is twenty-six cents per pound, on books in boards, and thirty cents upon bound-books.

Now, with the exception of school books, upon which the duty should be retained, this duty should be very much reduced.

At present, all books published prior to 1775, are admitted upon a reduced duty of five cents. This date should be extended to 1810, or 1815, and illustrated works should also be admitted upon the reduced duty. It would be a bonus to the Americans who wish to have libraries, and some advantage to the English booksellers.

I cannot dismiss this subject without pointing out a most dishonest practice, which has latterly been resorted to in the United States, and

which a copyright only, I am afraid, can prevent the continuance of. Works which have become standard authority in England, on account of the purity of their Christian principles, are republished in America with whole pages altered, advantage being taken of the great reputation of the orthodox writers, to disseminate Unitarian and Socinian principles. A friend of mine, residing in Halifax, Nova Scotia, sent to a religious book society at New York for a number of works, as presents to the children attending the Sunday school. He did not examine them, having before read the works in England, and well knowing what ought to have been the contents of each.

To his surprise, the parents came to him a few days afterwards to return the books, stating that they presumed that he could not be aware of the nature of their contents; and on examination, he found that he had been circulating Unitarian principles among the children, instead of those which he had wished to inculcate. (See Note 5.)

The press of America, as I have described it, is all powerful; but still it must be borne in mind, that it is but the slave of the majority; which, in its turn, it dare not oppose.

Such is its tyranny, that it is the dread of the whole community. No one can—no one dare—oppose it; whosoever falls under its displeasure, be he as innocent and as pure as man can be, his doom is sealed. But this power is only delegated by the will of the majority, for let any author in America oppose that will, and he is denounced. You must drink, you must write, not according to your own opinions, or your own thoughts, but as the majority will. (See Note 6.)

Mr Tocqueville observes, “I know no country in which there is so little true independence of mind, and freedom of discussion, as in America.”

Note 1. Miss Martineau talks of Dr Follett as one of the greatest men in America. I was surprised at this, as I never heard of his name, so I inquired—“Who is Dr Follett?”—“I don’t know.”—“Do you know Dr

Follett?”—“Never heard of him.”—“Do you?”—“No.” I asked so many people that at last I became quite tired; at last I found a man who knew him, his answer was—“Oh, yes; he’s an *Abolitionist!*” As the American critic justly observes, “He shines in the future pages of his grateful guest.”

Note 2. The International Copyright Question.

One of the most important questions, upon principle, that ever was mooted, has for some time placed in juxtaposition the various editors of the corps critical, accordingly as their interests or feelings have been worked upon. Our chief object in these remarks is to hold up to the scorn and derision that it richly merits the assumption of an editor, that an author has no right to the emanations of his own mind—to the productions of his own pen. We do not mean to answer the many and gross absurdities—which this talented gentleman’s sophistry has palmed upon the public,—it would be a work of supererogation, inasmuch as his ‘airy vision’ has already been completely ‘dissolved’ by the breath of that eminent gentleman, well known to us, who has so completely annihilated the wrong which he is so anxious to continue. But the shameful assumption that a writer, universally allowed to be the worst paid artist in creation, should not have—is not entitled to have, by every principle—of courtesy and honour, a sole and undivided right to, and in, his own productions—is so monstrous, that every editor imbued with those feelings, which through life, should be the rule of his conduct, is in duty bound to come forward and express his dissent from such a doctrine, and his abhorrence of a principle so flagitious.

“We avail ourselves of the opportunity this number affords of upholding the poor author’s right, of censuring the greedy spoliation of publishing tribe, who would live, batten, and fatten upon the despoiled labours of those whom their piracy starves—snatching the scanty crust from their needy mouths to pamper their own insatiate maws.

“This matter lies between the publisher and the author. The author claims a right to his own productions, wherever they may be. The publishers, like the Cornwall wreckers, say no, the moment your labours touch our fatal shore they are ours; you have no right to them, no title in them. Good heavens! shall such a cruel despoliation be permitted! The publishers, with consummate cunning, turn to the public, and virtually say, support us in our theft, and we will share the spoil with you; we will give you standard works at a price immeasurably below their value. As well might a thief, brought before the honest and worthy recorder say: If your honour will wink at the crime, you will make me a public benefactor, for whilst I rob one man of an hundred watches, I can sell them to an hundred persons for one-third of their prime cost; and thus injure one and benefit a hundred, you shall have one very cheap. What would this recorder say? He would say, the crime is apparent, and I spurn with indignation and contempt your offer to part with to me that which is not your own. And should not this be the reply of the public to the publishers? Yes, and it will be too. And the vampires who have so long lived upon the spirits of authors, will have tax their own to yield themselves support.”

Note 3. I ought here to remark, that the authors are much injured by the present system. It having been satisfactorily proved, that a three-volume work is the only one that can be published at the minimum of expense, and the magnum of profits, no publisher likes to publish any other. There is the same expense in advertising, etcetera, a two volume, or a one octavo book, as a three. The author, therefore, has to spin out to three volumes, whether he has matter or not; and that is the reason why the second volume, like the fourth act of a five act play, is, generally speaking, so very heavy. Publishers, now-a-days, measure works with a foot-rule, as the critic did in Sterne.

Note 4. The members of the peerage and baronetage of Great Britain, the members of the untitled aristocracy—the staff officers of the army and navy—the members of the different clubs—are each of

them sufficiently numerous to effect this object; and if any subscription was opened, it could not fail of being filled up.

Note 5. One of those works was Abbot's 'Young Christian', or some other work by that author.

Note 6. Indeed, one cannot help being reminded of what Beaumarchais makes Figaro say upon the liberty of the press in another country. "On me dit que pendant ma retraite économique il s'est établi dans Madrid un système de liberté sur la vente des productions, qui s'étend même a celles de la presse; et, pourvu que je parle dans mes écrits, ni de l'autorité, ni du culte, ni de la politique, ni de la morale, ni des gens en place, ni des corps en crédit, ni de l'opéra, ni des autres spectacles, ni de personne qui tient a quelque chose, je puis tout imprimer *librement*; sous l'inspection de *deux ou trois censeurs*."

Volume One—Chapter Eight.

The Mississippi.

I have headed this chapter with the name of the river which flows between the principal States in which the society I am about to depict is to be found; but, at the same time, there are other southern States, such as Alabama and Georgia, which must be included. I shall attempt to draw the line as clearly as I can, for although the territory comprehended is enormous, the population is not one-third of that of the United States, and it would be a great injustice if the description of the society I am about to enter into should be supposed to refer to that of the States in general. It is indeed most peculiar, and arising from circumstances which will induce me to refer back, that the causes may be explained to the reader. Never, perhaps, in the records of nations was there an instance of a century of such unvarying and unmitigated crime as is to be collected from the history of the turbulent and blood-stained Mississippi. The stream itself appears as if appropriate for the deeds which have been

committed. It is not like most rivers, beautiful to the sight, bestowing fertility in its course; not one that the eye loves to dwell upon as it sweeps along, nor can you wander on its bank, or trust yourself without danger to its stream. It is a furious, rapid, desolating torrent, loaded with alluvial soil; and few of those who are received into its waters ever rise again, or can support themselves long on its surface without assistance from some friendly log. It contains the coarsest and most uneatable of fish, such as the cat-fish and such genus, and, as you descend, its banks are occupied with the fetid alligator, while the panther basks at its edge in the cane-brakes, almost impervious to man. Pouring its impetuous waters through wild tracks, covered with trees of little value except for firewood, it sweeps down whole forests in its course, which disappear in tumultuous confusion, whirled away by the stream now loaded with the masses of soil which nourished their roots, often blocking up and changing for a time the channel of the river, which, as if in anger at its being opposed, inundates and devastates the whole country round; and as soon as it forces its way through its former channel, plants in every direction the uprooted monarchs of the forest (upon whose branches the bird will never again perch, or the racoon, the opossum or the squirrel, climb) as traps to the adventurous navigators of its waters by steam, who, borne down upon these concealed dangers which pierce through the planks, very often have not time to steer for and gain the shore before they sink to the bottom. There are no pleasing associations connected with the great common sewer of the western America, which pours out its mud into the Mexican Gulf, polluting the clear blue sea for many miles beyond its mouth. It is a river of desolation; and instead of reminding you, like other beautiful rivers, of an angel which has descended for the benefit of man, you imagine it a devil, whose energies have been only overcome by the wonderful power of steam.

The early history of the Mississippi is one of piracy and buccaneering; its mouths were frequented by these marauders, as in the bayous and creeks they found protection and concealment for themselves and their ill-gotten wealth. Even until after the war of 1814 these sea-robbers still to a certain extent flourished, and the

name of Lafitte, the last of their leaders, is deservedly renowned for courage and for crime; his vessels were usually secreted in the land-locked bay of Barataria, to the westward of the mouth of the river. They were, however, soon extirpated by the American government. The language of the adjacent States is still adulterated with the slang of those scoundrels, proving how short a period it is since they disappeared, and how they must have mixed up with the reckless population, whose head-quarters were then at the mouth of the river.

But as the hunting-grounds of Western Virginia, Kentucky, and the northern banks of the Ohio, were gradually wrested from the Shawnee Indians, the population became more dense, and the Mississippi itself became the means of communication and of barter with the more northern tribes. Then another race of men made their appearance, and flourished for half a century, varying indeed in employment, but in other respects little better than the buccaneers and pirates, in whose ranks they were probably first enlisted. These were the boatmen of the Mississippi, who with incredible fatigue forced their "keels" with poles against the current, working against the stream with the cargoes entrusted to their care by the merchants of New Orleans, labouring for many months before they arrive at their destination, and returning with the rapid current in as many days as it required weeks for them to ascend. This was a service of great danger and difficulty, requiring men of iron frame and undaunted resolution: they had to contend not only with the stream, but, when they ascended the Ohio, with the Indians, who, taking up the most favourable positions, either poured down the contents of their rifles into the boat as she passed; or, taking advantage of the dense fog, boarded them in their canoes, indiscriminate slaughter being the invariable result of the boatmen having allowed themselves to be surprised. In these men was to be found, as there often is in the most unprincipled, one redeeming quality (independent of courage and perseverance), which was, that they were, generally speaking, unscrupulously honest to their employers, although they made little ceremony of appropriating to their own use the property, or, if necessary, of taking the life any other parties. Wild, indeed, are the stories which are still remembered of the deeds of

courage, and also of the fearful crimes committed by these men, on a river which never gives up its dead. I say still remembered, for in a new country they readily forget the past, and only look forward to the future, whereas in an old country the case is nearly the reverse—we love to recur to tradition, and luxuriate in the dim records of history.

The following description of the employment of this class of people is from the pen of an anonymous American author:—

“There is something inexplicable in the fact, there could be men found, for ordinary wages, who would abandon the systematic but not laborious pursuits of agriculture to follow a life, of all others except that of the soldier, distinguished by the greatest exposure and privation. The occupation of a boatman was more calculated to destroy the constitution and to shorten life than any other business. In ascending the river it was a continued series of toil, rendered more irksome by the snail-like rate at which they moved. The boat was propelled by poles, against which the shoulder was placed, and the whole strength and skill of the individual were applied in this manner. As the boatmen moved along the running board, with their heads nearly touching the plank on which they walked, the effect produced on the mind of an observer was similar to that on beholding the ox rocking before an overloaded cart. Their bodies, naked to their waist for the purpose of moving with greater ease and of enjoying the breeze of the river, were exposed to the burning suns of summer and to the rains of autumn. After a hard day’s push they would take their ‘fillee,’ or ration of whisky, and, having swallowed a miserable supper of meat half burnt, and of bread half baked, stretched themselves, without covering, on the deck, and slumber till the steersman’s call invited them to the morning ‘fillee.’ Notwithstanding this, the boatman’s life had charms as irresistible as those presented by the splendid illusions of the stage. Sons abandoned the comfortable farms of their fathers, and apprentices fled from the service of their masters. There was a captivation in the idea of ‘going down the river,’ and the ‘youthful boatman who had pushed a keel’ from New Orleans felt all the pride of a young merchant after his first voyage to an English sea-port. From an

exclusive association together they had formed a kind of slang peculiar to themselves; and from the constant exercise of wit with the squatters on shore, and crews of other boats, they acquired a quickness and smartness of vulgar retort that was quite amusing. The frequent battles they were engaged in with the boatmen of different parts of the river, and with the less civilised inhabitants of the lower Ohio and Mississippi, invested them with that furious reputation which has made them spoken of throughout Europe.

“On board of the boats thus navigated our merchants entrusted valuable cargoes, without insurance, and with no other guarantee than the receipt of the steersman, who possessed no property but his boat; and the confidence so reposed was seldom abused.”

Every class of men has its hero, as those always will be, who, from energy of character and natural endowment, are superior to their fellows. The most remarkable person among these people was one *Mike Fink*, who was their acknowledged leader for many years. His fame was established from New Orleans to Pittsburg. He was endowed with gigantic strength, courage, and presence of mind—his rifle was unerring, and his conscience never troubled his repose. Every one was afraid of him; every one was anxious to be on good terms with him, for he was a regular freebooter; and although he spared his friends, he gave no quarter to the lives or properties of others. Mike Fink was not originally a boatman: at an early age he had enlisted in the company of scouts, another variety of employment produced by circumstances—a species of solitary rangers employed by the American government, and acting as spies, to watch the motions of the Indians on the frontiers. This peculiar service is thus described by the author I have before quoted:—

“At that time, Pittsburg was on the extreme verge of white population, and the spies, who were constantly employed, generally extended their *reconnaissance* forty or fifty miles to the west of this post. They went out singly, lived as did the Indian, and in every respect became perfectly assimilated in habits, taste, and feeling, with the red men of the desert. A kind of border warfare was kept up,

and the scout thought it as praiseworthy to bring in the scalp of a Shawnee, as the skin of a panther. He would remain in the woods for weeks together, using parched corn for bread, and depending on his rifle for his meat—and slept at night in perfect comfort, rolled in his blanket.”

In this service Mike Fink acquired a great reputation for coolness and courage, and many are the stories told of his adventures with the Indians. It has been incontestably proved, that the white man, when accustomed to the woods, is much more acute than the Indian himself in that woodcraft of every species, in which the Indian is supposed to be such an adept; such as discovering a trail by the print of a mocassin, by the breaking of twigs, laying of the grass, etcetera, and in the practice of the rifle he is very superior. As a proof of Fink's dexterity with his rifle, he is said one day, as they were descending the Ohio in their boat, to have laid a wager, and won it, that he would from mid-stream with his rifle balls cut off at the stumps the tails of five pigs which were feeding on the banks. One story relative to Mike Fink, when he was employed as a scout, will be interesting to the reader.

“As he was creeping along one morning, with the stealthy tread of a cat, his eye fell upon a beautiful buck browsing on the edge of a barren spot, three hundred yards distant. The temptation was too strong for the woodsman, and he resolved to have a shot at every hazard. Repriming his gun, and picking his flint, he made his approaches in the usual noiseless manner. But the moment he reached the spot from which he meant to take his aim, he observed a large savage, intent upon the same object, advancing from a direction a little different from his own. Mike shrunk behind a tree with the quickness of thought, and keeping his eye fixed on the hunter, waited the result with patience. In a few moments the Indian halted within fifty paces, and levelled his piece at the deer. In the meanwhile Mike presented his rifle at the body of the savage, and at the moment the smoke issued from the gun of the latter, the bullet of Fink passed through the red man's breast. He uttered a yell, and fell dead at the same instant with the deer. Mike re-loaded his rifle, and

remained in his covert for some minutes to ascertain whether there were more enemies at hand. He then stepped up to the prostrate savage, and having satisfied himself that life was extinguished, turned his attention to the buck, and took from the carcase those pieces suited to the process of jerking.”

As the country filled up the Indians retreated, and the corps of scouts was abolished: but after a life of excitement in the woods, they were unfitted for a settled occupation. Some of them joined the Indians, others, and among them Mike Finn, enrolled themselves among the fraternity of boatmen on the Mississippi.

The death of Mike Fink was befitting his life. One of his very common exploits with his rifle was hitting for a wager, at thirty yards distance, a small tin pot, used by the boatmen, which was put on the head of another man. Such was his reputation, that no one hardly objected to being placed in this precarious situation. It is even said that his wife, that is, his *Mississippi* wife, was accustomed to stand the fire; this feat was always performed for a wager of a quart of spirits, made by some stranger, and was a source of obtaining the necessary supplies. One day the wager was made as usual, and a man with whom Mike had at one time been at variance (although the feud was now supposed to have been forgotten) was the party who consented that the pot should be placed on his head. Whether it was that Mike was not quite sober, or that he retained his ill-will towards the man, certain it is, that in this instance, instead of his hitting the mark, his bullet went below it and through the brain of the man, who instantly fell dead; but his brother, who was standing by, and probably suspecting treachery, had his loaded rifle in his hand, levelled, fired, and in a second the soul of Mike was despatched after that of his victim.

Here ended the history of Mike Fink, Esq.

The invention of the steam-engine, and its application to nautical purposes, deprived the boatmen of employment; they were again thrown upon their own resources, and as it may be supposed, did not much assist in the amelioration of Mississippi society. The

country gradually increased its population, but as a majority of those who migrated were of the worst description, being composed of those who had fled from the more settled States to escape the punishment due to their crimes, it may be said, that so far from improving, the morals of the Mississippi became worse, as the mean and paltry knave, the swindler, and the forger were now mingled up with the more daring spirits, producing a more complicated and varied class of crime than before. The steam-boats were soon crowded by a description of people who were termed gamblers, as such was their ostensible profession, although they were ready for any crime which might offer an advantage to them, (see note 1) and the increase of commerce and constant inpouring of populations daily offer to them some new dupe for their villainy. The state of society was much worse than before—the knife was substituted for the rifle, and the river buried many a secret of atrocious murder. To prove the extent to which these deeds of horror were perpetrated, I shall give to the English reader, in as succinct a form as I can, the history of John Murel, the land pirate, as he was termed. There is an octavo volume, published in the United States, giving a whole statement of the affair; it was not until the year 1833 that it was exposed, and Murel sent to the Penitentiary. Murel was at the head of a large band, who had joined under his directions, for the purposes of stealing horses and negroes in the southern States, and of passing counterfeit money. He appears to have been a most dexterous as well as consummate villain. When he travelled, his usual disguise was that of an itinerant preacher; and it is said that his discourses were very “soul moving”—interesting the hearers so much that they forgot to look after their horses, which were carried away by his confederates while he was preaching. But the stealing of horses in one State, and selling them in another, was but a small portion of their business; the most lucrative was the enticing slaves to run away from their masters, that they might sell them in some other quarter. This was arranged as follows; they would tell a negro that if he would run away from his master, and allow them to sell him, he should receive a portion of the money paid for him, and that upon his return to them a second time they would send him to a free State, where he would be safe. The poor wretches complied with this

request, hoping to obtain money and freedom; they would be sold to another master, and run away again to their employers; sometimes they would be sold in this manner three or four times until they had realised three or four thousand dollars by them; but as, after this, there was fear of detection, the usual custom was to get rid of the only witness that could be produced against them, which was the negro himself, by murdering him, and throwing his body into the Mississippi. Even if it was established that they had stolen a negro before he was murdered, they were always prepared to evade punishment, for they concealed the negro who had run away until he was advertised, and a reward offered to any man who would catch him. An advertisement of this kind warrants the person to take the property, if found, and then the negro becomes a property in trust. When, therefore, they sold the negro, it only became a breach of trust, not stealing; and for a breach of trust, the owner of the property can only have redress by a civil action, which was useless, as the damages were never paid. It may be inquired, how it was that Murel escaped Lynch law under such circumstances? This will be easily understood when it is stated that he had more than a thousand sworn confederates, all ready at a moment's notice to support any of the gang who might be in trouble. The names of all the principal confederates of Murel were obtained from himself, in a manner which I shall presently explain. The gang was composed of two classes: the heads or council, as they were called, who planned and concerted but seldom acted; they amounted to about four hundred. The other class were the active agents, and were termed Strikers, and amounted to about six hundred and fifty. These were the tools in the hands of the others; they ran all the risk, and received but a small proportion of the money; they were in the power of the leaders of the gang, who would sacrifice them at any time by handing them over to justice, or sinking their bodies in the Mississippi. The general rendezvous of this gang of miscreants was on the Arkansaw side of the river, where they concealed their negroes in the morasses and cane-brakes.

The depredations of this extensive combination were severely felt: but so well were their plans arranged, that although Murel, who was

always active, was everywhere suspected, there was no proof to be obtained. It so happened, however, that a young man of the name of Stewart, who was looking after two slaves which Murel had decoyed away, fell in with him and obtained his confidence, took the oath, and was admitted into the gang as one of the general council. By this means all was discovered; for Stewart turned traitor, although he had taken the oath, and, having obtained every information, exposed the whole concern, the names of all the parties, and finally succeeded in bringing home sufficient evidence against Murel, to procure his conviction and sentence to the Penitentiary; where he now is. (Murel was sentenced to fourteen years' imprisonment, but as he will, upon the expiration of his time, be immediately prosecuted and sentenced again for similar deeds in other States, he will remain imprisoned for life). So many people who were supposed to be honest, and bore a respectable name in the different States, were found to be among the list of the Grand Council as published by Stewart, that every attempt was made to throw discredit upon his assertions—his character was vilified, and more than one attempt was made to assassinate him. He was obliged to quit the Southern States in consequence. It is, however, now well ascertained to have been all true; and although some blame Mr Stewart for having violated his oath, they no longer attempt to deny that his revelations were not correct. To understand, to the full amount, the enormities committed by this miscreant and his gang, the reader must read the whole account published at New York; I will however just quote one or two portions of Murel's confessions to Mr Stewart, made to him when they were journeying together. I ought to have observed, that the ultimate intentions of Murel and his associates were by his own account on a very extended scale; having no less an object in view than raising the blacks against the whites, taking possession of, and plundering New Orleans, and making themselves possessors of the territory. The following are a few extracts from the published work:—

“I collected all my friends about New Orleans at one of our friend's houses in that place, and we sat in council three days before we got all our plans to our notion; we then determined to undertake the rebellion at every hazard, and make as many friends as we could for

that purpose. Every man's business being assigned him, I started to Natchez on foot, having sold my horse in New Orleans, with the intention of stealing another after I started: I walked four days, and no opportunity offered for me to get a horse. The fifth day, about twelve, I had become tired, and stopped at a creek to get some water and rest a little. While I was sitting on a log, looking down the road the way that I had come, a man came in sight riding on a good-looking horse. The very moment I saw him, I was determined to have his horse, if he was in the garb of a traveller. He rode up, and I saw from his equipage that he was a traveller. I arose from a seat, and drew an elegant rifle pistol on him and ordered him to dismount. He did so, and I took his horse by the bridle and pointed down the creek, and ordered him to walk before me. He went a few hundred yards and stopped. I hitched his horse, and then made him undress himself, all to his shirt and drawers, and ordered him to turn his back to me. He said, "If you are determined to kill me, let me have time to pray before I die." I told him I had no time to hear him pray. He turned round and dropped on his knees, and I shot him through the back of the head. I ripped open his belly and took out his entrails, and sunk him in the creek. I then searched his pockets, and found four hundred dollars and thirty-seven cents, and a number of papers that I did not take time to examine. I sunk the pocket-book and papers, and his hat, in the creek. His boots were brand new, and fitted me genteelly; and I put them on and sunk my old shoes in the creek, to atone for them. I rolled up his clothes and put them into his portmanteau, as they were brand new cloth of the best quality. I mounted as fine a horse as ever I straddled, and directed my course for Natchez in much better style than I had been for the last five days.

"Myself and a fellow by the name of Crenshaw gathered four good horses and started for Georgia. We got in company with a young South Carolina just before we got to Cumberland mountain, and Crenshaw soon knew all about his business. He had been to Tennessee to buy a drove of hogs, but when he got there pork was dearer than he had calculated, and he declined purchasing. We concluded he was a prize. Crenshaw winked at me; I understood his

idea. Crenshaw had travelled the road before, but I never had. We had travelled several miles on the mountain, when he passed near a great precipice; just before we passed it Crenshaw asked me for my whip, which had a pound of lead in the butt; I handed it to him, and he rode up by the side of the South Carolinian, and gave him a blow on the side of the head and tumbled him from his horse; we lit from our horses and fingered his pockets; we got twelve hundred and sixty-two dollars. Crenshaw said he knew of a place to hide him, and he gathered him under his arms, and I by his feet, and conveyed him to a deep crevice in the brow of the precipice, and tumbled him into it, he went out of sight; we then tumbled in his saddle, and took his horse with us, which was worth two hundred dollars.

“We were detained a few days, and during that time our friend went to a little village in the neighbourhood and saw the negro advertised, and a description of the two men of whom he had been purchased, and giving his suspicions of the men. It was rather squally times, but any port in a storm: we took the negro that night on the bank of a creek which runs by the farm of our friend, and Crenshaw shot him through the head. We took out his entrails and sunk him in the creek.

“He sold him the third time on Arkansaw river for five hundred dollars; and then stole him and delivered him into the hand of his friend, who conducted him to a swamp, and veiled the tragic scene and got the last gleanings and sacred pledge of secrecy, as a game of that kind will not do unless it ends in a mystery to all but the fraternity. He sold that negro for two thousand dollars, and then put him for ever out of the reach of all pursuers; and they can never graze him unless they can find the negro; and that they cannot do, for his carcass has fed many a tortoise and cat-fish before this time, and the frogs have sung this many a long day to the silent repose of his skeleton.”

It will be observed that in the account of his murders, by the cold-blooded villain, whenever he conceals his victim in the water, he takes out the entrails. This is because when the entrails are

removed, the body will not rise again to the surface from the generation of gas, occasioned by putrefaction.

As it is but five years since the conviction of Murel, it may be supposed that society cannot be much improved in so short a period. But five years is a long period, as I have before observed in American history; and some improvement has already taken place, as I shall hereafter show; still the state of things at present is most lamentable, as the reader will acknowledge, when he has heard the facts which I have collected.

The two great causes of the present lawless state of society in the South are a mistaken notion of physical courage, and a total want of moral courage. Fiery and choleric in his disposition, intemperate in his habits, and worked upon by the peculiarity of the climate, the Southerner is always ready to enter into a quarrel, and prepared with pistol and Bowie-knife to defend himself. For the latter he cannot well be blamed, for in the present state of things, it is only being prepared in self-defence; but at the same time, the weapons being at hand, is one great cause of such frequent bloodshed. To give the lie, or to use opprobrious language, is considered sufficient justification for using the knife; and as public opinion is on the side of the party who thus retaliates on an affront, there is no appeal to law, as if there was, the majority would never permit the law to be put in force: the consequence is, that if a man is occasionally tried for murder, if any witness will come forward to prove that the party murdered made use of an offensive epithet to the prisoner, (and there are always to be found plenty of people to do this act of kindness,) he is invariably acquitted. The law therefore being impotent, is hardly ever resorted to; every man takes the law into his own hands, and upon the least affront, blood is certain to be shed. Strange to say, I have heard the system of the South defended by very respectable individuals. They say that, taking summary measures at the time that the blood is up, is much preferable to the general custom of fighting a duel the next day, which is murder in cold blood; that this idea is supported by the laws of England is certain, as it resolves murder into manslaughter. But, unfortunately, the argument is not borne out, from the simple

fact, that the quarrels do not (go away) with the cooling down of the blood, and if not settled on the spot, they remain as feuds between the parties, and revenge takes the place of anger; years will sometimes pass away, and the insult or injury is never forgotten; and deliberate, cold-blooded murder is the result; for there is no warning given.

When I was in Kentucky, a man walked up to Mr Prentice, the talented editor of the Louisville Journal, and without a word passing, fired a pistol at his head. Fortunately the ball missed him; no notice was taken of this attempt to murder. But I have had many other examples of this kind, for if you quarrel with a person and the affair is not decided at once, it is considered perfectly justifiable to take your revenge whenever you meet him, and in any way you can. An American gentleman told me that he happened to arrive at a town in Georgia with a friend of his, who went with him to the post-office for letters. This person had had a quarrel with another who resided in the town; but they had not met with each other for seven years. The town resident was looking out of his window, when they went to the post-office on the opposite side of the street; he recognised his enemy, and closing his shutters that he might not be seen, passed the muzzle of his rifle between them, and shot him dead, as he was with his back to him paying for his letters.

But a more curious instance of this custom was narrated to me by an eye-witness; a certain general had a feud with another person, and it was perfectly understood that they were to fight when they met. It so happened, that the general had agreed to dine at the public table of the principal hotel in the town with some friends. When the gong sounded, and they all hastened in, as they do, to take their places, he found his antagonist seated with a party of his own friends directly opposite to him. Both their pistols were out in a moment, and were presented. "Would you prefer dining first?" said the general, who was remarkable for coolness and presence of mind. "I have no objection," replied the other, and the pistols were withdrawn. Some observation, however, occasioned the pistols to be again produced before the

dinner was over; and then the friends interfered, each party removing so many feet above and below, so as to separate them.

A day or two afterwards they again met at the corner of a street, and the weapons were produced; but the general, who had some important business to transact, said, "I believe, sir, I can, and you know I can, cock a pistol as soon as any man. I give you your choice; shall it be now, or at some future meeting?"—"At some future meeting then," replied his antagonist, "for, to confess the truth, general, I should like to *have you at an advantage*; that is to say, I should like to shoot you, when your back is turned."

I have observed that there is a total want of moral courage on the part of the more respectable population, who will quietly express their horror and disgust at such scenes, but who will never interfere, if the most barbarous murder is committed close to where they are standing. I spoke to many gentlemen on this subject, expressing my surprise; the invariable answer was, "If we interfered we should only hurt ourselves, and do no good; in all probability we should have the quarrel fixed upon ourselves, and risk our own lives, for a man whom we neither know nor care about."

In one case only, the Southerners hang together, which is, if the quarrel is with a stranger. Should the stranger have the best of it, all the worse for him; for, by their own understanding, the stranger must be *whipped*. (Whipping is the term for being conquered, whether the contest is with or without weapons.) No stranger can therefore escape, if he gets into a quarrel; although they fight with each other, on this point the Southerners are all agreed, and there is no chance of escape.

A striking proof of indifference to human life shown by the authorities took place when I was in the West. Colonel C, returning with his regiment from Florida, passed through a town in the State of Tennessee. In a quarrel, one of his soldiers murdered a citizen; and the colonel, who respected the laws, immediately sent the soldier as a prisoner, with a corporal's guard, to be handed over to the authorities. The authorities returned their thanks to the colonel for his

kind attention, were “very much obliged to him: but as for the man, *they did not want him*,” so the soldier marched off with the rest of the detachment.

It must not be supposed that in this representation of society, I chiefly refer to the humbler classes. I refer to those who are considered as (gentlemen), and who, if wealth, and public employment may be said to constitute gentility, are the gentlemen of the States bordering on the Mississippi. My readers may perhaps recollect a circumstance which occurred but a short time ago, when a member of the House of Legislature in the State of Arkansas, who had a feud with the Speaker of the House, upon his entering the hall, was rushed upon by the Speaker, and stabbed to the heart with a Bowie-knife. What was the result? What steps were taken on the committal of such a foul murder in the very hall of legislature! such a precedent of example shown to the State, by one of its most important members? The following American account, will show what law, what justice, and what a jury is to be found in this region of unprecedented barbarism!

“A most Disgraceful Affair.

“Our readers will perhaps recollect the circumstance which occurred in the legislature of Arkansas, when a member was killed by the Speaker. The Little Rock Gazette gives the following picture of the state of public feeling in that most civilised country:—

“Three days had elapsed before the constituted authorities took any notice of this terrible, this murderous deed, and not even then until a relation of the murdered Anthony had demanded a warrant for the apprehension of Wilson. Several days then elapsed before he was brought before an examining court; he then, in a carriage and four, came to the place appointed for his trial. Four or five days were employed in the examination of witnesses, and never was a clearer case of murder proved than on that occasion. Notwithstanding, the court (Justice Brown dissenting) admitted Wilson to bail, and positively refused that the prosecuting attorney for the State should

introduce the law, to show that it was not aailable case, or even to hear an argument from him, and the counsel associated with him to prosecute Wilson for the murder.

“At the time appointed for the session of the Circuit Court, Wilson appeared agreeably to his recognisance; a motion was made by Wilson’s counsel for a change of *venue*, founded on the affidavits of Wilson and two other men. One stated in his affidavit, that ‘nine-tenths of the people of Pulaski had made up and expressed their opinions, and that therefore it would be unsafe for Wilson to be tried in Pulaski;’ and the other, that, ‘from the repeated occurrence of similar acts within the last four or five years in this country, the people were disposed to act rigidly, and that it would be unsafe for Wilson to be tried in Pulaski.’ The court thereupon removed Wilson to Saline county, and ordered the sheriff to take Wilson into custody, and deliver him over to the sheriff of Saline county.

“The sheriff of Pulaski never confined Wilson one minute, but permitted him to go where he pleased, without a guard or any restraint imposed upon him whatever. On his way to Saline he entertained him freely at his own house, and the next day delivered him over to the sheriff of that county, who conducted the prisoner to the debtors’ room in the jail and gave him the key, so that everybody else had free egress and ingress at all times. Wilson invited everybody to call on him, and he wished to see his friends, and his room was crowded with visitors, who called to drink grog and laugh and talk with him. But this theatre was not sufficiently large for this purpose; he afterwards visited the dram-shops, where he freely treated all that would partake with him, and went fishing and hunting with others at pleasure, and entirely without restraint; he also ate at the same table with the judge while on trial.

“When the court met at Saline, Wilson was put on his trial. Several days were occupied in examining witnesses in the case; after the examination was closed, while Colonel Taylor was engaged in a very able, lucid, and argumentative speech on the part of the prosecution, some man collected a parcel of the rabble, and came within a few

yards of the court-house door, and bawled, in a loud voice, 'Part them! part them!' Everybody supposed there was an affray, and ran to the door and windows to see, and behold there was nothing more than the man and the rabble he had collected round him for the purpose of annoying Colonel Taylor while speaking. A few minutes afterwards this same person brought a horse near the court-house door, and commenced crying the horse, as though he were for sale, and continued for ten or fifteen minutes to ride before the court-house door, crying the horse in a loud and boisterous tone of voice. The judge sat as a silent listener to the indignity thus offered the court and counsel by this man, without interposing his authority.

"To show the depravity of the times and the people, after the verdict had been delivered by the jury, and the court informed Wilson that he was discharged, there was a rush towards him; some seized him by the hand, some by the arm, and there was great and loud rejoicing and exultation directly in the presence of the court, and Wilson told the sheriff to take the jury to a grocery that he might treat them, and invited every body that chose to go. The house was soon filled to overflowing, and it is much to be regretted that some men who have held a good standing in society followed the crowd to the grocery and partook of Wilson's treat. The rejoicing was kept up till near supper time; but, to cap the climax, soon after supper was over a majority of the jury, together with many others, went to the room that had been occupied for several days by the friend and relation of the murdered Anthony, and commenced a scene of the most ridiculous dancing (as it is believed) in triumph for Wilson, and as a triumph over the feelings of the relation of the departed Anthony. The scene did not end here. The party retired to a dram-shop, and continued their rejoicings until about half after ten o'clock. They then collected a parcel of horns, trumpets, etcetera, and marched through the streets blowing them till near day, when one of the company rode his horse into the porch adjoining the room which was occupied by the relation of the deceased.

"These are some of the facts that took place during the progress of the trial, and after its close. The whole proceedings have been

conducted more like a farce than anything else, and it is a disgrace to the country in which this fatal, this horrible massacre has happened, that there should be in it men so lost to every virtue, of feeling and humanity, to sanction and give countenance to such a bloody deed. Wilson's hand is now stained with the blood of a worthy and unoffending man. The seal of disapprobation must for ever rest upon him in the estimation of the honest, well-meaning portion of the community. Humanity shudders at the bloody deed, and ages cannot wipe away the stain which he has brought upon his country. Arkansas, therefore, the mock of the other States on account of the frequent murders and assassinations which have marked her character, has now to be branded with the stain of this horrible, this murderous deed, rendered still more odious from the circumstance that a jury of twelve men should have rendered a verdict of acquittal contrary to law and evidence."

To quote the numerous instances of violation of all law and justice in these new States would require volumes. I will, however, support my evidence with that of Miss Martineau, who, speaking of the State of Alabama, says—"It is certainly the place to become rich in, but the state of society is fearful. One of my hosts, a man of great good-nature, as he shows in the treatment of his slaves and in his family relations, had been stabbed in the back, in the reading-room of the town, two years before, and no prosecution was instituted. Another of my hosts carried loaded pistols for a fortnight, just before I arrived, knowing that he was laid in wait for by persons against whose illegal practices he had given information to a magistrate, whose carriage was therefore broken in pieces and thrown into the river. A lawyer, with whom we were in company one afternoon, was sent to take the deposition of a dying man, who had been sitting with his family in the shade, when he received three balls in the back from three men who took aim at him from behind trees. The tales of jail-breaking and rescue were numberless; and a lady of Montgomery told me, that she had lived there four years, during which time no day, she believed, had passed without some one's life having been attempted either by duelling or assassination."

The rapid increase of population in the Far West, and the many respectable people who have lately migrated there, together with the Texas having now become the refuge of those whose presence even the Southern States will no longer tolerate, promise very soon to produce a change. The cities have already set the example by purifying themselves. Natchez, the lower town of which was a Pandemonium, has cleansed herself to a very great extent. Vicksburg has by its salutary Lynch law relieved herself of the infamous gamblers, and New Orleans, in whose streets murders were daily occurring, is now one of the safest towns in the Union.

This regeneration in New Orleans was principally brought about by the exertions of the English and American merchants from the Eastern States, who established an effectual police, and having been promised support by the State legislature, determined to make an example of the very first party who should commit a murder. It so happened, that the first person who was guilty, was a Colonel or Mr Whittaker of Louisiana, a person well connected, and of a wealthy family. In a state of intoxication he entered the bar of an hotel, and affronted at the bar-keeper not paying immediate attention to his wishes, he rushed upon the unfortunate man, and literally cut him to pieces with his heavy Bowie knife.

He was put in prison, tried and condemned. Every effort was made to save him, both by force and perseverance, but in vain. Finding that he must really suffer the penalty of the law, his friends, to avoid the disgrace of a public execution, provided him with the means; and he destroyed himself in the prison the night before his execution. So unexpected was this act of justice, that it created the greatest sensation; it was looked upon as a legal murder; his body, being made over to his relations, was escorted to his home with great parade; the militia were turned out to receive it with military honours, and General —, who set up for the governorship of Louisiana, pronounced the funeral eulogy!!

But this decided and judicious step was attended with the best results; and now that there is an active police, and it is known that a

murderer will be executed, you may safely walk the streets of New Orleans on the darkest nights.

To show, however, how difficult it is to eradicate bad habits, a gentleman told me that it being the custom when the Quadroon balls were given at New Orleans, for the police to search every person on entering, and taking away his Bowie-knife, the young man would resort to the following contrivance. The knives of a dozen, perhaps, were confided to one, who remained outside; the others entered, and being searched were passed; they then opened one of the ball-room windows, and let down a string, to which the party left outside fastened all their knives as well as his own; they were hauled up, he then entered himself, and each person regained his knife. The reason for these precautions being taken by the police was, that the women being all of colour, their evidence was not admissible in a court of justice; and no evidence could be obtained from the young men, should a murder have been committed.

But although some of the towns have, as I have pointed out, effected a great reformation, the state of society in general in these States is still most lamentable; and there is little or no security for life and property; and what is to be much deplored, the evil extends to other States which otherwise would much sooner become civilised.

This arises from the Southern habits of migrating to the other States during the unhealthy months. During the rest of the year they remain on their properties, living perhaps in a miserable log-house, and almost in a state of nature, laying up dollars and attending carefully to their business. But as soon as the autumn comes, it is the time for holiday, they dress themselves in their best clothes, and set off to amuse themselves; spend their money and pass off for gentlemen. Their resorts are chiefly the State of Virginia, Kentucky, and Ohio; where the springs, Cincinnati, Louisville, and other towns are crowded with them; they pass their time in constant revelling, many of them being seldom free from the effects of liquor; and I must say, that I never in my life heard such awful swearing as many of them are guilty of. Every sentence is commenced with some tremendous

oath, which really horrifies you; in fact, although in the dress of gentlemen, in no other point can they lay any pretensions to the title. Of course, I am now speaking of the mass; there are many exceptions, but even these go with the stream, and make no efforts to resist it. Content with not practising these vices themselves, they have not the courage to protest against them in others.

In the Eastern States the use of the knife was opposed to general feeling, as it is, or as I regret to say, as it *used* to be in this country. I was passing down Broadway in New York, when a scoundrel of a carman flogged with his whip a young Southern who had a lady under his protection. Justly irritated, and no match for the sturdy ruffian in physical strength, the young man was so imprudent as to draw his knife, and throw it Indian fashion; and for so doing, he was with difficulty saved from the indignation of the people.

Ohio is chiefly populated by Eastern people; yet to my surprise when at Cincinnati, a row took place in the theatre, Bowie-knives were drawn by several. I never had an idea that there was such a weapon worn there; but as I afterwards discovered, they were worn in self defence, because the Southerners carried them. The same may be said of the States of Virginia and Kentucky, which are really now in many portions of them civilised States; but the regular inroad of the Southerners every year keeps up a system, which would before this have very probably become obsolete; but as it is, the duel at sight, and the knife, is resorted to in these States, as well as in the Mississippi. This lamentable state of society must exist for some time yet, as civilisation progresses but slowly in some of the slave States. Some improvement has of late been made, as I have pointed out; but it is chiefly the lower class of miscreants who have been rooted out, not the *gentleman assassins*; for I can give them no other title.

The women of the south appear to have their passions equally violent with the men. When I was at Louisville, a married lady, for some fancied affront, insisted upon her husband *whipping* another gentlemen. The husband not wishing to get a broken head, expostulated, upon which she replied, that, if he did not, she would

find some other gentleman to do it for her. The husband, who probably was aware that these services are not without their reward, went accordingly, and had a turn-up in obedience to the lady's wishes.

It appears to me, that it is the Southern ladies, and the ladies alone, who can affect any reformation in these points. They have great sway, and if they were to form an association, and declare that they would not marry, or admit into their company, any man who carried a Bowie-knife or other weapons, that they would prevail, when nothing else will. This would be a glorious achievement, and I am convinced from the chivalry towards women shown by the Southerners on every occasion, that they might be prevailed upon by them to leave off customs so disgraceful, so demoralising, and so incompatible with the true principles of honour and Christianity.

Note 1. "*Jackson, Mississippi, Oct. 18.*

"Postscript.—*By yesterday evening's northern mail*, we learn from the Argus of 9th inst., that during the last week the gamblers in Columbus, Mississippi, have kept the town in great excitement. Armed men paraded the streets, and were stationed at corners, with double-barrelled guns, Bowie knives, etcetera; and every day a general fight was anticipated. The gamblers put law and public indignation at defiance. The militia were called out to aid the civil authority in preserving peace."—Sun.

Volume Two—Chapter One.

Society—Women.

The women of America are unquestionably, physically, as far as beauty is concerned, and morally, of a higher standard than the men; nevertheless they have not that influence which they ought to possess. In my former remarks upon the women of America I have

said, that they are the prettiest in the world, and I have put the word *prettiest* in italics, as I considered it a term peculiarly appropriate to the American women. In many points the Americans have, to a certain degree, arrived at that equality which they profess to covet; and in no one, perhaps, more than in the fair distribution of good looks among the women. This is easily accounted for: there is not to be found, on the one hand, that squalid wretchedness, that half-starved growing up, that disease and misery, nor on the other, that hereditary refinement, that inoculation of the beautiful, from the constant association with the fine arts, that careful nurture, and constant attention to health and exercise, which exist in the dense population of the cities of the Old World; and occasion those variations from extreme plainness to the perfection of beauty which are to be seen, particularly in the metropolis of England. In the United States, where neither the excess of misery nor of luxury and refinement are known, you have, therefore, a more equal distribution of good looks, and, although you often meet with beautiful women, it is but rarely that you find one that may be termed ill favoured. The *coup-d'oeil* is, therefore, more pleasing in America—enter society, and turn your eyes in any direction, you will everywhere find cause for pleasure, although seldom any of annoyance. The climate is not, however, favourable to beauty, which, compared to the English, is very transitory, especially in the Eastern States; and when a female arrives at the age of thirty, its reign is, generally speaking, over.

The climate of the Western States appears, however, more favourable to it, and I think I saw more handsome women at Cincinnati than in any other city of the Union; their figures were more perfect, and they were finer grown, not receiving the sudden checks to which the Eastern women are exposed.

Generally speaking, but a small interval elapses between the period of American girls leaving school and their entering upon their duties as wives; but during that period, whatever it may be, they are allowed more liberty than the young people in our country; walking out without *chaperons*, and visiting their friends as they please. There is a reason for this: the matrons are compelled, from the

insufficiency of their domestics, to attend personally to all the various duties of housekeeping; their fathers and brothers are all employed in their respective money-making transactions, and a servant cannot be spared from American establishments; if, therefore, they are to walk out and take exercise, it must be alone, and this can be done in the United States with more security than elsewhere, from the circumstance of everybody being actively employed, and there being no people at leisure who are strolling or idling about. I think that the portion of time which elapses between the period of a young girl leaving school and being married, is the happiest of her existence. I have already remarked upon the attention and gallantry shewn by the Americans to the women, especially to the unmarried. This is carried to an extent which, in England, would be considered by our young women as no compliment; to a certain degree it pervades every class, and even the sable damsels have no reason to complain of not being treated with the excess of politeness; but in my opinion, (and I believe the majority of the American women will admit the correctness of it,) they do not consider themselves flattered by a species of homage which is paying no compliment to their good sense, and after which the usual attentions of an Englishman to the sex are by some considered as amounting to hauteur and neglect.

Be it as it may, the American women are not spoiled by this universal adulation which they receive previous to their marriage. It is not that one is selected for her wealth or extreme beauty to the exception of all others; in such a case it might prove dangerous; but it is a flattery paid to the whole sex, given to all, and received as a matter of course by all, and therefore it does no mischief. It does, however, prove what I have observed at the commencement of this chapter, which is, that the women have not that influence which they are entitled to, and which, for the sake of morality, it is to be lamented that they have not; when men *respect* women they do not attempt to make fools of them, but treat them as rational and immortal beings, and this general adulation is cheating them with the shadow, while they withhold from them the substance.

I have said that the period between her emancipation from school and her marriage is the happiest portion of an American woman's existence; indeed it has reminded me of the fêtes and amusements given in a Catholic country to a young girl previous to her taking the veil, and being immured from the world; for the duties of a wife in America are from circumstances very onerous, and I consider her existence after that period as but one of negative enjoyment. And yet she appears anxious to abridge even this small portion of freedom and happiness, for marriage is considered almost as a business, or, I should say, a duty, an idea probably handed down by the first settlers, to whom an increase of population was of such vital importance. Note 1.

However much the Americans may wish to deny it, I am inclined to think that there are more marriages of *convenience* in the United States than in most other countries. The men begin to calculate long before they are of an age to marry, and it is not very likely that they would calculate so well upon all other points, and not upon the value of a dowry; moreover, the old people "calculate some," and the girls accept an offer, without their hearts being seriously compromised. Of course there are exceptions: but I do not think that there are many *love* matches made in America, and one reason for my holding this opinion is, my having discovered how quietly matches are broken off and new engagements entered into; and it is, perhaps, from a knowledge of this fact, arising from the calculating spirit of the gentlemen, who are apt to consider 20,000 dollars as preferable to 10,000, that the American girls are not too hasty in surrendering their hearts.

I knew a young lady who was engaged to an acquaintance of mine; on my return to their city a short time afterwards, I found that the match was broken off, and that she was engaged to another, and nothing was thought of it. I do not argue from this simple instance, but because I found, on talking about it, that it was a very common circumstance, and because, where scandal is so rife, no remarks were made. If a young lady behaves in a way so as to give offence to the gentleman she is engaged to, and sufficiently indecorous to

warrant his breaking off the match, he is gallant to the very last, for he writes to her, and begs that she will dismiss *him*. This I knew to be done by a party I was acquainted with; he told me that it was considered *good taste*, and I agreed with him. On the whole, I hold it very fortunate that in American marriages there is, generally speaking, more prudence than love on both sides, for from the peculiar habits and customs of the country, a woman who loved without prudence would not feel very happy as a wife.

Let us enter into an examination of the married life in the United States.

All the men in America are busy; their whole time is engrossed by their accumulation of money; they breakfast early and repair to their stores or counting-houses; the majority of them do not go home to dinner, but eat at the nearest tavern or oyster-cellar, for they generally live at a considerable distance from the business part of the town, and time is too precious to be thrown away. It would be supposed that they would be home to an early tea; many are, but the majority are not. After fagging, they require recreation, and the recreations of most Americans are politics and news, besides the chance of doing a little more business, all of which, with drink, are to be obtained at the bars of the principal commercial hotels in the city. The consequence is, that the major portion of them come home late, tired, and go to bed; early the next morning they are off to their business again. Here it is evident that the women do not have much of their husband's society; nor do I consider this arising from any want of inclination on the part of the husbands, as there is an absolute necessity that they should work as hard as others if they wish to do well, and what one does, the other must do. Even frequenting the bar is almost a necessity, for it is there that they obtain all the information of the day. But the result is that the married women are left alone; their husbands are not their companions, and if they could be, still the majority of the husbands would not be suitable companions for the following reasons. An American starts into life at so early an age that what he has gained at school, with the exception of that portion brought into use from his business, is

lost. He has no time for reading, except the newspaper; all his thoughts and ideas are centred in his employment; he becomes perfect in that, acquires a great deal of practical knowledge useful for making money, but for little else. This he must do if he would succeed, and the major portion confine themselves to such knowledge alone. But with the women it is different; their education is much more extended than that of the men, because they are more docile, and easier to control in their youth; and when they are married, although their duties are much more onerous than with us, still, during the long days and evenings, during which they wait for the return of their husbands, they have time to finish, I may say, their own educations and improve their minds by reading. The consequence of this, with other adjuncts, is, that their minds become, and really are, much more cultivated and refined than those of their husbands; and when the universal practice of using tobacco and drinking among the latter is borne in mind, it will be readily admitted that they are also much more refined in their persons.

These are the causes why the American women are so universally admired by the English and other nations, while they do not consider the men as equal to them either in manners or personal appearance. Let it be borne in mind that I am now speaking of the majority, and that the exceptions are very numerous; for instance, you may except one whole profession, that of the lawyers, among whom you will find no want of gentlemen or men of highly cultivated minds; indeed, the same may be said with respect to most of the liberal professions, but only so because their profession allows that time for improving themselves which the American in general, in his struggle on the race for wealth, cannot afford to spare.

As I have before observed, the ambition of the American is from circumstances mostly directed to but one object—that of rapidly raising himself above his fellows by the accumulation of a fortune; to this one great desideratum all his energies are directed, all his thoughts are bent, and by it all his ideas are engrossed. When I first arrived in America, as I walked down Broadway, it appeared strange to me that there should be such a remarkable family likeness among

the people. Every man I met seemed to me by his features, to be a brother or a connection of the last man who had passed me; I could not at first comprehend this, but the mystery was soon revealed. It was that they were all intent and engrossed with the same object; all were, as they passed, calculating and reflecting; this produced a similar contraction of the brow, knitting of the eye-brows, and compression of the lips—a similarity of feeling had produced a similarity of expression, from the same muscles being called into action. Even their hurried walk assisted the error; it is a saying in the United States, “that a New York merchant always walks as if he had a good dinner before him, and a bailiff behind him,” and the metaphor is not inapt.

Now, a man so wholly engrossed in business cannot be a very good companion if he were at home; his thoughts would be elsewhere, and therefore perhaps it is better that things should remain as they are. But the great evil arising from this is, that the children are left wholly to the management of their mothers, and the want of paternal control I have already commented upon. The Americans have reason to be proud of their women, for they are really good wives—much *too good* for them; I have no hesitation in asserting this, and should there be any unfortunate difference between any married couple in America, all the lady has to say is, “The fact is, Sir, I’m much too good for you, and Captain Marryat says so.” (I flatter myself there’s a little mischief in that last sentence.)

It appears, then, that the American woman has little of her husband’s society, and that in education and refinement she is much his superior, notwithstanding which she is a domestic slave. For this the Americans are not to blame, as it is the effect of circumstances, over which they cannot be said to have any control. But the Americans are to blame in one point, which is, that they do not properly appreciate or value their wives, who have not half the influence which wives have in England, or one quarter that legitimate influence to which they are entitled. That they are proud of them, flatter them, and are kind to them after their own fashion, I grant, but female influence extends no farther. Some authors have said, that by the

morals of the women you can judge of the morals of a country; generally speaking, this is true, but America is an exception, for the women are more moral, more educated, and more refined than the men, and yet have at present no influence whatever in society.

What is the cause of this? It can only be ascribed to the one great ruling passion which is so strong that it will admit of no check, or obstacles being thrown in its way, and will listen to no argument or entreaty; and because, in a country when every thing is decided by public opinion, the women are as great slaves to it as the men. Their position at present appears to be that the men will not raise themselves to the standard of the women, and the women will not lower themselves to the standard of the men; they apparently move in different spheres, although they repose on the same bed.

It is, therefore, as I have before observed, fortunate that the marriages in America are more decided by prudence than by affection; for nothing could be more mortifying to a woman of sense and feeling, than to awake from her dream of love, and discover that the object upon which she has bestowed her affection, is indifferent to the sacrifice which she has made.

If the American women had their due influence, it would be fortunate; they might save their country, by checking the tide of vice and immorality, and raising the men to their own standard. Whether they ever will effect this, or whether they will continue as at present, to keep up the line of demarcation, or gradually sink down to the level of the other sex, is a question which remains to be solved.

That the American women have their peculiarities, and in some respects they might be improved, is certain. Their principal fault in society is, that they do not sufficiently modulate their voices. Those faults arising from association, and to which both sexes are equally prone, are a total indifference to, or rather a love of change, "shifting right away," without the least regret, from one portion of the Union to another; a remarkable apathy as to the sufferings of others, an indifference to loss of life, a fondness for politics, all of which are unfeminine; and lastly, a passion for dress carried to too great an

extent; but this latter is easily accounted for, and is inseparable from a society where all would be equal. But, on the other hand, the American women have a virtue which the men have not, which is moral courage, and one also which is not common with the sex, physical courage. The independence and spirit of an American woman, if left a widow without resources, is immediately shewn; she does not sit and lament, but applies herself to some employment, so that she may maintain herself and her children, and seldom fails in so doing. Here are faults and virtues, both proceeding from the same origin.

I have already in my Diary referred to another great error in a portion of the American women. Lady Blessington, in one of her delightful works, very truly observes, "I turn with disgust from that affected prudery, arising, if not from a participation, at least from a knowledge of evil, which induces certain ladies to cast down their eyes, look grave, and shew the extent of their knowledge, or the pruriency of their imaginations, by discovering in a harmless jest nothing to alarm their experienced feelings. I respect that woman whose innate purity prevents those around her from uttering aught that can arouse it, much more than her whose sensitive prudery continually reminds one, that she is *au fait* of every possible interpretation which a word of doubtful meaning admits."

The remarks of Miss Martineau upon the women of America are all very ungracious, and some of them very unjust. That she met with affectation and folly in America, is very probable—where do you not? There is no occasion to go to the United States to witness it. As for the charge of carrying in their hands seventy-dollar pocket-handkerchiefs, I am afraid it is but too true: but when there is little distinction, except by dress, ladies will be very expensive. I do not know why, but the American ladies have a custom of carrying their pocket-handkerchiefs in their hands, either in a room, or walking out, or travelling; and moreover, they have a custom of marking their names in the corner, at full length, and when in a steamboat or rail-car, I have, by a little watching, obtained the names of ladies sitting near me, in consequence of this custom, which of course will be

ascribed by Miss Martineau to a wish to give information to strangers.

The remark upon the Washington belles, (note 2) I am afraid is too true, as I have already pointed out that the indifference to human life in America extends to the softer sex; and I perfectly well remember, upon my coming into a room at New York with the first intelligence of the wreck of the 'Home,' and the dreadful loss of life attending it, that my news was received with a "dear me!" from two or three of the ladies, and there the matter dropped. There is, however, much truth in what Miss Martineau says, relative to the manner in which the women are treated by their lords and masters, in this new country. The following quotation from the work is highly deserving of attention:—

"If a test of civilisation be sought, none can be so sure as the condition of that half of society over which the other half has power,—from the exercise of the right of the strongest. Tried by this test, the American civilisation appears to be of a lower order than might have been expected from some other symptoms of its social state. The Americans have, in the treatment of women, fallen below, not only their own democratic principles, but the practice of some parts of the Old World.

"The unconsciousness of both parties as to the injuries suffered by women at the hands of those who hold the power, is a sufficient proof of the low degree of civilisation in this important particular at which they rest, while woman's intellect is confined, her morals crushed, her health ruined, her weaknesses encouraged, and her strength punished, she is told that her lot is cast in the paradise of women: and there is no country in the world where there is so much boasting of the 'chivalrous' treatment she enjoys. That is to say,—she has the best place in stage-coaches: when there are not chairs enough for everybody, the gentlemen stand she hears oratorical flourishes on public occasions about wives and home, and apostrophes to woman: her husband's hair stands on end at the idea of her working, and he toils to indulge her with money: she has

liberty to get her brain turned by religious excitements, that her attention may be diverted from morals, politics, and philosophy; and, especially, her morals are guarded by the strictest observance of propriety in her presence. In short, indulgence is given her as a substitute for justice.”

If Miss Martineau had stopped here, she had done well; but she follows this up by claiming for her sex all the privileges of our own, and seems to be highly indignant, that they are not permitted to take their due share of the government of the country, and hold the most important situations. To follow up her ideas, we should have a “teeming” prime minister, and the Lord Chancellor obliged to leave the woolsack to nurse his baby; Miss M forgets that her prayer has been half granted already, for we never yet had a ministry without a certain proportion of *old women* in it; and we can, therefore dispense with her services.

There is, however, one remark of Miss Martineau’s which I cannot pass over without expressing indignation; I will quote the passage.

“It is no secret on the spot, that the habit of intemperance is not infrequent among women of station and education in the most enlightened parts of the country. I witnessed some instances, and heard of more. It does not seem to me to be regarded with all the dismay which such a symptom ought to excite. To the stranger, a novelty so horrible, a spectacle so fearful, suggests wide and deep subjects of investigation. If women, in a region professing religion more strenuously than any other, living in the deepest external peace, surrounded by prosperity, and outwardly honoured more conspicuously than in any other country, can ever so far cast off self-restraint, shame, domestic affection, and the deep prejudices of education, as to plunge into the living hell of intemperance, there must be something fearfully wrong in their position.”

Miss Martineau is a lady; and, therefore, it is difficult to use the language which I would, if a man had made such an assertion. I shall only state, that it is one of the greatest libels that ever was put into print: for Miss Martineau implies that it is a general habit, among the

American women; so far from it, the American women are so abstemious that they do not drink sufficient for their health. They can take very little exercise, and did they take a little more wine, they would not suffer from *dyspepsia*, as they now do, as wine would assist their digestion. The origin of this slander I know well, and the only ground for it is, that there are two or three ladies of a certain city, who having been worked upon by some of the Evangelical Revival Ministers, have had their minds crushed by the continual excitement to which they have been subjected. The mind affects the body, and they have required, and have applied to, stimulus, and if you will inquire into the moral state of any woman among the higher classes, either in America or England, who has fallen into the vice alluded to, nine times out of ten you will find that it has been brought about by religious excitement. Fanaticism and gin are remarkable good friends all over the world. It is surprising to me that, when Miss Martineau claims for her sex the same privilege as ours, she should have overlooked one simple fact which ought to convince *her* that they are the weaker vessels. I refer to what she acknowledges to be true, which is, that the evangelical preachers invariably apply to women for proselytes, instead of men; not only in America but everywhere else; and that for one male, they may reckon at least twenty females among their flocks. According to Miss Martineau's published opinions, there can be no greater weakness than the above.

In the United States, divorces are obtained without expense, and without it being necessary to commit crime, as in England. The party pleads in *formâ pauperis*, to the State Legislation, and a divorce is granted upon any grounds which may be considered as just and reasonable.

Miss Martineau mentions a divorce having been granted to a wife, upon the plea of her husband being a gambler; and I was myself told of an instance in which a divorce was granted upon the plea of the husband being such an "*awful swearer*;" and really, if any one heard the swearing in some parts of the Western country, he would not be surprised at a religious woman requesting to be separated. I was

once on board of a steam-boat on the Mississippi, when a man let off such a volley of execrations, that it was quite painful to hear him. An American who stood by me, as soon as the man had finished, observed, "Well, I'm glad that fellow has nothing to do with the engines: I reckon he'd burst the *biler*."

Miss Martineau observes, "In no country I believe are the marriage laws so iniquitous as in England, and the conjugal relation, in consequence, so impaired. Whatever may be thought of the principles which are to enter into laws of divorce, whether it be held that pleas for divorce should be one, (as narrow interpreters of the New Testament would have it;) or two, (as the law of England has it;) or several, (as the Continental and United States' laws in many instances allow,) nobody, I believe, defends the arrangement by which, in England, divorce is obtainable only by the very rich. The barbarism of granting that as a privilege to the extremely wealthy, to which money bears no relation whatever, and in which all married persons whatever have an equal interest, needs no exposure beyond the mere statement of the fact. It will be seen at a glance how such an arrangement tends to vitiate marriage: how it offers impunity to adventurers, and encouragement to every kind of mercenary marriages; how absolute is its oppression of the injured party; and how, by vitiating marriage, it originates and aggravates licentiousness to an incalculable extent. To England alone belongs the disgrace of such a method of legislation. I believe that, while there is little to be said for the legislation of any part of the world on this head, it is nowhere so vicious as in England."

I am afraid that these remarks are but too true; and it is the more singular, as not only in the United States, but in every other Protestant community that I have ever heard of, divorce can be obtained upon what are considered just and legitimate grounds. It has been supposed, that should the marriage tie be loosened, that divorces without number would take place. It was considered so, and so argued, at the time that Zurich (the only Protestant canton in Switzerland that did not permit divorce, except for adultery alone,) passed laws similar to those of the other cantons; but so far from

such being the case, only one divorce took place, within a year after the laws were amended. What is the reason of this? It can, in my opinion, only be ascribed to the chain being worn more lightly, when you know that if it oppresses you, it may be removed. Men are naturally tyrants, and they bear down upon the woman who cannot escape from their thralldom; but, with the knowledge that she can appeal against them, they soften their rigour. On the other hand, the woman, when unable to escape, frets with the feeling that she must submit, and that there is no help or hope in prospect; but once aware that she has her rights, and an appeal, she bears with more, and feels less than otherwise she would. You may bind, and from assuetude and time, (putting the better feelings out of the question,) the ties are worn without complaint; but if you bind too tight, you cut into the flesh, and after a time the pain becomes insupportable. In Switzerland, Germany, and I believe all the Protestant communities of the old world, the grounds upon which divorce is admissible are as follows:— adultery, condemnation of either party to punishment considered as infamous, madness, contagious chronic diseases, desertion, and incompatibility of temper.

The last will be considered by most people as no ground for divorce. Whether it is or not, I shall not pretend to decide, but this is certain, that it is the cause of the most unhappiness, and ultimately of the most crime.

All the great errors, all the various schisms in the Christian church, have arisen from not taking the holy writings as a great moral code, (as I should imagine they were intended to be,) which legislates upon broad principles, but selecting particular passages from them upon which to pin your faith. And it certainly appears to me to be reasonable to suppose that those laws by which the imperfection of our natures were fairly met, and which tended to diminish the aggregate of crime, must be more acceptable to our Divine Master than any which, however they might be in spirit more rigidly conformable to his precepts, were found in their working not to succeed. And here I cannot help observing, that the heads of the Church of England appear not to have duly weighed this matter,

when an attempt was lately made to legislate upon it. Do the English bishops mean to assert, that they know better than the heads of all the other Protestant communities in the world—that they are more accurate expounders of the gospel, and have a more intimate knowledge of God's will? Did it never occur to them, that when so many good and virtuous ecclesiastics of the same persuasion in other countries have decided upon the propriety of divorce, so as to leave them in a very small minority, that it might be possible that they might be wrong, or do they intend to set up and claim the infallibility of the Papistical hierarchy?

Any legislation to prevent crime, which produces more crime, must be bad and unsound, whatever may be its basis: witness the bastardy clause, in the New Poor Law Bill. That the former arrangements were defective is undeniable, for by them there was a premium for illegitimate children. This required amendment: but the remedy has proved infinitely worse than the disease. For what has been the result? That there have been many thousands fewer illegitimate children *born*, it is true; but, has the progress of immorality been checked? On the contrary, crime has increased, for to the former crime has been added one much greater, that of infanticide, or producing abortion. Such has been the effect of attempting to legislate for the affections; for in most cases a woman falls a sacrifice to her better feelings, not to her appetite.

In every point connected with marriage, has this injurious plan been persevered in; the marriage ceremony is a remarkable instance of this, for, beautiful as it is as a service, it is certainly liable to this objection, that of making people vow before God that which it is not in human nature to control. The woman vows to love, and to honour, and to cherish; the man to love and cherish, until death doth them part.

Is it right that this vow should be made? A man deserts his wife for another, treats her cruelly, separates her from her children. Can a woman love, or honour, or cherish such a man—nevertheless, she has vowed before God that she will. Take the reverse of the picture

when the fault is on the woman's side, and the evil is the same; can either party control their affections? surely not, and therefore it would be better that such vows should not be demanded.

There is another evil arising from one crime being the only allowable cause of divorce, which is that the possession of one negative virtue on the part of the woman, is occasionally made an excuse for the practice of vice, and a total disregard of her duties as a wife. I say negative virtue, for chastity very often proceeds from temperament, and as often from not being tempted.

A woman may neglect her duties of every kind—but she is chaste; she may make her husband miserable by indulgence of her ill-temper—but she is chaste; she may squander his money, ruin him by expense—but she is chaste; she may, in short, drive him to drunkenness and suicide—but still she is chaste; and chastity, like charity, covers the whole multitude of sins, and is the scape-goat for every other crime, and violation of the marriage vow.

It must, however, be admitted, that although the faults may occasionally be found on the side of the woman, in nine times out of ten it is the reverse; and that the defects of our marriage laws have rendered English women liable to treatment which ought not to be shewn towards the veriest slaves in existence.

I must now enter into a question, which I should have had more pleasure in passing over lightly, had it not been for the constant attacks of the Americans upon this subject, during the time that I was in the country, and the remarks of Mr Carey in his work, in which he claims for the Americans pre-eminence in this point, as well as upon all others.

Miss Martineau says, "The ultimate, and very strong impression on the mind of a stranger, pondering on the morals of society in America, is that human nature is much the same every where." Surely Miss Martineau need not have crossed the Atlantic to make this discovery; however I quote it, as it will serve as a text to what is to follow.

The Americans claim excessive purity for their women, and taunt us with the *exposées* occasionally made in our newspapers. In the first place—which shews the highest regard for morality, a country where any deviation from virtue is immediately made known, and held up to public indignation? or one which, from national vanity, and a wish that all should *appear* to be correct, instead of publishing, conceals the facts, and permits the guilty parties to escape without censure, for what they consider the honour of the nation?

To suppose that there is no conjugal infidelity in the United States, is to suppose that human nature is not the same every where. That it never, to my knowledge, was made public, but invariably hushed up when discovered, I believe; so is suicide. But *one* instance came to my knowledge, during the time that I was in the States, which will give a very fair idea of American feeling on this subject. It was supposed that an intrigue had been discovered, or, it had actually been discovered, I cannot say which, between a foreigner and the wife of an English gentleman. It was immediately seized upon with ecstasy, circulated in all the papers with every American embellishment, and was really the subject of congratulation among them, as if they had gained some victory over this country. It so happened that an American called upon the lady, and among other questions put to her, inquired in what part of England she was born. She replied, “that she was not an English-woman, but was born in the States, and brought up in an American city.”

It is impossible to imagine how this mere trifling fact, affected the Americans. She was then an American—they were aghast—and I am convinced that they would have made any sacrifice, to have been able to have recalled all that they had done, and have hushed up the matter.

The fact is that human nature *is* the same every where, and I cannot help observing, that if their community is so much more moral, as they pretend that it is, why is it, that they have considered it necessary to form societies on such an extensive scale, for the prevention of a crime, from which they declare themselves

(comparatively with us, and other nations,) to be exempt? I once had an argument on this subject with an elderly American gentleman, and as I took down the minutes of it after we parted, I think it will be as well to give it to my readers, as it will shew the American feeling upon it—

“Why, Captain M, you must bear in mind that we are not so vicious and contaminated here, as you are in the old country. You don’t see our newspapers filled, as your’s are, with crim. cons, in high life. No, sir, our institutions are favourable to virtue and morality, and our women are as virtuous as our men are brave.”

“I have no reason to deny either one assertion or the other, as far as I am acquainted with your men and women; but still I do not judge from the surface, as many have done who have visited you. Because there are no crim. cons. in your papers, it does not prove that conjugal infidelity does not exist. There are no suicides of people of any station in society ever published in your newspapers, and yet there is no country where suicide is more common.

“I grant that, occasionally, the coroner does bring in a verdict so as to save the feelings of the family.”

“That is more than a coroner would venture to do in England, let the rank of the party be of the highest. But, if you hush up suicides, may you not also hush up other offences, to save the feelings of families? I have already made up my mind upon one point, which is that you are content to substitute the appearance for the reality in your moral code—the fact is, you fear one another—you fear society, but, you do not fear God.”

“I should imagine, captain, that when you have conversed, and mixed up with us a little more, you will be inclined to retract, and acknowledge what I have said to be correct. I have lived all my life in the States, and I have no hesitation in saying, that we are a very moral people. Recollect that you have principally confined yourself to our cities, during your stay with us; yet even there we may proudly challenge comparison.”

“My opinion is, that unless you can shew just cause *why* you should be more moral than other nations, you are, whether in cities or in the country, much the same as we are. I do not require to examine on this point, as I consider it to be a rule-of-three calculation. Give me the extent of the population, and I can estimate the degree of purity. Mankind demoralise each other by collision; and the larger the numbers crowded together, the greater will be the demoralisation, and this rule will hold good, whether in England or the United States, the Old World or the New.”

“That argument would hold good if it were not for our institutions, which are favourable to morality and virtue.”

“I consider them quite the contrary. Your institutions are beautiful in theory, but in practice do not work well. I suspect that your society has a very similar defect.”

“Am I then to understand, captain, that you consider the American ladies as *not* virtuous?”

“I have already said that I have had no proofs to the contrary; all I wish is to defend my own country, and I say that I consider the English women at all events quite as moral as the Americans.”

“I reckon that’s no compliment, captain. Now, then, do you mean to say that you think there is as much conjugal infidelity in New York, in proportion to the population, as there is in London? Now, captain, if you please, we will stick to that point.”

“I answer you at once. No, I do not believe that there is; but—”

“That’s all I want, captain—never mind the *buts*.”

“*But* you must have the *buts*. Recollect, I did not say that your society was more moral, although I said that there was in my opinion less infidelity.”

“Well, how can that be?”

“Because, in the first place, conjugal infidelity is not the only crime which exists in society; and, secondly, because there are causes which prevent its being common. That this vice should be common, two things are requisite—time and opportunity; neither of which is to be found in a society like yours. You have no men of leisure, every man is occupied the whole day with his business. Now, suppose one man was to stay away from his business for merely one day, would he not be missed, and inquiries made after him; and if it were proved that he stayed away to pass his time with his neighbour’s wife, would not the scandal be circulated all over the city before night? I recollect a very plain woman accusing a very pretty one of indiscretion; the reply of the latter, when the former vaunted her own purity, was, ‘Were you ever asked?’ Thus it is in America; there is neither time nor opportunity, and your women are in consequence seldom or ever tempted. I do not mean to say that if they were tempted they would fall; all I say is, that no parallel can in this instance be drawn between the women of the two countries, as their situations are so very different. I am ready to do every justice to your women; but I will not suffer you to remain in the error, that you are more moral than we are.”

“Why, you have admitted that we are from circumstances, if not from principle.”

“In one point only, and in that you *appear* to be, and I have given you a reason why you really should be so; but we can draw no inference of any value from what we know relative to your better classes of society. If we would examine and calculate the standard of morality in a country, we must look elsewhere.”

“Where?”

“To the lower class of society, and not to the highest. I presume you are aware that there is a greater proportion of unfortunate females in New York, taking the extent of the populations, than in London or Paris? I have it from American authority, and I have every reason to believe that it is true.”

“I am surprised that any American should have made such an admission, captain; but for the sake of argument let it be so. But first recollect that we have a constant influx of people from the Old Country, from all the other States in America, and that we are a sea-port town, with our wharfs crowded with shipping.”

“I admit it all, and that is the reason why you have so many. The supply in all countries is usually commensurate with the demand; but the numbers have nothing to do with the argument.”

“Then I cannot see what you are driving at; for allow me to say that, admitting the class to be as numerous as you state from American authority, still they are very orderly and well behaved. You never see them drunk in the streets; you never hear swearing or abusive language; and you do in London and your seaports. There is a decorum and sense of propriety about them which, you must admit, speaks well, even for those unfortunate persons, and shews some sense of morality and decency even in our most abandoned.”

“You have brought forward the very facts which I was about to state, and it is from these facts that I draw quite contrary conclusions. If your argument is good, it must follow that the women of Paris are much more virtuous than the women of London. Now, I consider that these facts prove that the standard of morality is lower in America and France than it is in England. A French woman who has fallen never drinks, or uses bad language; she follows her profession, and seldom sinks, but rises in it. The grisette eventually keeps her carriage, and retires with sufficient to support her in her old age, if she does not marry. The American women of this class appear to me to be precisely the same description of people; whereas, in England, a woman who falls, falls never to rise again—sinking down by degrees from bad to worse, until she ends her days in rags and misery. But why so? because, as you say, they become reckless and intemperate—they *do* feel their degradation, and cannot bear up against it—they attempt to drown conscience, and die from the vain attempts. Now, the French and the American women of this class apparently do not feel this, and, therefore, they behave and do

better. This is one reason why I argue that the standard of morality is not so high in your country as with us, although, from circumstances, conjugal infidelity may be less frequent.”

“Then, captain, you mean to say that cursing, swearing, and drinking, is a proof of morality in your country?”

“It is a proof, not of the morality of the party, but of the high estimation in which virtue is held, shewn by the indifference and disregard to everything else after virtue is once lost.”

This is a specimen of many arguments held with the Americans upon that question, and when examining into it, it should be borne in mind that there is much less excuse for vice in America than in the Old Countries. Poverty is but too often the mother of crime, and in America it may be said that there is no poverty to offer up in extenuation.

Mr Carey appears to have lost sight of this fact when he so triumphantly points at the difference between the working classes of both nations, and quotes the Report of our Poor Law Commissioners to prove the wretchedness and misery of ours. I cannot, however, allow his assertions to pass without observation, especially as English and French travellers have been equally content to admit without due examination the claims of the Americans; I refer more particularly to the large manufactory at Lowell, in Massachusetts, which from its asserted purity has been one of the boasts of America. Mr Carey says:—

“The following passage from a statement, furnished by the manager of one of the principal establishments in Lowell, shows a very gratifying state of things:— ‘There have only occurred three instances in which any apparently improper connection or intimacy had taken place, and in all those cases the parties were married on the discovery, and several months prior to the birth of their children; so that, in a legal point of view, no illegitimate birth has taken place among the females employed in the mills under my direction. Nor have I known of but one case among all the females employed in

Lowell. I have said known—I should say heard of one case. I am just informed, that that was a case where the female had been employed but a few days in any mill, and was forthwith rejected from the corporation, and sent to her friends. In point of female chastity, I believe that Lowell is as free from reproach as any place of an equal population in the United States or the world.”

And he winds up his chapter with the following remark:—

“The effect upon morals of this state of things, is of the most gratifying character. The number of illegitimate children born in the United States is small; so small, that we should suppose one in fifty to be a high estimate. In the great factories of the Eastern States there prevails a high degree of morality, presenting a most extraordinary contrast to the immorality represented to exist in a large portion of those of England.”

Next follows Miss Martineau, who says—“The morals of the female factory population may be expected to be good when it is considered of what class it is composed. Many of the girls are in the factories because they have too much pride for domestic service. Girls who are too proud for domestic service as it is in America, can hardly be low enough for any gross immorality, or to need watching, or not to be trusted to avoid the contagion of evil example. To a stranger, their pride seems to have taken a mistaken direction, and they appear to deprive themselves of a respectable home and station, and many benefits, by their dislike of service; but this is altogether their own affair, they must choose for themselves their way of life. But the reasons of their choice indicate a state of mind superior to the grossest dangers of their position.”

And the Reverend Mr Reid also echoes the praise of the factory girls given by others, although he admits that their dress was above their state and condition, and that he was surprised to see them appear “in *silks*, with *scarfs*, *veils*, and *parasols*.”

Here is a mass of evidence opposed to me, but the American evidence must be received with all due caution; and as for the

English, I consider it rather favourable to my side of the question than otherwise. Miss Martineau says that “the girls have too much pride for domestic service,” and, therefore, argues that they will not be immoral; now, the two great causes of women falling off from virtue, are poverty and false pride. What difference there is between receiving money for watching a spinning-jenny, and doing household work, I do not see; in either case it is servitude, although the former may be preferred, as being less under control, and leaving more time at your own disposal. I consider the pride, therefore, which Miss Martineau upholds, to be *false* pride, which will actuate them in other points; and when we find the factory girls vying with each other in silks and laces, it becomes a query whether the passion for dress, so universal in America, may not have its effect there as well as elsewhere. I must confess that I went to Lowell doubting all I had heard—it was so contrary to human nature that five hundred girls should live among a population of fifteen hundred, or more, all pure and virtuous, and all dressed in silks and satin.

When I went to Lowell I travelled with an American gentleman, who will, I have no doubt, corroborate my statement, and I must say that, however pure Lowell may have been at the time when the encomiums were passed upon it, I have every reason to believe, from American authority as well as my own observation, that a great alteration has taken place, and that the manufactories have retrograded with the whole mass of American society. In the first place, I never heard a more accomplished swearer, east of the Alleghanies, than one young lady who addressed me and my American friend, and as it was the *only instance* of swearing on the part of a female that I ever met with in the United States, it was the more remarkable. I shall only observe, that two days at Lowell convinced me that “human nature was the same every where,” and thus I dismiss the subject.

Mr Carey compels me to make a remark which I would gladly have avoided, but as he brings forward his comparative statements of the number of illegitimate children born in the two countries as a proof of the superior morality of America, I must point out to him what I

suspect he is not aware of. Public opinion acts as *law* in America; appearances are there substituted for the reality, and provided appearances are kept up, whether it be in religion or morality, it is sufficient; but should an exposure take place, there is no mercy for the offender. As those who have really the least virtue in themselves are always the loudest to cry out at any lapse which may be discovered in others, so does society in America pour out its anathemas in the inverse ratio of its real purity. Now, although the authority I speak from is undoubted, at the same time I wish to say as little as possible. That there are fewer illegitimate children *born* in the United States is very true. But why so? because public opinion there acts as the bastardy clause in the new poor law bill has done in this country; and if Mr Carey will only inquire in his own city, he will find that I should be justified if I said twice as much, as I have been compelled in defence of my own country to say, upon so unpleasant a subject.

Note 1. Bigamy is not uncommon in the United States from the women being in too great a hurry to marry, and not obtaining sufficient information relative to their suitors. The punishment is chipping stone in Sing Sing for a few years. It must, however, be admitted, that when a foreigner is the party, it is rather difficult to ascertain whether the gentleman has or has not left an old wife or two in the Old World.

Note 2. A Washington belle related to me the sad story of the death of a young man who fell from a small boat into the Potomac in the night,—it is supposed in his sleep. She told me where and how his body was found; and what relations he had left; and finished with “he will be much missed at parties.”

Volume Two—Chapter Two.

Public Opinion, or the Majority.

The majority are always in the *right*, so says Miss Martineau, and so have said greater people than even Miss Martineau; to be sure Miss Martineau qualifies her expression afterwards, when she declares that they always will be right in the *end*. What she means by that I do not exactly comprehend; the end of a majority is its subsiding into a minority, and a minority is generally right. But I rather think that she would imply that they will repent and see their folly when the consequences fall heavily upon them. The great question is, what is a majority? must it be a whole nation, or a portion of a nation, or a portion of the population of a city; or, in fact, any *plus* against any *minus*, be they small or be they large. For instance, two against one are a majority, and, if so, any two scoundrels may murder an honest man and be in the right; or it may be the majority in any city, as in Baltimore, where they rose and murdered an unfortunate minority (see note 1); or it may be a majority on the Canada frontier, when a set of miscreants defied their own government, and invaded the colony of a nation with whom they were at peace—all which is of course right. But there are other opinions on this question besides those of Miss Martineau, and we shall quote them as occasion serves.

I have before observed, that Washington left America a republic; and that in the short space of fifty years it has sunk into a democracy.

The barrier intended to be raised against the encroachments of the people has been swept away; the senate (which was intended, by the arrangements for its election, to have served as the aristocracy of the legislature, as a deliberative check to the impetus of the majority, like our House of Lords), having latterly become virtually nothing more than a second congress, receiving instructions, and submissive to them, like a pledged representative. This is what Washington did not foresee.

Washington was himself an aristocrat; he shewed it in every way. He was difficult of access, except to the higher classes. He carried state in his outward show, always wearing his uniform as General of the Forces, and attended by a guard of honour. Indeed, one letter of Washington's proves that he was rather doubtful as to the working of the new government shortly after it had been constituted. He says:—

“Among men of reflection few will be found, I believe, who are not *beginning* to think that our system is better in *theory* than in *practice*, and that notwithstanding the *boasted virtue* of America, it is more than probable we shall exhibit the *last melancholy proof*, that mankind are incompetent to their own government without *the means of coercion in the sovereign*.” (Washington's letter to Chief Justice Jay, 10th March, 1787.)

This is a pretty fair admission from such high authority; and fifty years have proved the wisdom and foresight of the observation. Gradually as the aristocracy of the country wore out (for there was an aristocracy at that time in America), and the people became less and less enlightened, so did they encroach upon the constitution. President after president gradually laid down the insignia and outward appearance of rank, the senate became less and less respectable, and the people more and more authoritative.

M. Tocqueville says, “When the American revolution broke out, distinguished political characters arose in great numbers; for public opinion then served, not to tyrannise over, but to direct the exertions of individuals. Those celebrated men took a full part in the general agitation of mind common at that period, and they attained a high degree of personal fame, which was reflected back upon the nation, but which was by no means borrowed from it.”

It was not, however, until the presidency of General Jackson, that the democratic party may be said to have made any serious inroads upon the constitution. Their previous advances were indeed sure, but they were, comparatively speaking, slow; but, raised as he was to the office of President by the mob, the demagogues who led the mob obtained the offices under government, to the total exclusion of

the aristocratic party, whose doom was then sealed. Within these last ten years the advance of the people has been like a torrent, sweeping and levelling all before it, and the will of the majority has become not only absolute with the government, but it defies the government itself, which is too weak to oppose it.

Is it not strange, and even ridiculous, that under a government established little more than fifty years, a government which was to be a *lesson* to the whole world, we should find political writers making use of language such as this: "We are for *reform, sound, progressive reform*, not subversion and destruction." Yet such is an extract from one of the best written American periodicals of the day. This is the language that may be expected to be used in a country like England, which still legislates under a government of eight hundred years old; but what a failure must that government be, which in fifty years calls forth even from its advocates such an admission!!

M. Tocqueville says, "Custom, however, has done even more than laws. A proceeding which will in the end set all the guarantees of representative government at nought, is becoming more and more general in the United States: it frequently happens that the electors who choose a delegate, point out a certain line of conduct to him, and impose upon him a certain number of positive obligations, which he is pledged to fulfil. With the exception of the tumult, this comes to the same thing as if the majority of the populace held its deliberations in the market-place."

Speaking of the majority as the popular will, he says, "no obstacles exist which can impede, or so much as retard its progress, or which can induce it to heed the complaints of those whom it crushes upon its path. This state of things is fatal in itself, and dangerous for the future."

My object in this chapter is to inquire what effect has been produced upon the morals of the American people by this acknowledged dominion of the majority?

1st. As to the mass of the people themselves. It is clear, if the people not only legislate, but, when in a state of irritation or excitement, they defy even legislation, that they are not to be compared to *restricted* sovereigns, but to despots, whose will and caprice are law. The vices of the court of a despot are, therefore, practised upon the people; for the people become as it were the court, to whom those in authority, or those who would be in authority, submissively bend the knee. A despot is not likely ever to hear the truth, for moral courage fails where there is no law to protect it, and where honest advice may be rewarded by summary punishment. The people, therefore, like the despot, are never told the truth; on the contrary, they receive and expect the most abject submission from their courtiers, to wit, those in office, or expectants.

Now, the President of the United States may be considered the Prime Minister of an enlightened public, who govern themselves, and his communication with them is in his annual message.

Let us examine what Mr Van Buren says in his last message.

First, he humbly acknowledges their power.

“A national bank,” he tells them, “would impair the rightful *supremacy* of the popular *will*.”

And this he follows up with that most delicate species of flattery, that of praising them for the very virtue which they are most deficient in; telling them that they are “a people to whom the *truth*, however unpromising, can *always* be told with *safety*.”

At the very time when they were defying all law and all government, he says, “It was reserved for the American Union to test the advantage of a government entirely dependent on the continual exercise of the popular will, and our experience has shewn, that it is as *beneficent* in *practice*, as well as it is just in *theory*.”

At the very time that nearly the whole Union were assisting the insurrection in Canada with men and money, he tells them “that

temptations to interfere in the intestine commotions of neighbouring countries have been thus far successfully resisted.”

This is quite enough; Mr Van Buren’s motives are to be re-elected as president. That is very natural on his part; but how can you expect a people to improve who *never hear the truth*?

Mr Cooper observes, “Monarchs have incurred more hazards from follies of their own that have grown up under the adulation of parasites, than from the machinations of their enemies; and in a democracy, the delusion that still would elsewhere be poured into the ears of the prince, is poured into those of the people.”

The same system is pursued by all those who would arrive at, or remain in place and power: and what must be the consequence? that the straight-forward, honourable, upright man is rejected by the people, while the parasite, the adulator, the demagogue, who flatters their opinions, asserts their supremacy, and yields to their arbitrary demands, is the one selected by them for place and power. Thus do they demoralise each other; and it is not until a man has, by his abject submission to their will, in contradiction to his own judgment and knowledge, proved that he is unworthy of the selection which he courts, that he is permitted to obtain it. Thus it is that the most able and conscientious men in the States are almost unanimously rejected.

M. Tocqueville says, “It is a well-authenticated fact, that at the present day the most talented men in the United States are very rarely placed at the head of affairs; and it must be acknowledged that such has been the result in proportion as democracy has outstepped all its former limits: the race of American statesmen has evidently dwindled most remarkably in the course of the last fifty years.”

Indeed, no high-minded consistent man will now offer himself, and this is one cause among many why Englishmen and foreigners have not done real justice to the people of the United States. The scum is uppermost, and they do not see below it. The prudent, the

enlightened, the wise, and the good, have all retired into the shade, preferring to pass a life of quiet retirement, rather than submit to the insolence and dictation of a mob.

M. Tocqueville says, "Whilst the natural propensities of democracy induce the people to reject the most distinguished citizens as its rulers, these individuals are no less apt to retire from a political career, in which it is almost impossible to retain their independence, or to advance without degrading themselves."

Again, "At the present day the most affluent classes of society are so entirely removed from the direction of political affairs in the United States, that wealth, far from conferring a right to the exercise of power, is rather an obstacle than a means of attaining to it. The wealthy members of the community abandon the lists, through unwillingness to contend, and frequently to contend in vain, against the poorest classes of their fellow-citizens. They concentrate all their enjoyments in the privacy of their homes, where they occupy a rank which cannot be assumed in public, and they constitute a private society in the State which has its own tastes and its own pleasures. They submit to this state of things as an irremediable evil, but they are careful not to shew that they are galled by its continuance. It is even not uncommon to hear them laud the delights of a republican government, and the advantages of democratic institutions, when they are in public. Next to hating their enemies, men are most inclined to flatter them. But beneath this artificial enthusiasm, and these obsequious attentions to the preponderating power, it is easy to perceive that the wealthy members of the community entertain a hearty distaste to the democratic institutions of their country. The populace is at once the object of their scorn and of their fears. If the maladministration of the democracy ever brings about a revolutionary crisis, and if monarchical constitutions ever become practicable in the United States, the truth of what I advance will become obvious."

It appears, then, that the more respectable portion of its citizens have retired, leaving the arena open to those who are least worthy:

that the majority dictate, and scarcely any one ventures to oppose them; if any one does, he is immediately sacrificed; the press, obdient to its masters, pours out its virulence, and it is incredible how rapidly a man, unless he be of a superior mind, falls into nothingness in the United States, when once he has dared to oppose the popular will. He is morally bemired, bespattered, and trod under foot, until he remains a lifeless carcase. He falls, never to rise again, unhonoured and unremembered.

Captain Hamilton, speaking to one of the federalist, or aristocratical party, received the following reply. I have received similar ones in more than fifty instances. "My opinions, and I believe those of the party to which I belonged, are unchanged; and the course of events in this country has been such as to impress only a deeper and more thorough conviction of their wisdom; but, in the present state of public feeling, we *dare not* express them. An individual professing such opinions would not only find himself excluded from every office of public trust within the scope of his reasonable ambition, but he would be regarded by his neighbours and fellow-citizens with an evil eye. His words and actions would become the objects of jealous and malignant scrutiny, and he would have to sustain the unceasing attacks of a host of unscrupulous and ferocious assailants."

Mr Cooper says, "The besetting, the *degrading vice* of America is the moral cowardice by which men are led to truckle to what is called public opinion, though nine times in ten these are mere engines set in motion by opinions the most corrupt and least respectable portion of the community, for the most unworthy purposes. The English are a more respectable and constant (unconstant?) nation than the Americans, as relates to this peculiarity."

To be popular with the majority in America, to be a favourite with the people, you must first divest yourself of all freedom of opinion; you must throw off all dignity; you must shake hands and drink with every man you meet; you must be, in fact, slovenly and dirty in your appearance, or you will be put down as an aristocrat. I recollect once an American candidate asked me if I would walk out with him? I

agreed; but he requested leave to change his coat, which was a decent one, for one very shabby; “for,” says he, “I intend to look in upon some of my constituents, and if they ever saw me in that other coat, I should lose my election.” This cannot but remind the reader of the custom of candidates in former democracies—standing up in the market-place as suppliants in tattered garments, to solicit the “voices” of the people.

That the morals of the nation have retrograded from the total destruction of the aristocracy, both in the government and in society, which has taken place within the last ten years, is most certain.

The power has fallen into the hands of the lower orders, the offices under government have been chiefly filled up by their favourites, either being poor and needy men from their own class, or base and dishonest men, who have sacrificed their principles and consciences for place. I shall enter more fully into this subject hereafter; it is quite sufficient at present to say, that during Mr Adams’ presidency, a Mr Benjamin Walker was a defaulter to the amount of 18,000 dollars, and was in consequence incarcerated for two years. Since the democratic party have come into power, the quantity of defaulters, and the sums which have been embezzled of government money, are enormous, and no punishment of any kind has been attempted. They say it is only a breach of trust, and that a breach of trust is not punishable, except by a civil action; which certainly in the United States is of little avail, as the payment of the money can always be evaded. The consequence is that you meet with defaulters in, I will not say the very best society generally, but in the very best society of some portions of the United States. I have myself sat down to a dinner party to which I had been invited, with a defaulter to government on each side of me. I knew one that was setting up for Congress, and, strange to say, his delinquency was not considered by the people as an objection. An American author (Voice from America) states, “On the 17th June, 1838, the United States treasurer reported to Congress *sixty-three* defaulters; the total sums embezzled amounting to one million, twenty thousand and odd dollars.”

The tyranny of the majority has completely destroyed the moral courage of the American people, and without moral courage what chance is there of any fixed standard of morality?

M. Tocqueville observes, "Democratic republics extend the practice of currying favour with the many, and they introduce it into a greater number of classes at once: this is one of the most serious reproaches that can be addressed to them. In democratic States organised on the principles of the American republics this is more especially the case, where the authority of the majority is so absolute and irresistible, that a man must give up his rights as a citizen, and almost abjure his quality as a human being, if he intends to stray from the track which it lays down.

"In that immense crowd which throngs the avenues to power in the United States, I found very few men who displayed any of that manly candour, and that masculine independence of opinion, which frequently distinguished the Americans in former times, and which constitutes the leading feature in distinguished characters wheresoever they may be found. It seems, at first sight, as if all the minds of the Americans were formed upon one model, so accurately do they correspond in their manner of judging. A stranger does, indeed, sometimes meet with Americans who dissent from these rigorous formularies; with men who deplore the defects of the laws; the mutability and the ignorance of democracy; who even go so far as to observe the evil tendencies which impair the national character, and to point out such remedies as it might be possible to apply; but no one is there to hear these things beside yourself, and you, to whom these secret reflections are confided, are a stranger and a bird of passage. They are very ready to communicate truths which are useless to you, but they continue to hold a different language in public." See note 2.

There are a few exceptions—Clay and Webster are men of such power as to be able, to a certain degree, to hold their independence. Dr Channing has proved himself an honour to his country and to the world. Mr Cooper has also great merit in this point and no man has

certainly shewn more moral courage, let his case be good or not, than Garrison, the leader of the abolition party.

But with these few and remarkable exceptions, moral courage is almost prostrate in the United States. The most decided specimen I met with to the contrary was at Cincinnati, when a large portion of the principal inhabitants ventured to express their opinion, contrary to the will of the majority, in my defence, and boldly proclaimed their opinions by inviting me to a public dinner. I told them my opinion of their behaviour, and I gave them my thanks. I repeat my opinion and my thanks now; they had much to contend with, but they resisted boldly; and not only from that remarkable instance of daring to oppose public opinion when all others quailed, but from many other circumstances, I have an idea that Cincinnati will one day take an important lead, as much from the spirit and courage of her citizens, as from her peculiarly fortunate position. I had a striking instance to the contrary at St. Louis, when they paraded me in effigy through the streets. Certain young Bostonians, who would have been glad enough to have seized my hand when in the Eastern States, before I had happened to affront the majority, kept aloof, or shuffled away, so as not to be obliged to recognise me. Such have been the demoralising effects of the tyranny of public opinion in the short space of fifty years, and I will now wind up this chapter by submitting to the reader extracts from the two French authors, one of whom describes America in 1782, and the other in 1835.

America in 1782.

“Je vais, disais-je, mettre à la voile aujourd’hui; je m’éloigne avec un regret infini d’un pays où l’on est, sans obstacle et sans inconvénient, ce qu’on devrait être partout, sincère et libre.”—“On y pense, on y dit, on y fait ce qu’on veut. Rien ne vous oblige d’y être ni faux, ni bas, ni flatteur. Personne ne se choque de la singularité de vos manières ni de vos goûts.”—*Mémoires ou Souvenirs de Monsieur de Ségur*, volume I, page 409.

America in 1835.

“L’Amérique est donc un pays de liberté, où pour ne blesser personne, on ne doit parler librement, ni des gouvernans, ni des gouvernés, ni des eutreprises publiques, ni des entreprises privées; de rien, enfin, de ce qu’on y rencontre si non peut-être du climat et du sol; encore trouve-t-on des Américains prêts à défendre l’un et l’autre, comme s’ils avaient concouru à les former.”—*Monsieur de Tocqueville sur la Démocratie aux Etats Unis de l’Amerique*, volume II, page 118.

Note 1. A striking instance of the excesses which may be occasioned by the despotism of the majority, occurred at Baltimore in 1812. At that time the war was very popular in Baltimore. A journal, which had taken the other side of the question, excited the indignation of the inhabitants by its opposition. The populace assembled, broke the printing-presses, and attacked the houses of the newspaper editors. The militia was called out, but no one obeyed the call, and the only means of saving the poor wretches, who were threatened by the frenzy of the mob, were to throw them into prison as common malefactors. But even this precaution was ineffectual; the mob collected again during the night, the magistrates again made a vain attempt to call out the militia, the prison was forced, one of the newspaper editors was killed upon the spot, and the others were left for dead when the guilty parties were brought to trial, they were *acquitted* by the jury.

Note 2. Mr Carey in his introduction says, “*Freedom of discussion* is highly promotive of the power of protection. The *free expressions of opinion* in relation to matters of public interest is indispensable to security.”

He denies that we have it in England, and would prove that this exists in America: and how?

1st. By the permission of every man to be of any religion he pleases!!

2nd. By the *freedom* of the press in the United States!!

Volume Two—Chapter Three.

Patriotism.

This is a word of very doubtful meaning; and until we have the power to analyse the secret springs of action, it is impossible to say who is or who is not a patriot. The Chartist, the White Boy, may really be patriots in their hearts, although they are attempting revolution, and are looked upon as the enemies of good order. Joseph Hume *may* be a patriot, so may O'Connell, so may —; but never mind; I consider that if in most cases, in all countries the word egotism were substituted it would be more correct, and particularly so in America.

M. Tocqueville says, "The inhabitants of the United States talk a great deal of their attachment to their country; but I confess that I do not rely upon that calculating patriotism which is founded upon interest, and which a change in the interests at stake may obliterate."

The fact is, that the American is aware that what affects the general prosperity must affect the individual, and he therefore is anxious for the general prosperity; he also considers that he assists to legislate for the country, and is therefore equally interested in such legislature being prosperous; if, therefore, you attack his country, you attack him personally—you wound his vanity and self-love.

In America it is not our rulers who have done wrong or right; it is we (or rather I) who have done wrong or right, and the consequence is, that the American is *rather* irritable on the subject, as every attack is taken as personal. It is quite ridiculous to observe how some of the very best of the Americans are tickled when you praise their country and institutions; how they will wince at any qualification in your praise, and actually writhe under any positive disparagement. They *will* put questions, even if they anticipate an unfavourable answer; they cannot help it. What is the reason of this? Simply their better

sense wrestling with the errors of education and long-cherished fallacies. They feel that their institutions do not work as they would wish; that the theory is not borne out by the practice, and they want support against their own convictions. They cannot bear to eradicate deep-rooted prejudices, which have been from their earliest days a source of pride and vain-glory; and to acknowledge that what they have considered as most perfect, what they have boasted of as a *lesson* to other nations, what they have suffered so much to uphold, in surrendering their liberty of speech, of action, and of opinion, has after all proved to be a miserable failure, and instead of a lesson to other nations—a warning.

Yet such are the doubts, the misgivings which fluctuate in, and irritate the minds of a very large proportion of the Americans; and such is the decided conviction of a portion who retire into obscurity and are silent; and every year adds to the number of both these parties. They remind one of a husband who, having married for love, and supposed his wife to be perfection, gradually finds out that she is full of faults, and renders him anything but happy; but his pride will not allow him to acknowledge that he has committed an error in his choice, and he continues before the world to descant upon her virtues, and to conceal her errors, while he feels that his home is miserable.

It is because it is more egotistical that the patriotism of the American is more easily roused and more easily affronted. He has been educated to despise all other countries, and to look upon his own as the first in the world; he has been taught that all other nations are slaves to despots, and that the American citizen only is free, and this is never contradicted. For although thousands may in their own hearts feel the falsehood of their assertions, there is not one who will venture to express his opinion. The government sets the example, the press follows it, and the people receive the incense of flattery, which in other countries is offered to the court alone; and if it were not for the occasional compunctions and doubts, which his real good sense will sometimes visit him with, the more enlightened American

would be as happy in his own delusions, as the majority most certainly may be said to be.

M. Tocqueville says, "For the last fifty years no pains have been spared to convince the inhabitants of the United States that they constitute the only religious, enlightened, and free people. They perceive that, for the present, their own democratic institutions succeed, while those of other countries fall; hence they conceive an overweening opinion of their superiority, and they are not very remote from believing themselves to belong to a distinct race of mankind."

There are, however, other causes which assist this delusion on the part of the majority of the Americans; the principal of which is the want of comparison. The Americans are too far removed from the Old Continent, and are too much occupied even if they were not, to have time to visit it, and make the comparison between the settled countries and their own. America is so vast, that if they travel in it, their ideas of their own importance become magnified. The only comparisons they are able to make are only as to the quantity of square acres in each country, which, of course, is vastly in their favour.

Mr Sanderson, the American, in his clever Sketches of Paris, observes, "It is certainly of much value in the life of an American gentleman to visit these old countries, if it were only to form a just estimate of his own, which he is continually liable to mistake, and always to overrate without objects of comparison; '*nimum se aestimet necesse est, qui se nemini comparat.*' He will always think himself wise who sees nobody wiser; and to know the customs and institutions of foreign countries, which one cannot know well without residing there, is certainly the complement of a good education."

After all, is there not a happiness in this delusion on the part of the American majority, and is not the feeling of admiration of their own country borrowed from ourselves? The feeling may be more strong with the Americans, because it is more egotistical; but it certainly is the *English* feeling transplanted, and growing in a ranker soil. We

may accuse the Americans of conceit, of wilful blindness, of obstinacy; but there is after all a great good in being contented with yourself and yours. The English shew it differently; but the English are not so good-tempered as the Americans. They grumble at everything; they know the faults of their institutions, but at the same time they will allow of no interference. Grumbling is a luxury so great, that an Englishman will permit it only to himself. The Englishman grumbles at his government, under which he enjoys more rational liberty than the individual of any other nation in the world. The American, ruled by the despotism of the majority, and without liberty of opinion or speech, praises his institutions to the skies. The Englishman grumbles at his climate, which, if we were to judge from the vigour and perfection of the inhabitants, is, notwithstanding its humidity, one of the best in the world. The American vaunts his above all others, and even thinks it necessary to apologise for a bad day, although the climate, from its sudden extremes, withers up beauty, and destroys the nervous system. In everything connected with, and relating to, America, the American has the same feeling. Calculating, wholly matter-of-fact and utilitarian in his ideas, without a poetic sense of his own, he is annoyed if a stranger does not express that rapture at their rivers, waterfalls, and woodland scenery, which he himself does not feel. As far as America is concerned, everything is for the best in this best of all possible countries. It is laughable, yet praiseworthy, to observe how the whole nation will stoop down to fan the slightest spark which is elicited of native genius—like the London citizen, who is enraptured with his own stunted cucumbers, which he has raised at ten times the expense which would have purchased fine ones in the market. It were almost a pity that the American should be awakened from his dream, if it were not that the arrogance and conceit arising from it may eventually plunge him into difficulty.

But let us be fair; America is the country of enthusiasm and hope, and we must not be too severe upon what from a virgin soil has, sprung up too luxuriantly. It is but the English *amor patriae* carried to too great an excess. The Americans are great boasters; but are we far behind them? One of our most popular songs runs as follows:—

“We ne’er see our foes, but we wish them to stay;
They never see us, but they wish us away.”

What can be more bragging, or more untrue, than the words of these lines? In the same way in England the common people hold it as a proverb, that, “one Englishman can beat three Frenchmen,” but there are not many Englishmen who would succeed in the attempt. Nor is it altogether wrong to encourage these feelings; although arrogance is a fault in an individual, in a national point of view, it often becomes the incentive to great actions, and, if not excessive, insures the success inspired by confidence. As by giving people credit for a virtue which they have not, you very often produce that virtue in them, I think it not unwise to implant this feeling in the hearts of the lower classes, who if they firmly believe that they can beat three Frenchmen, will at all events attempt to do it. That too great success is dangerous, and that the feeling of arrogance produced by it may lead us into the error of despising our enemy, we ourselves showed an example of in our first contest with America during the last war. In that point America and England have now changed positions, and from false education, want of comparison, and unexpected success in their struggle with us, they are now much more arrogant than we were when most flushed with victory. They are blind to their own faults and to the merits of others, and while they are so it is clear that they will offend strangers, and never improve themselves. I have often laughed at the false estimate held by the majority in America as to England. One told me, with a patronising air, that, “in a short time, England would only be known as having been the mother of America.”

“When you go into our interior, Captain,” said a New York gentleman to me, “you will see plants, such as rhododendrons, magnolias, and hundreds of others, such as they have no conception of in your own country.”

One of Jim Crow’s verses in America is a fair copy from us—

“Englishman he beat
Two French or Portugee;

Yankee-doodle come down,
Whip them all three."

But an excellent specimen of the effect of American education was given the other day in this country, by an American lad of fourteen or fifteen years old. He was at a dinner party, and after dinner the conversation turned upon the merits of the Duke of Wellington. After hearing the just encomiums for some time with fidgetty impatience, the lad rose from his chair, "You talk about your Duke of Wellington, what do you say to Washington; do you pretend to compare Wellington to Washington? Now, I'll just tell you, if Washington could be standing here now, and the Duke of Wellington was only to look him in the face, why, Sir, Wellington would drop down dead in an instant." This I was told by the gentleman at whose table it occurred.

Even when they can use their eyes, they will not. I overheard a conversation on the deck of a steam-boat between a man who had just arrived from England and another. "Have they much trade at Liverpool?" inquired the latter. "Yes, they've some." "And at London?" "Not much there, I reckon. New York, Sir, is the emporium of the whole world."

This national vanity is fed in every possible way. At one of the museums, I asked the subject of a picture representing a naval engagement; the man (supposing I was an American, I presume) replied, "That ship there," pointing to one twice as big as the other, "is the Macedonian English frigate, and that other frigate," pointing to the small one, "is the Constitution American frigate, which captured her in less than five minutes." Indeed, so great has this feeling become from indulgence, that they will not allow anything to stand in its way, and will sacrifice anybody or anything to support it. It was not until I arrived in the United States that I was informed by several people that Captain Lawrence, who commanded the Chesapeake, was drunk when he went into action. Speaking of the action, one man shook his head, and said, "Pity poor Lawrence had his failing; he was otherwise a good officer." I was often told the same thing, and a greater libel was never uttered; but thus was a gallant officer's

character sacrificed to sooth the national vanity. I hardly need observe, that the American naval officers are as much disgusted with the assertion as I was myself. That Lawrence fought under disadvantages—that many of his ship's company, hastily collected together from leave, were not sober, and that there was a want of organisation from just coming out of harbour,—is true, and quite sufficient to account for his defeat; but I have the evidence of those who walked with him down to his boat, that he was perfectly sober, cool, and collected, as he always had proved himself to be. But there is no gratitude in a democracy, and to be unfortunate is to be guilty.

There is a great deal of patriotism of one sort or the other in the American women. I recollect once, when conversing with a highly cultivated and beautiful American woman, I inquired if she knew a lady who had been some time in England, and who was a great favourite of mine. She replied, "Yes." "Don't you like her?" "To confess the truth, I do not," replied she; "she is *too English* for me." "That is to say, she likes England and the English." "That is what I mean." I replied, that, "had she been in England, she would probably have become *too English* also; for, with her cultivated and elegant ideas, she must naturally have been pleased with the refinement, luxury, and established grades in society, which it had taken eight hundred years to produce." "If that is to be the case, I hope I may never go to England."

Now, this was *true* patriotism, and there is much true patriotism among the higher classes of the American women; with them there is no alloy of egotism.

Indeed, all the women in America are very *patriotic*; but I do not give them all the same credit. In the first place, they are controlled by public opinion as much as the men are; and without assumed patriotism they would have no chance of getting husbands. As you descend in the scale, so are they the more noisy; and, I imagine, for that very reason the less sincere.

Among what may be termed the middling classes, I have been very much amused with the compound of vanity and ignorance which I

have met with. Among this class they can read and write; but almost all their knowledge is confined to their own country, especially in geography, which I soon discovered. It was hard to beat them on American ground, but as soon as you got them off that they were defeated. I wish the reader to understand particularly, that I am not speaking now of the well-bred Americans, but of that portion which would with us be considered as on a par with the middle class of shop-keepers; for I had a very extensive acquaintance. My amusement was, to make some comparison between the two countries, which I knew would immediately bring on the conflict I desired; and not without danger, for I sometimes expected, in the ardour of their patriotism, to meet with the fate of Orpheus.

I soon found that the more I granted, the more they demanded; and that the best way was never to grant any thing. I was once in a room full of the softer sex, chiefly girls, of all ages; when the mamma of a portion of them, who was sitting on the sofa, as we mentioned steam, said, "Well now, Captain, you will allow that we are a-head of you there."

"No," replied I, "quite the contrary. Our steam-boats go all over the world—your's are afraid to leave the rivers."

"Well now, Captain, I suppose you'll allow America is a bit bigger country than England?"

"It's rather broader—but, if I recollect right, it's not quite so long."

"Why, Captain!"

"Well, only look at the map."

"Why, isn't the Mississippi a bigger river than you have in England?"

"Bigger? Pooh! haven't we got the Thames?"

"The Thames? why that's no river at all."

“Isn’t it? Just look at the map, and measure them.”

“Well, now, Captain, I tell you what, you call your Britain, the Mistress of the seas, yet we whipped you well, and you know that.”

“Oh! yes—you refer to the Shannon and Chesapeake, don’t you?”

“No! not that time, because Lawrence was drunk, they say; but didn’t we *whip* you well at New Orleans?”

“No, you didn’t.”

“No? oh, Captain!”

“I say you did not.—If your people had come out from behind their cotton bales and sugar casks, we’d have knocked you all into a cocked hat; but they wouldn’t come out, so we walked away in disgust.”

“Now, Captain, that’s romancing—that won’t do.” Here the little ones joined in the cry, “We did beat you, and you know it.” And, hauling me into the centre of the room, they joined hands in a circle, and danced round me, singing:

“Yankee doodle is a tune,
Which is nation handy.
All the British ran away
At Yankee doodle dandy.”

I shall conclude by stating that this feeling, call it patriotism, or what you please, is so strongly implanted in the bosom of the American by education and association, that wherever, or whenever, the national honour or character is called into question, there is no sacrifice which they will not make to keep up appearances. It is this which induces them to acquit murderers, to hush up suicides, or any other offence which may reflect upon their asserted morality. I would put no confidence even in an official document from the government, for I have already ascertained how they will invariably be twisted, so as

to give no offence to the majority; and the base adulation of the government to the people is such, that it dare not tell them the truth, or publish any thing which might wound its self-esteem.

I shall conclude with two extracts from a work of Mr Cooper, the American:—

“We are almost entirely wanting in national pride, though abundantly supplied with an *irritable vanity*, which might rise to pride had we greater confidence in our facts.”

“We have the sensitiveness of provincials, increased by the consciousness of having our spurs to earn on all matters of glory and renown, and *our jealousy extends even to the reputations of the cats and dogs.*”

Volume Two—Chapter Four.

England and the United States.

Captain Hamilton has, in his work, expressed his opinion that the Americans have no feeling of ill-will against this country. If Captain Hamilton had stated that the *gentlemen* and more respectable portion of the Americans, such as the New York merchants, etcetera, had no feeling against this country, and were most anxious to keep on good terms with us, he would have been much more correct. You will find all the respectable portion of the daily press using their best endeavours to reconcile any animosities, and there is nothing which an American gentleman is more eloquent upon, when he falls in with an Englishman, than in trying to convince him that there is no hostile feeling against this country. (See note 1.) I had not been a week at New York before I had this assurance given me at least twenty times, and I felt inclined at first to believe it: but I soon discovered that this feeling was only confined to a small minority, and that the feelings towards England of the majority, or democratic party, were of *deep irreconcilable hatred*. I am sorry to assert this; but it is better be

known, that we may not be misled by any pretended good-will on the part of the government, or the partial good-will of a few enlightened individuals. Even those who have a feeling of regard and admiration for our country do not venture to make it known, and it would place them in so very unpleasant a situation, that they can scarcely be blamed for keeping their opinions to themselves. With the English they express it warmly, and I believe them to be sincere; but not being openly avowed by a few, it is not communicated or spread by kindling similar warmth in the hearts of others. Indeed it is not surprising, when we consider the national character, that there should be an ill feeling towards England; it would be much more strange if the feeling did not exist. That the Americans should, after their struggle for independence, have felt irritated against the mother country, is natural; they had been oppressed—they had successfully resented the oppression, and emancipated themselves. But still the feeling at that time was different from the one which at present exists. Then it might be compared to the feeling in the heart of a younger son of an ancient house, who had been compelled by harsh treatment to disunite from the head of the family, and provide for himself—still proud of his origin, yet resentful at the remembrance of injury—at times vindictive, at others full of tenderness and respect. The aristocratical and the democratical impulses by turns gaining the ascendant it was then a manly, fine feeling. The war of 1814, the most fatal event in the short American history, would not have been attended with any increase of ill-will, as the Americans were satisfied with their successful repulse of our attempts to invade the country, and their unexpected good fortune in their naval conflicts. They felt that they had consideration and respect in the eyes of other nations, and, what was to them still gratifying, the respect of England herself. In every point they were fortunate, for a peace was concluded upon honourable terms just as they were beginning to feel the bitter consequences of the war. But the effect of this war was to imbue the people with a strong idea of their military prowess, and the national glory became their favourite theme. Their hero, General was raised to the presidency by the democratical party, and ever since the Americans have been ready to bully or quarrel with anybody and about everything.

This feeling becomes stronger every day. They want to *whip* the whole world. The wise and prudent perceive the folly of this, and try all they can to produce a better feeling; but the majority are now irresistible, and their fiat will decide upon war or peace. The government is powerless in opposition to it; all it can do is to give a legal appearance to any act of violence.

This idea of their own prowess will be one cause of danger to their institutions, for war must ever be fatal to democracy. In this country, during peace, we became more and more democratic; but whenever we are again forced into war, the reins will be again tightened from necessity, and thus war must ever interfere with free institutions. A convincing proof of the idea the Americans have of their own prowess was when General Jackson made the claim for compensation from the French. Through the intermediation of England the claim was adjusted, and peace preserved; and the Americans are little aware what a debt of gratitude they owe to this country for its interference. They were totally ignorant of the power and resources of France. They had an idea, and I was told so fifty times, that France paid the money from *fear*, and that if she had not, they would have "*whipped* her into the little end of nothing."

I do not doubt that the Americans would have tried their best; but I am of opinion, (notwithstanding the Americans would have been partially, from their acknowledged bravery, successful) that in two years France, with her means, which are well known to, and appreciated by, the English, would (to use their own terms again,) have made "an everlasting smash" of the United States, and the Americans would have had to conclude an ignominious peace. I am aware that this idea will be scouted in America as absurd; but still I am well persuaded that any protracted war would not only be their ruin in a pecuniary point of view, but fatal to their institutions. But to return.

There are many reasons why the Americans have an inveterate dislike to this country. In the first place, they are educated to dislike us and our monarchical institutions; their short history points out to

them that we have been their only oppressor in the first instance, and their opponent ever since. Their annual celebration of the independence is an opportunity for vituperation of this country which is never lost sight of. Their national vanity is hurt by feeling what they would fain believe, that they are not the “greatest nation on earth;” that they are indebted to us, and the credit we give them, for their prosperity and rapid advance; that they must still look to us for their literature and the fine arts, and that, in short, they are still dependent upon England. I have before observed, that this hostile spirit against us is fanned by discontented emigrants, and by those authors who, to become popular with the majority, laud their own country and defame England; but the great cause of this increase of hostility against us is the democratical party having come into power, and who consider it necessary to excite animosity against this country. When ever it is requisite to throw a tub to the whale, the press is immediately full of abuse; everything is attributed to England, and the machinations of England; she is, by their accounts, here, there, and everywhere, plotting mischief and injury, from the Gulf of Florida to the Rocky Mountains. If we are to believe the democratic press, England is the cause of everything offensive to the majority—if money is scarce, it is England that has occasioned it—if credit is bad, it is England—if eggs are not fresh or beef is tough, it is, it must be, England. They remind you of the parody upon Fitzgerald in Smith’s humorous and witty ‘Rejected Addresses,’ when he is supposed to write against Buonaparte:

Who made the quartern loaf and Luddites rise,
Who fills the butchers’ shops with large blue flies
With a foul earthquake ravaged the Carraccas,
And raised the price of dry goods and tobaccos?

Why, England. And all this the majority do steadfastly believe, because they wish to believe it.

How, then, is it possible that the lower classes in the United States, (and the lower and unenlightened principally compose the majority,) can have other than feelings of ill-will towards this country? and of

what avail is it to us that the high-minded and sensible portion think otherwise, when they are in such a trifling minority, and afraid to express their sentiments? When we talk about a nation, we look to the mass, and that the mass are hostile, and inveterately hostile to this country, is a most undeniable fact.

There is another cause of hostility which I have not adverted to, the remarks upon them by travellers in their country, such as I am now making; but as the Americans never hear the truth from their own countrymen, it is only from foreigners (see note 2) that they can. Of course, after having been accustomed to flattery from their earliest days, the truth, when it does come, falls more heavily, and the injury and insult which they consider they have received is never forgotten.

Among the American authors who have increased the ill-will of his countrymen towards this country, Mr Cooper stands pre-eminent. Mr Bulwer has observed that the character and opinions of an author may be pretty fairly estimated by his writings. This is true, but they may be much better estimated by one species of writing than by another. In works of invention or imagination, it is but now and then, by an incidental remark, that we can obtain a clue to the author's feelings. Carried away by the interest of the story, and the vivid scene presented to the imagination, we are apt to form a better opinion of the author than he deserves, because we feel kindly and grateful towards him for the amusement which he has afforded us; but when a writer puts off the holiday dress of fiction, and appears before us in his every day costume, giving us his thoughts and feelings upon matters of fact, then it is that we can appreciate the real character of the author. Mr Cooper's character is not to be gained by reading his 'Pilot,' but it may be fairly estimated by reading his 'Travels in Switzerland,' and his remarks upon England. If, then, we are to judge of Mr Cooper by the above works, I have no hesitation in asserting that he appears to be a disappointed democrat, with a determined hostility to England and the English. This hostility on the part of Mr Cooper cannot proceed from any want of attention shewn him in this country, or want of acknowledgment of his merits as an author. It must be sought for elsewhere. The attacks

upon the English in a work professed to be written upon Switzerland, prove how rancorous this feeling is on his part; and not all the works published by English travellers upon America have added so much to the hostile feeling against us, as Mr Cooper has done by his writings alone. Mr Cooper would appear to wish to detach his countrymen, not only from us, but from the whole European Continent. He tells them in his work on Switzerland, that they are not liked or esteemed any where, and that to acknowledge yourself an American is quite sufficient to make those recoil who were intending to advance. Mr Cooper is, in my opinion, very much mistaken in this point;—the people of the Continent do not as yet know enough of the Americans to decide upon their national character. He observes very truly, that no one appears to think any thing about the twelve millions; why so? because in Switzerland, Germany, and other nations in the heart of the Continent, they have no interest about a nation so widely separated from them, and from intercourse with which they receive neither profit nor loss. Neither do they think about the millions in South America, and not caring or hearing about them they can have formed no ideas of their character as a nation. If, then, the Americans are shunned (which I do not believe they are, for they are generally supposed to be a variety of Englishmen), it must be from the conduct of those individuals of the American nation who have travelled there, and not because, as Mr Cooper would imply, they have a democratic form of government. Have not the Swiss something similar, and are they shunned? Who cares what may be the form of government of a country divided from them by three or four thousand miles of water, and of whom they have only read? Every nation, as well as every individual, makes its own character; but Mr Cooper would prove that the dislike shewn to the Americans abroad is owing to the slander of them by the English, and he points out that in the books containing the names of travellers, he no less than twenty-five times observed offensive remarks written beneath the names of those who acknowledged themselves Americans. These books were at different places, places to which all tourists in Switzerland naturally repair. Did it never occur to Mr Cooper that one young fool of an Englishman, during his tour, might have been the author of all these obnoxious remarks, and is the folly of one

insignificant individual to be gravely commented upon in a widely disseminated work, so as to occasion or increase the national ill-will? Surely there is little wisdom and much captiousness in this feeling.

How blinded by his ill-will must Mr Cooper be, to enter into a long discussion in the work I refer to, to prove that England deserves the title, among other national characteristics, of a *blackguarding nation*! founding his assertion upon the language of our daily press. If the English, judged by the *press*, are a blackguarding nation, what are the Americans, if they are to be judged by the same standard? we must be indebted to the Americans themselves for an epithet. To wind up, he more than once pronounced the English to be *parvenus*. There is an old proverb which says, “A man whose house is built of glass should not be the first to throw stones;” and that these last two charges should be brought against us by an American, is certainly somewhat singular and unfortunate.

That there should be a hostile feeling when English men go over to America to compete with them in business or in any profession, is natural; it would be the same everywhere; this feeling, however, in the United States is usually shewn by an attack upon the character of the party, so as to influence the public against him. There was an American practising phrenology, when a phrenologist arrived from England. As this opposition was not agreeable, the American immediately circulated a report that the English phrenologist had asserted that he had examined the skulls of many Americans, and that he had never fallen in with such *thick-headed fellows* in his life. This was quite sufficient—the English operator was obliged to *clear out* as fast as he could, and try his fortune elsewhere.

The two following placards were given me; they were pasted all over the city. What the offence was I never heard, but they are very amusing documents. It is the first time, I believe, that public singers were described as *aristocrats*, and Englishmen of the first *stamp*.

“Americans:—

“It remains with you to say whether or not you will be imposed upon by these base aristocrats, who come from England to America, in order to gain a livelihood, and despise the land that gives them bread.

“Some few years since there came to this country three ‘gentlemen players,’ who were received with open arms by the Americans, and treated more as brothers than strangers; when their pockets were full, in requital to our best endeavours to raise them to their merit, the ungrateful dogs turned round and abused us. It is useless, at present, to give the names of two of those *gentlemen*, as they are not now candidates for public favour; but there is one, Mr Hodges, who is at present engaged at the Pavilion Theatre. This *thing* has said publicly that the Americans were all ‘a parcel of ignoramuses,’ and that ‘the yankee players’ were ‘perfect fools, not possessing the least particle of talent,’ etcetera. We must be brief—should we repeat all we have heard it would fill a page of the News.

“Will the Americans be abused in this way without retaliation? We are always willing to bestow that respect which is due to strangers; but when our kindness is treated with contempt, and in return receive base epithets and abuse, let us ‘block the game.’

“Once for all—will you permit this thing in pantaloons and whiskers, this brainless, un-ideaed *cub*, whom a thousand years will not suffice to lick into a bear, longer to impose upon your good-natures? If so, we shall conclude you have lost all of that spirit so characteristic of true born Americans.

“A word to Mr (?) Hodges.—When these meet your eye, a *dignified contempt* will most opportunely swell your breast—such is ever the case with the *coward*! In affected scorn, you will seek a shelter from the danger you *dare* not brave, but we warn you that one day must overtake you.

“Several Americans.”

“Americans Attend!

“Americans:— If there is a spark of that spirit in your blood with which your forefathers bequeathed you, I hope you will shew it when men come among us from a foreign shore to get a living, and while here to speak in terms towards our country and ourselves, derogatory to the feelings of an American to listen to. These men that I speak of are Mr Hodges and Mr Corri, Englishmen of the *first stamp*, who declare that the Yankees, (as we are all termed, and proud of the name I dare say,) ‘are a parcel of ignoramuses—cannibals—don’t know how to appreciate talent’—they possess very little I am certain. However, the thing stands thus: they have slandered our country, they have slandered *us*; and if they are permitted to play upon the boards of the *Eagle Theatre*, I shall conclude that we have lost all that spunk so characteristic in a True Born American.”

There certainly is no good feeling in the *majority* towards England, and this is continually shewn in a variety of instances, particularly if there is any excitement from distress or other causes. At the time that the great commercial distress took place, the abuse of England was beyond all bounds; and in a public meeting of democrats at Philadelphia, the first resolution passed was, “that they did not owe England one farthing,” and this is the general outcry of the lower orders when any thing was wrong. I have often argued with them on this subject, and never could convince them. This country has now *fifty-five millions sterling* invested in American securities, which is a large sum, and the *majority* consider that a war will sponge out this debt. Their argument which they constantly urged against me, has more soundness in it than would be supposed:— “If you declare war with us, what is the first thing you do, you seize all American vessels and all American property that you can lay hold of, which have entered into your ports on the faith of peace between the two countries. Now, why have we not an equal right to seize all English property whenever we can find it in this country?” But this, as I have observed, is the language of the democrats and locofocos. There are thousands of honourable men in America, not only as merchants, but in every other class, who are most anxious to keep on good terms with us, and have the kindest feelings towards England.

Unfortunately they are but few compared to the majority, and much as they may regret the hostile feelings towards us, I am afraid that it is wholly out of their power to prevent their increase, which will be in exact proportion with the increase of the popular sway.

Note 1. Soon after I arrived at New York, the naval officers very kindly sent me a diploma xxx member of their Lyceum, over at Brooklyn. I went over to visit the Lyceum, and, among the portraits in the most conspicuous part of the room was that of William the Fourth, with the “Sailor King” written underneath it in large capitals. As for the present Queen, her health has been repeatedly drank in my presence; indeed her accession to our throne appeared to have put a large portion of the Americans in good humour with monarchy. Up to the present she has been quite a pet of theirs, and they are continually asking questions concerning her. The fact is, that the Americans shew such outward deference to the other sex, that I do not think they would have any objection themselves to be governed by it; and if ever a monarchy were attempted in the United States, the first reigning sovereign ought to be a *very pretty woman*.

Note 2. A proof that the feeling against England is increasing, is the singular fact that latterly they insist upon calling the English *foreigners*, a term which they formerly applied to all other nations, but not to *ourselves*.

Volume Two—Chapter Five.

Society.—General Character, etcetera.

The character of the Americans is that of a restless, uneasy people—they cannot sit still, they cannot listen attentively, unless the theme be politics or dollars—they must do something, and, like children, if they cannot do anything else, they will do mischief—their curiosity is unbounded, and they are very capricious. Acting upon impulse, they

are very generous at one moment, and without a spark of charity the next. They are good-tempered, and possess great energy, ingenuity, bravery, and presence of mind. Such is the estimate I have formed of their general character, independent of the demoralising effects of their institutions, which renders it so anomalous.

The American author, Mr Sanderson, very truly observes of his countrymen, that, “they have grown vicious without the refinements and distractions of the fine arts and liberal amusements.” The Americans have few amusements; they are too busy. Athletic sports they are indifferent to; they look only to those entertainments which feed their passion for excitement. The theatre is almost their only resort, and even that is not so well attended as it might be, considering their means. There are some very good and well-conducted theatres in America: the best are the Park and National at New York, the Tremont at Boston, and the Chesnut Street Theatre at Philadelphia. The American *stock* actors, as they term those who are not considered as *stars*, are better than our own; but were the theatres to depend upon stock actors they would be deserted—the love of novelty is the chief inducement of the Americans to frequent the theatre, and they look for importations of star actors from this country as regularly as they do for our manufactured goods, or the fashions from Paris. In most of the large cities they have two theatres; one for legitimate drama, and the other for melodrama, as the Bowery Theatre at New York, and the Walnut Street Theatre in Philadelphia; these latter are seldom visited by the aristocratical portion of the citizens.

The National Theatre at New York was originally built as an opera house, and the company procured from the Havannah; but the opera, from want of support, was a failure. It has since been taken by Mr James Wallack, in opposition to the Park Theatre. The two first seasons its success was indifferent; the Park having the advantage in situation, as well as of a long-standing reputation. But, latterly, from the well-known talent and superior management of Mr Wallack, and from his unwearied exertions in providing novelties for the American public, it has been very successful; so much so, that it is

said this last year to have decidedly obtained the superiority over its rival. I have seen some splendid representations in the National Theatre, with a propriety in scenery and costume which is seldom exceeded even in our great theatres.

Indeed, in three seasons, Mr Wallack has done much to improve the national taste; and from his exertions, the theatres in general in America may be said to have been much benefited. But there is one objection to this rivalry between the Park and National; which is, that the *stars* go out too fast, and they will soon be all expended. Formerly things went on very regularly: Mr Price sent out to Mr Simpson, duly invoiced, a certain portion of talent for every season; and Mr Simpson, who is a very clever manager, first worked it up at New York, and then dispatched it to Boston, Philadelphia, and the other theatres in the Union. But, now, if Mr Simpson has two stars sent to him, James Wallack comes home, and takes out three; whereupon, Mr Price sends out a bigger star; and so they go on; working up the stars so fast, that the supply will never equal the demand. There are not more than two or three actors of eminence in England, who have not already made their appearance on the American boards; and next season will probably use them up. It is true, that some actors can return there again and again; as Power, who is most deservedly a favourite with them, and Ellen Tree, who is equally so. Celeste has realised a large fortune. Mrs Wood, and the Keeleys, were also very great favourites; but there are not many actors who can venture there a second time; at least, not until a certain interval has elapsed for the Americans to forget them. When there are no longer any stars, the theatres will not be so well attended; as, indeed, is the case every where. To prove how fond the Americans are of anything that excites them, I will mention a representation which I one day went to see—that of the “Infernal Regions.” There were two or three of these shewn in the different cities in the States. I saw the remnants of another, myself; but, as the museum-keeper very appropriately observed to me, “It was a fine thing once, but now it had all gone to hell.” You entered a dark room; where, railed off with iron railings, you beheld a long perspective of caverns in the interior of the earth, and a molten lake in the distance.

In the foreground were the most horrible monsters that could be invented—bears with men's heads, growling—snakes darting in and out, hissing—here a man lying murdered, with a knife in his heart; there—a suicide, hanging by the neck—skeletons lying about in all directions, and some walking up and down in muslin shrouds. The machinery was very perfect. At one side was the figure of a man sitting down, with a horrible face; boar's tusks protruding from his mouth, his eyes rolling, and horns on his head; I thought it was mechanism as well as the rest; and was not a little surprised when it addressed me in a hollow voice: "We've been waiting some time for you, captain." As I found he had a tongue, I entered into conversation with him. The representation wound up with showers of fire, rattling of bones, thunder, screams, and a regular cascade of the d—d, pouring into the molten lake. When it was first shewn, they had an electric battery communicating with the iron railing; and whoever put his hand on it, or went too near, received a smart electric shock. But the alarm created by this addition was found to be attended with serious consequences, and it had been discontinued.

The love of excitement must of course produce a love of gambling, which may be considered as one of the American amusements: it is, however, carried on very quietly in the cities. In the South, and on the Mississippi, it is as open as the noon day; and the gamblers may be said to have there become a professional people. I have already mentioned them, and the attempts which have been made to get rid of them. Indeed, they are not only gamesters who practice on the unwary, but they combine with gambling the professions of forgery, and uttering of base money. If they lose, they only lose forged notes. There is no part of the world where forgery is carried on to such an extent as it is in the United States; chiefly in the Western country. The American banks are particularly careful to guard against this evil, but the ingenuity of these miscreants is surprising, and they will imitate so closely as almost to escape detection at the banks themselves. Bank-note engraving is certainly carried to the highest state of perfection in the United States, but almost in vain. I have myself read a notice, posted up at Boston, which may appear strange to us. "Bank notes made here to any pattern." But the

Eastern banks are seldom forged upon. Counterfeit money is also very plentiful. When I was in the West, I had occasion to pay a few dollars to a friend: when I saw him a day or two afterwards, he said to me, "Do you know that three dollars you gave me were counterfeits?" I apologised, and offered to replace them, "Oh! no," replied he; "it's of no consequence. I gave them in payment to my people, who told me that they *were* counterfeit; but they said it was of no consequence, as they could easily pass them." In some of the States lotteries have been abolished, in others they are still permitted. They are upon the French principle, and are very popular.

There is one very remarkable point in the American character, which is, that they constantly change their professions. I know not whether it proceeds simply from their love of change, or from their embracing professions at so early a period, that they have not discovered the line in which from natural talents they are best calculated to succeed. I have heard it said, that it is seldom that an American succeeds in the profession which he had first taken up at the commencement of his career. An American will set up as a lawyer; quit, and go to sea for a year or two; come back, set up in another profession; get tired again, go as clerk or steward in a steam-boat, merely because he wishes to travel; then apply himself to something else, and begin to amass money. It is of very little consequence what he does, the American is really a jack of all trades, and master of any to which he feels at last inclined to apply himself.

In Mrs Butler's clever journal there is one remark which really surprised me. She says, "The absolute absence of imagination is of course the absolute absence of humour. An American can no more understand a fanciful jest than a poetical idea; and in society and conversation the *strictest matter of fact* prevails," etcetera.

If there was nothing but "*matter of fact*" in society and conversation in America or elsewhere, I imagine that there would not be many words used: but I refer to the passage, because she says that the Americans are not imaginative; whereas, I think that there is not a more imaginative people existing. It is true that they prefer broad

humour, and delight in the hyperbole, but this is to be expected in a young nation; especially as their education is, generally speaking, not of a kind to make them sensible to very refined wit, which, I acknowledge, is thrown away upon the majority. What is termed the under current of humour, as delicate raillery, for instance, is certainly not understood. When they read Sam Slick, they did not perceive that the author was laughing at them; and the letters of Major Jack Downing are much more appreciated in this country than they are in America. But as for saying that they are not imaginative, is a great error, and I have no doubt that Mrs B has discovered it by this time.

Miss Martineau says, and very truly, "The Americans appear to me an eminently imaginative people." Indeed, it is only necessary to read the newspapers to be convinced it is the case. The hyperbole is their principal forte, but what is lying but imagination? and why do you find that a child of promising talent is so prone to lying? because it is the first effort of a strong imagination. Wit requires refinement, which the Americans have not; but they have excessive humour, although it is generally speaking coarse.

An American, talking of an ugly woman with a very large mouth, said to me, "Why, sir, when she yawns, you can see right down to her garters;" and another, speaking of his being very sea-sick, declared, "That he threw every thing up, down to his knee-pans."

If there required any proof of the dishonest feeling so prevalent in the United States arising from the desire of gain, it would be in the fact, that almost every good story which you hear of an American is an instance of great ingenuity, and very little principle. So many have been told already, that I hesitate to illustrate my observation, from fear of being accused of uttering stale jokes. Nevertheless I will venture upon one or two.

"An American (Down East, of course), when his father died, found his patrimony to consist of several hundred dozen of boxes of ointment for the cure of a certain complaint, said (by us) to be more common in the North than in England. He made up his pack, and took a round of nearly a hundred miles, going from town to town and

from village to village, offering his remedy for sale. But unfortunately for him no one was afflicted with the complaint, and they would not purchase on the chance of any future occasion for it. He returned back to his inn, and having reflected a little, he went out, inquired where he could find the disease, and having succeeded, inoculated himself with it. When he was convinced that he had it with sufficient virulence, he again set forth making the same round; and taking advantage of the American custom which is so prevalent, he shook hands with everybody whom he had spoken to on his former visit, declaring he was "tarnal glad to see them again." Thus he went on till his circuit was completed, when he repaired to the first town again, and found that his ointment, as he expected, was now in great request; and he continued his route as before, selling every box that he possessed."

There is a story of a Yankee clock-maker's ingenuity, that I have not seen in print. He also "made a circuit, having a hundred clocks when he started; they were all very bad, which he well knew; but by 'soft sawder and human natur,' as Sam Slick says, he contrived to sell ninety-nine of them, and reserve the last for his intended '*ruse*.' He went to the house where he had sold the first clock, and said, 'Well, now, how does your clock go? very well, I guess.' The answer was as he anticipated, 'No, very bad.' 'Indeed! Well, now, I've found it out at last. You see, I had one clock which was I know a bad one, and I said to my boy, "you'll put that clock aside, for it won't do to sell such an article." Well, the boy didn't mind, and left the clock with the others; and I found out afterwards that it had been sold somewhere. Mighty mad I was, I can tell you, for I'm not a little particular about my credit; so I have asked here and there, everywhere almost, how my clocks went, and they all said that "they actually regulated the sun." But I was determined to find out who had the bad clock, and I am most particular glad that I have done it at last. Now, you see I have but one clock left, a very superior article, worth a matter of ten dollars more than the others, and I must give it you in change, and I'll only charge you five dollars difference, as you have been annoyed with the bad article.' The man who had the bad clock thought it better to pay five dollars more to have a good one; so the exchange was

made, and then the Yankee, proceeding with the clock, returned to the next house. 'Well, now, how does your clock go? very well, I guess.' The same answer—the same story repeated—and another five dollars received in exchange. And thus did he go round, exchanging clock for clock, until he had received an extra five dollars for every one which he had sold."

Logic.—"A Yankee went into the bar of an inn in a country town: 'Pray what's the price of a pint of shrub?' 'Half a dollar,' was the reply of the man at the bar. 'Well, then, give it me.' The shrub was poured out, when the bell rang for dinner. 'Is that your dinner-bell?' 'Yes.' 'What may you charge for dinner?' 'Half a dollar.' 'Well, then, I think I had better not take the shrub, but have some dinner instead.' This was consented to. The Yankee went in, sat down to his dinner, and when it was over, was going out of the door without paying. 'Massa,' said the negro waiter, 'you not paid for your dinner.' 'I know that; I took the dinner instead of the shrub.' 'But, massa, you not pay for the shrub.' 'Well, I did not have the shrub, did I, you nigger?' said the Yankee, walking away. The negro scratched his head; he knew that something was wrong, as he had got no money; but he could not make it out till the Yankee was out of sight."

I do not think that *democracy* is marked upon the features of the lower classes in the United States; there is no arrogant bearing in them, as might be supposed from the despotism of the majority; on the contrary, I should say that their lower classes are much more civil than our own. I had a *slap* of equality on my first landing at New York. I had hired a truck-man to take up my luggage from the wharf; I went a-head, and missed him when I came to the corner of the street where I had engaged apartments, and was looking round for him in one direction, when I was saluted with a slap on the shoulder, which was certainly given with good-will. I turned, and beheld my carman, who had taken the liberty to draw my attention in this forcible manner. He was a man of few words; he pointed to his truck where it stood with the baggage, and then went on.

This civil bearing is peculiar, as when they are excited by politics, or other causes, they are most insolent and overbearing. In his usual demeanour, the citizen born is quiet and obliging. The insolence you meet with is chiefly from the emigrant classes. I have before observed, that the Americans are a good-tempered people; and to this good temper I ascribe their civil bearing. But why are they good-tempered? It appears to me to be one of the few virtues springing from democracy. When the grades of society are distinct, as they are in the older institutions, when difference of rank is acknowledged and submitted to without murmur, it is evident that if people are obliged to control their tempers in presence of their superiors or equals, they can also yield to them with their inferiors; and it is this yielding to our tempers which enables them to master us. But under institutions where all are equal, where no one admits the superiority of another, even if he really be so, where the man with the spade in his hand will beard the millionaire, and where you are compelled to submit to the caprice and insolence of a domestic, or lose his services, it is evident that every man must from boyhood have learnt to control his temper, as no ebullition will be submitted to, or unfollowed by its consequences. I consider that it is this habitual control, forced upon the Americans by the nature of their institutions, which occasions them to be so good-tempered, when not in a state of excitement. The Americans are in one point, as a mob, very much like the English; make them laugh, and they forget all their animosity immediately.

One of the most singular points about the lower classes in America is, that they will call themselves ladies and gentlemen, and yet refuse their titles to their superiors. Miss Martineau mentions one circumstance, of which I very often met with similar instances. "I once was with a gentleman who was building a large house; he went to see how the men were getting on; but they had all disappeared but one. 'Where are the people?' inquired he. 'The *gentlemen* be all gone to *liquor*,' was the reply."

I bought one of the small newspapers just as I was setting off in a steam-boat from New York to Albany. The boy had no change, and

went to fetch it. He did not come back himself, but another party made his appearance. "Are you the *man* who bought the newspaper?" "Yes," replied I. "The *young gentleman* who sold it to you has sent me to pay you four cents."

A gentleman was travelling with his wife, they had stopped at an inn, and during the gentleman's momentary absence the lady was taken ill. The lady wishing for her husband, a man very good-naturedly went to find him, and when he had succeeded he addressed him, "I say, Mister, your *woman* wants you; but I telled the *young lady of the house* to fetch her a glass of water."

There was no insolence intended in this; it is a peculiarity to be accounted for by their love of title and distinction.

It is singular to observe human nature peeping out in the Americans, and how tacitly they acknowledge by their conduct how uncomfortable a feeling there is in perfect equality. The respect they pay to a title is much greater than that which is paid to it in England; and naturally so; we set a higher value upon that which we cannot obtain. I have been often amused at the variance on this point between their words and their feelings, which is shewn in their eagerness for rank of some sort among themselves. Every man who has served in the militia carries his title until the day of his death. There is no end to generals, and colonels, and judges; they keep taverns and grog shops, especially in the Western State; indeed, there are very few who have not brevet rank of some kind; and I being only a captain, was looked upon as a very small personage, as far as rank went. An Englishman, who was living in the State of New York, had sent to have the chimney of his house raised. The morning afterwards he saw a labourer mixing mortar before the door. "Well," said the Englishman, "when is the chimney to be finished?" "I'm sure I don't know, you had better ask the colonel." "The colonel? What colonel?" "Why, I reckon that's the colonel upon the top of the house, working away at the chimney."

After all, this fondness for rank, even in a democracy, is very natural, and the Americans have a precedent for it. His Satanic Majesty was

the first democrat in heaven, but as soon as he was dismissed to his abode below, if Milton be correct, he assumed his title.

Volume Two—Chapter Six.

Aristocracy.

If the Americans should imagine that I have any pleasure in writing the contents of this chapter they will be mistaken; I have considered well the duty of and pondered over it. I would not libel an individual, much less a whole nation; but I must speak the truth, and upon due examination, and calling to my mind all that I have collected from observation and otherwise, I consider that at this present time the standard of morality is lower in America than in any other portion of the civilised globe. I say at this present time, for it was not so even twenty years ago, and possibly may not be so twenty years hence. There is a change constantly going on in every thing below, and I believe, for many reasons, that a change for the better will soon take place in America. There are even now many thousands of virtuous, honourable, and enlightened people in the United States, but at present virtue is passive, while vice is active.

The Americans possess courage, presence of mind, perseverance, and energy, but these may be considered rather as endowments than as virtues. They are propelling powers which will advance them as a people, and, were they regulated and tempered by religious and moral feeling, would make them great and good, but without these adjuncts they can only become great and vicious.

I have observed in my preface that the virtues and vices of a nation are to be traced to the form of government, the climate, and circumstances, and it will be easy to shew that to the above may be ascribed much of the merit as well as the demerits of the people of the United States.

In the first place, I consider the example set by the government as most injurious: as I shall hereafter prove, it is insatiable in its ambition, regardless of its faith, and corrupt to the highest degree. This example I consider as the first cause of the demoralisation of the Americans. The errors incident to the voluntary system of religion are the second: the power of the clergy is destroyed, and the tyranny of the laity has produced the effect of the outward form having been substituted for the real feeling, and hypocrisy has been but too often substituted for religion.

To the evil of bad example from the government is superadded the natural tendency of a democratic form of government, to excite ambition without having the power to gratify it morally or virtuously; and the debasing influence of the pursuit of gain is everywhere apparent. It shews itself in the fact that money is in America everything, and everything else nothing; it is the only sure possession, for character can at any time be taken from you, and therefore becomes less valuable than in other countries, except so far as mercantile transactions are concerned. Mr Cooper says—not once, but many times—that in America all the local affections, indeed everything, is sacrificed to the spirit of gain. Dr Charming constantly laments it, and he very truly asserts, “A people that deems the possession of riches its highest source of distinction, admits one of the most degrading of all influences to preside over its opinions. At no time should money be ever ranked as more than a means, and he who lives as if the acquisition of property were the sole end of his existence, betrays the dominion of the most sordid, base, and grovelling motive that life offers;” and ascribing it to the institutions, he says, “In one respect our institutions have *disappointed us all*: they have not wrought out for us that elevation of character which is the most precious, and, in truth, the only substantial blessing of liberty.”

I have before observed, that whatever society permits, men will do and not consider to be wrong, and if the government considers a breach of trust towards it as not of any importance, and defaulters are permitted to escape, it will of course become no crime in the

eyes of the majority. Mr Cooper observes, “An evident *dishonesty* of sentiment pervades the *public* itself, which is beginning to regard acts of private delinquency with a dangerous indifference; acts too that are inseparably connected with the character, security, and right administration of the state.”

Such is unfortunately the case at present; it may be said to have commenced with the Jackson dynasty, and it is but a few years since this dreadful demoralisation has become so apparent and so shamelessly avowed. In another work the American author above quoted observes,—“We see the effects of this baneful influence in the openness and audacity with which men avow improper motives and improper acts, trusting to find support in a popular feeling, for while vicious influences are perhaps more admitted in other countries than in America, in none are they so openly avowed.” Surely there is sufficient of American authority to satisfy any reader that I am not guilty of exaggeration in my remarks. Nor am I the only traveller who has observed upon what is indeed most evident and palpable. Captain Hamilton says, “I have heard conduct praised in conversation at a public table, which, in England, would be attended, if not with a voyage to Botany Bay, at least with total loss of character. It is impossible to pass an hour in the bar of the hotel, without struck with the tone of callous selfishness which pervades the conversation, and the absence of all pretension to pure and lofty principle.”

It may indeed be fairly said, that nothing is disgraceful with the majority in America, which the law cannot lay hold of. (See Note 1.) You are either in or out of the Penitentiary: if once in, you are lost for ever, but keep out and you are as good as your neighbour. Now one thing is certain, that where honesty is absolutely necessary, honesty is to be found, as for example among the New York merchants, who are, as a body, highly honourable men. When, therefore, the Americans will have moral courage sufficient to drive away vice, and not allow virtue to be in bondage, as she at present is, the morals of society will be instantly restored—and how and when will this be effected? I have said that the people of the United States, at the

time of the Declaration of Independence, were perhaps the most moral people existing, and I now assert that they are the least so; to what cause can this change be ascribed? Certainly not wholly to the spirit of gain, for it exists every where, although perhaps nowhere so strongly developed as it is under a form of government which admits of no other claim to superiority. I consider that it arises from the total extinction, or if not extinction absolute bondage, of the aristocracy of the country, both politically as well as socially. There was an aristocracy at the time of the Independence—not an aristocracy of title, but a much superior one; an aristocracy of great, powerful, and leading men, who were looked up to and imitated; there was, politically speaking, an aristocracy in the senate which was elected by those who were then independent of the popular will; but although a portion of it remains, it may be said to have been almost altogether smothered, and in society it no longer exists. It is the want of this aristocracy that has so lowered the standard of morals in America, and it is the revival of it that must restore to the people of the United States the morality they have lost. The loss of the aristocracy has sunk the Republic into a democracy—the renewal of it will again restore them to their former condition. Let not the Americans start at this idea. An aristocracy is not only not incompatible, but absolutely necessary for the duration of a democratic form of government. It is the third estate, so necessary to preserve the balance of power between the executive and the people, and which has unfortunately disappeared. An aristocracy is as necessary for the morals as for the government of a nation. Society must have a head to lead it, and without that head there will be no fixed standard of morality, and things must remain in the chaotic state in which they are at present.

Some author has described the English nation as resembling their own beer-froth at the top, dregs at the bottom, and in the middle excellent. There is point in this observation, and it has been received without criticism, and quoted without contradiction: but it is in itself false; it may be said that the facts are directly the reverse, there being more morality among the lower class than in the middling, and still more in the higher than in the lower. We have been designated as a nation of shopkeepers, a term certainly more applicable to the

Americans, where all are engaged in commerce and the pursuit of gain, and who have no distinctions or hereditary titles. Trade demoralises; there are so many petty arts and frauds necessary to be resorted to by every class in trade, to enable them to compete with each other; so many lies told, as a matter of business, to tempt a purchaser, that almost insensibly and by degrees the shopkeeper becomes dishonest. These demoralising practices must be resorted to, even by those who would fain avoid them, or they have no chance of competing with their rivals in business. It is not the honest tradesman who makes a rapid fortune; indeed, it is doubtful whether he could carry on his business; and yet, from assuetude and not being taxed with dishonesty, the shopkeeper scarcely ever feels that he is dishonest. Now, this is the worst state of demoralisation, where you are blind to your errors and conscience is never awakened, and in this state may be considered, with few exceptions, every class of traders, whether in England, America, or elsewhere.

Among the lower classes, the morals of the manufacturing districts, and of the frequenters of cities, will naturally be at a low ebb, for men when closely packed demoralise each other; but if we examine the agricultural classes, which are by far the most numerous, we shall find that there is much virtue and goodness in the humble cottage; we shall there find piety and resignation, honesty, industry, and content, more universal than would be imagined, and the Bible pored over, instead of the day-book or ledger.

But it is by the higher classes of the English nation, by the nobility and gentry of England, that the high tone of virtue and morality is upheld. Foreigners, especially Americans, are too continually pointing out, and with evident satisfaction, the scandal arising from the conduct of some few individuals in these classes as a proof of the conduct of the whole; but they mistake the exceptions for the rule. If they were to pay attention, they would perceive that these accusations are only confined to some few out of a class comprehending many many thousands in our wealthy isle, and that the very circumstance of their rank being no shield against the attacks made upon them, is a proof that they are exceptions, whose

conduct is universally held up to public ridicule or indignation. A *crim. con.* in English high life is exulted over by the Americans; they point to it, and exclaim, "See what your aristocracy are!" forgetting that the crime is committed by one out of thousands, and that it meets with the disgrace which it deserves, and that this crime is, to a certain degree, encouraged by our laws relative to divorce. Do the Americans imagine that there is no *crim. con.* perpetrated in the United States? many instances of suspicion, and some of actual discovery, came to my knowledge even during my short residence there, but they were invariably, and perhaps judiciously, hushed up, for the sake of the families and the national credit. I do not wish, nor would it be possible, to draw any parallel between the two nations on this point; I shall only observe that in England we have not considered the vice to have become so prevalent as to think it necessary to form societies for the prevention of it, as they have done in the United States.

It has been acknowledged by other nations, and I believe it to be true, that the nobility and gentry of England are the most moral, most religious, and most honourable classes that can be found not only in our country, but in any other country in the world, and such they certainly ought from *circumstances* to be.

Possessed of competence, they have no incentives to behave dishonestly. They are well-educated, the finest race of men and women that can be produced, and the men are brought up to athletic and healthy amusements. They have to support the honour of an ancient family, and to hand down the name untarnished to their posterity. They have every inducement to noble deeds, and are, generally speaking, above the necessities which induce men to go wrong. If the Americans would assert that luxury produces vice, I can only say that luxury infers idleness and inactivity, and on this point the women of the aristocracy in this country have the advantage over the American women, who cannot, from the peculiarity of the climate, take time exercise so universally resorted to by our higher classes. I admit that some go wrong, but is error confined to the nobility alone; are there no spendthrifts, no dissolute young men, or ill brought up

young women, among other classes? Are there none in America? Moreover, there are some descriptions of vice which are meaner than others and more debasing to the mind, and it is among the middling and lower classes that these vices are principally to be found.

The higher classes invariably take the lead, and give the tone to society. If the court be moral, so are the morals of the nation improved by example, as in the time of George the Third. If the court be dissolute, as in the time of Charles the Second, the nation will plunge into vice. Now, in America there is no one to take the lead; morals, like religion, are the concern of nobody, and therefore it is that the standard of morality is so low. I have heard it argued that allowing one party to have a very low standard of morality and to act up to that standard, and another to have a high standard of morality and not to act up to it, that the former is the really moral man, as he does act up to his principles such as they are. This may hold good when we examine into the virtues and vices of nations: that the American Indian who acts up to his own code and belief, both in morality and religion, may be more worthy than a Christian who neglects his duty, may be true; but the question now is upon the respective morality of two enlightened nations, both Christian and having the Bible as their guide—between those who have neither of them any pretence to lower the standard of morality, as they both know better. M. Tocqueville observes, speaking of the difference between aristocratical and democratical governments—“In aristocratic governments the individuals who are placed at the head of affairs are rich men, who are solely desirous of power. In democracies statesmen are poor, and they have their fortunes to make. The consequence is, that in aristocratic States the rulers are rarely accessible to corruption, and have very little craving for money; whilst the reverse is the case in democratic nations.”

This is true, and may be fairly applied to the American democracy: as long as you will not allow the good and enlightened to rule, you will be governed by those who will flatter and cheat you, and demoralise society. When you allow *your* aristocracy to take the

reins, you will be better governed, and your morals will improve by example. What is the situation of America at present? the aristocracy of the country are either in retirement or have migrated, and if the power of the majority should continue as it now does its despotic rule, you will have still farther emigration. At present there are many hundreds of Americans who have retired to the Old Continent, that they may receive that return for their wealth which they cannot in their own country; and if not flattered, they are at least not insulted and degraded.

Mr Sanderson, in his "Sketches from Paris," says—"The American society at Paris, taken altogether, is of a good composition. It consists of several hundred persons, of families of fortune, and young men of liberal instruction. Here are lords of cotton from Carolina, and of sugar-cane from the Mississippi, *millionaires* from all the Canadas, and pursers from all the navies; and their social qualities, from a sense of mutual dependence or partnership in absence, or some such causes, are more active abroad than at home.

"They form a little republic apart, and when a stranger arrives he finds himself at home; he finds himself also under the censorial inspection of a public opinion, a salutary restraint not always the luck of those who travel into foreign countries. One thing only is to be blamed: it becomes every day more the fashion for the *élite* of our cities to settle themselves here *permanently*. We cannot but deplore this exportation of the precious metals, since our country is drained of what the supply is not too abundant. They who have resided here a few years, having fortune and leisure, do not choose, as I perceive, to reside anywhere else."

This is the fact; and as the wealth of America increases every day, so will those who possess it swarm off as fast as they can to other countries, if there is not a change in the present society, and a return to something like order and rank. Who would remain in a country where there is no freedom of thought or action, and where you cannot even spend your money as you please? Mr Butler the other

day built a house at Philadelphia with a *porte-cochere*, and the consequence was that they called him an aristocrat, and would not vote for him. In short, will enlightened and refined people live to be dictated to by a savage and ignorant majority, who will neither allow your character nor your domestic privacy to be safe!

The Americans, in their fear of their institutions giving way, and their careful guard against any encroachments upon the liberty of the people, have fallen into the error of sacrificing the most virtuous portion of the community, and driving a large portion of them out of the country. This will eventually be found to be a serious evil; absenteeism will daily increase, and will be as sorely felt as it is in Ireland at the present hour. The Americans used to tell me with exultation, that they never could have an Aristocracy in their country, from the law of entail having been abolished. They often asserted, and with some truth, that in that country property never accumulated beyond two generations, and that the grandson of a *millionaire* was *invariably* a pauper. This they ascribe to the working of their institutions, and argue that it will always be impossible for any family to be raised above the mass by a descent of property. Now the very circumstance of this having been invariably the case, induces me to look for the real cause of it, as there is none to be found in their institutions why all the grandsons of *millionaires* should be paupers. It is not owing to their institutions, but to moral causes, which, although they have existed until now, will not exist for ever. In the principal and wealthiest cities in the Union, it is difficult to spend more than twelve or fifteen thousand dollars per annum, as with such an expenditure you are on a par with the highest, and you can be no more. What is the consequence? a young American succeeds to fifty or sixty thousand dollars a year, the surplus is useless to him; there is no one to vie with—no one who can reciprocate—he must stand alone. He naturally feels careless about what he finds to be of no use to him. Again, all his friends and acquaintances are actively employed during the whole of the day in their several occupations; he is a man of leisure, and must either remain alone or associate with other men of leisure; and who are the majority of men of leisure in the towns of the United States? Blacklegs of genteel exterior and

fashionable appearance, with whom he associates, into whose snares he falls, and to whom he eventually loses property about which he is indifferent. To be an idle man when every body else is busy, is not only a great unhappiness, but a situation of great peril. Had the sons of *millionaires*, who remained in the States and left their children paupers, come over to the old Continent, as many have done, they would have stood a better chance of retaining their property.

All I can say is, that if they cannot have an aristocracy, the worse for them; I am not of the opinion, that they will not have one, although they are supported by the strong authority of M. Tocqueville, who says—"I do not think a single people can be quoted, since human society began to exist, which has, by its own free-will and by its own exertions, created an aristocracy within its own bosom. All the aristocracies of the Middle Ages were founded by military conquest: the conqueror was the noble, the vanquished became the serf. Inequality was then imposed by force; and after it had been introduced into the manners of the country, it maintained its own authority, and was sanctioned by the legislation. Communities have existed which were aristocratic from their earliest origin, owing to circumstances anterior to that event, and which became more democratic in each succeeding age. Such was the destiny of the Romans, and of the barbarians after them. But a people, having taken its rise in civilisation and democracy, which should gradually establish an inequality of conditions, until it arrived at inviolable privileges and exclusive castes, would be a novelty in the world and nothing intimates that America is likely to furnish so singular an example."

I grant that no single people has by its own free-will created an aristocracy, but circumstances will make one in spite of the people; and if there is no aristocracy who have power to check, a despotism may be the evil arising from the want of it. At present America is thinly peopled, but let them look forward to the time when the population shall become denser; what will then be the effect? why a division between the rich and the poor will naturally take place; and

what is that but the foundation if not the formation of an aristocracy. An American cannot entail his estate, but he can leave the whole of it to his eldest son if he pleases; and in a few years, the lands which have been purchased for a trifle, will become the foundation of noble fortunes (see Note 2) but even now their law of non-entail does not work as they would wish.

M. Tocqueville says—"The laws of the United States are extremely favourable to the division of property; but a cause which is more powerful than the laws prevents property from being divided to excess. (See Note 3.) This is very perceptible in the States which are beginning to be thickly peopled; Massachusetts is the most populous part of the Union, but it contains only eighty inhabitants to the square mile, which is much less than in France, where a hundred and sixty-two are reckoned to the same extent of country. But in Massachusetts estates are very rarely divided; the eldest son takes the land, and the others go to seek their fortune in the desert. The law has abolished the rights of primogeniture, but circumstances have concurred to re-establish it under a form of which none can complain, and by which no just rights are impaired."

And Chancellor Kent, in his "Treatise upon American Law," observes—"It cannot be doubted that the division of landed estates must produce great evils when it is carried to such excess as that each parcel of land is insufficient to support a family but these disadvantages have never been felt in the United States, and *many generations must elapse* before they can be felt. The extent of our inhabited territory, the abundance of adjacent land, and the continual stream of emigration flowing from the shores of the Atlantic towards the interior of the country, suffice as yet, and will long suffice, to *prevent* the parcelling out of estates."

There is, therefore, no want of preparation for an aristocracy in America, and, although at present the rich are so much in the minority that they cannot coalesce, such will not be the case, perhaps, in twenty or thirty years; they have but to rally and make a stand when they become more numerous and powerful, and they

have every chance of success. The fact is that an aristocracy is absolutely necessary for America, both politically and morally, if the Americans wish their institutions to hold together, for if some stop is not put to the rapidly advancing power of the people, anarchy must be the result. I do not mean an aristocracy of title; I mean such an aristocracy of talent and power which wealth will give—an aristocracy which shall lead society and purify it. How is this to be obtained in a democracy?—simply by purchase. In a country where the suffrage is confined to certain classes, as in England, such purchase is not to be obtained, as the people who have the right of suffrage are not poor enough to be bought; but in a country like America, where the suffrage is universal, the people will eventually sell their birth-right; and if by such means an aristocratical government is elected, it will be able to amend the constitution, and pass what laws it pleases. This may appear visionary, but it has been proved already that it can be done, and if it can be done now, how much more easily will it be accomplished when the population has quadrupled, and the division commences between the rich and the poor. I say it has been done already, for it was done at the last New York election. The democratic party made sure of success: but a large sum of money was brought into play, and the whole of the *committees* of the democratic party were bought over, and the Whigs carried the day.

The greatest security for the duration of the present institutions of the United States is the establishment of an aristocracy. It is the third power which was intended to act, but which has been destroyed and is now wanting. Let the senate be aristocratical—let the congress be partially so, and then what would be the American government of president, senate, and congress, but *mutato nomine*, king, lords, and commons?

I cannot perhaps find a better opportunity than here of pointing out what ought to be made known to the English, as it has done more harm to the American aristocracy than may be imagined. I refer to the carelessness and facility with which letters of introduction to this country are given, and particularly by the American authorities. I

have drawn the character of Bennett, the editor of the Morning Herald of New York, and there is not a respectable American but will acknowledge that my sketch of him is correct; will it not surprise the English readers when I inform them that this man obtained admittance to Westminster Hall at the Coronation, and was seated among the proudest and purest of our nobility!! Such was the fact. But it will be as well to revert back a little to what has passed.

During the time that England was at war with nearly the whole of Europe, the Americans were to a great degree isolated and unknown, except as carriers of merchandise under the neutral flag; but they were rapidly advancing in importance and wealth. At the conclusion of the last American war, during which, by their resolute and occasionally successful struggles, they had drawn the eyes of Europe towards them, and had advanced many degrees in the general estimation of their importance as a nation, the Americans occasionally made their appearance as travellers, both on the Continent and in England; but they found that they were not so well received as their own ideas of their importance induced them to imagine they were entitled to be; especially on the Continent.

The first great personage who shewed liberality in this respect, was George the Fourth. Hearing that some American ladies of good family had complained that, having no titles, no standing in society, they did not meet with that civility to which, from descent and education, they were entitled, he received them at Court most graciously, and those very ladies are now classed among the peeresses of Great Britain. Still the difficulty remained, as it was almost impossible for the aristocracy, abroad or at home, to ascertain the justness of the claims which were made by those of a nation who professed the equality of all classes, and of whom many of the pretenders to be well received did not by their appearance warrant the supposition that their claims were valid. It being impossible to give any other rank but that of office, the American Government hit upon a plan which was attended with very evil consequences. They granted supernumerary attaché-ships to those Americans who wished to travel; and as, on the Old Continent, the

very circumstance of being an *attaché* to a foreign minister warranted the respectability of the party, those who obtained this distinction were well received, and, unfortunately, sometimes did no credit to their appointments. The fact was that these favours were granted without discrimination, and all who received them being put down as specimens of American gentlemen, the character of the Americans lost ground by the very efforts made to establish it. The true American gentlemen who travelled (and there is no lack of them) were supposed to be English, while the spurious were put down as samples of the gentility of the United States.

That the principles of equality were one great cause of the indiscriminate distribution of those marks of distinction by the highest quarters in the Union, and of the facility of obtaining letters of recommendation from them there is no doubt; but the principal and still existing causes, are the extended and domineering power of the press, and the high state of excitement of the political parties. Those in power are positively afraid to refuse literary men, or those who have assisted them in their political career; they have not the moral courage to do so, however undeserving the parties may really be. But, as is generally the case, they really do not know the parties; it is sufficient that the favour, considered trifling, is demanded, and it is instantly granted. Now, as at the accession of General Jackson, and the subsequent raising of Mr Van Buren to the presidency, the democratical, or Loco Foco party came into power, it is to their friends and supporters, the least respectable portion of the American community, to whom these favours have been granted; which of course has not assisted the claims of the Americans to respectability. An instance of this sort occurred to me after I had been a few months in America. One of the most gentleman-like and well-informed men in New York, requested that I would give a letter of introduction to a friend of his who was going to England. Taking it for granted that such a request would not be made without the party deserving the recommendation, I immediately assented. The party who obtained my letters (an editor of a paper, as I afterwards discovered), on his arrival in England, considering that he was not treated with that attention to which, in his own vain-gloriousness, he

thought himself entitled, actually sent a hostile letter to one of the gentlemen to whom he had been introduced, and otherwise proved himself by his conduct to be a most improper person. I was informed of this by letters from England; and immediately went to the gentleman who had requested the introduction from me, and stated the conduct of the party. "I really am very sorry," said he, "but I knew nothing of him." "Knew nothing of him?" replied I. "No, indeed; but my friend Mr C, of Philadelphia, introduced him by letter, and requested me to ask for introductions for him." "Then you will oblige me by writing to your friend Mr C, and ask him why he did so, as I find myself very much compromised by this affair." He wrote to Mr C, of Philadelphia, who replied that he was very sorry, but that really *he* knew nothing of him. He had been introduced to him by letter, by Mr O, and that he was a *staunch supporter* of their party. Now, how many grades this person had climbed up by letters of introduction it is impossible to say, but this is sufficient to prove that letters of introduction which are, you may say, *demande*d, and not refused from the fear of offending a political agent or penny-a-liner, must ever be received with due caution; and it is equally certain, that those from the President himself are the most easy to be obtained.

I have entered freely into this question, as it is important that it should be known, not only to the English, but to the Americans themselves. A letter of introduction from a gentleman of Carolina, Virginia, or Boston, I should be infinitely more induced to take notice of than from the President of the United States, unless the President stated that he was personally acquainted with the party who delivered it; and I make this statement in *justice* to the American gentlemen, and not with the slightest wish to check that intercourse which will every day increase, and, I trust, to the advantage of both nations. See note 4.

Indeed, now that such rapid communication has taken place between the two countries, since the Atlantic has been traversed by steam, it becomes more imperative that these facts should be known. Every fortnight a hundred and sixty passengers will arrive by the Great Western, or some other steamer. Most of them are

American citizens, armed with their letters of recommendation, and the situation of the American minister has become one of peculiar difficulty.

By one steam-packet alone he has had seventy-five people, or families, with letters of introduction to him, mostly obtained by the means which I have described; and there is not one of these parties who does not expect as much attention as if the American minister had nothing else to do but to be at his command. They leave their cards with him; if the cards are not returned in two or three days, they send a letter to know why he has not called upon them? and if the visit is returned, send a letter to know whether the minister called *in person*, or *not*? With a stipend from his own government, quite inadequate to the purpose, he is expected, to the great detriment of his private fortune, to receive and entertain all these people. I have it from the best authority, that some of these parties have called and inquired whether the minister was at home; being answered in the negative, they have gone into a room, taken a chair, and declared their determination not to leave the house until they had seen him. Most of them expect him to obtain admittance for them into the Houses of Lords and Commons, and to present them at Court. In some instances, when the minister has stated the necessity of a *Court dress*, they have remonstrated, thinking it an expense wholly unnecessary. "They were American *citizens*, and would be introduced as such; they had nothing to do with Court dresses, and all that nonsense." And thus, since the steam-vessels have increased the communication between the two countries, has the American minister been in a state of annoyance, to which it is impossible that he, or any other who may be appointed in his place, can possibly submit.

Let the Americans understand, that those only go to Court in this country who have claims, as the nobility, the oldest commoners, people in office, the army and navy, and other liberal professions. There are thousands of families in England, by descent, fortune, and education, very superior to those of America, who never think of going to Court, being aware that such is not their sphere; and yet

every American who comes over here with four or five introductions in his pocket must, forsooth, be presented. If the minister refuses, why then there is an attack upon him in the American prints, and his name and his supposed misdemeanors are bandied about from one end of the Union to the other. It is hardly credible to what a state of slavery they would reduce the American representative. One man says, "I understand I can have a Court dress at a Jew's." "Yes, you can, I believe." "Well, now, suppose we step down together; you may *cheapen* it a bit for me, may be." These facts are known to the respectable and gentleman-like Americans, who, after the samples which have come over, and have obtained admission into society and gone to Court, will not shew themselves, but prefer to stay at home.

All this is wrong, and a remedy must soon be found, as the evil increases every day. The Americans cannot take the English Court by storm, or force us to acknowledge their equality in this country. There are but certain classes in this country who have any pretension to be received at Court; and unless the Americans can prove that they are by their situation, or descent, of a sufficient rank to qualify them to be admitted, they must be content to be excluded, as the major portion of our countrymen are. Even an American being a member of Congress does not qualify him, although being a member of the Senate certainly *should*. The members of the American Congress are not in the mass equal by any means in respectability to the members of the English House of Commons; and there have been many members of the English House of Commons, since the passing of the Reform Bill, who could not, and cannot, gain admittance into society.

If the harmony and good feeling between the two countries is to continue uninterrupted, and our intercourse to be extended, as there is every probability that it will be, it appears to me that there is more importance to be attached to this question than at the first view of it might be supposed. The Americans are more ambitious of birth and aristocracy than any other nation, which is very natural, if it were only from the simple fact that we always most desire what is out of our

reach. Since the Americans have come over in such numbers to this country, our Herald's Office has actually been *besieged* by them, in their anxiety to take out the arms and achievements of their presumed forefathers; this is also very natural and very proper, although it may be at variance with their institutions. The determination to have an aristocracy in America gains head every day: a conflict must ensue, when the increase of wealth in the country adds sufficiently to the strength of the party. But some line must be drawn in this country, as to the admission of Americans to the English Court, or, if not drawn, it will end in a total, and therefore unjust exclusion. As but few of the Americans can claim any right to aristocracy in their own country from acknowledged descent, I should not be surprised if in a few years, now that the two countries are becoming so intimately connected, a reception at the English Court of this country be considered as an establishment of their claim. If so, it will be a curious anomaly in the history of a republic, that, fifty years after it was established, the republicans should apply to the mother country whose institutions they had abjured, to obtain from her a patent of superiority, so as to raise themselves above that hated equality which, by their own institutions, they profess.

Note 1. English Capital Invested.—It is but *fair* to give the English who have invested their money in American securities, some idea of what their chance of receiving their principal or receiving their interest may be. As *long* as it depends upon the faith of those who have contracted the debt, their money is safe, but as soon as the power is taken out of their hands, and vested in the majority, they may consider their money as gone. I will explain this—at present the English have vested their capital in canals, railroads, and other public improvements. The returns of these undertakings are at present honourably employed in paying interest to the lenders of the capital, and if the returns are not sufficient, more money is borrowed to meet the demands of the creditor; but there is a certain point at which credit fails, and at which no more money can be borrowed; if then no more money can be borrowed, and the returns of their railroads, canals, and other securities fail off, where is the deficiency

to be made good? In this country it would be made good by a tax being imposed upon the population to meet the deficiency, and support the credit of the nation. Here is the question:— will the majority in America consent to be taxed? I say, No—if they do, I shall be surprised, and be most happy to recant, but it is my opinion that they will not, and if so the English capital will be lost; and if the reader will call to mind what I have pointed out as to the probable effect of the power of America working to the westward, and the direct importation which in a few years must take place, he will see that there is every prospect of a rapid decrease in the value of all their securities, and that the only ultimate chance of their recovering the money is by this country compelling payment of it by the Federal Government.

Note 2. “At the time of the first settlement of the English in Virginia, when land was to be had for little or nothing, some provident persons having obtained large grants of it, and being desirous of maintaining the splendour of their families, entailed their property upon their descendants. The transmission of these estates from generation to generation, to men who bore the same name, had the effect of raising up a distinct class of families, who, possessing by law the privilege of perpetuating their wealth, formed by these means a sort of patrician order, distinguished by the grandeur and luxury of their establishments. From this order it was that the king usually chose his councillors of state.

“In the United States, the principal clauses of the English law respecting descent have been universally rejected. The first rule that we follow, says Mr Kent, touching inheritance, is the following:— If a man dies intestate, his property goes to his heirs in a direct line. If he has but one heir or heiress, he or she succeeds to the whole. If there are several heirs of the same degree, they divide the inheritance equally amongst them, without distinction of sex.

“This rule was prescribed for the first time in the State of New York by a statute of the 23rd of February, 1786. (See *Revised Statutes*,

volume III, *Appendix*, page 48.) It has since then been adopted in the revised statutes of the same State. At the present day this law holds good throughout the whole of the United States, with the exception of the State of Vermont, where the male heir inherits a double portion: Kent's Commentaries, volume IV, page 370. Mr Kent, in the same work, volume IV, pages 1-22, gives an historical account of American legislation on the subject of entail; by this we learn that previous to the revolution the colonies followed the English law of entail. Estates tail were abolished in Virginia in 1776, on a motion of Mr Jefferson. They were suppressed in New York in 1786; and have since been abolished in North Carolina, Kentucky, Tennessee, Georgia, and Missouri. In Vermont, Indiana, Illinois, South Carolina, and Louisiana, entail was never introduced. Those States which thought proper to preserve the English law of entail, modified it in such a way as to deprive it of its most aristocratic tendencies. 'Our general principles on the subject of government,' says Mr Kent, 'tend to favour the free circulation of property.'

"It cannot fail to strike the French reader who studies the law of inheritance, that on these questions the French legislation is infinitely more democratic even than the American.

"The American law makes an equal division of the father's property, but only in the case of his will not being known; 'for every man,' says the law, 'in the State of New York, (*Revised Statutes*, volume III, *Appendix*, page 51), has entire liberty, power, and authority, to dispose of his property by will, to leave it entire, or divided in favour of any persons he chooses as his heirs, provided he do not leave it to a political body or any corporation.' The French law obliges the testator to divide his property equally, or nearly so, among his heirs.

"Most of the American republics still admit of entails, under certain restrictions; but the French law prohibits entail in all cases.

"If the social condition of the Americans is more democratic than that of the French, the laws of the latter are the most democratic of the two. This may be explained more easily than at first appears to be the case. In France, democracy is still occupied in the work of

destruction; in America, it reigns quietly over the ruins it has made.”—*Democracy in America, by A De Tocqueville.*

Note 3. In New England the estates are exceedingly small, but they are rarely subjected to further division.

Note 4. It may also be here observed, that the Americans have little opportunity of judging favourably of the English by the usual *importations* to their country. They all call themselves English *Gentlemen*, and are too often supposed to be, and are received as such. I have often been told that I should meet with an English gentleman or an English merchant, and the parties mostly proved to be nothing but travellers, bagsmen, or even worse. If the sterling Americans stay at home, and send the bad ones to us, and we do the same, neither party will be likely to form a very favourable opinion of the other for some time to come.

Volume Two—Chapter Seven.

Government.

It is not my intention to enter into a lengthened examination of the American form of government. I have said that, as a government, “with all its imperfections, it is the best suited to *the present condition of America*, in *so far as* it is the one under which the country has made, and will continue to make, the most rapid strides;” but I have not said that it was a better form of government than others. Its very weakness is favourable to the advance of the country; it may be compared to a vessel which, from her masts not being wedged, and her timbers being loose, sails faster than one more securely fastened. Considered merely as governments for the preservation of order and the equalisation of pressure upon the people, I believe that few governments are bad, as there are always some correcting influences, moral or otherwise, which strengthen those portions

which are the weakest. A despot, for instance, although his power is acknowledged and submitted to, will not exercise tyranny too far, from the fear of assassination.

I have inserted in an Appendix the Form of the American Constitution, and if my readers wish to examine more closely into it, I must refer them to M. Tocqueville's excellent work. The first point which must strike the reader who examines into it is, that it is extremely complicated. It is, and it is not. It is so far complicated that a variety of wheels are at work; but it is not complicated, from the circumstance that the *same principle* prevails throughout, from the Township to the Federal Head, and that it is put in motion by one great and universal propelling power. It may be compared to a cotton-thread manufactory, in which thousands and thousands of reels and spindles are all at work, the labour of so many smaller reels turned over to larger, which in their turn yield up their produce, until the whole is collected into one mass. The principle of the American Government is good; the power that puts it in motion is enormous, and therefore, like the complicated machinery I have compared it to, it requires constant attention, and proper regulation of the propelling power, that it may not become out of order. The propelling power is the sovereignty of the people, otherwise the will of the majority. The motion of all propelling powers must be regulated by a fly-wheel, or corrective check, if not, the motion will gradually accelerate, until the machinery is destroyed by the increase of friction. But there are other causes by which the machinery may be deranged; as, although the smaller portions of the machine, if defective, may at any time be taken out and repaired without its being necessary for the machine to stop; yet if the larger wheels are by any chance thrown out of their equilibrium, the machinery may be destroyed just as it would be by a too rapid motion, occasioned by the excess of propelling power. Further, there are external causes which may endanger it: any machine may be thrown out of its level by a convulsion, or shock, which will cause it to cease working, if even it does not break it into fragments.

Now, the dangers which *threaten* the United States are, the Federal Government being still weaker than it is at present, or its becoming, as it may from circumstances, too powerful.

The *present* situation of the American Government is that the fly-wheel, or regulator of the propelling power (that is to say the aristocracy, or power of the senate,) has been nearly destroyed, and the consequences are that the motion is at this moment too much accelerated, and threatens in a few years to increase its rapidity, at the risk of the destruction of the whole machinery.

But, although it will be necessary to point out the weakness of the Federal Government, when opposed to the States or the majority, inasmuch as the morality of the people is seriously affected by this weakness, my object is not to enter into the merits of the government of the United States as a *working* government, but to inquire how far the Americans are correct in their boast of its being a model for other countries.

Let us consider what is the best form of government. Certainly that which most contributes to security of life and property, and renders those happy and moral who are submitted to it. This I believe will be generally acknowledged, and it is upon these grounds that the government of the United States must be tested. They abjured our monarchy, and left their country for a distant land, to obtain *freedom*. They railed at the vices and imperfections of continental rule, and proposed to themselves a government which should be perfect, under which every man should have his due weight in the representation, and prove to the world that a people could govern themselves. Disgusted with the immorality of the age and the disregard to religion, they anticipated an amendment in the state of society. This new, and supposed perfect, machinery has been working for upwards of sixty years, and let us now examine how far the theory has been supported and borne out by the practical result.

I must first remind the reader that I have already shewn the weakness of the Federal Government upon one most important point, which is, that there is not sufficient security for person and

property. When such is the case, there cannot be that adequate punishment for vice so necessary to uphold the morals of a people. I will now proceed to prove the weakness of the Federal Government whenever it has to combat with the several States, or with the will of the majority.

It will be perceived, by an examination into the Constitution of the United States, that the States have reserved for themselves all the real power, and that the Federal Union exists but upon their sufferance. Each State still insists upon its right to withdraw itself from the Union whenever it pleases, and the consequence of this right is, that in every conflict with a State, the Federal Government has invariably to succumb. M. Tocqueville observes, "If the sovereignty of the Union were to engage in a struggle with that of the States, at the present day, its defeat may be confidently predicted; and it is not probable that such a struggle would be seriously undertaken. As often as a steady resistance is offered to the Federal Government, it will be found to yield. Experience has hitherto shewn that whenever a State has demanded any thing with perseverance and resolution, it has invariably succeeded; and that if a separate government has distinctly refused to act, it was left to do as it thought fit. See Note 1.

"But even if the government of the Union had any strength inherent in itself, the physical situation of the country would render the exercise of that strength very difficult. (See Note 2.) The United States cover an immense territory; they were separated from each other by great distances; and the population is disseminated over the surface of a country which is still half a wilderness. If the Union were to undertake to enforce the allegiance of the confederate States by military means, it would be in a position very analagous to that of England at the time of the War of Independence."

The Federal Government never displayed more weakness than in the question of the tariff put upon English goods to support the manufacturers of the Northern States. The Southern States, as producers and exporters, complained of this as prejudicial to their

interests. South Carolina, one of the smallest States, led the van, and the storm rose. This State passed an act by convention, *annulling* the Federal Act of the tariff, armed her militia, and prepared for war. The consequence was that the Federal Government abandoned the principle of the tariff, but at the same time, to save the disgrace of its defeat, it passed an act warranting the President to *put down resistance by force*, or, in other words, making the Union *compulsory*. South Carolina *annulled* this law of the Federal Government, but as the State gained its point by the Federal Government having abandoned the principle of the tariff, the matter ended.

Another instance in which the Federal Government showed its weakness when opposed to a State, was in its conflict with Georgia. The Federal Government had entered into a solemn, and what ought to have been an inviolable treaty, with the Cherokee Indians, securing to them the remnant of their lands in the State of Georgia. The seventh Article of that treaty says, "The United States *solemnly* guarantee to the Cherokee nation all their lands not hitherto ceded." The State of Georgia, when its population increased, did not like the Indians to remain, and insisted upon their removal. What was the result?—that the Federal Government, in violation of a solemn treaty and the national honour, submitted to the dictation of Georgia, and the Indians were removed to the other side of the Mississippi.

These instances are sufficient to prove the weakness of the Federal Government when opposed to the States; it is still weaker when opposed to the will of the majority. I have already quoted many instances of the exercise of this uncontrolled will. I do not refer to Lynch law, or the reckless murders in the Southern States, but to the riots in the most civilised cities, such as Boston, New York, and Baltimore, in which outrages and murders have been committed without the Government ever presuming to punish the perpetrators; but the strongest evidence of the helplessness of the Government, when opposed to the majority, has been in the late Canadian troubles, which, I fear, have only for the season subsided. If many have doubts of the sincerity of the President of the United States in

his attempts to prevent the interference of the Americans, there can be no doubt but that General Scott, Major Worth, and the other American officers sent to the frontiers, did their utmost to prevent the excesses which were committed, and to allay the excitement; and every one is aware how unavailing were their efforts. The magazines were broken open, the field-pieces and muskets taken possession of; large subscriptions of money poured in from every quarter; farmers sent waggon-loads of pigs, corn, and buffalos, to support the insurgents. No one would, indeed no one could, act against the will of the majority, and these officers found themselves left to their individual and useless exertions.

The militia at Detroit were ordered out: they could not refuse to obey the summons, as they were individually liable to fine and imprisonment; but as they said, very truly, "You may call us out, but when we come into action we will point our muskets in which direction we please." Indeed, they did assist the insurgents and fire at our people; and when the insurgents were defeated, one of the drums which they had with them, and which was captured by our troops, was marked with the name of the militia corps which had been called out to repel them.

When the people are thus above the law, it is of very little consequence whether the law is more or less weak; at present the Federal Government is a mere cypher when opposed by the majority. Have, then, the Americans improved upon us in this point? It is generally admitted that a strong and vigorous government, which can act when it is necessary to restrain the passions of men under excitement, is most favourable to social order and happiness; but, on the contrary, when the dormant power of the executive should be brought into action, all that the Federal Government can do is to become a passive spectator or a disregarded suppliant.

Note 1. See the conduct of the Northern States in the war of 1812. "During that war," says Jefferson in a letter to General Lafayette,

“four of the Eastern States were only attached to the Union, like so many inanimate bodies to living men.”

Note 2. The profound peace of the Union affords no pretext for a standing army; and without a standing army a Government is not prepared to profit by a favourable opportunity to conquer resistance, and take the sovereign power by surprise.

Volume Two—Chapter Eight.

The next question to be examined into is, has this government of the United States set an example of honour, good faith, and moral principle, to those who are subjected to it?—has it, by so behaving, acted favourably upon the morals of the people, and corrected the vices and errors of the monarchical institutions which the Americans hold up to such detestation?

The Americans may be said to have had, till within the last twenty years, little or no relation with other countries. They have had few treaties to make, and very little diplomatic arrangements with the old Continent. But even if they had had, they must not be judged by them; a certain degree of national honour is necessary to every nation, if they would have the respect of others, and a dread of the consequences would always compel them to adhere to any treaty made with great and powerful countries. The question is, has the Federal Government adhered to its treaties and promises made with and to those who have been too weak to defend themselves? Has it not repeatedly, in the short period of their existence as a nation, violated the national honour whenever without being in fear of retaliation or exposure it has been able to do so. Let this question be answered by an examination into their conduct towards the unhappy Indians, *who*, to use their own expression, are “now melting away like snow before the white men.” We are not to estimate the morality of a government by its strict adherence to its compacts with the powerful, but by its strict moral sense of justice towards the weak

and defenceless; and it should be borne in mind, that one example of a breach of faith on the part of a democratic government, is more injurious to the morals of the people than a thousand instances of breach of faith which may occur in society; for a people who have no aristocracy to set the example, must naturally look to the conduct of their rulers and to their decisions, as a standard for their guidance. To enumerate the multiplied breaches of faith towards the Indians would swell out this work to an extra volume. It was a bitter sarcasm of the Seminole chief, who, referring to the terms used in the treaties, told the Indian agents that the white man's "*for ever*" did not *last long enough*. Even in its payment of the trifling sums for the lands sold by the Indians and resold at an enormous profit, the American Government has not been willing to adhere to its agreement; and two years ago, when the Indians came for their money, the American Government told them, like an Israelite dealer, that they must take half money and half goods. The Indians remonstrated; the chiefs replied, "Our young men have purchased upon credit, as they are wont to do; they require the dollars, to pay honestly what they owe."

"Is our great father so poor?" said one chief to the Indian agent; "I will lend him some money;" and he ordered several thousand dollars to be brought, and offered them to the agent.

In the Florida war, to which I shall again refer, the same want of faith has been exercised. Unable to drive the Indians out of their swamps and morasses, they have persuaded them to come into a council, under a flag of truce. This flag of truce has been violated, and the Indians have been thrown into prison until they could be sent away to the Far West, that is, if they survived their captivity, which the gallant Osceola could not. Let it not be supposed that the officers employed are the parties to blame in these acts; it is, generally speaking, the Indian agents who are employed in these nefarious transactions. Among these agents there are many honourable men, but a corrupt government will always find people corrupt enough to do anything it may wish. But any language that I can use as to the conduct of the American Government towards the Indians would be

light, compared to the comments made in my presence by the *officers* and other American *gentlemen* upon this subject. Indeed, the indignation expressed is so general, that it proves there is less morality in the Government than there is in the nation.

With the exception of the Florida war, which still continues, the last contest which the American Government had with the Indians was with the Sacs and Foxes, commanded by the celebrated chief, Black Hawk. The Sacs and Foxes at that period held a large tract of land on Rock river, in the territory of Iowa, on the east side of the Mississippi, which the Government wished, perforce, to take from them. The following is Black Hawk's account of the means by which this land was obtained. The war was occasioned by Black Hawk disowning the treaty and attempting to repossess the territory.

"Some moons after this young chief (Lieutenant Pike) descended the Mississippi, one of our people killed an American, and was confined in the prison at St. Louis for the offence. We held a council at our village to see what could be done for him, which determined that Quash-qua-me, Pa-she-pa-ho, Ou-che-qua-ha, and Ha-she-quar-hi-qua, should go down to St. Louis, and see our American father, and do all they could to have our friend released; by paying for the person killed, thus covering the blood and satisfying the relations of the man murdered! This being the only means with us of saving a person who had killed another, and we *then* thought it was the same way with the whites.

"The party started with the good wishes of the whole nation, hoping they would accomplish the object of their mission. The relations of the prisoner blacked their faces and fasted, hoping the Great Spirit would take pity on them, and return the husband and the father to his wife and children.

"Quash-qua-me and party remained a long time absent. They at length returned, and encamped a short distance below the village, but did not come up that day, nor did any person approach their camp. They appeared to be dressed in fine coats and had medals. From these circumstances, we were in hopes they had brought us

good news. Early the next morning, the council lodge was crowded; Quash-qua-me and party came up, and gave us the following account of their mission:—

“On their arrival at St. Louis, they met their American father, and explained to him their business, and urged the release of their friend. The American chief told them he wanted land, and they agreed to give him some on the west side of the Mississippi, and some on the Illinois side, opposite the Jeffreon. When the business was all arranged, they expected to have their friend released to come home with them. But about the time they were ready to start, their friend, who was led out of prison, ran a short distance, and was *shot dead*. This is all they could recollect of what was said and done. They had *been drunk* the greater part of the time they were in St. Louis.

“This is all myself or nation knew of the *treaty of 1804*. It has been explained to me since. I find by that treaty, all our country east of the Mississippi, and south of the Jeffreon, was ceded to the United States for one thousand dollars a year! I will leave it to the people of the United States to say, whether our nation was properly represented in this treaty? or whether we received a fair compensation for the extent of country ceded by those four individuals. I could say much more about this treaty, but I will not at this time. It has been the origin of all our difficulties.”

Indeed, I have reason to believe that the major portion of the land obtained from the Indians has been ceded by parties who had no power to sell it, and the treaties with these parties have been enforced by the Federal Government.

In a Report for the protection of the Western Frontier, submitted to Congress by the Secretary of War, we have a very fair exposé of the conduct and intentions of the American Government towards the Indians. Although the Indians continue to style the President of the United States as their Great Father, yet, in this report, the Indian feeling which really exists towards the American people is honestly avowed; it says in its preamble—

“As yet no community of feeling, except of *deep and lasting hatred* to the white man, and particularly to the *Anglo-Americans*, exists among them, and, unless they coalesce, no serious difficulty need be apprehended from them. Not so, however, should they be induced to unite for purposes offensive and defensive; their strength would then become apparent, create confidence, and in all probability induce them to give vent to their long-suppressed desire to *revenge past wrongs*, which is restrained, as they openly and freely confess, by fear alone.”

And speaking of the feuds between the tribes, as in the case of the Sioux and Chippeways, which, as I have observed in my Journal, the American Government *pretended* to be anxious to make up; it appears that this anxiety is not so very great, for the Report says—

“Should it however prove otherwise, the United States will, whenever they choose, be able to bring the whole of the Sioux force (the hereditary and irreclaimable enemy to every other Indian) to bear against the hostiles; or *vice versa*, should our difficulty be with the Sioux nation. And the suggestion is made, whether prudence does not require, that *those hereditary feelings* should not rather be *maintained* than destroyed by efforts to cultivate a closer reunion between them.”

This Report also very delicately points out, when speaking of the necessity of a larger force on the frontier, that, “it is merely adverted to in connexion with the heavy obligations which rest upon the Government, and which have been probably contracted from time to time without any *very nice calculation* of the means which would be necessary to a *faithful discharge* of them.”

I doubt whether this Report would have been presented by Congress had there been any idea of its finding its way to the Old Country. By-and-by I shall refer to it again. I have made these few extracts merely to shew that expediency, and not moral feeling, is the principle alone which guides the Federal Government of the United States.

The next instance which I shall bring forward to prove the want of principle of the Federal Government is its permitting, and it may be said tacitly acquiescing, in the seizure of the province of Texas, and allowing it to be ravished from the Mexican Government, with whom they were on terms of amity, but who was unfortunately too weak to help herself. In this instance the American Government had no excuse, as it actually had an army on the frontier, and could have compelled the insurgents to go back; but no; it perceived that the Texas, if in its hands, or if independent of Mexico, would become a mart for their extra slave population, that it was the finest country in the world for producing cotton, and that it would be an immense addition of valuable territory. Dr Channing's letter to Mr Clay is so forcible on this question, enters so fully into the merits of the case, and points out so clearly the nefariousness of the transaction, that I shall now quote a few passages from this best of American authority. Indeed, I consider that this letter of Dr Channing is the principal cause why the American Government have not as yet admitted Texas into the Union. The efforts of the Northern States would not have prevented it, but it has actually been shamed by Dr Channing, who says—

“The United States have not been just to Mexico. Our citizens did not steal singly, silently, in disguise, into that land. Their purpose of dismembering Mexico, and attaching her distant province to this country, was not wrapt in mystery. It was proclaimed in our public prints. Expeditions were openly fitted out within our borders for the Texan war. Troops were organised, equipped, and marched for the scene of action. Advertisements for volunteers, to be enrolled and conducted to Texas at the expense of that territory, were inserted in our newspapers. The Government, indeed, issued its proclamation, forbidding these hostile preparations; but this was a dead letter. Military companies, with officers and standards, in defiance of proclamations, and in the face of day, directed their steps to the revolted province. We had, indeed, an army near the frontiers of Mexico. Did it turn back these invaders of a land with which we were at peace? On the contrary, did not its presence give confidence to the revolters? After this, what construction of our conduct shall we

force on the world, if we proceed, especially at this moment, to receive into our Union the territory, which, through our neglect, has fallen a prey to lawless invasion? Are we willing to take our place among robber-states? As a people have we no self-respect? Have we no reverence for national morality? Have we no feeling of responsibility to other nations, and to Him by whom the fates of nations are disposed?"

Dr Channing then proceeds:—

"Some crimes by their magnitude have a touch of the sublime; and to this dignity the seizure of Texas by our citizens is entitled. Modern times furnish no example of individual rapine on so grand a scale. It is nothing less than the robbery of a realm. The pirate seizes a ship. The colonists and their coadjutors can satisfy themselves with nothing short of an empire. They have left their Anglo-Saxon ancestors behind them. Those barbarians conformed to the maxims of their age, to the rude code of nations in time of thickest heathen darkness. They invaded England under their sovereigns, and with the sanction of the gloomy religion of the North. But it is in a civilised age, and amidst refinements of manners; it is amidst the lights of science and the teachings of Christianity; amidst expositions of the law of nations and enforcements of the law of universal love; amidst institutions of religion, learning, and humanity, that the robbery of Texas has found its instruments. It is from a free, well-ordered, enlightened Christian country, that hordes have gone forth in open day, to perpetrate *this mighty wrong*."

I shall conclude my remarks upon this point with one more extract from the same writer.

"A nation, provoking war by cupidity, by encroachment, and, above all, by efforts to propagate the curse of slavery, is alike false to itself, to God, and to the human race."

Having now shewn how far the Federal Government may be considered as upholding the purity of its institutions by the example of its conduct towards others, let us examine whether in its domestic

management it sets a proper example to the nation. It cries out against the bribery and corruption of England. Is it itself free from this imputation?

The author of a 'Voice from America' observes, "In such an unauthorised, unconstitutional, and loose state of things, millions of the public money may be appropriated to electioneering and party purposes, and to buy up friends of the administration, without being open to proof or liable to account. It is a simple *matter of fact*, that all the public funds lost in this way, have actually gone to buy up friends to the government, whether the defalcations were matters of understanding between the powers at Washington and these parties, or not. The money is gone, and is going; and it goes to friends. So much is true, whatever else is false. And what has already been used up in this way, according to official report, is sufficient to buy the votes of a large fraction of the population of the United States,—that is to say, sufficient to produce an influence adequate to secure them. On the 17th of January, 1838, the United States treasurer reported to Congress *sixty-three* defalcators (individuals), in all to the amount of upwards of a *million* of dollars, without touching the vast amounts lost in the local banks,—a mere beginning of the end."

As I have before observed, when Mr Adams was President, a Mr B Walker was thrown into prison for being a defaulter to the extent of eighteen thousand dollars. Why are none of these defaulters to the amount of upwards a million of dollars punished? If the government thinks proper to allow them to remain at liberty, does it not virtually wink at their dishonesty. Neither the defaulters nor their securities are touched. It would appear as if it were an understood arrangement; the government telling these parties, who have assisted them, "we cannot actually pay you money down for your services; but we will put money under your control, and you may, if you please, *help* yourself." What has been the result of this conduct upon society?—that as the government does not consider a breach of faith as deserving of punishment, society does not think so either; and thus are the people demoralised, not only by the example of government in its foreign relations, but by its leniency towards those

individuals who are as regardless of faith as the government has proved to be itself.

Indeed, it may be boldly asserted, that in every measure taken by the Federal Government, the moral effect of that measure upon the people has never been thought worthy of a moment's consideration.

Volume Two—Chapter Nine.

We must now examine into one or two other points. The Americans consider that they are the only people on earth who govern themselves. They assert that we have not a free and perfect representation. We will not dispute that point; the question is, not what the case in England may be, but what America may have gained. This is certain, that if they have not a free impartial representation, they do *not*, as they suppose, govern themselves. Have they, with universal suffrage, obtained a representation free from bribery and corruption? If they have, they certainly have gained their point; if they have not, they have sacrificed much, and have obtained nothing.

By a calculation which I made at the time I was in the United States of all the various elections which took place annually, biennially, and at longer dates, including those for the Federal Government, the separate governments of each State, and many other elective offices, there are about two thousand five hundred elections of different descriptions every year; and if I were to add the civic elections, which are equally political, I do not know what amount they would arrive at. In this country we have on an average about two hundred elections per annum, so that, in America, for thirteen millions, they have two thousand five hundred elections, and in England for twenty-seven millions, two hundred, on the average, during the year.

It must, however, be admitted, that the major portion of these elections in the United States pass off quietly, probably from the comparative want of interest excited by them, and the continual repetition which takes place; but when the important elections are in progress the case is very different; the excitement then becomes universal; the coming election is the theme of every tongue, the all-engrossing topic, and nothing else is listened or paid attention to.

It must be remembered, that the struggle in America is for place, not for principle; for whichever party obtains power, their principle of acting is much the same. Occasionally a question of moment will come forward and nearly convulse the Union, but this is very rare; the general course of legislation is in a very narrow compass, and is seldom more than a mere routine of business. With the majority, who lead a party, (particularly the one at present in power), the contest is not, therefore, for principle, but, it may almost be said, for bread; and this is one great cause of the virulence accompanying their election struggles. The election of the President is of course the most important. M. Tocqueville has well described it, "For a long while before the appointed time is at hand, the election becomes the most important and the all-engrossing topic of discussion. The ardour of faction is redoubled; and all the artificial passions which the imagination can create in the bosom of a happy and peaceful land are and brought to light. The President, on the other hand, is absorbed by the cares of self-defence. He no longer governs for the interest of the State, but for that of his re-election; he does homage to the majority, and instead of checking its passions, as his duty commands him to do, he frequently courts its worst caprices. As the election draws near, the activity of intrigue and the agitation of the populace increase; the citizens are divided into hostile camps, each of which assumes the name of its favourite candidate; the whole nation glows with feverish excitement; the election is the daily theme of the public papers, the subject of private conversation, the end of every thought and every action, the sole interest of the present."

Of course the elections in the large cities are those which next occupy the public attention. I have before stated, that at the last election in New York the committees of the opposite party were bought over by the Whigs, and that by this bribery the election was gained; but I will now quote from the Americans themselves, and let the reader then decide in which country, England or America, there is most purity of election.

"On the 9th, 10th, and 11th instant, a local election for mayor and charter-offices was held in this city. It resulted in the defeat of the

Whig party. The Loco-focos had a majority of about one thousand and fifty for their mayor. Last April the Whigs had a majority of about five hundred. There are seventeen wards, and seventeen polls were opened. The out, or suburb, wards presented *the most disgraceful scenes of riot, fraud, corruption, and perjury*, that were ever witnessed in this or any other country on a similar occasion. The whole number of votes polled was forty-one thousand three hundred. It is a notorious fact, that there are not forty thousand legal voters residing in the city. In the abstract this election is but of little importance. Its moral influence on other sections of the country remains to be seen. Generally, the effect of such a triumph is unfavourable to the defeated party in other places; and it would be so in the present instance, if the contest had been an ordinary contest, but the circumstances to which I have referred of fraud, corruption, and perjury, may, or may not, re-act upon the alleged authors of these shameless proceedings.”

Again, “The moderate and thinking men of both parties—indeed, we may say every honourable man who has been a spectator of recent events—feel shocked at the frauds, perjury, and corruption, which too evidently enabled the administration party to poll so powerful a vote. What are we coming to in this country? A peaceable contest at the polls is a peaceable test of party—it is to ascertain the opinions and views of citizens entitled to vote—it is a fair and honourable party appeal to the ballot-box. We are all Americans—living under the same constitution and laws; each boasting of his freedom and equal rights—our political differences are, after all, the differences between members of the same national family. What, therefore, is to become of our freedom and rights, *our morals, safety, and religion*, if the administration of our government is permitted to embark in such open, avowed, palpable schemes of fraud and corruption as those recently exhibited in this city? More than *five thousand* strangers, having no interest and no domicile, are introduced by the partisans of the administration into the city, and brought up to the polls to decide who shall make our municipal laws. More than four hundred votes over and above the ascertained votes of a ward, are polled in such ward. Men moved from ward to ward to sleep one night as an

evasive qualification. More than two hundred sailors, from United States' vessels of war, brought over to the city to vote—sloops and small craft, trading down the north and east rivers, each known never to have more than three bands, turning out thirty or forty voters from each vessel. Men turned from the polls for want of legal qualifications, brought back by administration partisans and made to swear in their vote. Hundreds with the red clay of New Jersey adhering to their thick-soled shoes, presenting themselves to vote as citizens of New York, and all this fraud and perjury set on foot and justified to enable Mr Van Buren to say, 'I have recovered the city.' But he has been signally defeated, as he ought to be, notwithstanding all his mighty efforts. There is this day a clearly ascertained Whig majority in this city of five thousand.

"It is, therefore, a mockery to call a contest with persons from other States, hired for the occasion, an election. *We must have a registry of votes*, in order to sweep away this vast system of *perjury and fraud*; and every man who has an interest at stake in his person, his children, or his property, must demand it of the legislature, as the only means of coming to a fair decision on all such matters. This charter election should open the eyes of the honourable of all parties to the dangers that menace us, and a redress provided in time."

Again, "*The Atlas, Monday Morning, April 16, 1838.—(Triumphant Result of the Election to New York).*—We have rarely known an election which, during its continuance, has excited so lively a degree of interest as has been felt in regard to the contest just terminated in New York. From numerous quarters we have received letters requesting us to transmit the earliest intelligence of the result, and an anxiety has been evinced among the Whigs of the country, which we have hardly seen surpassed. The tremendous onset of the Loco-focos upon the first day increased this anxiety, and fears began to be entertained that the unparalleled and unscrupulous efforts of our opponents—their shameless resort to every species of fraud, violence, and corruption—their importation of foreign, perjured voters, and the *lavish distribution of the public money*—might possibly overpower the legitimate voice of the majority of the citizens

of New York. But gloriously have these fears been dispelled. Nobly have the Whigs of the great metropolis done their duty. Gladly does old Massachusetts respond to their paeans of triumph.

“We learn from the New York papers that there was considerable uneasiness in that city on Friday among the Whigs with regard to the result. Never was the struggle of the administration party so desperate and convulsive. Hordes of aliens and illegal voters were driven into the city—

“‘In multitudes, like which the populace North
Poured never from her frozen loins, to pass
Rhine or the Danube.’

“The most reasonable calculation admits that there must have been at least four thousand illegal votes polled at the different wards. Squatters and loafers from the Croton Water-Works, from Brooklyn and Long Island, and from Troy to Sing Sing, took up their line of march for the doubtful wards, to dragoon the city into submission to Mr Van Buren. Some of the wards threw from four hundred to six hundred more votes than there were known to be residents in them. Double voting was practised to a great extent. The Express says, the whole spirit of the naturalisation laws was defied, and an utter mockery was made of the sacred right of suffrage. What party is likely to be most guilty of these things, may be judged from the fact, that the Loco-foco party *resist every proposition for a registry law, or any other law that will give the people a fair and honest and constitutional system of voting.*”

When I was one day with one of the most influential of the Whig party at New York, he was talking about their success in the contest —“We beat them, sir, literally with their own weapons.” “How so,” replied I. “Why, sir, we bought over all their bludgeon men at so many dollars a head, and the very sticks intended to be used to keep us from the poll were employed upon the heads of the Loco-focos!” So much for *purity of election*.

Another point which is worthy of inquiry is, how far is the government of the United States a cheap government; that is, not as to the amount of money expended in that country as compared to the amount of money paid in England or France, but cheap as to the work done for the money paid? And, viewing it in this light, I rather think it will be found a very expensive one. It is true that the salaries are low, and the highest officers are the worst paid, but it should be recollected that every body is paid. (See Note 1.) The expenses of the Federal Government, shown up to the world as a proof of cheap government, is but a portion of the real expenses which are paid by the several States. Thus the government will promulgate to the world that they have a surplus revenue of so many millions, but at the same time it will be found that the States themselves are borrowing money and are deeply in debt. The money that disappears is enormous; I never could understand what has become of the boasted surplus revenue which was lodged in the pet banks, as they were termed. The paid officers in the several States are very numerous; take, for instance, the *State of New York* alone. An American newspaper has the following article:—

“The Standing Army.”

The following is given in the *Madisonian* as the rank and file of the executive standing army of office-holders in the State of New York. How hardly can the freedom of elections be maintained against the natural enemies of that freedom, when their efforts are seconded by the assaults of such an army of placemen, whose daily bread, under the rule and reign of the spoilers, is dependent on their partisan exertions!

“1880 Postmasters.
217 Mail Contractors.
59 Clerks in the New York Post-office.
25 Lighthouse Keepers.
500 Custom-House Officers.

“These,” says the *Madisonian*, “constitute a regiment of the King’s own, well drilled in the system of terrorism and seduction, and of dragooning voters!”

And it should be remarked, that in the United States, upon any one party losing an election, the whole of that party in office, even down to the lamplighters, are turned out, and replaced by partisans of the successful party; *capability* for office is never considered, the only object is to reward political services. That the work cannot be well carried on when there are such constant changes, attended with ignorance of the duties imposed, is most certain. The long list of defaulters proves that the party at present in power is supported by needy and unprincipled men; indeed, there is a waste of money in almost every department which would be considered monstrous in this country. The expenses of the Florida war are a proof of this. The best written accounts from America are those written by a party who signs himself “A Genevese Traveller,” and whose letters very often appear in the *Times* newspaper. I have invariably observed the correctness not only of his statements of facts, but of the opinions drawn from them. Speaking of the Florida war, he has the following observations:—

“As to the expenditure, it is yet more astounding. Not less than 20,000,000 dollars have already been lavished upon favourites, or plundered from the treasury by marauders, whose profligacy and injustice caused the war. Army contractors, government agents, etcetera, are wallowing in wealth obtained by the worst means; and these are the men that condemn a peace, and will do all in their power to produce and keep up an excitement. But unless they can reach the treasury of the United States, their sympathy for the murdered inhabitants will soon evaporate. I hope, however, and believe that the war for the present is at an end. But the peace will only be temporary, for the rapacity of the avaricious land speculator will not be satisfied until the red man is deprived of every acre of land.”

To enter into any estimate of expense would be impossible; all I assert is, that there is a much greater waste of public money in the United States than in other countries, and that for the work done they pay very dearly. I shall therefore conclude with an extract from M. Tocqueville, who attempts in vain to come to any approximation.

“Wherever the poor direct public affairs, and dispose of the national resources, it appears certain, that as they profit by the expenditure of the State, they are apt to augment that expenditure.

“I conclude, therefore, without having recourse to inaccurate computations, and without hazarding a comparison which might prove incorrect, that the democratic government of the Americans is *not a cheap government*, as is sometimes asserted; and I have no hesitation in predicting, that if the people of the United States are ever involved in serious difficulties, its taxation will speedily be increased to the rate of that which prevails in the greater part of the aristocracies and the monarchies of Europe.”

Note 1. I cannot here refrain from making an extract from M. Tocqueville’s clever work, well worthy the attention of those who rule in this country, as probably they may not be aware of what they are doing: “When a *democratic* republic renders offices which had formerly been remunerated *gratuitous*, it may safely be believed that the State is advancing to *monarchical* institutions; and when a monarchy begins to *remunerate* such officers as had hitherto been *unpaid*, it is a sure sign that it is approaching towards a despotic or a *republican* form of government. The substitution of paid for unpaid functionaries, is of itself, in my opinion, sufficient to constitute a serious revolution.”

Volume Two—Chapter Ten.

The Americans, and with justice, hold up Washington as one of the first of men; if so, why will they not pay attention to his opinions?

because the first of men must not interfere with their prejudices, or, if he does, he immediately in their eyes becomes the *last*. Nevertheless, Washington proved his ability when he made the following observation, in his letter to Chief Justice Jay, dated 10th of March, 1787; even at that early period he perceived that the institutions of America, although at the time much less democratical than at present, would not stand. Hear the words of Washington, for they were a *prophecy*:—

“Among men of reflection, few will be found, I believe, who are not beginning to think that our system is better in *theory* than in *practice* and that, notwithstanding the boasted virtue of America, it is more than probable that we shall exhibit the last melancholy proof, that mankind are incompetent to their own government *without the means of coercion in the sovereign*.”

Now, if you were to put this extract into the hands of an American, his admiration of Washington would immediately fall down below zero, and in all probability he would say, as they do of poor Captain Lawrence—“Why, sir, Washington was a great man, but great men have their failings. I guess he wrote that letter *after* dinner.”

But Washington has been supported in this opinion by a modern American patriot, Dr Charming, who, asserting that, “Our institutions have disappointed us all,” has pointed out the real effects of democracy upon the morals of the nation; and there are many other good and honest men in America who will occasionally tell the truth, although they seldom venture to put their names to what they write. In a manifesto, published when I was in the States, the following bitter pills for the democrats were inserted. Speaking of dependence on the virtue and intelligence of the people, the manifesto says:—

“A form of government which has no better corrective of public disorders than this, is a burlesque on the reason and intelligence of men; it is as incompatible with wisdom as it is with public prosperity and happiness.

“The people are, by principle and the Constitution, guarded against the tyranny of kings, but not against their own passions, and ignorance, and delusions.”

The necessity of relying on some other power than the people is therefore enforced:

“Such facts have induced nations to abandon the practice of electing their chief magistrate; preferring to receive that officer by hereditary succession. Men have found that the chances of having a good chief magistrate by *birth*, are about equal to the chances of obtaining one by *popular election*. And, boast as we will, that the superior intelligence of our citizens may render this government an exception, time will show that this is a mistake. No nation can be an exception, till the Almighty shall change the whole character of man.

“It is a solemn truth, that when executive officers are dependent for their offices on *annual or frequent elections*, there will be no impartial or efficient administration of the laws.

“It is in vain that men attempt to disguise the truth; the fact, beyond all debate, is that the disorders in our political affairs are the genuine and natural consequences of *defects in the Constitution*, and of the false and visionary opinions which Mr Jefferson and his disciples have been proclaiming for forty years.

“The *mass of the people* seem not to consider that the affairs of a great commercial nation require for their correct management talents of the first order.

“Of all this, *the mass of our population* appear to know little or nothing.

“The *mass of the people*, seduced and disciplined by their leaders, are still farther deceived, by being taught that our public disorders are to be ascribed to other causes than the ignorance and perversity of their party.

“And yet our citizens are constantly boasting of the *intelligence of the people*! Intelligence! The history of nations cannot present an example of such total *want of intelligence* as *our country* now exhibit: and what is more, a *want of integrity* is equally surprising.”

This is strong language to use in a republic, but let us examine a little.

The great desideratum to be attended to in the formation of a government is to guard against man preying upon his fellow-creature. Call a government by any name you will, prescribe what forms you may, the one great point to be adhered to, is such a code of laws as will put it out of the power of any one individual, or any one party, from oppressing another. The despot may trifle with the lives of his people; an aristocracy may crush the poorer classes into a state of bondage, and the poorer classes being invariably the most numerous, may resort to their physical force to control those who are wealthy, and despoil them of their possessions. Correctly speaking, the struggle is between the plebeian and the patrician, the poor and the rich, and it is therefore that a third power has, by long experience, been considered as necessary (an apex, or head to the pyramid of society), to prevent and check the disorders which may arise from struggles of ambition among the upper classes.

Wherever this apex has been wanting, there has been a continual attempt to possess it; whenever it has been elective, troubles have invariably ensued; experience has, therefore, shewn that, for the benefit of all classes, and the maintenance of order, the wisest plan was to make it hereditary. It is not to be denied that despotism, when it falls into good hands, has rendered a nation flourishing and happy, that an oligarchy has occasionally, but more rarely, governed with mildness and a regard to justice; but there never yet was a case of a people having seized upon the power, but the result has been one of rapacity and violence, until a master-spirit has sprung up and controlled them by despotic rule. But, although one despot, or one oligarchy may govern well, they are exceptions to the general rule; and, therefore, in framing a government, the rule by which you must

be guided, is on the supposition that each class will encroach, and the laws must be so constituted as to guard against the vices and passions of mankind.

To suppose that a people can govern themselves, that is to say directly, is absurd. History has disproved it. They may govern themselves indirectly, by selecting from the mass the more enlightened and intelligent, binding themselves to adhere to their decisions, and, at the same time, putting that due and necessary check to the power invested in their delegates, which shall prevent their making an improper use of it. The great point to arrive at, is the exact measure and weight of their controlling influences, so as to arrive at the just equipoise; nor can these proportions be always the same, but must be continually added to or reduced, according to the invariable progressions or recessions which must ever take place in this world, where nothing stands still.

The history of nations will shew, that although the just balance has often been lost, that if either the aristocracy or the ruling power gained any advantage, the evil, if too oppressive, was capable of being corrected; but any advance gained by the democratic party, has never been retraced, and that it has been by the preponderance of power being thrown into its hands that nations have fallen. Of all the attempts at republics, that of the Spartan, perhaps, is the most worthy of examination, as Lycurgus went to work radically, and his laws were such as to obtain that equality so much extolled. How far the term republic was applicable to the Spartan form of government I will not pretend to say, but when Lycurgus was called upon to re-construct its legislation, his first act was to make the necessary third power, and he appointed a senate.

But Lycurgus was wise enough to perceive that he must amend the morals of his countrymen, and that to preserve an equality of condition he must take away all incentives to ambition, or to the acquisition of wealth. He first divided the lands into equal portions, compelled all classes, from the kings downwards, to eat at the same table, brought up all the children in the same hardy manner, and

obliged every citizen after a certain age to carry arms. But more sacrifices were necessary; Lycurgus well knew:

Quid leges sine moribus vanae profleunt.
Horace, Ode 24, lib. 3.

To guard against the contagion of corruption, he prohibited *navigation and commerce*; he permitted no intercourse with *foreigners*; he abolished the gold and silver coin as current money, that every stimulus to any one individual to exalt himself above his neighbour should be removed. If ever there was a system calculated to produce equality, it was that planned by the wisdom of Lycurgus; but I doubt if the Americans would like to follow in his footsteps.

What occasioned the breaking up and the downfall of this republic? An increase of power given to the democratic party, by the creation out of their ranks of the magistrates, termed Ephori, which threw an undue weight and preponderance into the hands of the people. By this breach in the constitution, faction and corruption were let in and fomented. Plutarch, indeed, denies this, but both Polybius and Aristotle are of a different opinion; the latter says, that the power of the Ephori was so great as to amount to a perfect tyranny; the kings themselves were necessitated to court their favour by such methods as greatly to hurt the constitution, which from an aristocracy degenerated into an absolute democracy. Solon was called in to remodel the constitution of the Athenian republic. He had a more difficult task than Lycurgus, and did not so well succeed. He left too much power in the hands of the democracy, the decisions of the superior courts being liable to appeal, and to be *rescinded* by the *mass of the people*. Anacharsis, the Scythian philosopher, when he heard some points first debated in the Senate, and afterwards debated in the Assembly of the people, very properly observed, that at Athens "Wise men debated, but fools decided." The whole history of the Athenian republic is, therefore, one of outrageous bribery and corruption among the higher class; tyranny, despotism, and injustice on the part of the lower, or majority.

The downfall of the Roman empire may equally be traced to the undue weight obtained by the people by the appointment of the tribunes, and so it will be proved in almost every instance: the reason why the excess of power is more destructive when in the hands of the people is, that either they, by retaining the power in their own hands, exercise a demoralising despotism, or if they have become sufficient venal, they sell themselves to be tyrannised over in their turn.

I have made these remarks, because I wish to corroborate my opinion, that, “power once gained by the people is never to be recovered, except by bribery and corruption,” and that until then, every grant is only the forerunner of an extension; and that although the undue balance of power of the higher classes occasionally *may be*, that in the hands of the people *is* invariably attended by the downfall of the institution.

At the same time, I do not intend to deny the right of the people to claim an extension of their privileges, in proportion as they rise by education to the right of governing themselves; unfortunately these privileges have been given, or taken, previous to their being qualified. A republic is certainly, in theory, the most just form of government, but, up to the present day, history has proved that no people have yet been prepared to receive it.

That there is something very imposing in the present rapid advance of the United States, I grant, but this grandeur is not ascribed by the Americans to its true source: it is the magnificent and extended country, not their government and institutions, which has been the cause of their prosperity. The Americans think otherwise, and, as I have before observed, they are happy in their own delusions—they do not make a distinction between what they have gained by their country, and what they have gained by their institutions. Everything is on a vast and magnificent scale, which at first startles you; but if you examine closely and reflect, you are convinced that there is at present more show than substance, and that the Americans are actually existing (and until they have sufficient labourers to sow and

reap, and gather up the riches of their land, must continue to exist) upon the credit and capital of England.

The American republic was commenced very differently from any other, and with what were real advantages, if she had not been too ambitious and too precipitate in seizing upon them. A republic has generally been considered the most primitive form of rule; it is, on the contrary, the very last pitch of refinement in government, and the cause of its failure up to the present has been, that no people have as yet been sufficiently enlightened to govern themselves. Republics, generally speaking, have at their commencement been confined to small portions of territory having been formed by the extension of townships after the inhabitants had become wealthy and ambitious. In America, on the contrary, the republic commenced with unbounded territory—a vast field for ambition and enterprise, that has acted as a safety-valve to carry off the excess of disappointed ambition, which, like steam, is continually generating under such a form of government. And, certainly, if ever a people were in a situation, as far as education, knowledge, precepts and lessons for guidance and purity of manners could enable them, to govern themselves, those were so who first established the American independence.

Fifty years have passed away, and the present state of America I have already shown. From purity of manners, her moral code has sunk below that of most other nations. She has attempted to govern herself—she is dictated to by the worst of tyrannies. She has planted the tree of liberty; instead of its flourishing, she has neither freedom of speech nor of action. She has railed against the vices of monarchical forms of government, and every vice against which she has raised up her voice, is still more prevalent under her own. She has cried out against corruption—she is still more corrupt: against bribery—her people are to be bought and sold: against tyranny—she is in fetters. She has proved to the world that, with every advantage on her side, the attempt at a republic has been a miserable failure, and that the time is not yet come when mankind can govern themselves. Will it ever come? In my opinion, never!

Although the horizon may be clear at present, yet I consider that the prospect of the United States is anything but cheering. It is true that for a time the States may hold together, that they may each year rapidly increase in prosperity and power, but each year will also add to their demoralisation and to their danger. It is impossible to say from what quarter of the compass the clouds may first rise, or which of the several dangers that threaten them they will have first to meet and to oppose by their energies. At present, the people, or majority, have an undue power, which will yearly increase, and their despotism will be more severe in proportion. If they sell their birthright (which they will not do until the population is much increased, and the higher classes are sufficiently wealthy to purchase, although their freedom will be lost) they will have a better chance of happiness and social order. But a protracted war would be the most fatal to their institutions, as it would, in all probability, end in the dismemberment of the Union, and the wresting of their power from the people by the bayonets of a dictator.

The removal of the power and population to the West, the rapid increase of the coloured population, are other causes of alarm and dread; but, allowing that all these dangers are steered clear of, there is one (a more remote one indeed, but more certain), from which it has no escape—that is, the period when, from the increase of population, the division shall take place between the poor and the rich, which no law against entail will ever prevent, and which must be fatal to a democracy.

Mr Sanderson, in his “Sketches of Paris,” observes—“If we can retain our democracy when our back woodlands are filled up; when New York and Philadelphia have become a London and Paris; when the land shall be covered with its multitudes, struggling for a scanty living, or with passions excited by luxurious habits and appetites. If we can then maintain our universal suffrage and our liberty, it will be fair and reasonable enough in us to set ourselves up for the imitation of others. Liberty, as far as we yet know her, is not fitted to the condition of these populous and luxurious countries. Her household

gods are of clay, and her dwelling where the icy gales of Alleghany sing through the crevices of her hut.”

I have observed, in my introduction to the first three volumes of this work, that our virtues and our vices are mainly to be traced to the form of government, climate, and circumstances, and I think I can show that the vices of the Americans are chiefly to be attributed to their present form of government.

The example of the Executive is most injurious. It is insatiable in its ambition, regardless of its faith, corrupt in the highest degree; never legislating for morality, but always for expediency. This is the first cause of the low standard of morals; the second is the want of an aristocracy, to set an example and give the tone to society. These are followed by the errors incident to the voluntary system of religion, and a democratical education. To these must be superadded the want of moral courage, arising from the dread of public opinion, and the natural tendency of a democratic form of government to excite the spirit of gain, as the main-spring of action, and the *summum bonum* of existence.

Dr Channing observes—“Our present civilisation is characterised and tainted by a devouring greediness of wealth; and a cause which asserts right against wealth, must stir up bitter opposition, especially in cities where this divinity is most adored.” “The passion for gain is every where sapping pure and generous feeling, and every where raises up bitter foes against any reform which may threaten to turn aside a stream of wealth. I sometimes feel as if a great social revolution were necessary to break up our present mercenary civilisation, in order that Christianity, now repelled by the almost universal worldliness, may come into new contact with the soul, and may reconstruct society after its own pure and disinterested principles.” Channing’s Letter to Birney, 1837.

All the above evils may be traced to the nature of their institutions; and I hold it as an axiom, that the chief end of government is the happiness, social order, and morality of the people; that no government, however perfect in theory, can be *good* which in

practice *demoralises those who are subjected to it*. Never was there a nation which commenced with brighter prospects; the experiment has been made and it has failed; this is not their fault. They still retain all the qualities to constitute a great nation, and a great nation, or assemblage of nations, they will eventually become. At present, all is hidden in a futurity much too deep for any human eye to penetrate; they progress fast in wealth and power, and as their weight increases, so will their speed be accelerated, until their own rapid motion will occasion them to split into fragments, each fragment sufficiently large to compose a nation of itself. What may be the eventual result of this convulsion, what may be the destruction, the loss of life, the chaotic scenes of strife and contention, before the portions may again be restored to order under new institutions, it is as impossible to foresee as it is to decide upon the period at which it may take place; but one thing is certain, that come it will, and that every hour of increase of greatness and prosperity only adds to the more rapid approach of the danger, and to the important lesson which the world will receive.

I have not written this book for the Americans; they have hardly entered my thoughts during the whole time that I have been employed upon it, and I am perfectly indifferent either to their censure or their praise. I went over to America well-inclined towards the people, and anxious to ascertain the truth among so many conflicting opinions. I did expect to find them a people more virtuous and moral than our own, but I confess on other points I had formed no opinions; the results of my observations I have now laid before the English public, for whom only they have been written down. Within these last few years, that is, since the passing of the Reform Bill, we have made rapid strides towards democracy, and the cry of the multitude is still for more power, which our present rulers appear but too willing to give them. I consider that the people of England have already as much power as is consistent with their happiness and with true liberty, and that any increase of privilege would be detrimental to both. My object in writing these pages is, to point out the effects of a democracy upon the morals, the happiness, and the due apportionment of liberty to all classes; to shew that if, in the

balance of rights and privileges, the scale should turn on one side or the other, as it invariably must in this world, how much safer it is, how much more equitable I may add, it is that it should preponderate in favour of the intelligent and enlightened portion of the nation. I wish that the contents of these pages may render those who are led away by generous feelings and abstract ideas of right, to pause before they consent to grant to those below them what may appear to be a boon, but will in reality prove a source of misery and danger to all parties—that they may confirm the opinions of those who are wavering, and support those who have true ideas as to the nature of government. If I have succeeded in the most trifling degree in effecting these ends, which I consider vitally important to the future welfare of this country—if I have any way assisted the cause of Conservatism—I am content, and shall consider that my time and labour have not been thrown away.

Volume Two—Chapter Eleven.

Appendix. Constitution of the United States.

We, the people of the United States, in order to form a more perfect union, establish justice, ensure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this Constitution for the United States of America.

Article 1.—Section 1.

1. All legislative powers herein granted, shall be vested in a Congress of the United States, which shall consist of a Senate and a House of Representatives.

Section 2.

1. The House of Representatives shall be composed of members chosen every second year by the people of the several States; and the electors in each State shall have the qualifications requisite for electors of the most numerous branch of the State legislature.

2. No person shall be a representative who shall not have attained to the age of twenty-five years, and been seven years a citizen of the United States, and who shall not, when elected, be an inhabitant of that State in which he shall be chosen.

3. Representatives and direct taxes shall be apportioned among the several States which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, three-fifths of all other persons. The actual enumeration shall be made within three years after the first meeting of the Congress of the United States, and within every subsequent term of ten years, in such manner as they shall by law direct. The number of representatives shall not exceed one for every thirty thousand, but each State shall have at least one representative; and until such enumeration shall be made, the State of New Hampshire shall be entitled to choose three; Massachusetts eight; Rhode Island and Providence Plantations one; Connecticut five; New York six; New Jersey four; Pennsylvania eight; Delaware one; Maryland six; Virginia ten; North Carolina five; South Carolina five; and Georgia three.

4. When vacancies happen in the representation from any State, the executive authority thereof shall issue writs of election to fill up such vacancies.

5. The House of Representatives shall choose their speaker and other officers, and shall have the sole power of impeachment.

Section 3.

1. The Senate of the United States shall be composed of two senators from each State, chosen by the legislature thereof, for six years; and each senator shall have one vote.

2. Immediately after they shall be first assembled, in consequence of the first election, they shall be divided, as equally as may be, into three classes. The seats of the senators of the first class shall be vacated at the expiration of the second year; of the second class, at the expiration of the fourth year; and of the third class, at the expiration of the sixth year; so that one-third may be chosen every second year; and if vacancies happen, by resignation or otherwise, during the recess of the legislature of any State, the executive thereof may make temporary appointment until the next meeting of the legislature, which shall then fill such vacancies.

3. No person shall be a senator who shall not have attained to the age of thirty years, and been nine years a citizen of the United States, and who shall not, when elected, be an inhabitant of that State for which he shall be chosen.

4. The Vice-President of the United States shall be President of the Senate, but shall have no vote, unless they be equally divided.

5. The Senate shall choose their other officers, and also a President, *pro tempore*, in the absence of the Vice-President, or when he shall exercise the office of President of the United States.

6. The Senate shall have the sole power to try all impeachments. When sitting for that purpose, they shall be on oath or affirmation. When the President of the United States is tried, the chief justice shall preside; and no person shall be convicted without the concurrence of two-thirds of the members present.

7. Judgment, in case of impeachment, shall not extend further than to removal from office, and disqualification to hold and enjoy any office of honour, trust, or profit, under the United States; but the party convicted shall nevertheless be liable and subject to indictment, trial, judgment, and punishment according to law.

Section 4.

1. The times, places, and manners of holding elections for senators and representatives, shall be prescribed in each State by the legislature thereof, but the Congress may, at any time, by law, make or alter such regulations, except as to the places of choosing senators.
2. The Congress shall assemble at least once in every year, and such meeting shall be on the first Monday in December, unless they shall by law appoint a different day.

Section 5.

1. Each House shall be the judge of the elections, returns, and qualifications of its own members; and a majority of each shall constitute a quorum to do business; but a smaller number may adjourn from day to day, and may be authorised to compel the attendance of absent members, in such manner and under such penalties as each House may provide.
2. Each House may determine the rules of its proceedings, punish its members for disorderly behaviour, and, with the concurrence of two-thirds, expel a member.
3. Each House shall keep a journal of its proceedings, and from time to time publish the same, excepting such parts as may in their judgment require secrecy; and the yeas and nays of the members of either House, on any question, shall, at the desire of one-fifth of those present, be entered on the journal.
4. Neither House, during the session of Congress, shall, without the consent of the other, adjourn for more than three days, nor to any other place than that in which the two Houses shall be sitting.

Section 6.

1. The senators and representatives shall receive a compensation for their services, to be ascertained by law, and paid out of the treasury of the United States. They shall, in all cases, except treason, felony, and breach of the peace, be privileged from arrest during their attendance at the session of their respective houses, and in going to or returning from the same; and for any speech or debate in either House, they shall not be questioned in any other place.

2. No senator or representative shall, during the time for which he was elected, be appointed to any civil office under the authority of the United States which shall have been created, or the emoluments whereof shall have been increased, during such time; and no person holding any office under the United States shall be a member of either House during his continuance in office.

Section 7.

1. All bills for raising revenue shall originate in the House of Representatives; but the Senate may propose or concur with amendments, as on other bills.

2. Every bill which shall have passed the House of Representatives and the Senate, shall, before it become a law, be presented to the President of the United States; if he approve, he shall sign it; but if not, he shall return it, with his objections, to that House in which it shall have originated, who shall enter the objection at large on their journal, and proceed to re-consider it. If, after such re-consideration, two-thirds of that House shall agree to pass the bill, it shall be sent, together with the objections, to the other House, by which it shall likewise be reconsidered, and if approved by two-thirds of that House, it shall become a law. But in all such cases, the votes of both Houses shall be determined by yeas and nays, and the names of the persons voting for and against the bill shall be entered on the journal of each House respectively. If any bill shall not be returned by the President within ten days (Sundays excepted) after it shall have been presented to him, the same shall be a law in like manner as if

he had signed it, unless the Congress, by their adjournment, prevent its return, in which case it shall not be a law.

3. Every order, resolution, or vote, to which the concurrence of the Senate and House of Representatives may be necessary, (except on a question of adjournment,) shall be presented to the President of the United States; and before the same shall take effect, shall be approved by him, or being disapproved by him, shall be repassed by two-thirds of the Senate and House of Representatives, according to the rules and limitations prescribed in the case of a bill.

Section 8.

The Congress shall have power—

1. To lay and collect taxes, duties, imposts, and excises; to pay the debts and provide for the common defence and general welfare of the United States; but all duties, imposts, and excises, shall be uniform throughout the United States.

2. To borrow money on the credit of the United States.

3. To regulate commerce with foreign nations, and among the several States, and with the Indian tribes.

4. To establish a uniform rule of naturalisation, and uniform laws on the subject of bankruptcies throughout the United States.

5. To coin money, regulate the value thereof; and of foreign coin, and fix the standard of weights and measures.

6. To provide for the punishment of counterfeiting the securities and current coin of the United States.

7. To establish post-offices and post-roads.

8. To promote the progress of science and useful arts, by securing, for limited times, to authors and inventors, the exclusive right to their

respective writings and discoveries.

9. To constitute tribunals inferior to the supreme court: to define and punish piracies and felonies committed on the high seas, and offences against the law of nations.

10. To declare war, grant letters of marque and reprisal, and make rules concerning captures on land and water.

11. To raise and support armies; but no appropriation of money to that use shall be for a longer term than two years.

12. To provide and maintain a navy.

13. To make rules for the government and regulation of the land and naval forces.

14. To provide for calling forth the militia to execute the laws of the Union, suppress insurrections, and repel invasions.

15. To provide for organising, arming, and disciplining the militia, and for governing such part of them as may be employed in the service of the United States, reserving to the States respectively the appointment of the officers, and the authority of training the militia according to the discipline prescribed by Congress.

16. To exercise exclusive legislation in all cases whatsoever over such district (not exceeding ten miles square) as may, by cession of particular States, and the acceptance of Congress, become the seat of government of the United States, and to exercise like authority over all places purchased, by the consent of the legislature of the State in which the same shall be, for the erection of forts, magazines, arsenals, dock-yards, and other needful buildings; and,

17. To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this constitution in the Government of the United States, or in any department or officer thereof.

Section 9.

1. The migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the year one thousand eight hundred and eight; but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person.
2. The privilege of the writ of habeas corpus shall not be suspended, unless when, in cases of rebellion or invasion, the public safety may require it.
3. No bill of attainder, or *ex post facto* law, shall be passed.
4. No capitation or other direct tax shall be laid, unless in proportion to the census or enumeration hereinbefore directed to be taken.
5. No tax or duty shall be laid on articles exported from any State. No preference shall be given to any regulation of commerce or revenue to the ports of one State over those of another: nor shall vessels bound to or from one State, be obliged to enter, clear, or pay duties in another.
6. No money shall be drawn from the treasury, but in consequence of appropriations made by law; and a regular statement and account of the receipts and expenditure of all public money shall be published from time to time.
7. No title of nobility shall be granted by the United States, and no person holding any office of profit or trust under them, shall, without the consent of the Congress, accept of any present, emolument, office, or title of any kind whatever, from any king, prince, or foreign state.

Section 10.

1. No State shall enter into any treaty, alliance, or confederation; grant letters of marque and reprisal; coin money; emit bills of credit; make anything but gold and silver coin a tender in payment of debts; pass any bill of attainder, *ex post facto* law, or law impairing the obligation of contracts; or grant any title of nobility.

2. No State shall, without the consent of the Congress, lay any imposts or duties on imports or exports, except what may be absolutely necessary for executing its inspection laws; and the neat produce of all duties and imposts, laid by any State on imports or exports, shall be for the use of the treasury of the United States, and all such laws shall be subject to the revision and control of the Congress. No State shall, without the consent of Congress, lay any duty of tonnage, keep troops or ships of war in time of peace, enter into any agreement or compact with another State, or with a foreign power, or engage in war, unless actually invaded, or in such imminent danger as will not admit of delay.

Article 2.—Section 1.

1. The executive power shall be vested in a President of the United States of America. He shall hold his office during the term of four years, and, together with the Vice-President, chosen for the same term, be elected as follows:

2. Each State shall appoint, in such manner as the legislature thereof may direct, a number of electors equal to the whole number of senators and representatives to which the State may be entitled in the Congress; but no senator or representative, or person holding any office of trust or profit under the United States, shall be appointed an elector.

3. The electors shall meet in their respective States, and vote by ballot for two persons, of whom one at least shall not be an inhabitant of the same State with themselves. And they shall make a list of all the persons voted for, and of the number of votes for each; which list they shall sign and certify, and transmit sealed to the seat

of the Government of the United States, directed to the President of the Senate. The President of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates, and the votes shall then be counted. The person having the greatest number of votes shall be President, if such number be a majority of the whole number of electors appointed; and if there be more than one who have such a majority, and have an equal number of votes, then the House of Representatives shall immediately choose, by ballot, one of them for President; and if no person have a majority, then, from the five highest on the list, the said House shall, in like manner, choose the President. But, in choosing the President, the votes shall be taken by States, the representation from each State having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the States, and a majority of all the States shall be necessary to a choice. In every case, after the choice of the President, the person having the greatest number of votes of the electors, shall be the Vice-President. But if there should remain two or more who have equal votes, the Senate shall choose from them, by ballot, the Vice-President.

4. The Congress may determine the time of choosing the electors, and the day on which they shall give their votes; which day shall be the same throughout the United States.

5. No person, except a natural-born citizen, or a citizen of the United States at the time of the adoption of this Constitution, shall be eligible to the office of President: neither shall any person be eligible to that office who shall not have attained to the age of thirty-five years, and been fourteen years a resident within the United States.

6. In case of the removal of the President from office, or of his death, resignation, or inability to discharge the powers and duties of the said office, the same shall devolve on the Vice-President, and the Congress may, by law, provide for the case of removal, death, resignation, or inability, both of the President and Vice-President, declaring what officer shall then act as President, and such officer

shall act accordingly, until the disability be removed, or a President shall be elected.

7. The President shall, at stated times, receive for his services a compensation, which shall neither be increased nor diminished during the period for which he shall have been elected, and he shall not receive within that period any other emolument from the United States, or any of them.

8. Before he enter on the execution of his office, he shall take the following oath or affirmation:—

9. “I do solemnly swear (or affirm) that I will faithfully execute the office of President of the United States, and will to the best of my ability, preserve, protect, and defend the Constitution of the United States.”

Section 2.

1. The President shall be commander-in-chief of the army and navy of the United States, and of the militia of the several States, when called into the actual service of the United States; he may require the opinion, in writing, of the principal officer in each of the executive departments, upon any subject relating to the duties of their respective offices; and he shall have power to grant reprieves and pardons for offences against the United States, except in cases of impeachment.

2. He shall have power, by and with the advice and consent of the Senate, to make treaties, provided two-thirds of the senators present concur: and he shall nominate, and, by and with the advice and consent of the Senate, shall appoint ambassadors, other public ministers and consuls, judges of the supreme court, and all other officers of the United States, whose appointments are not herein otherwise provided for, and which shall be established by law. But the Congress may, by law, vest the appointment of such inferior

officers as they think proper, in the President alone, in the courts of law, or in the heads of departments.

3. The President shall have power to fill up all vacancies that may happen during the recess of the Senate, by granting commissions which shall expire at the end of their next session.

Section 3.

1. He shall, from time to time, give to the Congress information of the state of the Union, and recommend to their consideration such measures as he shall judge necessary and expedient; he may on extraordinary occasions convene both Houses, or either of them, and in case of disagreement between them, with respect to the time of adjournment, he may adjourn them to such time as he shall think proper; he shall receive ambassadors and other public ministers; he shall take care that the laws be faithfully executed; and shall commission all the officers of the United States.

Section 4.

1. The President, Vice-President, and all civil officers of the United States, shall be removed from office on impeachment for, and conviction of, treason, bribery, or other crimes and misdemeanors.

Article 3.—Section 1.

1. The judicial power of the United States shall be vested in one supreme court, and in such inferior courts, as the Congress may from time to time ordain and establish. The judges, both of the supreme and inferior courts, shall hold their offices during good behaviour; and shall at stated times receive for their services a compensation, which shall not be diminished during their continuance in office.

Section 2.

1. The judicial power shall extend to all cases in law and equity, arising under this Constitution, the laws of the United States, and treaties made, or which shall be made, under their authority; to all cases affecting ambassadors, other public ministers and consuls; to all cases of admiralty and maritime jurisdiction; to controversies to which the United States shall be a party; to controversies between two or more States; between a State and citizens of another State; between citizens of different States; between citizens of the same State claiming lands under grants of different States; and between a State or the citizens thereof, and foreign States, citizens or subjects.

2. In all cases affecting ambassadors, other public ministers and consuls, and those in which a State shall be a party, the supreme court shall have original jurisdiction. In all the other cases before mentioned, the supreme court shall have appellate jurisdiction, both as to law and fact, with such exceptions, and under such regulations, as the Congress shall make.

3. The trial of all crimes, except in cases of impeachment, shall be by jury, and such trial shall be held in the State where the said crimes shall have been committed; but when not committed within any State, the trial shall be at such places as the Congress may by law have directed.

Section 3.

1. Treason against the United States shall consist only in levying war against them, or in adhering to their enemies, giving them aid and comfort. No person shall be convicted of treason, unless on the testimony of two witnesses to the same overt act, or on confession in open court.

2. The Congress shall have power to declare the punishment of treason; but no attainder of treason shall work corruption of blood, or forfeiture, except during the life of the person attainted.

Article 4.—Section 1.

1. Full faith and credit shall be given in each State to the public acts, records, and judicial proceedings of every other State. And the Congress may, by general laws, prescribe the manner in which such acts, records, and proceedings, shall be proved, and the effect thereof.

Section 2.

1. The citizens of each State shall be entitled to all privileges and immunities of citizens in the several States.

2. A person charged in any State with treason, felony, or other crime, who shall flee from justice, and be found in another State, shall, on demand of the executive authority of the State from which he has fled, be delivered up, to be removed to the State having jurisdiction of the crime.

3. No person held to service or labour in one State under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labour; but shall be delivered up on the claim of the party to whom such service or labour may be due.

Section 3.

1. New States may be admitted by the Congress into this Union; but no new State shall be formed or erected within the jurisdiction of any other State, nor any State be formed by the junction of two or more States, or parts of States, without the consent of the legislatures of the States concerned, as well as of the Congress.

2. The Congress shall have power to dispose of, and make all needful rules and regulations respecting, the territory or other property belonging to the United States; and nothing in this Constitution shall be so construed as to prejudice any claims of the United States, or of any particular State.

Section 4.

1. The United States shall guarantee to every State in this Union a republican form of Government, and shall protect each of them against invasion; and, on application of the legislature, or of the executive, (when the legislature cannot be convened) against domestic violence.

Article 5.

1. The Congress, whenever two-thirds of both Houses shall deem it necessary, shall propose amendments to this Constitution; or, on the application of the legislatures of two-thirds of the several States, shall call a convention for proposing amendments, which, in either case, shall be valid to all intents and purposes, as part of this Constitution, when ratified by the legislatures of three-fourths of the several States, or by conventions of three-fourths thereof, as the one or the other mode of ratification may be proposed by the Congress; provided, that no amendment which may be made prior to the year one thousand eight hundred and eight, shall in any manner affect the first and fourth clauses in the ninth section of the first article: that and no State, without its consent, shall be deprived of its equal suffrage in the Senate.

Article 6.

1. All debts contracted and engagements entered into, before the adoption of this Constitution, shall be as valid against the United States under this Constitution, as under the Confederation.

2. This Constitution, and the laws of the United States which shall be made in pursuance thereof, and all treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land; and the judges in every State shall be bound thereby, any thing in the Constitution or laws of any State to the contrary notwithstanding.

3. The senators and representatives before mentioned, and the members of the several State legislature, and all executive and judicial officers, both of the United States and of the several States, shall be bound by oath or affirmation to support this Constitution: but no religious test shall ever be required as a qualification to any office or public trust under the United States.

Article 7.

1. The ratification of the conventions of nine States shall be sufficient for the establishment of this Constitution between the States so ratifying the same.

Done in Convention, by the unanimous consent of the States present, the seventeenth day of September, in the year of our Lord one thousand seven hundred and eighty-seven, and of the Independence of the United States of America, the twelfth. In witness whereof we have hereunto subscribed our names.

George Washington, *President and Deputy from Virginia*

New Hampshire. John Langdon, Nicholas Gilman.

Massachusetts. Nathaniel Gorman, Rufus King.

Connecticut. William Samuel Johnson, Roger Sherman.

New York. Alexander Hamilton.

New Jersey. William Livingston, David Bearly, William Paterson, Jonathan Dayton.

Pennsylvania. Benjamin Franklin, Thomas Mafflin, Robert Morris, George Clymer, Thomas Fitzsimons, Jared Ingersoll, James Wilson, Gouverneur Morris.

Delaware. George Read, Gunning Bedford, Jun. John Dickenson, Richard Bassett, Jacob Broom.

Maryland. James McHenry, Daniel of St. Tho. Jenifer, Daniel Carroll.

Virginia. John Blair, James Madison, jun.

North Carolina. William Blount, Richard Dobbs Spaight, Hugh Williamson.

South Carolina. John Rutledge, Chas. Cotesworth Pinckney, Charles Pinckney, Pierce Butler.

Georgia. William Few, Abraham Baldwin.

(Attest,) William Jackson.

Amendments to the Constitution.

Art. 1. Congress shall make no law respecting an establishment of religion or prohibiting the free exercise thereof; or abridging the freedom of speech or of the press; or the right, of the people peaceably to assemble, and to petition the Government for a redress of grievances.

Art. 2. A well regulated militia being necessary to the security of a free State, the right of the people to keep and bear arms shall not be infringed.

Art. 3. No soldier shall, in time of peace, be quartered in any house without the consent of the owner; nor in time of war, but in a manner prescribed by law.

Art. 4. The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated; and no warrants shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Art. 5. No person shall be held to answer for a capital or otherwise infamous crime, unless on a presentment or indictment of a grand

jury, except in cases arising in the land or naval forces, or in the militia, when in actual service, in time of war or public danger; nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb; nor shall be compelled, in any criminal case, to be a witness against himself; nor be deprived of life, liberty or property, without due process of law; nor shall private property be taken for public use, without just compensation.

Art. 6. In all criminal prosecutions the accused shall enjoy the right to a speedy and public trial by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favour; and to have the assistance of counsel for his defence.

Art. 7. In suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved; and no fact tried by a jury shall be otherwise re-examined in any court of the United States, than according to the rules of common law.

Art. 8. Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

Art. 9. The enumeration in the Constitution of certain rights shall not be construed to deny or disparage others retained by the people.

Art. 10. The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

Art. 11. The judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by citizens of another State, or by citizens or subjects of any foreign State.

Art. 12. 1. The electors shall meet in their respective States, and vote by ballot for President and Vice-President, one of whom, at least, shall not be an inhabitant of the same State with themselves; they shall name in their ballots the person voted for as President, and in distinct ballots the person voted for as Vice-president; and they shall make distinct lists of all persons voted for as President, and of all persons voted for as Vice-President, and of the number of votes for each, which lists they shall sign and certify, and transmit sealed to the seat of the Government of the United States, directed to the President of the Senate; the President of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates, and the votes shall then be counted; the person having the greatest number of votes for President shall be the President, if such of the number be a majority of the whole number of electors appointed; and if no person have such a majority, then from the persons having the highest numbers, not exceeding three, on the list of those voted for as President, the House of Representatives shall choose immediately, by ballot, the President. But, in choosing the President, the votes shall be taken by States, the representation from each State having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the States, and a majority of all the States shall be necessary to a choice. And if the House of Representatives shall not choose a President whenever the right of choice shall devolve upon them, before the fourth day of March next following, the Vice-President shall act as President, as in the case of the death, or other constitutional disability of the President.

2. The person having the greatest number of votes as Vice-President, shall be the Vice-President, if such number be a majority of the whole number of electors appointed; and if no person have a majority, then from the two highest numbers on the list, the Senate shall choose the Vice-President: a quorum for the purpose shall consist of two-thirds of the whole number of senators, and a majority of the whole number shall be necessary to a choice.

3. But no person constitutionally ineligible to the office of President, shall be eligible to that of Vice-President of the United States.

End of Vol. II.

Volume Three—Chapter One.

Canada.

Of what advantage are the Canadas to England?

This question has been put to me, at least one hundred times since my return from America. It is argued that the Canadas produce and export nothing except timber, and that the protecting duty given to Canada timber is not only very severely felt by the mother-country, but very injurious to her foreign relations. These observations are undeniable; and I admit that, as a mere colony compelled to add to the wealth of England, (sending to her all her produce, and receiving from her all her supplies), Canada has been worth less than nothing. But, admitting this for the present, we will now examine whether there are no other grounds for the retention of the Canadas under our control.

Colonies are of value to the mother-country in two ways. The first is already mentioned, and in that way, the present advantage of the Canadas as colonies is abandoned. The other great importance of colonies is, that they may be considered as outports, as stepping-stones, as it were, over the whole world; and for the present I shall examine into the value of these possessions merely in this point of view. We have many islands or colonies under our subjection which are in themselves not only valueless, but, moreover, extremely expensive to us; and if every colony or island is to be valued merely according to the produce and advantage derived from it by the mother-country, we must abandon Heligoland, Ascension, St. Helena, Malta, and, even Gibraltar itself. All these, and some others,

are, in point of commerce, valueless; yet they add much to the security of the country and to our dominion of the seas. This will be admitted, and we must therefore now examine how far the Canadas may be considered as valuable under this second point of view.

I have already shewn that the ambition for territory is one of the diseases, if I may use the term, of the American people. On that point they are insatiable, and that they covet the Canadas is undeniable. Let us inquire into the reasons why the Americans are so anxious to possess the Canadas.

There are many. In the first place, they do not like to have a people subjected to a monarchical form of government as their neighbours; they do not like that security of person and property, and a just administration of the law, should be found in a thinly-peopled province, while they cannot obtain those advantages under their own institutions. It is a reproach to them. They continually taunt the Canadians that they are the only portion of the New World who have not thrown off the yoke—the only portion who are not yet free; and this taunt has not been without its effect upon the unthinking portion of the community. What is the cause of this unusual sympathy? The question is already answered.

Another important reason which the Americans have for the possession of the Canadas is, that they are the means of easy retaliation on the part of England in case of aggression. They render them weak and assailable in case of war. Had they possession of the Canadas, and our other provinces, the United States would be almost invulnerable. As it is, they become defenceless to the north, and are moreover exposed to the attack of all the tribes of Indians concentrated on the western frontier. Indeed, they never will consider their territory as complete “in a ring fence,” as long as we have possession of the mouths of the St. Lawrence. They wish to be able to boast of an inland navigation from nearly the Equator to the Pole—from the entrance of the Mississippi to the exit of the St. Lawrence. Our possession of the Canadas is a check to their pride and

ambition, which are both as boundless as the territory which they covet.

But there are other reasons equally important. It is their anxiety to become a manufacturing as well as a producing nation. Their object is, that the north should manufacture what the south produces; and that, instead of commercial relations with England, as at present, that American cotton-manufactures should be borne in American bottoms over all the world. This they consider is the great ultimatum to be arrived at, and they look forward to it as the source of immense wealth and increased security to the Union, and of their wresting from England the sceptre and dominion of the seas.

It may be said that the United States, if they want to become a manufacturing nation, have *now* the power; but such is not the case. Until they can completely shut out English manufactures, they have not. The price of labour is too dear. Should they increase the tariff, or duty, upon English goods, the Canadas and our other provinces will render their efforts useless, as we have a line of coast of upwards of 2,000 miles, by which we can introduce English goods to any amount by smuggling, and which it is impossible for the Americans to guard against; and as the West fills up, this importation of English goods would every year increase. As long, therefore, as we hold the Canadas, the Americans must be content to be a very inferior manufacturing nation to ourselves; and it may be added that *now* or *never* is the time for the Americans to possess themselves of the Canadas. They perceive this; for when once the Western States gain the preponderance in wealth and power, which they will in a few years, the cause of the Eastern, or manufacturing States will be lost. The Western States will not quarrel with England on account of the Eastern, but will import our goods direct in exchange for their produce. They themselves cannot manufacture and they will go to market where they can purchase cheapest.

But do the views of the Americans extend no further? Would they be satisfied if they obtained the Canadas? Most assuredly not. They are too vast in their ideas—too ambitious in their views. If Canada fell,

Nova Scotia would fall, and they would obtain what they most covet—the harbour of Halifax. New Brunswick would fall, and they would have then driven us out of our Continental possessions. Would they stop then? No; they never would stop until they had driven the English to the other side of the Atlantic. Newfoundland and its fisheries would be their next prey; for it, as well as our other possessions, would then be defenceless. They would not leave us the West-Indies, although useless to them. Such is their object and their earnest desire—an increase of territory and power for themselves, and the humiliation of England. The very eagerness with which the Americans bring up this question on purpose that they may disavow their wishes, is one of the strongest proofs of their anxiety to blind us on the subject; but they will never lose sight of it; and if they thought they had any chance of success, there is no expense which they would not cheerfully incur, no war into which they would not enter. Let not the English be deceived by their asseverations. What I have now asserted is *the fact*. The same spirit which has actuated them in dispossessing the Indians of territories which they cannot themselves populate, which prompted the “high-handed theft” of the Texas from Mexico, will induce them to adopt any pretext, as soon as they think they have a chance, to seize upon the Canadas and our other transatlantic possessions.

If what I have stated be correct, and I am convinced of its truth myself, it will be evident that the Canadas, independent of every other consideration, become a *most important outpost* which we must defend and hold possession of. Let it be remembered that every loss to us, is an increase to the power of America—an increase to her security and to her maritime strength; that whatever her assertions may be, she is deadly hostile to us, from the very circumstance that she considers that we prevent her aggrandisement and prosperity. America can only rise to the zenith, which she would attain, by the fall of England, and every disaster to this country is to her a source of exultation. That there are many Americans of a contrary opinion I grant; that the city of New York would prefer the present amicable relations is certain; but I have here expressed the feelings of the *majority*, and it must be

remembered that in America it is the majority who decide all questions.

To prove that I am not too severe upon the Americans in the above remarks, let me refer to their own printed documents.

The reader must be informed that the Canadian rebels, with their American auxiliaries, made incursions into our territory near the boundary-line, burnt the houses, took away the cattle, and left destitute those parties who were considered as loyal and well affected, or, in fact, those who refused to arm and join the rebels. When pursued by the militia, or other forces, the rebel parties hastened over the boundary-line, where they were secure under the American protection. This system of protection naturally irritated the loyal Canadians, who threatened to cross the boundary and attack the Americans in return. It was, however, only a *threat*, never being put in execution; but upon the strength of this threat, application was made to the Governor in the State of Vermont, requesting that the arms in the American arsenals might be supplied to the citizens for their protection. The Governor very properly refused, and issued a proclamation warning the citizens of Vermont not to interfere. This offended the *majority*, who forthwith called a meeting at St. Albans, the results of which were ordered to be printed and circulated. I have a copy of these reports and resolutions, from which I shall now give some extracts. Let it be observed that these are not the resolutions of a few lawless and undisciplined people, bordering on the lakes, as the sympathisers are stated to have been. The title of Honorable denotes that the parties are either Members of the State or Federal Governments; and, indeed, the parties whose names appear on the committee, are all of the first respectability in the State.

“Meeting of the Freemen at St. Albans.

“Agreeable to a notice circulated throughout the county, about forty-eight hours previous to the meeting, two thousand of the freemen from the different towns in the county assembled to take into consideration a recent proclamation of the Governor, and an extraordinary letter accompanying the same, and also to express

their sentiments on Canadian affairs, especially such as have recently transpired in the neighbourhood of latitude forty-five degrees.

“Jeptha Bradley, Esquire, of St. Albans, was called to the chair, and, agreeable to a resolve of the meeting, appointed the *Hon.* SS Brown, *Hon.* Timothy Foster, and GW Kendall, Esquire, a committee to nominate officers.

“The following gentlemen were nominated and appointed:—

“*Hon.* Austin Fuller, of Enosburgh, *President.*

“*Vice Presidents.*”

Colonel SB Hazeltine, Bakersfield.

÷Hon÷. Horace Eaton, Enosburgh.

Doctor IS Webster, Berkshire.

William Green, Esquire, Sheldon.

Martin Wires, Esquire, Cambridge.

÷Hon÷. Timothy Foster, Swanton.

Secretaries.

JJ Beardsley, Sheldon.

Zoroaster Fisk, Swanton.

“The following gentlemen were appointed a committee to prepare a report and resolutions for the meeting:—”

Henry Adams, Esquire, St. Albans.

NL Whittemore, Esquire, Swanton.

RA Shattuck, Esquire, Sheldon.

Bradley Barlow, Esquire, Fairfield.

IB Bowdish, Esquire, Swanton.

“The letter of certain citizens of Burlington, and the proclamation of his Excellency, Silas H. Jennison, were then read by the Secretary, JJ Beardsley, Esquire After the reading of the letter and the proclamation the meeting was addressed by several gentlemen, in an eloquent and impressive manner, and their remarks severally called forth great applause.

“The committee, on resolutions by Henry Adams, Esquire, chairman, then presented the following report and resolutions, which were *unanimously adopted.*”

After having in the report stated that threats have been made, they then attack the legality of the Governor's proclamation and conduct, as follows:—

“The committee have no evidence to show that the execution of the threats above-mentioned, or that any invasion of the rights of American citizens, would knowingly be permitted by the existing government in Canada, or approved of by a majority of the citizens in the Canadian townships; but when they bear in mind that civil law is suspended in Canada, and in its place are substituted the summary proceedings of military courts and the capricious wills of petty military officers; when they consider the excited and embittered feelings which prevail along the frontier, and which some have studied to inflame, and also the character of a portion of the population which borders upon our territory, they deem it not improbable that acts of violence might be attempted, and even that a gang of marauders might be gathered together, and led to make some petty invasion into our territory, disturbing the public peace, and committing acts of outrage. If this be deemed improbable, still a state of suspense and doubt is not to be endured. Every family on the frontier should live in a state of undisturbed repose. The ability not only to resist aggression, but to redress injuries with summary justice, furnishes a certain, if not the only guarantee of perfect quiet.

“With these views, at recent meetings of the people, a committee was appointed to wait upon the Governor and request the use of a part of the arms in the State arsenal. This request has been denied; and the reason assigned by his Excellency is, that he has doubts whether by law he can loan out the arms of the State to be used by the people of the State for their own defence. Without commenting on the technicalities which so much embarrass his Excellency, or inquiring into the wisdom of that construction of the law which infers, that because the State arms *are to be kept fit for use*, therefore *they are not to be used*, the committee would beg leave respectfully to suggest to the people that, inasmuch as they are to receive no aid from the State, it is their duty at once to arm themselves, and to rely upon themselves.

“While the governor has thus declined furnishing any aid for the security of the frontier, he has issued a proclamation enjoining upon the citizens of this State the observance of a strict neutrality between the hostile parties in Canada. The propriety of our Governor’s issuing a proclamation on an occasion like the present, merely advisory, may well be questioned. It neither creates any new obligations, nor adds force to those already resting on our citizens. When it is considered that our relations with foreign powers are solely confided to the general government, and that if the people of this State should boldly break the obligations of neutrality, the governor of the State has no power to restrain or to punish. It must be admitted, that a proclamation of neutrality issuing from our State executive seems to be over-stepping the proprieties of the office, and should be exercised, if at all, only in case of a general and glaring violation of the laws of nations; and even then it may reasonably be questioned whether the ordinary process of law would not be sufficient, and whether gratuitous advice to the people on the one hand, and gratuitous interference with the exclusive functions of the general government on the other, would become pertinent by being stamped with the official Seal of State. We are not aware of any express authority in our constitution or laws for the exercise of this novel mode of addressing the people; and it can only be justified on the ground, that the chief magistrate has something of fact or doctrine of

importance to communicate, of which the people are supposed to be ignorant. In neither point of view is there any thing striking in this otherwise extraordinary document.

“No facts are set forth before unknown to the public, except that a representation has been made to his Excellency that ‘*hostile forces had been organised within this State,*’ of which organisation our citizens are *profoundly ignorant*.

“To the doctrine of this proclamation,—that the declaration of martial law, by Lord Gosford, changes the relations between the United States and Canada, we cannot assent. Our relations with Great Britain and her colonies rest upon treaties, and the general law of nations, which, it is believed, her Majesty’s Governor in Chief of Lower Canada can neither enlarge nor restrict.

“To assume that our citizens are ignorant of their rights and obligations as members of a neutral independent power, is to take for granted that they have forgotten the repeated infractions of those rights which have so often agitated our country since the adoption of Federal Constitution, which led to the late war with Great Britain, and which have given rise to claims of indemnity that are still due from various powers of Europe. Every page of the history of our country portrays violations of her neutral rights by the despotic and haughty powers of Europe, among whom *England has ever been foremost*. Your committee do not deem it necessary to enlarge upon this subject.”

After the report came the resolutions, a portion of which I subjoin:—

“Resolved—That the safety of the people is the supreme law, and we recommend to our citizens to arm themselves for the maintenance of this law.

“Resolved—That the proclamation of martial law in Canada, and placing arms in the hands of people unaccustomed to their use, hostile to our institutions, and heated by intestine dissensions, have

a direct tendency to disturb the peace of our citizens, and demands the immediate interference of the general government.

“Resolved—That our government ought to take immediate measures to obtain redress for the injuries and insults perpetrated on our citizens by the people of Canada.

“Resolved—That as friends of human liberty and human rights, we cannot restrain the expression of our sympathy, when we behold an *oppressed and heroic people unfurl the banner of freedom*.

“Resolved—That we hope that time will soon come when the bayonet shall fail to sustain the *last relic of royalty* which now lingers on the western continent.

“Resolved—That we concur in the opinions which have been fully and freely expressed in the British parliament by eminent *English statesmen*; that ‘in the ordinary course of things, Canada must soon be separated from the mother country.’

“Resolved—That it is the duty of every independent American to aid in every possible manner, consistent with our laws, the exertions of the patriots in Lower Canada, against the *tyranny, oppression, and misrule of a despotic government*.”

Volume Three—Chapter Two.

The Canadas, continued.

The next question to be considered is, whether, independent of their being important to us as an outpost to defend our transatlantic possessions, the Canadas are likely to be useful to us, as a colony, in a commercial point of view. This requires much consideration.

It must be admitted that, up to the present, we may consider the Canadas to have been a heavy burden to this country. From what I

am now going to state, there are many, who agreeing with me in most other points, will be likely to dissent. That I cannot help; I may be in error, but, at all events, I shall not be in error from a too hasty decision.

That it is wise and proper for a mother country to assist and support her colonies in their infancy is undoubted. In so doing, the mother country taxes herself for the advantages to be hereafter derived from the colony; but it may occur that the tax imposed upon the people of the another country may be too onerous, at the same time that no advantages at all commensurate are derived from the colony. When such is the case, the tax is not fair; and the colony for whose benefit that tax has been imposed, is looked upon with ill-will. This is the precise situation of the Canadas, and this is the cause why there is so strong an outcry against our retaining possession of these provinces.

The bonus of forty-five shillings on a load of timber, which is given to the Canadas by our present duties, is much too great; and has pressed too heavily on the people of the mother country. It has, in fact, created a monopoly; and when it is considered how important and necessary an article timber is in this country,—how this enormous bonus on Canadian timber affects the shipping, house-building, and agricultural interests—it is no wonder that people wish to get rid of the Canadas and the tax at one and the same time. It is also injurious to us in our commercial relations with the northern countries, who refuse our manufactures because we have laid so heavy a duty upon their produce. This tax for the benefit of the Canadian produce was put on during the war, without any intention that it should remain permanent: and I think I shall be able satisfactorily to establish, that, not only is it unjust towards our own people, but that, instead of benefiting, it will be, now that the Canadas are fast increasing in population, an injury to the Canadas themselves.

Up to the present period, timber has been the only article of export from Canada: we certainly have had the advantage of a large

carrying trade, and the employment of many thousand tons of shipping; but, with this exception, the timber trade has been injurious, not only to the mother country, but to the colony itself, as it has prevented her real prosperity, which must ever depend upon the culture of the land and the increase of population. The first point to which the attention of a colony should be directed, is its own support, the competence and supply of all the necessaries of life to its inhabitants; it is not until after this object has been obtained, that it must direct its attention to the gain which may accrue from any surplus produce. In what way has the timber trade benefited the Canadas? Has it thrown any wealth into the provinces? most certainly not; the timber has been cut down, either by those Canadians who would have been much better employed in tilling the land, for every acre cleared is real wealth; or by Americans who have come over to cut down the timber and have returned to their own country to spend the money. That the profits of the timber trade have been great is certain; but have these profits remained in the Canadas?—have the sums realised been expended there?—no; they have been realised in, or brought over to England, shared among a few persons of influence who have, to a certain degree, obtained a monopoly by the bonus granted, but the Canadas have benefited little or none, and the mother-country has received serious injury. That the parties connected with the Canada timber trade will deny this, and endeavour to ridicule my arguments, I am aware; and that they are an influential party I well know; but I trust before I have concluded, to prove to every disinterested person, that I am correct in my view of the case, and that the prosperity of the Canadas is a very different question from the prosperity of the Canadian timber merchants, or even the proprietors on the Ottawa.

When the protecting duty was first imposed, there was no idea of its being a permanent duty: it was intended as an encouragement for ships to go to Canada for timber, when it could not be got in the Baltic. It was, in fact, a war measure, which should have been removed upon the return to peace. The reason why it was not, is, the plea brought forward, that the taking off the protecting duty would be a serious loss to the emigrant settler, who would have no means of

disposing of his timber after he had felled it, and that the emigrant looked to his timber as his first profits; moreover, that it gave employment to the emigrant in the long winters. That those who have never been in the country were led away by this assertion I can easily imagine, but I must say that a more barefaced falsehood was never uttered. There are varieties of emigrants, and those with capital speculate in timber as well as other articles; but let us examine into the proceedings of the emigrant settler, that is, the man who purchases an allotment and commences as a farmer—for this is the party to whom the supposed philanthropy was to extend. He builds his cottage and clears two or three acres, that is, he fells the trees; as soon as he has done this, if the weather permit, he burns them where they lie, the branches and smaller limbs being collected round the trunks as fuel to consume them. This he is compelled to do, for the land having been so long smothered by the want of air and sunshine, arising from the denseness of the forest, has a degree of *acidity* in it, which the alkali of the wood and ashes are required to correct, previous to his obtaining a crop. I do not believe that a settler ever sold a tree when he was clearing, although if water-carriage was convenient, he may afterwards, when he was in competent circumstances, have done so. Having raised his crop from the first year's clearing, what is his employment during the winter,—cutting down timber on the Ottawa for the English market? no; cutting down timber on his own property as fast as he can, so as to have it ready for burning in the early spring, and having a crop off this, his second clearing. And so he continues, with full employment on his own farm, until he has cleared sufficient for the growing of his corn and the pasture for his cattle. When he has become independent and comfortable, and has a few thousand dollars to spare, then he will erect a saw-mill, and work up his own trees into lumber for sale, but by that time he must be considered as a rich man for a settler. The *timber* trade, therefore, is hurtful to the Canadas, in so much as it prevents them from clearing land and becoming independent people, who by other means would become so. The timber which is cut down for exportation, is chiefly from the forests on or near the Ottawa river, and the emigrant settler has neither interest or concern in it.

It may be argued that, as settlers do, as soon as they are in better circumstances, erect saw-mills, and work up their trees into *lumber*, that it would be unfair to deprive them of that advantage. I will grant that; but the fact is, that you will not do so; for of the quantity of timber and lumber exported from the Canadas, it is only one-half which is sent to the British market, the other half is divided between the West Indies, the United States, and their own consumption; and the demand of the United States will so rapidly increase, that, in a few years, the Canadians will care little for sending their timber to England, even if the present duty were kept on. I consider that this bounty upon cutting timber is very injurious to the American provinces, as it distracts their attention from the real source of wealth, which must consist in clearing the country; for, to show how great a difference this makes to them, it must be observed, that a farm which was only worth two dollars an acre when the settler first came to it, will, as soon as others have cleared around him, rise to twenty or thirty dollars per acre. Every man, therefore, who settles and clears land, not only benefits himself, but increases the value of the property of those all around him; while the feller of timber on the Ottawa only puts a few dollars into his own pocket, and does no good to the province, as the timber-dealers in England reap all the harvest.

It would appear very strange that the ship-owners should have joined the Canadian timber merchants in persuading the government to continue these duties, were it not from the fact that the ship owners appear, invariably, to oppose any measure advantageous to their own interests. That the carrying trade to the Canadas is of importance is certain; but of how much more importance to the ship owner is the reduction of expense in building his ship, which must ensue if the timber duties were reduced. The ship owner complains that he cannot sail his ship at as low a rate as foreigners; that he must be protected, or that he cannot compete with them in any way; and yet he opposes the very measure which would materially assist him in so doing. But the fact is, that, as I shall eventually show, the carrying trade with Canada would not be lost, though the cargo would not be the same; and there is every reason to suppose that

the employment of the shipping would very soon amount to the same tonnage as at present.

The next consideration is, to what should the duty be reduced, so as not to affect our revenue? This is a question easily answered.

In the Report on Timber Duties, Appendix Number 10, we have. in round numbers, for the year 1833:—

	Loads.	Duty paid. (pounds)
Timber exported from Canada and American provinces, calculated in loads	719,000	300,000
Timber from the north of Europe, in ditto.	444,000	985,000
	1463,000	1,285,000

Now it is certain that, wherever the timber may come from, the same quantity will be required; we have, therefore, to fix a duty upon timber coming from all parts of the world, by which the revenue will not suffer. A duty of 25 shillings per load will give, upon the whole importation, a revenue of 1,453,000 pounds, not only an increase of revenue upon the timber at present imported; but there is every reason to suppose that it would occasion a much greater consumption of timber, and of course a great increase of revenue. I do not consider that it would be advisable to make this reduction immediately. There is a large tonnage, employed in the Canada trade, which might as well wear out in it; and it would be but fair to allow those who have embarked their capital in the trade, to have time to withdraw it. As the Canadas are not yet prepared to send other produce to the market, we can, with great propriety, confer this boon upon the present timber trade. The reduction of the duty should be gradual, and extended over ten years, at which period the final reduction to 25 shillings per load should take place; by which time, if Canada be cherished, she will have other produce for the market.

The more I consider the question, the more I am convinced that this alteration would be a benefit to all parties. We then should be able to build ships at a moderate price; we should have a fall in house-rent; and, indeed, it would be of advantage to every class in this country; and, however interested people may argue, the removal of this protecting duty would be the greatest boon and kindness which we could confer on our transatlantic possessions.

Let us now inquire what are likely to be made the future prospects and produce of the Canadas as the population increases, and the resources of the country will be developed.

Lower Canada is a sterile country; not that the land is in itself bad, but from the severity and length of the winters. The climate of Lower Canada is precisely the same as that of Russia, and so might be its produce. The winters are tedious, but not unhealthy, as they are dry. The summers, like all the summers in the northern regions, although short, are excessively hot. It is owing to this excessive heat of the summer that the maize, or Indian corn, which will not ripen in this country, can be grown in Lower Canada, and it is the principal corn which is raised. The French Canadians who inhabit Lower Canada are but indifferent and careless farmers, yet still they contrive to live in apparent comfort: but the question is not whether the inhabitants of Lower Canada can support themselves, but whether they are likely to be able to produce any thing which might become an article of export to England. I should say yes: they may produce *tar* and *hemp*, two very important articles, and for which we are almost wholly dependent upon Russia. Tar they can most assuredly produce; and, with the same climate as Russia, why not hemp? Hemp will grow in any climate, and almost in any soil, except very stiff clay, and I consider the soil of Lower Canada admirably adapted to it. Up to the present time the French Canadians have merely vegetated, but as the country fills up, and they gradually amalgamate with the other settlers, there is no doubt that they will rapidly improve.

Upper Canada has been, and is still, but little known. At the close of the war, there was not a population of 40,000 upon the whole province: even now there is but 400,000 upon a territory capable of receiving and supporting many millions. It is, without exception, the most favoured spot in North America, having all the fertility of the southern and Western States, without being subject to the many and fatal diseases which are a drawback upon the latter. Although so far north, its climate is peculiarly mild, from its being so wholly surrounded with water, which has the effect of softening down both the cold of the winter and the heat of the summer. It abounds with the most splendid timber; is well watered; the land is of the richest quality; the produce is very great, and the crops are almost certain. I particularly notice this as I consider Upper Canada to be the finest *corn country* in the world.

At present the resources of the Canadas are unknown; the country has not been explored; it is without capital, and I may add without credit, but its prospects are very favourable. The timber trade to England will in a few years, even allowing the present bonus to be continued, be of little advantage to Upper Canada; they will find a much better market as the Western States fill up, as then there will be a great demand for lumber, which will be obtained cheaper from Canada than from any portion of the United States. Even now lumber is sent over from Upper Canada to those portions of the United States bordering on the lakes. I have pointed out the want of timber in the Western States, that is, of timber fit for building; they have some in the State of Wisconsin, which will soon be absorbed, and then the Canada timber and lumber will be in demand, and I have no doubt that there will be a very extensive exportation of it.

The next article of produce to which the Canadians should direct their attention is the fisheries on the lake, which may be carried on to any extent and with great profit. The trout and white fish, both very superior to the Newfoundland cod, are to be taken with the greatest ease, and in vast quantities. I have mentioned that the Americans have already commenced this fishery, and the demand is rapidly increasing. As the West fills up, the supply would hardly keep pace

with the demand; besides that it would also be an article of exportation to this country.

There are millions and millions of acres to the north and about Lake Superior, fit for little else than the increase of the animals whose furs we obtain, and which will probably never be brought into cultivation; yet these lands are rich in one point, which is, that the maple-tree grows there, and any quantity of sugar may be collected from it, as soon as the population is thick enough to spare hands for its collection. A maple-tree, carefully tapped, will yield for forty years, and give six or seven pounds of sugar, fully equal to the best East-India produce, and refining well. A few tons are collected at present, but it may become a large article of export.

The United States appear to be rich in most metals, but particularly in lead and iron; (note 1) the metal which they are most deficient in is copper. It is said that the copper mines in New Jersey are good; those in the West have not yet proved to be worth working. Canada, as I have before said, is as yet unexplored, but I have every reason to believe that it will be found rich in minerals, especially copper. I argue, first, from its analogy with Russia, which abounds in that metal; and secondly, because there is at this time, on the shores of Lake Superior, a mass of native copper weighing many tons, a specimen of which I have had in my hand. We must not forget to reckon, among the other products and expected resources of Canada, the furs obtained by the Hudson Bay Company. Of course, if the Canadas are wrested from us, we shall have to depend upon the Americans for our supply of this necessary article. The value in Canada of the furs exported to this country, by the company, amounts, as I have observed in my Diary, to about a million and a half of dollars.

I now come to what I consider will be the most important export from the Canadas. I have stated it to be my opinion that Upper Canada will be the first corn country in the world, and in a very few years we may expect that she will export largely into this country; already having had a surplus which has been sold to the Americans. It must

be recollected that America, who used to supply the West-Indies and other parts of the world with her flour, has, for these last few years, in her mania for speculating, neglected her crops, and it is only during these last two years that she has redirected her attention to the tillage of her land. She will now no longer require assistance from Upper Canada, and the yearly increasing corn-produce of that province must find a market elsewhere. After supplying the wants of Nova Scotia and New Brunswick, this surplus will find its way into this country. As the population of Upper Canada increases, so will of course her growth of wheat be greater, and in a very few years, we have reason to expect that there will be not only a constant, but even a more than requisite, exportation of corn to this country. Now what will be the effect? Corn from Canada is admitted at a fixed duty of 5 shillings per quarter, therefore as soon as the supply from thence, is sufficient, the corn laws will be *virtually* repealed, that is to say, they will be exchanged for a permanent duty of 5 shillings per quarter.

I think that the remarks I have made will incline the reader to agree with me, that the reduction of the duties on timber will be a real boon to all parties: to the Canadians, because at the same time that the supplies of lumber to the West Indies and elsewhere will give a certain profit, they will no longer have the true interest of the colony sacrificed for the benefit of parties at home; to the mother country, because it will relieve the expenses of the builder, lessen house-rent and agricultural expenses, and at the same time increase the revenue;—to the ship-owner, as it will enable him to build much cheaper, and to compete more successfully with foreign vessels, with the prospect also of the carrying trade soon reviving, and the freight of the corn proving an indemnification to him for the loss of that on the timber. That a few interested individuals would complain is undoubted, but it is high time that a monopoly so injurious in every point, should be removed; and the profits of a few speculators are not to be for a moment considered, when opposed both to the interests of the colony and of the nation.

I may as well here remark that it would only be an act of justice to the provinces, and no less so to ourselves, to take off the

prohibitions at present in force against the importation of goods from France and other countries. The boon itself would be small, but still it would be a stimulus to enterprise, and the time has gone by for England to impose such restrictions on her colonies. I say that we should lose nothing, because all these articles are imported by the Americans; and if the Canadians wish to procure them, they can obtain them immediately at Buffalo, and other American towns bordering on the lakes. At present, therefore, all the profits arising from these importations go into the pockets of the Americans, who are the only parties benefited by our restrictive laws. We should therefore remove them.

I shall now support the arguments in this chapter, touching the relative value of the corn and the timber trade to the Canadas, by some extracts from the evidence given in the Report of the Committee on the Timber Duties.

Q. "Have you ever formed an opinion of what rate per quarter wheat could be exported to this country, so as to yield a profit to the exporter?"—A. "I cannot call it to mind accurately, but I think the estimate I once made was between 40 shillings and 50 shillings."

Q. "Would it not follow that, unless the price of wheat in this country were to rise to 40 shillings or 50 shillings per quarter, the population that your former answer would transfer from the timber trade to the agricultural would not be able advantageously to employ themselves?"—A. "No; I do not think it follows necessarily. If all our population were devoted to agriculture, our settlements would be more dense, and their roads more perfect; in fact, all the social offices more perfectly fulfilled; which would enable them to bring their wheat to market at a more moderate price, and thus they might obtain a larger profit even with a lower price. We should bear in mind, in relation to their agricultural produce, that the farmer of course first feeds his own family, and that price affects him so far as it relates to his surplus produce, and that price rather affects his luxuries than his means of subsistence. I am not aware that the

present prices would prevent a farmer obtaining that return which would enable him to purchase at least all his necessaries.”

Q. “What do you suppose is the average expense of the conveyance of wheat from the remote parts of Canada to Montreal?”—A. “I believe the cost of bringing wheat from Niagara to Montreal was about 15 pence colonial currency, but I am not certain; it is not now lower. I once made a table showing the cost of taking produce of all kinds from three points on Lake Ontario and on Lake Erie, and sending up articles to the same places.”

Q. “What is the freight from Quebec to England?”—A. “The ordinary rate has been from 8 shillings to 8 shillings 6 pence a quarter for wheat.”

Q. “Do you know the price of wheat in this country?”—A. “I believe the last average was 40 shillings.”

Q. “If at 40 shillings you would probably allow 10 shillings a quarter, by your present statement, as a fair deduction for the expense of bringing it into this market?”—A. “I should think so.”

Q. “Do you think the price of 30 shillings would pay the agricultural producer in Canada for the production of wheat; would afford a return for the investment of capital in the production of wheat in Canada?”—A. “I should be loth to speak to a point on which I have not sufficient knowledge.”

Q. “Is it not indispensable to form an opinion upon that point to justify the opinion you have already given?”—A. “I think not. I have that feeling, that the consequence of their not having the timber trade would be, that they would produce other articles, and that their condition would not be deteriorated. I am led to that conclusion by seeing the present condition of the State of New York, which once depended on the timber trade; I look also to Vermont; and when every man tells me that he laments and has lamented that he ever meddled with the timber trade, I think that I am justified in my opinion, for no one will pretend to state that the land of Vermont, or

even of New York, equals that of Canada. While speaking of the soil of Canada, I would observe that Jacobs has estimated the average return for wheat on the Continent at four to one, of Great Britain seven to one, and Gourlay has estimated the return of Upper Canada at *twenty to one*. Many state that Upper Canada is *unrivalled* in comparison with any other piece of land of equal extent."

Q. "Are you aware of the extent of exportation of agricultural produce from Canada?"—A. "I am; I can state it from memory. The largest quantity of wheat exported in any year was in 1831, and I think amounted to 1,300,000 bushels."

Q. "Can you make the same statement with reference to corn and provisions as to other articles?"—A. "Canada exports a great deal of corn."

Q. "Which Canada?"—A. "Both Upper and Lower Canada."

Q. "Does Lower Canada grow corn enough for her own consumption?"—A. "I should think Lower Canada did, and more."

Q. "Does Upper Canada?"—A. "Upper Canada a great deal more."

Q. "Have you the amount of the exports?"—A. "I have the exports of 1833; the two Canadas exported 650,000 bushels of wheat."

Q. "How much flour?"—A. "About 91,000 barrels."

Q. "Have you any account of the imports of flour from the United States into Lower Canada?"—A. "I have not with me but can give it very nearly."

Q. "Do those exports of which you have spoken just now comprehend the United States flour?"—A. "No, they are exclusive of Colonial production."

Q. "Is not Lower Canada, as well as Upper Canada, in the habit of supplying herself, to a certain degree, with American flour and wheat, and exporting her own produce, on account of the state of the corn laws last year?"—A. "Yes, it is done to a certain extent. I have some indication as to the quantity which comes from the United States into Upper and Lower Canada being small. In the returns of the traffic last year through our Welland Canal, about 265,000 bushels of wheat passed through, of which 18,000 British and 22,000 American only went to Montreal. All the rest went to Oswego, for the New York market: but the destination in future will probably depend upon whether the internal communication is improved in those colonies, and on the state of the market in New York and in the Canadas."

Q. "If there is sufficient capital, is there any reason to suppose it would not be beneficial to engage in both?"—A. "I do not think it is a question concerning the abundance of capital, but the good to be derived from the preservation of the Canada timber trade by enormous protecting duties. I am confident that *the timber trade is inimical to the best interests of the Canadas*; it would be possible to make the timber trade more beneficial than any other pursuit in the country, and the way to render it so would be to give immense protecting duties to the timber trade of Canada, allowing all other articles of produce to be open to general competition; but, by such a course, England would not be benefiting *Canada*."

Q. "Can you state the average prices of wheat at Quebec the last four or five years?"—A. "I think 5 shillings or 6 shillings. Canadian currency; the latter rate is equal to 5 shillings sterling, which is 40 shillings a quarter; but I do not suppose an average of several years would be over 4 shillings, 2 pence, that would be 33 shillings, 4 pence. There are peculiar circumstances that attended the last three or four years."

Q. "Has it been higher the last three or four years than the three or four years previously? A. Considerably higher than the ten years previously."

Q. "Do you think 30 shillings a quarter would have been the average of the ten years preceding?"—A. "I should think so, but I cannot now speak positively."

Q. "Are the committee to understand it to be your opinion, that if the timber establishments were broken up and no more timber exported from Canada, there would be no loss to that country?"—A. "There might be an immediate loss, and a *very great subsequent gain*. I think there would be an immediate loss attending on the mills, possibly 150,000 pounds to 200,000 pounds."

Q. "Has it not been the fact that there has been a constant and gradual increase of tonnage into Quebec for the last fifteen years?"—A. "Yes."

Q. "Presuming that those establishments were to be broken up and no more timber exported, do you think that gradual increase would still continue?"—A. "No; the first consequence, I think, very possibly would be a very material decrease."

Q. "Subsequently the *same tonnage* would be required for the *carriage of corn* as at present?"—A. "Some years hence, for corn and other articles."

Note 1. The following description of the iron mines at Marmora are worthy the attention of the reader. It is from the engineer who was sent to survey them.

"To Isaac Fraser, Esquire

"The water power at Marmora, and its sufficiency for all hydraulic purposes, may be better imagined than explained to you by me, from the fact, that the falls occur upon the Crow River, at the foot of untold lakes falling into Crow Lake, the deepest inland lake in the province, and just below the junction of the Beaver River, which latter has its source in the Ottawa or Grand River, or the waters flowing parallel therewith, and by the outlet at the Marmora Falls: these head waters,

on the confluence with the waters of the Otonabee, and Rice Lake in Crow Bay, six miles below the works, form the great River Trent, second in importance and magnitude only to the St. Lawrence. It is sufficient for me to add, that I deem the water power at the works abundantly equal to all the purposes of machinery and manufacture, which can for centuries be established there.

“Immediately adjoining the works there is an ore bed, from the partial development of which, and from the opinions I have received of its superior quality, it would appear to be of the purest kind of iron ore, except native iron, in the same veins with which is an admixture of red paint and yellow ochre, and in separate veins and beds at this locality, those paints occur in some quantities, several barrels of which, especially the red paint, Mr Hayes disposed of at 25 shillings per barrel, at the works, and it seems probable they would become profitable articles of commerce. Here also there is a bed of purely white marble, not seemingly stratified, but in large blocks; and a quarry of superior stone for lithographic purposes, the quality of which has been tested and reported favourably upon. This ore bed would be from its situation within any wall constructed for the custody of the convicts, but from the great jumble of mineral substances, which the careless opening of those veins has occasioned, it is not possible to hazard an opinion as to the probable extent of minerals here, but from, if I may judge by appearances and from geological analogy, the few acres surrounding, it is probable they are sufficiently extensive to be an object of consideration—several hundred tons of ore have already been taken out for the furnaces. There is at this place a well-built bridge and a wharf at which the ore brought from the lake ore beds is landed, and from thence carted or wheeled up to the ore bank.

“At a distance of four miles by water, that is at the Crow Lake, in the township of Belmont, Newcastle District, the principal ore bed occurs. I may confine my observations respecting this ore bed to the qualities and varieties of the ores to be found there, and of the extent of the deposit give you an idea, by fancying my feelings when I first saw the mountain. My surprise was great, and my first conclusion

was, that it would be more than sufficient to supply the world with iron for ever. The ore here is in great variety of magnetic ore, easily quarried and, in fact, it can be quarried, loaded, and transported to the works, roasted on the ore bank, broken up into particles, and put upon the furnace, at an expense not exceeding 2 shillings 0 pence per ton; as I observed it is strongly magnetic, and although mixed considerably with sulphur, it is easily freed from that deleterious mineral by exposure to the atmosphere, and to the action of air and frost, and by this species of evaporation, a new and valuable commodity could be procured in great quantities, namely, the copperas of commerce.

“With a boat of fifty tons burthen—and there is depth of water enough for a 74 gun ship from the wharf at the works, to this mountain of ore—navigated by four men, 150 tons of ore could be brought down in two days—so readily is it quarried, and so handily put on board. Intermediate to this bed and the works, several other deposits of iron are discovered—one of a superior quality, surpassing in magnetic power any other ore yet discovered, possessing what mineralogists call polarity—and near to this, meadow and bog ore, not a mile distant from the works, is to be found in great quantities. The works are to the north-north-east and eastward, surrounded by beds of ore, of which five have been tried and brought into use—but as they are inland, and consequently more expensively procured, they merit but this passing observation, that in quantity and quality they are valuable.

“For the present I am, Sir,

“Your obedient servant,—*Engineer*”

Volume Three—Chapter Three.

The Canadas, continued.

To one who has a general knowledge of the various English colonies, to which emigration is constantly taking place, it appears very strange that people should emigrate to such countries as New South Wales, Van Dieman's Land, and New Zealand, when Upper Canada is comparatively so near to them, and affording every advantage which a settler could wish. Of course the persuasion of interested parties, and their own ignorance, prevent them from ascertaining the truth. Indeed, the reports upon Upper Canada are occasionally as highly coloured as those relative to other colonies, and nothing but an examination of the country, I may say a certain period of residence in it, can enable you to ascertain the real merits of the case. I have neither land nor interest in Upper Canada, and, therefore, my evidence on the question may be considered as impartial; and I do not hesitate to assert that Upper Canada promises more advantages to the settler than any other English colony, or any portion whatever of the United States.

I shall now make a few remarks upon emigration to that province, and point out what the settler will have to expect. I have read many works upon the subject; they are very inaccurate, and hold out to the emigrant brilliant prospects, which are seldom or never realised. The best work, independently of its merits as a novel, is "Laurie Todd," by Mr Galt. And first, I address myself to the poor man who goes out with only twenty or thirty pounds in his pocket.

If he credit the works written to induce people to emigrate, all that he has to do is to build his log-hut, clear his land, and in three years be an independent man.

It is true that he can purchase fifty acres of land for one hundred dollars, or twenty-five pounds; that he has only to pay one-tenth part of the sum down, which is two pounds ten shillings sterling. It is true that he will collect a *Bee*, as it is termed, or a gathering of neighbours to run up the frame of his house; but, nevertheless, possessing his fifty acres of land and his log-house, he will in all probability be starved out the very first year, especially if he has a family.

To a poor man, a family is *eventually* of immense value. As soon as he has fairly settled, the more children he has the faster he will become rich; but on his first arrival, they will, if not able to work for themselves, be a heavy burthen. If, however, they can do any thing, so as to pay for their board and lodging, he will not be at any expense for them, as there is employment for every body, even for children.

The only article I should recommend him to take out from England is a good supply of coarse clothing for his family; if he would take out a venture, let it be *second-hand clothes*, and he will double his money if he sells them by auction, for clothes are the most expensive article in Canada. I once saw some cast-off clothes sold by an acquaintance of mine in Upper Canada; a Jew in England would not have given five pounds for the lot, yet, sold at auction, they cleared twenty-five pounds, all expenses paid. He cannot, therefore, take out too much clothing, but the coarser and more common it is the better. Let him supply himself from the old clothes shops, or the cheap stores. New clothes will soon become old when he works hard. Having made this provision, let him buy nothing else; but change his money into sovereigns and keep it in his pocket.

As soon as he arrives at Quebec, he must lose no time in taking the steamboat up the St. Lawrence, and landing near to where he has decided upon locating. If he has made no decision, at all events let him leave the city immediately, and get into the country, for there he will get work and spend less money. Instead of thinking of making a purchase of land, let him *give up all thoughts of it for a year or two*; but hire himself out, and his wife and children also, if he can. If he is a good man, he will receive four pounds a month, or forty-eight pounds a year, with his board and lodging. The major part of this he will be able to lay by. If his wife must stay at home to take care of the children, still let her work; work is always to be found, and she may not only support herself and children, but assist his fund. By the time that he has been eighteen months or two years in the country, he will have his eyes open, know the value of every thing, and will not be imposed upon as he would have been had he taken a farm

immediately upon his arrival. He will have laid by a sufficient sum for him to begin with, and he will have become acquainted with the mode of farming in the country, which is very different from what he has been used to in the old. He may then go on and prosper.

The next description of emigrant settler to which I shall address myself is he who comes out with a small capital, say from two hundred to five hundred pounds; a sum sufficient to enable him to commence farming at once, but not sufficient to allow him to purchase or stock a farm which has a portion of the land already cleared. The government lands fetch at auction about ten shillings an acre, and they are paid for by instalments, one-tenth down, and one-tenth every year, with interest, until the whole be paid; of course, he may pay it all at once, if he pleases, and save the interest. He must not purchase more than four hundred acres. He can always procure more if he is successful. His first instalment to government for the purchase of four hundred acres will be eighty dollars.

His next object is to have a certain portion of his land cleared for him. The price varies according to the size and quantity of the portion; but you may say, at the highest, it will cost about sixteen dollars an acre. Let him clear ten acres, and then build his house and barns. I will make two estimates, between which he may decide according to his means.

Estimate 1.

	Dollars.
Instalment to Government	80
Shingle-house	400
Furniture	100
Barns and sheds	400
Ten acres clearing	160
Oxen	80
Cow	20

Pigs and poultry	20
Plough, harrow, etcetera.	20
Seed	50
Horse and wagon	100
About 300 pounds	1,430
To this (if you have no family able to work) for a man and his wife	300
Expenses of living the first year	200
400 pounds	1930

Estimate 2.

	Dollars
Instalment to Government	80
Log-house and furniture	100
Barn	60
Clearing	160
Oxen	80
Cow	20
Pigs and poultry	20
Plough, harrow, etcetera.	20
Seed	50
Horse and wagon	100
150 pounds	690

But choosing between these two estimates, according to his means, that is, by reserving, if possible, one hundred pounds for contingencies, he has every chance of doing well. He must bear in mind, that although every year his means will increase, he must not cripple himself by an outlay of all his money at first starting. After the first year, he will be able to support himself and family from the farm.

I have put every thing at the *outside expense*, that he may not be deceived; but he must not expend all his capital at once; his horse or oxen may die—his crops may partially fail—he may have severe illness—all these contingencies must be provided against.

But the settler who goes out under the most favourable circumstances, is the one who has one thousand pounds or more, and who can, therefore, purchase a farm of from two hundred to four hundred acres, with a portion cleared, and a house and offices ready built. These are always to be had, for there are people in the Canadas, as in America, who have pleasure in selling their cleared land, and going again into the bush. These farms are often to be purchased at the rate of from five to ten dollars per acre for the whole, cleared and uncleared. In this case all the difficulties have been smoothed away for him, and all that he has to do is, to be industrious and sober.

When I was at London, on the river Thames, (in Upper Canada I mean), I might have purchased a farm, lying on the banks of that river, of four hundred acres, seventy of them cleared, and the rest covered with the finest oak timber, with a fine water-power, and a saw-mill in full work, a good house, barn, and out-buildings and kitchen garden, for six hundred pounds. In ten years this property will be worth more than six thousand pounds; and in twenty more, if the country improves as fast as it does now, at least fifteen thousand pounds.

In looking out for a property in Canada, always try to obtain a water-power, or the means of erecting one, by damming up any swift stream; its value will, in a few years, be very great; and never consider a few dollars an acre more, if you have transport by water, or are close to a good market. You must look forward to what the country *will be*, not to what it is at present.

Half-pay officers settle in Upper Canada with great advantages, arising from the circumstance, that their annual pay is always a resource to fall back upon. A very small capital is sufficient in this case; and, if prudent, they gradually rise to independence, if not to

wealth. There are, however, one or two cautions to be given to these gentlemen. *Never go into the bush* if you can help it: accustomed to society, you will find the total loss of it too serious. If you have a wife and large family, they may partially compensate for the loss, but even then it is better to locate yourself near a small town. If you are a single man and sit down in the bush, you are lost. Hundreds have done so, and the result has been, that they have resorted to *intemperance*, and have died ruined men.

But the settlers most required in Upper Canada, and those who would reap the most golden harvest, are men of capital; when I say capital, I mean those who possess a sum of four or five thousand pounds—a sum very inadequate to support a person in England who has been born and bred as a gentleman; but in Canada, with such a sum, he can not only farm, but speculate to great advantage. At present the Americans go over there every year, and realise large sums of money. Indeed, capital is so much required in Upper Canada, and may be employed to such advantage, that I wonder people, with what may be considered as small capitals here, do not go over. The only caution to give them is, not to be in a hurry; in the course of a year or two they will understand what they are about, and then they will soon become wealthy.

When I arrived at Toronto, I was called upon by an old friend who had often shot with me in Norfolk. His father had once set him up in business, but the house failed. He resolved to go out to Canada, and his father gave him a *thousand pounds* as a start, and allowed him two hundred pounds a year afterwards. He had been in the country seven years when we met again. I accepted his invitation to dine and sleep at his house, which was about seven miles from the town. He sent handsome saddle horses over for three of us. I found him located on a beautiful farm of about four hundred acres, the major portion of it cleared; his house was a very elegantly built cottage ornée, every thing had the appearance of a handsome English country residence; he had married a beautiful woman of one of the first families. We sat down to an excellent dinner, and, in every respect, the whole set-out was equal to what you generally meet with

in good society in England. He was really living in luxury. We returned the next day, in a handsome carriage and as fine a pair of horses as one would wish to see.

I could hardly credit that all this could have been accumulated in seven years—yet such was the case, and it was not a singular one; for the whole road from his farm to Toronto was lined with similar farms and handsome houses, belonging to gentlemen who had emigrated, forming among themselves, a very extensive and most delightful society.

Although they do not go ahead as fast as some of the American cities, (for instance, Buffalo,) still Upper Canada has, within the last ten or fifteen years, taken a surprising start, and will now, if judiciously governed, increase in wealth almost as fast as any of the American States. About Toronto, most of the gentlemen have incomes of from seven hundred to fifteen hundred pounds per annum, and keep handsome equipages; but there are many other towns which have lately risen up very rapidly. Peterborough is an instance of this. “Peterborough in 1825 contained but one miserable dwelling; now, in 1838, may be seen nearly four hundred houses, many of them large and handsome, inhabited by about fifteen hundred persons; a very neat stone church, capable of accommodating eight hundred or nine hundred persons, (see Note 1) a Presbyterian church of stone, two dissenting places of worship, and a Roman Catholic church in progress. The town has in or near it, two grist, and seven saw-mills, five distilleries, two breweries, two tanneries, eighteen or twenty shops (called stores), carriage, sleigh, wagon, chair, harness, and cabinet-makers and most other useful trades. Stages run all the year, bringing mails five times a week and steamboats whilst the navigation is open; there is one good tavern (White’s), and two inferior ones. Families may now find houses of any sizes to suit them, at moderate rents. The roads in this neighbourhood are being greatly improved. The towns of Cobourg, Port Hope, Colborne, Grafton, Brighton, River Trent, and Beaumont in the Newcastle district, are all equally prosperous, and, like Peterborough, are surrounded by genteel families from the United

Kingdom; in short, the advancement of this district is almost incredible.”

But there is one important subject relative to emigration which must be considered; if it be, as I trust my readers will be inclined to think with me, a national question, it is highly expedient that it should be not only assisted, but controlled by government. At present the mortality is tremendous; and I very much question whether there are not more lives sacrificed in the *transport* of the emigrants, than subsequently fall a prey to disease in the western States, bordering on the Mississippi. With those who would emigrate to the United States, we have nothing to do, neither do they so much require our sympathy. The American packets are good vessels, and they suffer little; and when they land at New York, Baltimore and Philadelphia, the charity of the Americans is always ready for their relief. But with the poor emigrants who would settle in Canada, the case is very different. It must be understood, that the Quebec trade is chiefly composed of worn-out and unseaworthy vessels, which cannot find employment elsewhere; for a vessel which is in such a state that a cargo of dry goods could not be entrusted to her, is still sufficiently serviceable for the timber trade—as, ‘allowing her bottom to be out’ with a cargo of timber she of course cannot founder. But if these vessels are sufficiently safe to bring timber home, they are not sufficiently good vessels to receive three or four hundred emigrants on board. Leaky, bad sailers, ill-found, the voyage is often protracted, and the sufferings of the poor people on board are dreadful. Fever and other diseases break out among them, and they often arrive at Quebec with sixty or seventy people who are carried to the hospital independently of those who have died and been thrown overboard.

Sometimes their provisions do not last out the voyage, and they are obliged to purchase of the captain or others on board, (who have prepared for the exigence,) and thus their little savings to recommence life with, are all swallowed up to support existence. I believe that what they suffer is dreadful; and if ever there was a case which would call forth patriotism and sympathy, it is the hardships of

these poor people. Allowing emigration not to be a national question, still it is a question for national humanity, and all this suffering might be alleviated at comparatively a very trifling expense.

If two or three of our smaller line-of-battle ships now lying at their moorings, were to be jury-rigged, without any guns on board, and manned with a sloop's ship's company, they would not decay faster by running between Quebec and this country than if they remained in harbour. One of those vessels would carry out 2,500 men, women, and children. Let the emigrants take their provisions on board, and should their provisions fail them, let there be a surplus for their supply at the cost price. Under this arrangement, you would have that order, cleanliness, and ventilation which would insure them against disease, and proper medical attendance if it should be required; you would save thousands of lives, and the emigrant, as he left the ship, would feel grateful for the benefit conferred. But the assistance of government must not end here: the emigrant, on his arrival, is adrift; he knows not where to go; he has no resting-place; he is a perfect stranger to the country and to every thing; he exhausts his means before he can find employment or settle: other arrangements are therefore necessary, if the work of charity is to be completed. Indeed, the want of these arrangements is the cause of a very large proportion of the Canadian emigrants leaving our provinces and settling in the United States, where they can immediately find employment; and Americans, agents of the land speculators, are continually on the look-out in Canada, persuading the emigrants, by all sorts of promises and inducements, to leave the provinces and to take lands in the States, belonging to their employers. Every emigrant lost to us is a gain to America; and upon the increase of the English population depends the prosperity of the Canadas, and our best chance of retaining them in our possession.

Both Upper and Lower Canada have one great advantage over most of the other territories of the United States, which is, that they are so very healthy; the winters in both provinces are dry, and, in Upper Canada, they are not severe; and the summers are cool, compared with those of the United States. Indeed, in point of climate, they

cannot be surpassed; and I rather think, independently of its fine soil, which enables it to grow every thing (for even tobacco grows well in Upper Canada), that in mineral richness it is not to be exceeded. It abounds in water-power, and has several splendid rivers. As soon as the roads are made (for that is the present desideratum in the Upper Province), I have no hesitation in asserting, that it will be, of all others, the most favourable spot for emigration. It is a man's own fault if, with common industry, he does not, in a few years, secure competence and the happiness arising from independence, when it is accompanied by that greatest of all blessings—health.

There has been so strange and continued a system of misrule on the part of the mother-country with respect to these provinces, that I am not surprised at any thing which takes place; but it is certain that the emigration to the Canadas has been very much checked by the Government itself.

The price of land in the United States is fixed at a dollar and a quarter per acre; be it of the best quality, full of minerals, or with any other important advantages, the price is still the same. The set-up price in Canada is two dollars per acre. If no more is offered it is sold at that sum, but at no less. Now, whatever the Government may imagine, I can assure them that this difference in the price is considered very important by those who emigrate, and that thousands who would have settled in Canada, have, in consequence, repaired to the United States, much to our disadvantage; and this appears so contradictory, as the Government have very unwisely parted with enormous tracts of the best land, selling them to a Company at a price which, with facilities for payment, reduces the price paid per acre by this Company, to, I think, about one shilling and three-pence, and for which the Company now charge the same price as the Government; thus giving a bonus to speculators which they refuse to those who wish to become *bona fide* settlers. I never could comprehend the grounds upon which they were persuaded to so unwise an act as that. The lands were sold to the Company before the present Government were in power, but why the price of the land still in possession of the

Crown should be raised higher than in the United States I cannot imagine. Sound policy would reduce it lower, for the increase of wealth in the province must ever consist in the increase of its population.

There are in Upper Canada several villages of free negroes, who have escaped from the United States, and should it be considered at any time advisable to remove any of the West Indian population, it would be very wise to give them land on the Upper Canada frontiers. The negroes thrive there uncommonly well, and have acquired habits of industry; and, as may be supposed, are most inveterate against the Americans, as was proved in the late disturbances, when they could hardly be controlled. They imagine (and very truly) that if the Americans were to obtain possession of Canada, that they would return to slavery, and it is certain that they are not only brave, but would die rather than be taken prisoners. This is a question worth consideration, as out of an idle and useless race in the West Indies may be formed, at very little expense, a most valuable frontier population to these provinces. I am happy to perceive that, in the Report of Lord Durham, the importance of these provinces to the mother country is fully acknowledged.

“These interests are indeed of great magnitude; and on the course which your Majesty and your Parliament may adopt, with respect to the North American colonies, will depend the future destinies, not only of the million and a half of your Majesty’s subjects who at present inhabit those provinces, but of that vast population which those ample and fertile territories are fit and destined hereafter to support. No portion of the American continent possesses greater natural resources for the maintenance of large and flourishing communities. An almost boundless range of the richest soil still remains unsettled, and may be rendered available for the purposes of agriculture. The wealth of inexhaustible forests of the best timber in America, and of extensive regions of the most valuable minerals, have as yet been scarcely touched. Along the whole line of sea-coast, around each island, and in every river, are to be found the greatest and richest fisheries in the world. The best fuel and the

most abundant water-power are available for the coarser manufactures, for which an easy and certain market will be found. Trade with other continents is favoured by the possession of a large number of safe and spacious harbours; long, deep, and numerous rivers, and vast inland seas, supply the means of easy intercourse; and the structure of the country generally affords the utmost facility for every species of communication by land. Unbounded materials of agricultural, commercial and manufacturing industry are there; it depends upon the present decision of the Imperial Legislature to determine for whose benefit they are to be rendered available. The country which has founded and maintained these colonies at a vast expense of blood and treasure, may justly expect its compensation in turning their unappropriated resources to the account of its own redundant population: they are the rightful patrimony of the English people, the ample appanage which God and Nature have set aside in the New World for those whose lot has assigned them but insufficient portion in the Old. Under wise and free institutions, these great advantages may yet be secured to your Majesty's subjects; and a connexion, secured by the link of kindred origin and mutual benefits, may continue to bind to the British Empire the ample territories of its North American provinces, and the large and flourishing population by which they will assuredly be filled."

Note 1. The building of this Church was undertaken by the inhabitants of Peterborough and its vicinity, belonging to the church of England. In 1835 it was commenced, and, by great exertions, opened for Divine worship in December 1836, though not altogether finished. Nine hundred pounds was raised by voluntary contributions, not one farthing having been given by any public body to it. The gentlemen composing the building committee are responsible for the remainder due, being five hundred pounds. An advertisement for subscriptions to liquidate this debt has been for some weeks past inserted in a London newspaper.

Volume Three—Chapter Four.

The Canadas, continued.

Previous to my entering into a further examination of the Canada question, it will perhaps be better to recapitulate, in as few words as possible, what has already occurred, and the principal causes of the late insurrection.

When the Canadian provinces were reduced by the British arms, the inhabitants, being entirely French, were permitted to retain their own laws, their own language in Courts and public offices, and all their vested rights which had been granted to them by the French government. It was a generous, but, as it has been proved, an unwise policy. The form of government, as an English colony, was proposed, and acceded to by the French population, who, gratified by the liberality of their new rulers, cheerfully took the oath of allegiance. For many years, indeed it may be said until the close of the war of 1814, the population remained almost entirely French. England had been so long engaged in war, and the annual expenditure of life in her armies and her navies was so great, that she could not permit, much less encourage, emigration.

At the close of the war of 1814, the census of the population in the two Canadian provinces was as follows:— In Lower Canada, between three and four hundred thousand; in Upper Canada, from thirty to forty thousand, of which nineteen-twentieths were of French extraction. But the emigration during the last twenty-five years of peace has made a considerable change. The population of Lower Canada has increased to six hundred thousand, and that of Upper Canada now amounts to upwards of four hundred thousand. As the emigration has been almost wholly from the British dominions, it may be now fairly assumed that, taking the two provinces together, the English and French population are now on a par as to numbers; the English preponderate in the Upper province as much as the French do in the Lower. But if we are to consider the two nations of settlers

as to their respective value as emigrants to the provinces, on the point of capital, industry, and enterprise, the scale will descend immediately in favour of the English population. The French are inactive, adverse to speculation, or even improvement. Every *habitant* is content with his farm as handed down to him by his progenitor, and the higher classes who hold the seigneuries are satisfied with their seignorial rights and the means of exaction which they afford to them. The privileges of these seigneurs, or lords of the manor, in Lower Canada, are very extensive, and a bar to all improvement or advance. They hold the exclusive right of hunting and fishing; all the water privileges, such as the erection of saw-mills, etcetera, are insured to them. The *habitant* is even compelled to send his flour to be ground at the mill of the lord of the manor. At the sale of every property, the lord of the manor receives one-twelfth of the proceeds. Thus, if a farm worth a few hundred pounds was to fall into the hands of an enterprising man, and he was to raise it to the value of thousands, more than the prime-cost would be deducted for the lord of the manor if he were compelled to part with it. This, with the other impediments to enterprise, has left Lower Canada in a state of quiescence, and the emigrants who have gone over have passed it by that they might settle on the more fertile and free province of Upper Canada. One of the writers in the daily press of New York has very truly remarked:—

“When the British first obtained the Canadas, its commerce consisted of a few peltries, conveyed to France by the vessels which brought out the troops and carried back the disbanded regiments. The lumber trade was unknown. The importations were a nonentity. While at present many hundreds of vessels are engaged in the direct timber trade, and more than one hundred and fifty vessels have been frequently counted on the river St. Lawrence. These, it must be remembered, are almost exclusively owned by British merchants; while the French Canadians own the land in the same proportion as the English do the trade.”

It was the knowledge of these facts, and that the English were every year rising in importance, (for they had not only secured the whole

trade, but were gradually occupying the more fertile land of the Upper province,) which has created the jealousy and ill-will, and has been such a source of irritation to the French inhabitants of the Lower province. I have dwelt upon these facts because there is a very general opinion (which has most unfortunately been acted upon by our Government), that the legislature of the province should be guided by the interests of the majority, and this they have considered to be in favour of the French population; whereas in numbers they are about equal, and in point of wealth and importance, the English population are most decidedly in the advance; besides that, the former population would willingly separate themselves from the mother-country, and therefore deserve but little favour, while the latter are loyal and attached to it. The French having the ascendancy of five to one in the Lower province, have done all they can to check improvement. Public works which have cost large sums, have remained uncompleted, because the House of Assembly in the Lower province has refused to allow them to be carried on. Indeed, had the Lower province been allowed to continue in her career of opposition, she would have eventually rendered difficult all communication between the Upper province and the mother-country.

This is acknowledged in Lord Durham's report, which says:—

“Without going so far as to accuse the Assembly of a deliberate design to check the settlement and improvement of Lower Canada, it cannot be denied that they looked with considerable jealousy and dislike on the increase and prosperity of what they regarded as a foreign and hostile race; they looked on the province as the patrimony of their own race; they viewed it not as a country to be settled, but as one already settled; and instead of legislating in the American spirit, and first providing for the future population of the province, their primary care was, in the spirit of legislation which prevails in the old world, to guard the interests and feelings of the present race of inhabitants, to whom they considered the newcomers as subordinate; they refused to increase the burthens of the country by imposing taxes to meet the expenditure required for improvement, and they also refused to direct to that object any of the funds

previously devoted to other purposes. The improvement of the harbour of Montreal was suspended, from a political antipathy to a leading English merchant who had been the most active of the commissioners, and by whom it had been conducted with the most admirable success. It is but just to say, that some of the works which the Assembly authorised and encouraged, were undertaken on a scale of due moderation, and satisfactorily perfected and brought into operation. Others, especially the great communications which I have mentioned above, the Assembly showed a great reluctance to promote or even to permit. It is true that there was considerable foundation for their objections to the plan on which the Legislature of Upper Canada had commenced some of these works, and to the mode in which it had carried them on; but the English complained that, instead of profiting by the experience which they might have derived from this source, the Assembly seemed only to make its objections a pretext for doing nothing. The applications for banks, railroads, and canals were laid on one side until some general measures could be adopted with regard to such undertakings; but the general measures thus promised were never passed, and the particular enterprises in question were prevented. The adoption of a registry was refused, on the alleged ground of its inconsistency with the French institutions of the province, and no measure to attain this desirable end in a less obnoxious mode, was prepared by the leaders of the Assembly. The feudal tenure was supported, as a mild and just provision for the settlement of a new country; a kind of assurance given by a committee of the Assembly, that some steps should be taken to remove the most injurious incidents of the seigniorial tenure, produced no practical results; and the enterprises of the English were still thwarted by the obnoxious laws of the country. In all these decisions of the Assembly, in its discussions, and in the apparent motives of its conduct, the English population perceived traces of a desire to repress the influx and the success of their race. A measure for imposing a tax on emigrants, though recommended by the Home Government, and warranted by the policy of those neighbouring States which give the greatest encouragement to emigration, was argued on such grounds in the Assembly, that it was not unjustly regarded as indicative of an

intention to exclude any further accession to the English population; and the industry of the English was thus retarded by this conduct of the Assembly. Some districts, particularly that of the Eastern Townships, where the French race have no footing, were seriously injured by the refusal of necessary improvements; and the English inhabitants generally regarded the policy of the Assembly as a plan for preventing any further emigration to the province, of stopping the growth of English wealth, and of rendering precarious the English property already invested or acquired in Lower Canada.”

It may be said, that latterly the French party, by the inconsiderate yielding of the Government at home, legislate for both provinces; and finding that they never could compete with the English in other points, their object has been to crush them as much as possible. (See Note 1.) The policy pursued by M. Papineau and his adherents, has therefore been to keep the Lower Province entirely in the hands of the French, and with this view they have as much as possible, prevented British settlers from obtaining land in Lower Canada; and that their rule might be absolute, over the French population, they have prevented their education, so that they might blindly follow those who guided them. These two assertions will be fully borne out by an examination into the public records.

The land being almost wholly in the possession of the French, M. Papineau's first object was, to make the possession of *landed property* the tenure by which any employment of the trust under government could be held; and in this great object he succeeded. It must at once be perceived that, by this regulation alone, all British residents were excluded, and that if possessed of capital to any amount, whatever their stake in the colony might be, they were ruled and dictated to by the French party. No person could be an officer in the militia unless he was a landowner. The wealthy English merchant had to fall into the ranks, and be ordered about by an ignorant French farmer, a man who could not write or read, but made his cross to any paper presented to him for his signature.

By another enactment the grand juries were to be selected from those who were land-owners, and the consequence was, that in two grand juries selected in two succeeding years, there was only one man who could write or read out of the whole number, and the others fixed their cross to the bills found.

What was still more absurd was, that the office of trustee for the schools could only be held by the same tenure, and in the Act passed, it is provided, that the trustees for national education may be permitted to affix their *cross* to the school reports, a more convincing proof of the state of ignorance in which the Canadian French population have been held and acknowledged to be so by the French party, by the making such a proviso in the statute. I had a convincing proof myself of the ignorance of the French population during the rebellion in Lower Canada. I handed a printed circular to about four hundred prisoners who were collected, for one of them to read aloud to the rest, and there was not one who could read *print*.

Having secured the party in the province, the next object of M. Papineau and his adherents was, to blind the Government at home: they sent home a list of grievances which required redress, and in this they were joined by the English republican party. Among other demands, they insisted upon the right to the Lower Assembly having the control of the colonial revenues. So earnest was the Government at home to satisfy them, that every concession was made, and even the last great question of controlling their own expenditure was consented to, upon the sole condition that the civil list, for the payment of the salary of the governor and other state officers, was secured.

What was the conduct of M. Papineau and his party as soon as they had gained their point? They immediately broke their faith with the Government at home, and refused to vote the sum for the civil list.

For three years, the governor and all the public officers were without their salaries, which were at last provided for by a vote of the English Parliament at home. This nefarious conduct of the French Party had one good effect, it created a disunion with the English republican

party, who, although they wished for reform, would be no participators in such a breach of honour.

That for many years there has been sad mismanagement on the part of the Government at home, cannot be denied, but the error has been the continual yielding to French clamour and misrepresentation, and the Government having lost sight of the fact that the English population were rapidly increasing, and had an equal right to the protection of the mother-country. It is the English population who have had real cause of complaint, and who are justified in demanding redress. The French have been only too well treated, and their demands became more imperious in proportion to the facility with which the Government yielded to them in their earnest, but mistaken, desire to put an end to the agitation of M. Papineau and his party. Mistaking the forbearance of the English government for weakness, M. Papineau issued his inflammatory appeals; the people were incited to rebellion; but even this conduct did not seem to rouse the Government at home, who had probably formed the idea that the French Canadian was too peaceful to have recourse to arms. Emboldened by the conduct on the part of the Government, which was ascribed to fear, and finding themselves supported by Mr Joseph Hume and Mr Roebuck at home, the republican party in Upper Canada openly declared itself, and a portion of the Canadian press issued the most treasonable articles without molestation. The Americans were not idle in fomenting this ill-will towards the mother country in the Upper Province, and the Papineau party proceeded to more active measures. Arrangements were made for a general rising of the Lower Province; the meeting of St. Charles took place, and resolutions were passed of a nature which could no longer be overlooked by the Provincial Government. For many months previous to the meeting at St. Charles, the Provincial Government had been aroused and aware of the danger, and Lord Gosford perceived the necessity of acting contrary to the orders received from home. Proofs had been obtained against those who were most active in the intended rebellion, and at last warrants were issued by the Attorney-General for their apprehension. It was this sudden and unexpected issue of the warrants which may be said

to have saved the provinces. It defeated all the plans of the conspirators, who had not intended to have flown to arms until the *next Spring*, when their arrangements would have been fully made and organised. This fact I had from Bouchette, and three or four of the ringleaders, whom I visited in prison. They intended to have had the leaf on the tree, and the cold weather over, before they commenced operations; and had they waited till then the result might have been very serious, but the issue of the warrants for the apprehension of the leaders placed them in the awkward dilemma of either being deprived of them, or of having recourse to arms before their plans were fully matured. The latter was the alternative preferred; and the results of this unsuccessful attempt are well described in Lord Durham's report:—

“The treasonable attempt of the French party to carry its political objects into effect by an appeal to arms, brought these hostile races into general and armed collision. I will not dwell on the melancholy scenes exhibited in the progress of the contest, or the fierce passions which held an unchecked sway during the insurrection, or immediately after its suppression. It is not difficult to conceive how greatly the evils, which I have described as previously existing, have been aggravated by the war; how terror and revenge nourished, in each portion of the population, a bitter and irreconcilable hatred to each other, and to the institutions of the country. The French population, who had for some time exercised a great and increasing power through the medium of the House of Assembly, found their hopes unexpectedly prostrated in the dust. The physical force which they had vaunted was called into action, and proved to be utterly inefficient. The hope of recovering their previous ascendancy under a constitution similar to that suspended, almost ceased to exist. Removed from all actual share in the government of their smaller country, they brood in silence over the memory of their fallen countrymen, of their burnt villages, of their ruined property, of their extinguished ascendancy, and of their humbled nationality. To the Government and the English they ascribe these wrongs, and nourish against both an indiscriminating and eternal animosity. Nor have the English inhabitants forgotten in their triumph, the terror with which

they suddenly saw themselves surrounded by an insurgent majority, and the incidents which alone appeared to save them from the unchecked domination of their antagonists. They find themselves still a minority in the midst of a hostile and organised people; apprehensions of secret conspiracies and sanguinary designs haunt them unceasingly, and their only hope of safety is supposed to rest on systematically terrifying and disabling the French, and in preventing a majority of that race from ever and again being predominant in any portion of the legislature of the province. I describe in strong terms the feelings which appear to me to animate each portion of the population; and the picture which I draw represents a state of things so little familiar to the personal experience of the people of this country, that many will probably regard it as the work of mere imagination; but I feel confident that the accuracy and moderation of my description will be acknowledged by all who have seen the state of society in Lower Canada during the last year. Nor do I exaggerate the inevitable constancy, any more than the intensity of this animosity. Never again will the present generation of French Canadians yield a loyal submission to a British Government; never again will the English population tolerate the authority of a House of Assembly in which the French shall possess or even approximate to a majority."

Although M. Papineau and his party were very willing to fraternise with the discontented party in Upper Canada, and to call forth the sympathy and the assistance of the Americans, their real intentions and wishes were to have made the Canadas an independent French province, in strict alliance with France. (See Note 2.) The assistance of the Upper Canada party would have been accepted until they were no longer required, and then there would have been an attempt, and very probably a successful one, to drive away by every means in their power the English settlers in Upper Canada to the United States. The Americans, on the other hand, cared nothing about the French or English grievances; their sympathy arose from nothing less than a wish to add the Canadas to their already vast territories, and to drive the English from their last possessions in America; but they also knew how to wear the cloak as well as M.

Papineau, and had the insurrection been successful, both French and English would by this time have been subjected to their control, and M. Papineau would have found that he had only been a tool in the hands of the more astute and ambitious Americans. Such is my conviction: but this is certain, that whatever may have been the result of the former insurrection, or whatever may be the result of any future one (for the troubles are not yet over), the English in Upper Canada must fall a sacrifice to either one party or the other, unless they can succeed (which, with their present numbers and situation, will be difficult) in overpowering them both.

It may be inquired, what were the causes of discontent which occasioned the partial rising in Upper Canada. Strange to say, although Mackenzie and his party were in concert and correspondence with M. Papineau, the chief cause of discontent arose from the partiality shown by the English government to the French Canadians in Lower Canada; their grievances were their own, and they had no fellow-feeling with the French Canadians. If they had any prepossession at all, it was in favour of joining the American States, and to this they were instigated by the number of Americans who had settled in Upper Canada. There were several minor causes of discontent: the Scotch emigrants were displeased because the Government had decided that the clergy revenues were to be allotted only for the support of the Episcopal church, and not for the Presbyterian. But the great discontent was because the English settlers considered that they had been unfairly treated, and sacrificed by the government at home. But although discontent was general, a wish to rebel was not so, and here it was that Mackenzie found himself in error, and M. Papineau was deceived; instead of being joined by thousands, as they expected, from the Upper Province, they could only muster a few hundreds, who were easily dispersed: the feelings of loyalty prevailed, and those whom the rebel-leaders expected would have joined the standard of insurrection, enrolled themselves to trample it under foot. The behaviour of the settlers in Upper Canada was worthy of all praise; they had just grounds of complaint; they had been opposed and sacrificed to a malevolent and ungrateful French party in the Lower

Province; yet when the question arose as to whether they should assist, or put down the insurrection, they immediately forgot their own wrongs, and proved their loyalty to their country.

The party who adhered to Mackenzie may well be considered as an American party; for Upper Canada had been so neglected and uncared for, that the Americans had already obtained great influence there. Indeed, when it is stated that Mathews and Lount, the two *members of the Upper House of Assembly* who were executed for treason, were both *Americans*, it is evident that the Americans had even obtained a share in the legislation of the province. When I passed through the Upper Province, I remarked that, independently of some of the best land being held by Americans, the landlords of the inns, the contractors for transporting the mails, and drivers of coaches, were almost without exception, Americans.

One cause of the Americans wishing that the Canadas should be wrested from the English was that, by an Act of the Legislature, they were not able to hold lands in the province. It is true that they could purchase them, but if they wished to sell them, the title was not valid. Colonel Prince, whose name was so conspicuous during the late troubles, brought in a bill to allow Americans to hold land in Upper Canada, but the bill was thrown out. It scarcely need be observed that Colonel Prince is now as violent an opponent to the bill. See Note 3. He has had quite enough of Americans in Upper Canada.

It was fortunate for the country that there was such a man as Sir John Colborne, and aided by Sir Francis Head, at that period in the command of the two provinces. Of the first it is not necessary that I should add my tribute of admiration to that which Sir John Colborne has already so unanimously received. Sir Francis Head has not been quite so fortunate, and has been accused (most unjustly) of rashness and want of due precaution. Now the only grounds upon which this charge can be preferred is, his sending down to Sir John Colborne all the regular troops, when he was requested if possible so to do. I was at this period at Toronto, and as I had the pleasure of being intimate with Sir Francis, I had full knowledge of the causes of

this decision. Sir Francis said, "I have but two hundred regular troops; they will be of great service in the Lower Province, when added to those which Sir John Colborne already has under his command. Here they are not sufficient to stem an insurrection if it be formidable. I do not know what may be the strength of the rebels until they show themselves, but I think I do know the number who will support me. Should the rebels prove in great three, these two companies of regular troops will be overwhelmed, and what I consider is, not any partial success of the rebel party, but the moral effect which success over regular troops will create. There are, I am sure, thousands who are at present undecided, who, if they heard that the *regular troops*, of whom they have such dread, were overcome, would join the rebel cause. This is what I fear; as for any advantage gained over me, when I have only *militia* to oppose to them, that is of little consequence. When Sir John Colborne has defeated them in Lower Canada, he can then come up here, with the regular troops."

I believe these to be the very words used by Sir Francis Head when he asked my opinion on the subject, and I agreed with him most cordially; but if any one is inclined to suppose, from the light, playful, and I must say, undiplomatic style of Sir Francis's despatches, that he had not calculated every chance, and made every disposition which prudence and foresight could suggest, they are very much mistaken. The most perfect confidence was reposed in him by all parties; and the event proved that he was not out in his calculations, for with the militia alone he put down the rebellion. During the short time from Sir Francis Head's going out, until he requested to be recalled, he did more good to that province, and more to secure the English dominion than could be imagined, and had he not been governor of the province for some time previous to the rebellion, I strongly surmise that it would have been lost to this country.

The events of the rebellion are too fresh in the reader's memory to be mentioned here. It is, however, necessary to examine into the present state of affairs, for it must not be supposed that the troubles have yet ceased.

First, as to the French Canadian party. If I am not very much mistaken, this may be considered as broken up; the severe lesson received from the English troops, and the want of confidence in their leaders from their cowardice and inability, will prevent the French Canadians from again taking up arms. They are naturally a peaceable, inoffensive, good-tempered people, and nothing but the earnest instigation of a portion of their priests, the notaries, and the doctors, (the three parties who most mix with the *habitants*), would have ever roused them to rebellion. As it is, I consider that they are efficiently quelled, and will be quiet, at least for one generation, if the measures of the government at home are judicious. The cause of the great influence obtained by the people I have specified over the *habitants* is well explained in Lord Durham's Report. Speaking of the public seminaries, he says:—

“The education given in these establishments greatly resembles the kind given in the English public schools, though it is rather more varied. It is entirely in the hands of the Catholic clergy. The number of pupils in these establishments is estimated altogether at about a thousand; and they turn out every year, as far as I could ascertain, between two and three hundred young men thus educated. Almost all of these are members of the family of some habitant, whom the possession of greater quickness than his brothers has induced the father or the curate of the parish to select and send to the seminary. These young men, possessing a degree of information immeasurably superior to that of their families, are naturally averse to what they regard as descending to the humble occupations of their parents. A few become priests; but as the military and naval professions are closed against the colonist, the greater part can only find a position suited to their notions of their own qualifications in the learned professions of advocate, notary, and surgeon. As from this cause these professions are greatly overstocked, we find every village in Lower Canada filled with notaries and surgeons, with little practice to occupy their attention, and living among their own families, or at any rate among exactly the same class. Thus the persons of most education in every village belong to the same families, and the same original station in life, as the illiterate

habitants whom I have described. They are connected with them by all the associations of early youth, and the ties of blood. The most perfect equality always marks their intercourse, and the superior in education is separated by no barrier of manners, or pride, or distinct interests, from the singularly ignorant peasantry by which he is surrounded. He combines, therefore, the influences of superior knowledge, and social equality, and wields a power over the mass, which I do not believe that the educated class of any other portion of the world possess."

The second party, which are the discontented, yet loyal English of Upper Canada, are entitled to, and it is hoped will receive the justice they claim they well deserve it. It is the duty, as well as the interest of the mother country to foster loyalty, enterprise, and activity, and it is chiefly in Upper Canada that it is to be found. One great advantage has arisen from the late troubles, which is, that they have driven most of the Americans out of the province, and have created such a feeling of indignation and hatred towards them in the breasts of the Upper Canadians, that there is no chance of their fraternising for at least another half century. Nothing could have proved more unfortunate to the American desire of obtaining the Canadas than the result of the late rebellions. Should the Upper Canadians, from any continued injustice and misrule on the part of the mother country, be determined to separate, at all events it will not be to ally themselves with the Americans. In Lord Durham's Report we have the following remarks:—

"I have, in despatches of a later date than that to which I have had occasion so frequently to refer, called the attention of the Home Government to the growth of this alarming state of feeling among the English population. The course of the late troubles, and the assistance which the French insurgents derived from some citizens of the United States, have caused a most intense exasperation among the Canadian loyalists against the American government and people. Their papers have teemed with the most unmeasured denunciations of the good faith of the authorities, of the character and morality of the people, and of the political institutions of the

United States. Yet, under this surface of hostility, it is easy to detect a strong under-current of an exactly contrary feeling. As the general opinion of the American people became more and more apparent during the course of the last year, the English of Lower Canada were surprised to find how strong, in spite of the first burst of sympathy, with a people supposed to be struggling for independence, was the real sympathy of their republican neighbours with the great objects of the minority. Without abandoning their attachment to their mother country, they have begun, as men in a state of uncertainty are apt to do, to calculate the probable consequences of a separation, if it should unfortunately occur, and be followed by an incorporation with the United States. In spite of the shock which it would occasion their feelings, they undoubtedly think that they should find some compensation in the promotion of their interests; they believe that the influx of American emigration would speedily place the English race in a majority; they talk frequently and loudly of what has occurred in Louisiana, where, by means which they utterly misrepresent, the end nevertheless of securing an English predominance over a French population has undoubtedly been attained; they assert very confidently, that the Americans would make a very speedy and decisive settlement of the pretensions of the French; and they believe that, after the first shock of an entirely new political state had been got over, they and their posterity would share in that amazing progress, and that great material prosperity, which every day's experience shows them is the lot of the people of the United States. I do not believe that such a feeling has yet sapped their strong allegiance to the British empire; but their allegiance is founded on their deep-rooted attachment to British, as distinguished from French institutions. And if they find that that authority which they have maintained against its recent assailants, is to be exerted in such a manner as to subject them to what they call a French dominion, I feel perfectly confident that they would attempt to avert the result, by courting, on any terms, an union with an Anglo-Saxon people."

Here I do not agree with his lordship. That such was the feeling previous to the insurrection I believe, and notwithstanding the defeat

of the insurgents, would have remained so, had it not been for the piratical attacks of the Americans, which their own government could not control. This was a lesson to the Upper Canadians. They perceived that there was no security for life or property—no law to check outrage—and they felt severely the consequences of this state of things in the destruction of their property and the attempts upon their lives by a nation professing to be in amity with them. Fraternise with the Americans the Upper Canadians will not. They may be subdued by them if they throw off the allegiance and protection of the mother-country, as they would be hemmed in between two hostile parties, and find it almost impossible, with their present population, to withstand their united efforts. But should a conflict of this kind take place, and the Upper Canadians be allowed but a short period of repose, or could they hold the Americans in check for a time, they would sweep the whole race of the Lower Canadians from the face of the earth. Their feelings towards the Lower Canadians are well explained in Lord Durham's Report:—

“In the despatch above referred to I also described the state of feeling among the English population, nor can I encourage a hope that that portion of the community is at all more inclined to any settlement of the present quarrel that would leave any share of power to the hostile race. Circumstances having thrown the English into the ranks of the government, and the folly of their opponents having placed them, on the other hand, in a state of permanent collision with it, the former possess the advantage of having the force of government, and the authority of the laws on their side in the present state of the contest. Their exertions during the recent troubles have contributed to maintain the supremacy of the law, and the continuance of the connexion with Great Britain; but it would, in my opinion, be dangerous to rely on the continuance of such a state of feeling, as now prevails among them, in the event of a different policy being adopted by the Imperial government. Indeed the prevalent sentiment among them is one of any thing but satisfaction with the course which has been long pursued, with reference to Lower Canada, by the British legislature and executive. The calmer view, which distant spectators are enabled to take of the conduct of

the two parties, and the disposition which is evinced to make a fair adjustment of the contending claims, appear iniquitous and injurious in the eyes of men who think that they alone have any claim to the favour of that government, by which they alone have stood fast. They complain loudly and bitterly of the whole course pursued by the Imperial Government, with respect to the quarrel of the two races, as having been rounded on an utter ignorance of, or disregard to the real question at issue, as having fostered the mischievous pretensions of French nationality, and as having, by the vacillation and inconsistency which marked it, discouraged loyalty and fomented rebellion. Every measure of clemency, or even justice, towards their opponents, they regard with jealousy, as indicating a disposition towards that conciliatory policy which is the subject of their angry recollection; for they feel that being a minority, any return to the due course of constitutional government would again subject them to a French majority: and to this I am persuaded they would never peaceably submit. They do not hesitate to say that they will not tolerate much longer the being made the sport of parties at home, and that if the mother country forgets what is due to the loyal and enterprising men of her own race, they must protect themselves. In the significant language of one of their own ablest advocates, they assert that 'Lower Canada must be *English*, at the expense, if necessary, of not being *British*.'"

The third party, which is the American, is the only one at present inclined to move, and in all probability they will commence as soon as the winter sets in; for however opposed to this shameful violation of the laws of nations the President, officers, and respectable portion of the American Union may be, it is certain that the *majority* are represented by these marauders, and the removal of our troops would be a signal for immediate aggression.

The Americans will tell you that the sympathy, as they term it, only exists on the borders of the lakes; that it extends no further, and that they are all opposed to it, etcetera. Such is not the case. The greatest excitement which was shown any where was perhaps at Albany, the capital of the State of New York, on the Hudson river,

and two hundred miles at least from the boundary; but not only there, but even on the Mississippi the feeling was the same; in fact, it was the feeling of the majority. In a letter I received the other day from a friend in New York, there is the following remark:—

“Bill Johnson (the pirate on lake Ontario) *held his levées* here during the winter. They were *thronged* with all the *best people* of the city.”

Now, the quarter from whence I received this intelligence is to be relied upon; and that it was the case I have no doubt. And why should they feel such interest about a pirate like Bill Johnson? Simply because he had assailed the English. This may appear a trifle; but a straw thrown up shows in what direction the wind blows.

At present there is no want of troops to defend the Canadas against a foreign attack, and little inclination to rebel in the provinces themselves. That now required is, that the legislature should be improved so as to do justice to all parties, and such an encouragement given to enterprise and industry as to induce a more extended emigration.

Lord Durham has very correctly observed, that it is not now a conflict of principles between the English and French, but a conflict of the two races. He says:—

“I expected to find a contest between a government and a people: I found two nations warring in the bosom of a single state: I found a struggle, not of principles, but of races; and I perceived that it would be idle to attempt any amelioration of laws or institutions until we could first succeed in terminating a deadly animosity that now separates the inhabitants of Lower Canada into the hostile divisions of French and English.”

But why should this conflict between the two races have taken place? Firstly, because the French, by the injudicious generosity of our Government in allowing them to retain their language in public affairs, with all their customs and usages, were allowed to remain a French colony, instead of amalgamating them with the English, as

might have been done. Subsequently, because the interests of the English colonists have been sacrificed to the French, who, nevertheless, became disaffected, and would have thrown off the English dominion. Lord Durham very correctly adds:—

“Such is the lamentable and hazardous state of things produced by the conflict of races which has so long divided the province of Lower Canada, and which has assumed the formidable and irreconcilable character which I have depicted. In describing the nature of this conflict, I have specified the causes in which it originated; and though I have mentioned the conduct and constitution of the colonial government, as modifying the character of the struggle, I have not attributed to political causes a state of things which would, I believe, tinder any political institutions have resulted from the very composition of society. A jealousy between two races, so long habituated to regard each other with hereditary enmity, and so differing in habits, in language, and in laws, would have been inevitable under any form of government. That liberal institutions and prudent policy might have changed the character of the struggle, I have no doubt; but they could not have prevented it; they could only have softened its character, and brought it more speedily to a more decisive and peaceful conclusion. Unhappily, however, the system of government pursued in Lower Canada has been based on the policy of perpetuating that very separation of the races, and encouraging these very notions of conflicting nationalities which it ought to have been the first and chief care of Government to check and extinguish. From the period of the conquest to the present time, the conduct has aggravated the evil, and the origin of the present extreme disorder may be found in the institutions by which the character of the colony was determined.”

We have, therefore, to legislate between the two parties, and let us, previous to entering upon the question, examine into their respective merits. On the one hand we have a French population who, after having received every favour which could be granted with a due regard to freedom, have insisted upon, and have obtained much more, and who in return for all the kindness heaped upon them,

excited by envy and jealousy of an energy and enterprise of which they were incapable, have risen in rebellion, with the hopes of making themselves an independent nation.

On the other hand we have a generous, high-spirited race of our own blood, and migrating from our own soil, who having been unfairly treated, and *having just grounds* of complaint against the mother-country, have nevertheless forgotten their own wrongs, and, to a mail, flown to arms, willing to shed their blood in defence of the mother-country.

Add to this, we have the French inhabiting a comparatively sterile country, without activity or enterprise; the English, in a country fertile to excess, possessing most of the capital, and the only portion of the colonists to whom we can safely confide the defence of that which I trust I have proved to the reader to be the most important outpost in the English dominions. Bearing all this in mind, and also remembering that if the emigration to Upper Canada again revive, that this latter population will in a few years be an immense majority, and will ultimately wholly swallow up all the former, we may now proceed to consider what should be the policy of the mother-country.

Note 1. It was not long after the conquest, that another and larger class of English settlers began to enter the province. English capital was attracted to Canada by the vast quantity and valuable nature of the exportable produce of the country, and the great facilities for commerce, presented by the natural means of internal intercourse. The ancient trade of the country was conducted on a much larger and more profitable scale; and new branches of industry were explored. The active and regular habits of the English capitalist drove out of all the more profitable kinds of industry their inert and careless competitors of the French race; but in respect of the greater part (almost the whole) of the commerce and manufactures of the country, the English cannot be said to have encroached on the French; for, in fact, they created employments and profits which had not previously existed. A few of the ancient race smarted under the

loss occasioned by the success of English competition; but all felt yet more acutely the gradual increase of a class of strangers in whose hands the wealth of the country appeared to centre, and whose expenditure and influence eclipsed those of the class which had previously occupied the first position in the country. Nor was the intrusion of the English limited to commercial enterprises. By degrees, large portions of land were occupied by them; nor did they confine themselves to the unsettled and distant country of the townships. The wealthy capitalist invested his money in the purchase of seignorial properties; and it is estimated, that at the present moment full half of the more valuable seignories are actually owned by English proprietors. The seignorial tenure is one so little adapted to our notions of proprietary rights, that the new seigneur, without any consciousness or intention to injustice, in many instances exercised his rights in a manner which would appear perfectly fair in this country, but which the Canadian settler reasonably regarded as oppressive. The English purchaser found an equally unexpected and just cause of complaint in that uncertainty of the laws, which rendered his possession of property precarious, and in those incidents of the tenure which rendered its alienation or improvement difficult. But an irritation, greater than that occasioned by the transfer of the large properties, was caused by the competition of the English with the French farmer. The English farmer carried with him the experience and habits of the most improved agriculture in the world. He settled himself in the townships bordering on the seignories, and brought a fresh soil and improved cultivation to compete with the worn-out and slovenly farm of the *habitant*. He often took the very farm which the Canadian settler had abandoned, and, by superior management, made that a source of profit which had only impoverished his predecessor. The ascendancy which an unjust favouritism had contributed to give to the English race in the government and the legal profession, their own superior energy, skill and capital secured to them in every branch of industry. They have developed the resources of the country; they have constructed or improved its means of communication; they have created its internal and foreign commerce. The entire wholesale, and a large portion of the retail trade of the province, with the most profitable and

flourishing farms, are now in the hands of this numerical minority of the population.

Note 2. "Nor does there appear to be the slightest chance of putting an end to this animosity during the present generation. Passions inflamed during so long a period, cannot speedily be calmed. The state of education which I have previously described as placing the peasantry entirely at the mercy of agitators, the total absence of any class of persons, or any organisation of authority that could counteract this mischievous influence, and the serious decline in the district of Montreal of the influence of the clergy, concur in rendering it absolutely impossible for the Government to produce any better state of feeling among the French population. It is even impossible to impress on a people so circumstanced the salutary dread of the power of Great Britain, which the presence of a large military force in the province might be expected to produce. I have been informed, by witnesses so numerous and trustworthy that I cannot doubt the correctness of their statements, that the peasantry were generally ignorant of the large amount of force which was sent into their country last year. The newspapers that circulate among them had informed them that Great Britain had no troops to send out; that in order to produce an impression on the minds of the country-people, the same regiments were marched backwards and forwards in different directions, and represented as additional arrivals from home. This explanation was promulgated among the people by the agitators of each village; and I have no doubt that the mass of the inhabitants really believed that the government was endeavouring to impose on them by this species of fraud. It is a population with whom authority has no means of contact or explanation. It is difficult even to ascertain what amount of influence the ancient leaders of the French party continue to possess. (The name of M. Papineau is still cherished by the people; and the idea is current that, at the appointed time, he will return, at the head of an immense army, and re-establish "La Nation Canadienne.") But there is great reason to doubt whether his name be not used as a mere watchword; whether the people are not in fact running entirely counter to his councils and

policy; and whether they are not really under the guidance of separate petty agitators, who have no plan but that of a senseless and reckless determination to show in every way their hostility to the British Government and English race. Their ultimate designs and hopes are equally unintelligible. Some vague expectation of absolute independence still seems to delude them. The national vanity, which is a remarkable ingredient in their character, induces many to flatter themselves with the idea of a Canadian Republic; the sounder information of others has led them to perceive that a separation from Great Britain must be followed by a junction with the great confederation on their southern frontier. But they seem apparently reckless of the consequences, provided they can wreak their vengeance on the English. There is no people against which early associations and every conceivable difference of manners and opinions have implanted in the Canadian mind a more ancient and rooted national antipathy than that which they feel against the people of the United States. Their more discerning leaders feel that their chances of preserving their nationality would be greatly diminished by an incorporation with the United States; and recent symptoms of Anti-Catholic feeling in New England, well known to the Canadian population, have generated a very general belief that their religion, which even they do not accuse the British party of assailing, would find little favour or respect from their neighbours. Yet none even of these considerations weigh against their present all-absorbing hatred of the English; and I am persuaded that they would purchase vengeance and a momentary triumph by the aid of any enemies, or submission to any yoke. This provisional but complete cessation of their ancient antipathy to the Americans, is now admitted even by those who most strongly denied it during the last spring, and who then asserted that an American war would as completely unite the whole population against the common enemy, as it did in 1813. My subsequent experience leaves no doubt in my mind that the views which were contained in my despatch on the 9th of August are perfectly correct; and that an invading American army might rely on the co-operation of almost the entire French population of Lower Canada."

Note 3. Colonel Prince is the gentleman who took with his own hands General Sutherland and his aide-de-camp, and who ordered the Yankee pirates to be shot. Mr Hume has thought proper to make a motion in the House of Commons, reprobating this act as one of murder. I believe there is little difference whether a man breaks into your house, and steals your money; or burns your house, and robs you of your cattle and other property. One is as much a case of burglary as the other. In the first instance you are justified in taking the robber's life, and why not in the second? Those people who attacked the inhabitants of a country with whom they were in profound peace, were disowned by their own government, consequently they were outlaws and pirates, and it is a pity that Sutherland and every other prisoner taken had not been immediately shot. Mr Hume may flare up in the House of Commons, but I should like to know what Mr Hume's opinion would be if he was the party who had all his property stolen and his house burnt over his head, in the depth of a Canadian winter. I suspect he would say a very different say, as he has no small respect for the *meum*; indeed, I should be sorry to be the party to be sentenced by Mr Hume, if I had stolen a few ducks out of the honourable gentleman's duck decoys near Yarmouth.

Volume Three—Chapter Five.

The Canadas, continued.

In the last chapter I pointed out that in our future legislation for these provinces, we had to decide between the English and French inhabitants; up to the present the French have been in power, and have been invariably favoured by the Government, much to the injury of the English population. Before I offer any opinion on this question, let us inquire what has been the conduct of the French in their exercise of their rights as a Legislative Assembly, and what security they offer us, to incline us again to put confidence in them. In examining into this question, I prefer, as a basis, the Report of Lord Durham, made to the English Parliament. His lordship,

adverting to the state of hostility between the representative and executive powers in our colonies, prefaces with a remark relative to our own country, which I think late events do not fully bear out; he says:—

“However partial the monarch might be to particular ministers, or however he might have personally committed himself to their policy, he has been *invariably* constrained to abandon both, as soon as the opinion of the people has been irrevocably pronounced against them, through the medium of the House of Commons.”

This he repeats in an after part of the Report:—

“When a ministry ceases to command a majority in Parliament on great questions of policy, its doom is immediately sealed; and it would appear to us as strange to attempt, for any time, to carry on a Government by means of ministers perpetually in a minority, as it would be to pass laws with a majority of votes against them.”

If such be an essential part of our constitution, as his lordship asserts, surely we have suffered an inroad into it lately.

That the system of Colonial Government is defective, I grant, but it is not so much from the check which the Legislative Council puts upon the Representative Assembly, as from the secrecy of the acts and decisions of that council. This, indeed, his lordship admits in some cases, and I think that I can fully establish that, without this salutary check, the Legislative Assembly of Lower Canada would have soon voted themselves Free and Independent States. Lord Durham observes:—

“I am far from concurring in the censure which the Assembly and its advocates have attempted to cast on the acts of the Legislative Council. I have no hesitation in saying that many of the bills which it is most severely blamed for rejecting, were bills which it could not have passed without a dereliction of its duty to the constitution, the connexion with Great Britain, and the whole English population of the colony. If there is any censure to be passed on its general conduct, it

is for having confined itself to the merely negative and defensive duties of a legislative body; for having too frequently contented itself with merely defeating objectionable methods of obtaining desirable ends, without completing its duty by proposing measures, which would have achieved the good in view without the mixture of evil. The national animosities which pervaded the legislation of the Assembly, and its thorough want of legislative skill or respect for constitutional principles, rendered almost all its bills obnoxious to the objections made by the Legislative Council; and the serious evil which their enactment would have occasioned, convinces me that the colony has reason to congratulate itself on the existence of an institution which possessed and used the power of stopping a course of legislation that, if successful, would have *sacrificed every British interest, and overthrown every guarantee of order and national liberty.*”

Again:—

“One glaring attempt which was made directly and openly to *subvert the constitution of the country*, was, by passing a bill for the formal repeal of those parts of the 31 Geo. 3, c. 31, commonly called the Constitutional Act, by which the constitution and powers of the Legislative Council were established. It can hardly be supposed that the framers of this bill were unaware, or hoped to make any concealment of the obvious illegality of a measure, which, commencing as all Canadian Acts do, by a recital of the 31 Geo. 3, as the foundation of the legislative authority of the Assembly, proceeded immediately to infringe some of the most important provisions of that very statute; nor can it be supposed that the Assembly hoped really to carry into effect, this extraordinary assumption of power, inasmuch as the bill could derive no legal effect from passing the Lower House, unless it should subsequently receive the assent of the very body which it purported to annihilate.”

Take again the following observations of his lordship:—

“But the evils resulting from such open attempts to dispense with the constitution were small, in comparison with the disturbance of the

regular course of legislation by systematic abuse of constitutional forms, for the purpose of depriving the other branches of the legislature of all real legislative authority.

“It remained, however, for the Assembly of Lower Canada to reduce the practice to a regular system, in order that it might have the most important institutions of the province periodically at its mercy, and use the necessities of the government and the community for the purpose of extorting the concession of whatever demands it might choose to make. Objectionable in itself, on account of the uncertainty and continual changes which it tended to introduce into legislation, this system of temporary laws derived its worst character from the facilities which it afforded to the practice of ‘tacking’ together various legislative measures.

“A singular instance of this occurred in 1836, with respect to the renewal of the jury law, to which the Assembly attached great importance, and to which the Legislative Council felt a strong repugnance, on account of its having in effect placed the juries entirely in the hands of the French portion of the population. In order to secure the renewal of this law, the Assembly coupled it in the same bill by which it renewed the tolls of the Lachine Canal, calculating on the Council not venturing to defeat a measure of so much importance to the revenue as the latter by resisting the former. The council, however, rejected the bill; and thus the canal remained toll-free for a whole season, because the two Houses differed about a jury law.”

So much for their attempts to subvert the constitution. Now let us inquire how far these patriots were disinterested in their enactments. First, as to grants for local improvements, how were they applied? His lordship observes:—

The great business of the Assemblies is, literally, parish business; the making parish roads and parish bridges. There are in none of these provinces any local bodies possessing authority to impose local assessments, for the management of local affairs. To do these things is the business of the Assembly; and to induce the Assembly

to attend to the particular interests of each county, is the especial business of its county member. The surplus revenue of the province is swelled to as large an amount as possible, by cutting down the payment of public services to as low a scale as possible; and the real duties of government are, sometimes, insufficiently provided for, in order that more may be left to be divided among the constituent bodies. 'When we want a bridge, we take a judge to build it,' was the quaint and forcible way in which a member of a provincial legislature described the tendency to retrench, in the most necessary departments of the public service, in order to satisfy the demands for local works. This fund is voted by the Assembly on the motion of its members; the necessity of obtaining the previous consent of the Crown to money votes never having been adopted by the Colonial Legislatures from the practice of the British House of Commons. There is a perfect scramble among the whole body to get as much as possible of this fund for their respective constituents; cabals are formed, by which the different members mutually play into each other's hands; general politics are made to bear on private business, and private business on general politics; and at the close of the Parliament, the member who has succeeded in securing the largest portion of the prize for his constituents, renders an easy account of his stewardship, with confident assurance of his re-election.

"Not only did the leaders of the Lower Canadian Assembly avail themselves of the patronage thus afforded, by the large surplus revenue of the province, but they turned this system to much greater account, by *using it to obtain influence over the constituencies*.

"The majority of the Assembly of Lower Canada is accused by its opponents of having, in the most systematic and persevering manner, employed this means of corrupting the electoral bodies. The adherents of M. Papineau are said to have been lavish in their promises of the benefits which they could obtain from the Assembly for the county, whose suffrages they solicited. By such representations, the return of members of opposition politics is asserted, in many instances, to have been secured; and obstinate counties are alleged to have been sometimes starved into

submission, by an entire withdrawal of grants, until they returned members favourable to the majority. Some of the English members who voted with M. Papineau, excused themselves to their countrymen by alleging that they were compelled to do so, in order to get a road or a bridge, which their constituents desired. Whether it be true or false, that the abuse was ever carried to such a pitch, it is obviously one, which might have been easily and safely perpetrated by a person possessing M. Papineau's influence in the Assembly."

Next for the grants for public education.

"But the most bold and extensive attempt for erecting a system of patronage, wholly independent of the Government, was that which was, for some time, carried into effect by the grants for education made by the Assembly, and regulated by the Act, which the Legislative Council has been most bitterly reproached with refusing to renew. It has been stated, as a proof of the deliberate intention of the Legislative Council to crush every attempt to civilise and elevate the great mass of the people, that it thus stopped at once the working of about 1,000 schools, and deprived of education no less than 40,000 scholars, who were actually profiting by the means of instruction thus placed within their reach. But the reasons which induced, or rather compelled, the Legislative Council to stop this system, are clearly stated in the Report of that body, which contains the most unanswerable justification of the course which it pursued. By that it appears, that the whole superintendence and patronage of these schools had, by the expired law, been vested in the hands of the county members; and they had been allowed to manage the funds, without even the semblance of sufficient accountability. The Members of the Assembly had thus a patronage, in this single department, of about 25,000 pounds per annum, an amount equal to half of the whole ordinary civil expenditure of the Province. They were not slow in profiting by the occasion thus placed in their hands; and as there existed in the Province no sufficient supply of competent schoolmasters and mistresses, they nevertheless immediately filled up the appointments with persons who were *utterly and obviously incompetent. A great proportion of the teachers could*

neither read nor write. The gentleman whom I directed to inquire into the state of education in the Province, showed me a petition from certain schoolmasters, which had come into his hands; and the majority of the signatures were those of *marks-men*. These ignorant teachers could convey no useful instruction to their pupils; the utmost amount which they taught them was to say the Catechism by rote. Even within seven miles of Montreal, there was a schoolmistress thus unqualified. These appointments were, as might have been expected, jobbed by the members among the political partisans; nor were the funds *very honestly* managed. In many cases the members were suspected, or accused, of misapplying them to their own use; and in the case of Beauharnois, where the seigneur, Mr Ellice, has, in the same spirit of judicious liberality by which his whole management of that extensive property has been marked, contributed most largely towards the education of his tenants, the school funds were proved to have been misappropriated by the county member. The whole system was a gross political abuse; and, however laudable we must hold the exertions of those who really laboured to relieve their country from the reproach of being the least furnished with the means of education of any on the North American continent, the more severely must we condemn those who sacrificed this noble end, and perverted ample means to serve the purposes of party."

We will now claim the support of his lordship upon another question, which is, how far is it likely that the law will be duly administered if the power is to remain in the hands of the French Canadian population? Speaking of the Commissioners of Small Causes, his lordship observes:—

"I shall only add, that some time previous to my leaving the Province, I was very warmly and forcibly urged, by the highest legal authorities in the country, to abolish all these tribunals at once, on the ground that a great many of them, being composed entirely of disaffected French Canadians, were busily occupied in harassing loyal subjects, by entertaining actions against them on account of the part they had taken in the late insurrection. There is no appeal from their decision;

and it was stated that they had in the most barefaced manner given damages against loyal persons for acts done in the discharge of their duty, and judgments by default against persons who were absent, as volunteers in the service of the Queen, and enforced their judgment by levying distresses on their property.”

Relative to the greatest prerogative of an Englishman, the trial by jury, his lordship observes:—

“But the most serious mischief in the administration of criminal justice, arises from the entire perversion of the institution of juries, by the political and national prejudices of the people. The trial by jury was introduced with the rest of the English criminal law. For a long time the composition of both grand and petit juries was settled by the governor, and they were at first taken from the cities, which were the *chefs lieux* of the district. Complaints were made that this gave an undue preponderance to the British in those cities; though, from the proportions of the population, it is not very obvious how they could thereby obtain more than an equal share. In consequence, however, of these complaints, an order was issued under the government of Sir James Kempt, directing the sheriffs to take the juries not only from the cities, but from the adjacent country, for fifteen leagues in every direction. An Act was subsequently passed, commonly called ‘Mr Viger’s Jury Act,’ extending these limits to those of the district. The principle of taking the jury from the whole district to which the jurisdiction of the court extended, is, undoubtedly, in conformity with the principles of English law; and Mr Viger’s Act, adopting the other regulations of the English jury law, provided a fair selection of juries. But if we consider the hostility and proportions of the two races, the practical effect of this law was to give the French an entire preponderance in the juries. This Act was one of the temporary Acts of the Assembly, and, having expired in 1836, the Legislative Council refused to renew it. Since that period, there has been no jury law whatever. The composition of the juries has been altogether in the hands of the Government: private instructions, however, have been given to the sheriff to act in conformity with Sir James Kempt’s ordinance; but though he has always done so, the public have had

no security for any fairness in the selection of the juries. There was no visible check on the sheriff; the public knew that he could pack a jury whenever he pleased, and supposed, as a matter of course, that an officer, holding a lucrative appointment at the pleasure of Government, would be ready to carry into effect those unfair designs which they were always ready to attribute to the Government. When I arrived in the Province, the public were expecting the trials of the persons accused of participation in the late insurrection. I was, on the one hand, informed by the law officers of the Crown, and the highest judicial authorities, that not the slightest chance existed, under any fair system of getting a jury, that would convict any of these men, however clear the evidence of their guilt might be; and, on the other side, I was given to understand, that the prisoners and their friends supposed that, as a matter of course, they would be tried by packed juries, and that even the most clearly innocent of them would be convicted.

“It is, indeed, a lamentable fact which must not be concealed, that there does not exist in the minds of the people of this Province the slightest confidence in the administration of criminal justice; nor were the complaints, or the apparent grounds for them, confined to one party.

“The trial by jury is, therefore, at the present moment, not only productive in Lower Canada of no confidence in the honest administration of the laws, but also provides impunity for every political offence.”

I have made these long quotations from Lord Durham's Report as his lordship's authority, he having been sent out as Lord High Commissioner to the Province, to make the necessary inquiries, must carry more weight with the public than any observations of mine. All I can do is to assert that his lordship is very accurate; and, having made this assertion, I ask, what chance, therefore, is there of good government, if the power, or any portion of the power, be left in the hands of those who have in every way proved themselves so

adverse to good government, and who have wound up such conduct by open rebellion.

The position of the Executive in Canada has, for a long while, been just what our position in this country would be if the House of Commons were composed of Chartist leaders. Every act brought forward by them would tend to revolution, and be an infringement of the Constitution, and all that the House of Lords would have to do, would be firmly to reject every bill carried to the Upper House. If our House of Commons were filled with rebels and traitors, the Government must stand still, and such has been for these ten years the situation of the Canadian government; and, fortunate it is, that the outbreak has now put us in a position that will enable us to retrieve our error, and re-model the constitution of these Provinces. The questions which must therefore be settled previous to any fresh attempts at legislation for these Canadians, are,—are, or are not, the French population to have any share in it? Can they be trusted? Are they in any way deserving of it? In few words, are the Canadas to be hereafter considered as a French or an English colony?

When we legislate, unless we intend to change, we must look to futurity. The question, then, is not, who are the majority of to-day, but who will hereafter be the majority in the Canadian Provinces; for all agree upon one point, which is, that we must legislate for the majority. At present, the population is nearly equal, but every year increases the preponderance of the English; and it is to be trusted that, by good management, and the encouragement of emigration, in half a century the French population will be so swallowed up by the English, as to be remembered but on record. If, again, we put the claims of British loyalty against the treason of the French—the English energy, activity, and capital, in opposition to the supineness, ignorance, and incapacity of the French population,—it is evident, that not only in justice and gratitude, but with a due regard to our own interests, the French Canadians must now be *wholly deprived* of any share of that power which they have abused, and that confidence of which they have proved themselves so unworthy. I am much pleased to find that Lord Durham has expressed the same

opinion, in the following remarks; and I trust their importance will excuse to the reader the length of the quotation.

“The English have already in their hands the majority of the larger masses of property in the country; they have the decided superiority of intelligence on their side; they have the certainty that colonisation must swell their numbers to a majority; and they belong to the race which wields the Imperial Government, and predominates on the American continent. If we now leave them in a minority, they will never abandon the assurance of being a majority hereafter, and never cease to continue the present contest with all the fierceness with which it now rages. In such a contest, they will rely on the sympathy of their countrymen at home; and if that is denied them, they feel very confident of being able to awaken the sympathy of their neighbours of kindred origin. They feel that if the British Government intends to maintain its hold of the Canadas, it can rely on the English population alone; that if it abandons its colonial possessions, they must become a portion of that great Union which will speedily send forth its swarms of settlers, and, by force of numbers and activity, quickly master every other race. The French Canadians, on the other hand, are but the remains of an ancient colonisation, and are and ever must be isolated in the midst of an Anglo-Saxon world. Whatever may happen, whatever government shall be established over them, British or American, they can see no hope for their nationality. They can only sever themselves from the British empire by waiting till some general cause of dissatisfaction alienates them, together with the surrounding colonies, and leaves them part of an English confederacy; or, if they are able, by effecting a separation singly, and so either merging in the American Union, or keeping up for a few years a wretched semblance of feeble independence, which would expose them more than ever to the intrusion of the surrounding population. I am far from wishing to encourage, indiscriminately, these pretensions to superiority on the part of any particular race; but while the greater part of every portion of the American continent is still uncleared and unoccupied, and while the English exhibit such constant and marked activity in colonisation, so long will it be idle to imagine that there is any portion

of that continent into which that race will not penetrate, or in which, when it has penetrated, it will not predominate. It is but a question of time and mode; it is but to determine whether the small number of French who now inhabit Lower Canada shall be made English, under a government which can protect them, or whether the process shall be delayed until a much larger number shall have to undergo, at the rude hands of its uncontrolled rivals, the extinction of a nationality strengthened and embittered by continuance.

“And is this French Canadian nationality one which, for the good merely of that people, we ought to strive to perpetuate, even if it were possible? I know of no national distinctions marking and continuing a more hopeless inferiority. The language, the laws, the character of the North American Continent are English; and every race but the English (I apply this to all who speak the English language) appears there in a condition of inferiority. It is to elevate them from that inferiority that I desire to give to the Canadians our English character. I desire it for the sake of the educated classes, whom the distinction of language and manners keeps apart from the great empire to which they belong. At the best, the fate of the educated and aspiring colonist is, at present, one of little hope, and little activity; but the French Canadian is cast still further into the shade, by a language and habits foreign to those of the Imperial Government. A spirit of exclusion has closed the higher professions on the educated classes of the French Canadians, more, perhaps, than was absolutely necessary; but it is impossible for the utmost liberality on the part of the British Government to give an equal position in the general competition of its vast population to those who speak a foreign language. I desire the amalgamation still more for the sake of the humbler classes. Their present state of rude and equal plenty is fast deteriorating under the pressure of population in the narrow limits to which they are confined. If they attempt to better their condition, by extending themselves over the neighbouring country, they will necessarily get more and more mingled with an English population; if they prefer remaining stationary, the greater part of them must be labourers in the employ of English capitalists. In either case it would appear, that the great mass of the French

Canadians are doomed, in some measure, to occupy an inferior position, and to be dependent on the English for employment. The evils of poverty and dependence would merely be aggravated in a ten-fold degree, by a spirit of jealous and resentful nationality, which should separate the working class of the community from the possessors of wealth and employers of labour.

“I will not here enter into the question of the effect of the mode of life and division of property among the French Canadians, on the happiness of the people. I will admit, for the moment, that it is as productive of well-being as its admirers assert. But, be it good or bad, the period in which it is practicable, is past; for there is not enough unoccupied land left in that portion of the country in which English are not already settled, to admit of the present French population possessing farms sufficient to supply them with their present means of comfort, under their present system of husbandry. No population has increased by mere births so rapidly as that of the French Canadians has since the conquest. At that period their number was estimated at 60,000: it is now supposed to amount to more than seven times as many. There has been no proportional increase of cultivation, or of produce from the land already under cultivation; and the increased population has been in a great measure provided for by mere continued subdivision of estates. In a Report from a Committee of the Assembly in 1826, of which Mr Andrew Steuart was chairman, it is stated, that since 1784 the population of the seignories had quadrupled, while the number of cattle had only doubled, and the quantity of land in cultivation had only increased one-third. Complaints of distress are constant, and the deterioration of the condition of a great part of the population admitted on all hands. A people so circumstanced must alter their mode of life. If they wish to maintain the same kind of rude, but well-provided agricultural existence, it must be by removing into those parts of the country in which the English are settled; or if they cling to their present residence, they can only obtain a livelihood by deserting their present employment, and working for wages on farms, or on commercial occupations under English capitalists. But their present proprietary and inactive condition is one which no

political arrangements can perpetuate. Were the French Canadians to be guarded from the influx of any other population, their condition in a few years would be similar to that of the poorest of the Irish peasantry.

“There can hardly be conceived a nationality more destitute of all that can invigorate and elevate a people, than that which is exhibited by the descendants of the French in Lower Canada, owing to their retaining their peculiar language and manners. They are a people with no history, and no literature. The literature of England is written in a language which is not theirs; and the only literature which their language renders familiar to them, is that of a nation from which they have been separated by eighty years of a foreign rule, and still more by those changes which the Revolution and its consequences have wrought in the whole political, moral, and social state of France. Yet it is on a people whom recent history, manners, and modes of thought, so entirely separate from them, that the French Canadians are wholly dependent for almost all the instruction and amusement derived from books: it is on this essentially foreign literature, which is conversant about events, opinions and habits of life, perfectly strange and unintelligible to them, that they are compelled to be dependent. Their newspapers are mostly written by natives of France, who have either come to try their fortunes in the province, or been brought into it by the party leaders, in order to supply the dearth of literary talent available for the political press. In the same way their nationality operates to deprive them of the enjoyments and civilising influence of the arts. Though descended from the people in the world that most generally love, and have most successfully cultivated the drama—though living on a continent, in which almost every town, great or small, has an English theatre, the French population of Lower Canada, cut off from every people that speak its own language, can support no national stage.

“In these circumstances, I should be indeed surprised if the more reflecting part of the French Canadians entertained at present any hope of continuing to preserve their nationality. Much as they struggle against it, it is obvious that the process of assimilation to

English habits is already commencing. The English language is gaining ground, as the language of the rich and of the employers of labour naturally will. It appeared by some of the few returns, which had been received by the Commissioner of Inquiry into the state of education, that there are about ten times the number of French children in Quebec learning English, as compared with the English children who learn French. A considerable time must, of course, elapse before the change of a language can spread over a whole people; and justice and policy alike require, that while the people continue to use the French language, their government should take no such means to force the English language upon them as would, in fact, deprive the great mass of the community of the protection of the laws. But, I repeat, that the alteration of the character of the province ought to be immediately entered on, and firmly, though cautiously, followed up; that in any plan, which may be adopted for the future management of Lower Canada, the first object ought to be that of making it an English province; and that, with this end in view, the ascendancy should never again be placed in any hands but those of an English population. Indeed, at the present moment, this is obviously necessary: in the state of mind in which I have described the French Canadian population, as not only now being, but as likely for a long while to remain, the trusting them with an entire control over this province would be, in fact, only facilitating a rebellion. Lower Canada must be governed now, as it must be hereafter, by an English population; and thus the policy, which the necessities of the moment force on us, is in accordance with that suggested by a comprehensive view of the future and permanent improvement of the province.”

Volume Three—Chapter Six.

The Canadas, continued.

I have quoted largely from Lord Durham’s Report, as in most points relative to *Lower Canada*, especially as to the causes which produced the rebellion, the unwarrantable conduct of the Legislative

Assembly, and his opinions as to the character of the French Canadians, I consider that the remarks are correct: they are corroborated by my own opinions and observations: but I think that the information he has received relative to *Upper Canada* is not only very imperfect, but certainly derived from parties who were not to be trusted: take one simple instance. His lordship says in his Report, that the petitioners in favour of Mathews and Lount, who were executed, amounted to 30,000, whereas it is established, that the whole number of six natures only amounted to 4,574. Those who deceive his lordship in one point would deceive him in another; indeed his lordship had a task of peculiar difficulty, going out as he did, vested with such powers, and the intents of his mission being so well known. It is not those who are in high office that are likely to ascertain the truth, which is much more likely to be communicated to a humble individual like myself, who travels through a country and hears what is said on both sides. The causes stated by his lordship for discontent in Upper Canada are not correct. I have before said, and I repeat it, that they may almost be reduced to the following: the check put upon their enterprise and industry by the acts of the Lower Canadian Assembly; and the favour shewn to the French by the Colonial Office, aided by the machinations of the American party, who fomented any appearance of discontent.

There is in his lordship's Report, an apparent leaning towards the United States, and its institutions, at which I confess that I am surprised. Why his lordship, after shewing that the representative government did all they possibly could to overthrow the constitution, should propose an increase of power to that representative government, unless, indeed, he would establish a democracy in the provinces, I am at a loss to imagine.

That a representative body similar to that which attempted to overturn the constitution in Lower Canada can work well, and even usefully reform when in the hands of loyal English subjects, is acknowledged by his lordship, who says, "the course of the Parliamentary contest in Upper Canada has not been marked by that singular neglect of the great duties of a legislative body, which I have

remarked in the proceedings of the Parliament of Lower Canada. The statute book of the Upper Province abounds with useful and well-constructed measures of reform, and presents an honourable contrast to that of the Lower Province.”

Indeed, unless I have misunderstood his lordship he appears to be inconsistent, for in one portion he claims the extension of the power of the representative, and in another he complains of the want of vigorous administration of the royal prerogative, for he says:—

“The defective system of administration in Lower Canada, commences at the very *source* of power; and the efficiency of the public service is impaired throughout by the entire want in the colony of any vigorous administration of the prerogative of the crown.”

To increase the power of the representative is to increase the power of the people, in fact to make them the *source* of power; and yet his lordship in this sentence acknowledges that the crown is the *source* of power, and that a more vigorous administration of its prerogative is required.

There are other points commented upon in his lordship’s Report, which claim earnest consideration: one is, that of the propriety of municipal institutions. Local improvements, when left in the hands of representative assemblies, are seldom judicious or impartial, and should therefore be made over either to the inhabitants or executive. The system of townships has certainly been one great cause of the prosperity of the United States, each township taxing itself for its own improvement. Although the great roads extending through the whole of the Union are in the hands of the Federal Government, and the States Government take up the improvement on an extensive scale in the States themselves, the townships, knowing exactly what they require, tax themselves for their minor advantages. The system in England is much the same, although perhaps not so well regulated as in America. Are not, however, municipal institutions valuable in another point of view? Do they not prepare the people for legislating? are they not the rudiments of legislation by which a free people learn to tax themselves? And indeed, it may also be asked,

would not the petty influence and authority confided to those who are ambitious by their townsmen satisfy their ambition, and prevent them from becoming demagogues and disturbing the country?

Whatever may be the future arrangements for ruling these provinces, it appears to me that there are two great evils in the present system; one is, that the governors of the provinces have not sufficient discretionary power, and the other, that they are so often removed. The evils arising from the first cause have been pointed out in Lord Durham's Report:—

“The complete and unavoidable ignorance in which the British public, and even the great body of its legislators, are with respect to the real interests of distant communities, so entirely different from their own, produces a general indifference, which nothing but so me great colonial crisis ever dispels; and responsibility to Parliament, or to the public opinion of Great Britain, would, except on these great and rare occasions, be positively mischievous, if it were not impossible. The repeated changes caused by political events at home having no connexion with colonial affairs, have left, to most of the various representatives of the Colonial Department in Parliament, too little time to acquire even an elementary knowledge of the condition of those numerous and heterogeneous communities for which they have had both to administer and legislate. The persons with whom the real management of these affairs has or ought to have rested, have been the permanent but utterly irresponsible members of the office. Thus the real government of the colony has been entirely severed from the slight nominal responsibility which exists. Apart even from this great and primary evil of the system, the presence of multifarious business thus thrown on the Colonial Office, and the repeated changes of its ostensible directors, have produced disorders in the management of public business which have occasioned serious mischief, and very great irritation. This is not my own opinion merely; for I do but repeat that of a select committee of the House of Assembly in Upper Canada, who, in a Report dated February 8, 1838, say, ‘It appears to your committee, that one of the chief causes of dissatisfaction with the administration of colonial

affairs arises from the frequent changes in the office of secretary of state, to whom the Colonial department is intrusted. Since the time the late Lord Bathurst retired from that charge, in 1827, your committee believe there has not been less than eight colonial ministers, and that the policy of each successive statesman has been more or less marked by a difference from that of his predecessor. This frequency of change in itself almost necessarily entails two evils; *first*, an imperfect knowledge of the affairs of the colonies on the part of the chief secretary, and the consequent necessity of submitting important details to the subordinate officers of the department; and, *second*, the want of stability and firmness in the general policy of the Government, and which, of course, creates much uneasiness on the part of the Governors, and other officers of the colonies, as to what measures may be approved.

“But undoubtedly (continues the Report) by far the greatest objection to the system is the impossibility it occasions of any colonial minister, unaided by persons possessing local knowledge, becoming acquainted with the wants, wishes, feelings, and prejudices of the inhabitants of the colonies, during his temporary continuance in office, and of deciding satisfactorily upon the conflicting statements and claims that are brought before him. A firm, unflinching resolution to adhere to the principles of the constitution, and to maintain the just and necessary powers of the crown, would do much towards supplying the want of local information. But it would be performing more than can be reasonably expected from human sagacity, if any man, or set of men, should always decide in an unexceptionable manner on subjects that have their origin thousands of miles from the seat of the Imperial Government, where they reside, and of which they have no personal knowledge whatever; and therefore wrong may be often done to individuals, or a false view taken of some important political question, that in the end may throw a whole community into difficulty and dissension, not from the absence of the most anxious desire to do right, but from an imperfect knowledge of facts upon which to form an opinion.”

This is all very true. There is nothing so difficult as to legislate for a colony from home. The very best theory is useless; it requires that you should be on the spot, and adapt your measures to the circumstances and the growing wants of the country. I may add that it is wrong for the Home Government to consider the government given to the colony as permanent. All that the mother-country can do is to give it one which, in theory, appears best adapted to secure the true freedom and happiness of the people; but leaving that form of government to be occasionally modified, so as to meet the changes which the colony may require, and to conform with its wants and its rising interests: all of which being unforeseen could not be provided for by the prescience of man. The governor, therefore, of a colony should be invested with more discretionary power.

The constant removal of the governor from the colony is also much to be deprecated. On his first arrival, he can only have formed theoretical views, which, in all probability, he will have to discard in a few months. He finds himself surrounded by people in office, interested in their own peculiar policy, and viewing things through their own medium. In all colonies you will usually find an oligarchy, cemented by mutual interest and family connection, and so bound up together as to become formidable if opposed to the Government. Into the hands of these people a governor must, to a certain degree, fall; and must remain in them until he has had time to see clearly and to judge for himself. But by the time that he has just disenthralled himself, he is removed, and another appointed in his place, and the work has to commence *de novo*.

Lord Durham has proposed that the Canadas should be united, and there certainly are some benefits which would arise *could* their union take place. He asserts most positively that the French party must be annihilated. He says:— “It must henceforth be the first and steady purpose of the British Government to establish an English population, with English laws and language in this province, and to trust its government to none but a decidedly English legislature.” This is plain and clear; but how is it to be effected? The land of Lower Canada is still in the hands of the French, and nearly five

hundred thousand out of six hundred thousand of the population are French.

How, then, are we to make the Lower Canadas English? We may buy up the seigneuries; we may insist upon the English language being used in the Assembly and courts of law, in public documents, etcetera; we may alter the laws to correspond with those of the mother-country; but will that make the province English? We may even insist that none but English-born subjects, or Canadian-born English, shall be elected to the House of Assembly, or hold any public office; but will that make the province English? Certainly not. There is no want of English-born demagogues, as well as French, in the province. The elections of the Lower province are decided by the Canadian French, who are in the majority, and they would find no difficulty in obtaining representatives who would continue the former system of controlling the executive and advocating rebellion. Is it, then, by altogether taking away from the Canadian French the elective franchise and giving it entirely into the hands of the English, that the province is to be made English? If so, although I admit the French have proved themselves undeserving, and have by their rebellion forfeited their birth-right, you then place them in the situation of an injured, oppressed, and sacrificed people; reducing them to a state of slavery which, notwithstanding their offences, would still be odious to the present age. By what means, therefore, does his lordship intend that the province shall become English—by immigration? That requires time; and before the immigration necessary can take place the Canadas may be again thrown into a rebellion by the French machinations. In our future legislation for the Canadas, we must always bear in mind that the French population will be opposed to the Government and to the mother-country; and that there is no chance of a better state of feeling in the Lower province until they shall become amalgamated and swallowed up by British immigration. Until that takes place, the union of the Canadas will only create a conflict between the two races, as opposed to each other as fire and water, and nearly equal in numbers. It will be an immense cauldron, bubbling, steaming, and boiling over—an incessant scene of strife and irritation—a source of anxiety and

expense to the mother-country, and, so far from going a-head, I should not be surprised if, in twenty years hence, the English population should be found to be smaller than it now is. Political dissensions would paralyse enterprise, frighten away capital, and, in all probability, involve us in a conflict with the United States. Until, therefore, I understand how the Lower Province is to become British, I cannot think a union between the Canadas advisable.

Whether his lordship is aware of it or not, I cannot say; but there appears to me to be a strong inclination to democracy in all his proposed plans, and an evident leaning towards the institutions of the United States. He wishes to make the Executive Government responsible to the people; he would make one Federal Union of all our provinces, and institute the Supreme Court of Appeal which they have in the United States. In short, change but the word governor for president, and we should have the American constitution, and a “free and enlightened people;”—that is to say, the French Canadians, who can *neither read nor write*, governing themselves.

So far from a Federal union between all our transatlantic possessions being advisable, I should think, from their contiguity with the Americans, that it would be advisable to keep them separate. I am of the same opinion respecting the Canadas. I consider that, even as two provinces, they are too vast in territory already. Whether it be a woman looking after her servants and household affairs, or a captain commanding a ship, or a governor ruling over a province, large or small as may be the scale of operation, one of the most important points in good legislation, is the eye. A governor of a vast province cannot possibly be aware of the wants of the various portions of the province. He is obliged to take the reports of others, and consequently very often legislates unadvisedly.

That the two provinces cannot remain in their present state is acknowledged by all. The question therefore is, can we rationally expect any improvement from their union? Perhaps it may appear presumptuous in me to venture to differ from Lord Durham, who is a statesman born and bred—for this is not a party question in which a

difference of politics may bias one: it is a question as to the well-governing of a most important colony, and no one will for a moment doubt that his lordship is as anxious as the Duke of Wellington, and every other well-wisher to his country, to decide upon that which he considers honestly and honourably to be the best. It is really, therefore, with great deference that I submit to him, whether another arrangement should not be well considered, before the union of the two provinces is finally decided upon.

His lordship has very truly observed, that in legislating, we are to legislate for futurity; if not, we must be prepared for change. Acting upon this sound principle, we are to legislate upon the supposition that the whole country of Upper and Lower Canada *is* well peopled. We are not to legislate for the present population, but for the future. And how is this to be done in the present condition of the provinces? Most assuredly by legislating for territory—for the amount of square acres which will eventually be filled up by emigration. I perfectly agree with his lordship in the remark that, “if the Canadians are to be deprived of their representative government, it would be better to do it in a straightforward way;” but I submit that it would be done in a straightforward way by the plan I am about to submit to him, and I consider it more advisable than that of convulsing the two provinces by bringing together two races so inveterate against each other. Instead of a union of the two provinces, I should think it more advisable to separate the Canadas into three: Upper, Lower, and Middle Canada,—the line of demarcation, and the capitals of each Province appearing already to be marked out. The Lower province would have Quebec, and be separated from the Middle province by the Ottawa river. The Middle province would have Montreal, and would extend to a line drawn from Lake Simcoe to Lake Ontario, throwing into it *all the townships on the American side of the St. Lawrence*, which would do away with the great objection of the Upper province being dependent upon the Lower for the transport of goods up the river, and the necessity of dividing between the provinces the custom-house revenues. Under any circumstances, it would be very advantageous to have sport of entry and a custom-house, in or nearer to the Gulf of St. Lawrence, as ships would then

be able to make an extra voyage every year. I should say that about Gaspé would be the spot. This bay being on the American side of the river St. Lawrence would become the entry port for the Upper and Middle provinces, rendering them wholly independent of the Lower. The Upper province would comprehend all the rest of the territory west of the line, drawn from Lake Superior, and have Toronto for its capital. This would be a pretty fair division of territory, and each province would be more than sufficient for the eye of the most active governor. Let each province have its separate sub-governor and House of Assembly; but let the Upper House, or Senate, be selected of *equal numbers* from *each* province, and assemble at Quebec, to decide, with the *Governor-in-chief of the provinces*, upon the passing or rejecting of the bills of the three respective Lower Houses. This, although perfectly fair, would at once give in the *Senate* the preponderance to the English of the Upper and Middle provinces. It would still leave to the Lower Canadians their franchise; and their House of Assembly would be a species of safety-valve for the demagogues to give vent to their opinions, (without their being capable of injuring the interests of the provinces,) until they gradually amalgamated with the British immigration. I merely offer this plan as a suggestion to his lordship, and, of course, enter into no further detail.

There are, however, one or two other points which appear to me to be worthy of consideration. If the Canadas are of that importance which I think them, there are no means which we should not use to attach them to the mother country—to make them partial to monarchical institutions—and to *identify* them with the British empire. We should make sacrifices for them that we would not for other colonies; and therefore it is that I venture my opinion, that it would not only be politic, but just, to such an extensive territory—and what will eventually be, such an extensive population—to permit each of the three provinces, (provided they are ever divided into three,) to select one of their senate to represent them in the British House of Commons. I consider it but an act of justice as well as of policy. This step would, as I said before, *identify* these valuable provinces with ourselves. They then would feel that they were not merely ruled by,

but that they were part and portion of, and assisted in, the government of the British empire. And to draw the line as strictly as possible between them and their democratic neighbours, and to attach them still closer to monarchical institutions, it should be proposed to the Sovereign of these realms that an Order of knighthood and an Order of merit expressly Canadian should be instituted. These last may be considered by many to be, and perhaps in themselves are, trifles; but they are no trifles when you consider that they must militate against those democratic feelings of equality which have been so industriously and so injuriously circulated in the provinces by our transatlantic descendants. I cannot better conclude these observations than by quoting the opinion of so intelligent a nobleman as Lord Durham, who asserts most positively that, "England, if she loses her North American colonies, must sink into a second-rate power."

Volume Three—Chapter Seven.

Indians.

There was no subject of higher interest to me during my travels in North America, than the past and present condition of the Indian tribes. Were I to enter into the history of the past, I could easily fill three or four volumes with matter which I think would be found very well worth perusing. It is to be lamented that there has been no correct history of the Indian tribes yet published. There are many authors in America well calculated to undertake the task; and the only reason which I can give for its not having been already done, is that, probably, the American Government are not very willing to open the archives of the Indian department even to their own countrymen; and, at the same that time, an American author, who would adhere to the truth, would not become very popular by exposing the system of rapine and injustice which was commenced by the English who first landed, and has been continued up to the present day by the Federal Government of the United States. Nevertheless, it is to be lamented, now that the race is so fast disappearing, that a good

historical account of them is not published. There is no want of material for the purpose, even if the Government refuse their aid; but at present, it is either scattered in various works, or when attempted to be collected together, the author has not been equal to the task.

There is a question which has been raised by almost every traveller in America, and that is—from whom are the American Indians descended? and I think, from the many works I have consulted, that the general opinion is, that they are descended from the lost tribes of Israel. We have never discovered any other nation of savages, if we may apply such a term to the American Indians, who have not been idolators; the American Indian is the only one who worships the one living God. In a discourse, which was delivered by Mr Noah, one of the most intelligent of the Jewish nation that I ever had the pleasure of being acquainted with, there is much deep research, and a collection of the various opinions upon this subject. To quote from it would not do it justice, and I have therefore preferred, as it is not long, giving the whole of it in the Appendix, as it is not (though should be more) generally known. In the second volume I have given a map of North America, in which I have laid down, as correctly as I can, and sufficiently so for the purpose, the supposed locations of the various tribes, at the period that the white man first put his foot on shore in America. I have said “as correctly as I can,” for it would be as difficult to trace the outer edges of a shifting sand-bank under water, as to lay down the exact portion of territory occupied by tribes who were continually at war, and who advanced or retreated according as they were victorious or vanquished. Indeed, many tribes were totally annihilated, or their remnants incorporated into others, living far away from their original territories: the Tuscororas, for instance, were driven out of Carolina and admitted into the Mohawk confederacy, which originally came down from the upper shores of the river St. Lawrence. The Winnebagoes, also, were driven from the south and settled on the river Wisconsin. The Sacs and Foxes fought their way from the river St. Lawrence to the Fox river, in Wisconsin, and were driven from thence, by the Menomonies and Chippewas, to the territory of Rock river, on the river Mississippi, where they remained, until deprived of their territory

by the Federal Government, and sent away to the west of the river. I make these observations that the map may not be cavilled at by some hyper critic, who has thought that he has discovered a mare's nest; it is as accurate as I can make it, and I profess to do no more.

Notwithstanding the vicissitudes which continually occurred, the tribes of North American Indians may be classed as follows:—

The Algonquin stock of the North—under which are comprehended the Chippewas, Ottawas, Menomonies, Hurons, etcetera.

The Southern tribes, who are also descended from one stock, and comprise Creeks, Cherokees, Choctaws, Catawbaws, Chickasaws, etcetera.

The *Horse* Indians of the West, as the Pawnees, Osages, Sioux, Kansas, Comanches, etcetera.

The Indians of the Rocky Mountains, as Crows, Snakes, and Blackfeet.

All the above races were composed of numerous tribes, who acknowledged themselves as blood relations, but did not enter into any confederacy for mutual support; on the contrary, often warred they with each other. There were other powerful tribes, which resided between the lakes and the Ohio, bordering on the hunting grounds of Kentucky and Tennessee, which portion appeared to be set aside, by general consent, not only for hunting but for war. There were Delawares, or Lenni-Lenape, the Shawnees, Wyandots, Illinois, Peoria, and some others.

The *confederate* tribes, and with which the early settlers had to contend, were as follows:—

The Powhatan confederacy, comprising the Monacans, Monahoacs, and Powhatans, occupying the present state of Virginia from the sea-coast to the Alleghany mountains.

The New England confederacy, who resided in the present States of New England, composed of the Pequots, Narangassets, Pawtuckets, Pokanokets, and Massachusetts tribes.

And lastly, the confederacy of the five nations, or Mohawks, called Mingos by the other Indians, and Iroquois by the French. This confederacy was composed of the Mohawks, Oneidas, Caguyas, Onandagas, and Senecas. The Tuscaroras were afterwards admitted as a sixth.

I will make a few brief observations upon the various tribes, in the order I have set them down.

The Algonquin stock has suffered less than any other, simply because they have been located so far north, and their lands have not been required. The Chippewas are at present the most numerous tribe of Indians. The most celebrated chief of this stock was Pontiac, an Ottawa. After the Canadas were given up to the English, he proved a most formidable enemy; he attempted and, to a certain degree, succeeded, in uniting the tribes against us, and had not his plot been discovered, would, in all probability, have wrested from us Detroit, and every other post in our possession on the lakes. But Pontiac could not keep up a standing army, which was so contrary to the habits of the Indians; one by one the tribes deserted him, and sued for peace. Pontiac would not listen to any negotiations: he retired to Illinois, and was murdered by a Peoria Indian. The Ottawas, Chippewas, and Pottawatamies, who fought under him, avenged his death by the extermination of nearly the whole tribe of Peorias. Pontiac was one of the greatest Indians in history.

Of the Southern tribes there are not any records sufficiently prominent for so short a notice.

The Horse Indians of the West and those of the Rocky Mountains are scarcely known.

The Midland tribes produced some great men. The Delawares were at one period the most celebrated. The Shawanees, or Shawnees, do not appear to have been opposed to the Whites, until Boone and his adventurers crossed the Alleghanies, and took possession of the valley of Kentucky. But the Shawnees have to boast of Tecumseh, a chief, as great in renown as Pontiac; he also attempted to confederate all the tribes and drive away the Whites; his history is highly interesting. He fell in battle fighting for the English, in the war of 1814.

The *confederate tribes* on the eastern coast, were those with which the first settlers were embroiled. The history of Virginia is remarkable for one of the most singular romances in real life which ever occurred: I allude to Pocahontas, the daughter of the king of the Powhatans, who saved the life of the enterprising Captain Smith, at the imminent risk of her own. The romance was not, however, wound up by their marriage, Captain Smith not being a marrying man; but she afterwards married a young Englishman, of the name of Randolph, was brought to England, received at court, and paid much attention to by Queen Anne. Some of the first families in Virginia proudly and justly claim their descent from this noble girl.

The New England Confederacy was opposed to the pilgrim fathers and their descendants. The chief tribe, the Wampanoags, have to boast of the third great chief among the Indian tribes—King Philip. His history is well known; I have already referred to it in my Diary.

If the reader will consult the histories of Philip, Pontiac and Tecumseh, who may fairly be said to have been “great men,” he will perceive that in each case, these chiefs were the life and soul of enterprise and action, and that it was by their talents, bravery, and activity, that the tribes were confederated and led against the Whites. As soon as they were gone, there were none who could succeed them or fill up their places, and the confederacies were immediately broken up. But this was not the case with the celebrated five nations, or Mohawks, who, like the Romans of former days, spread their conquests until their name was a terror wherever it was mentioned.

Philip, Pontiac and Tecumseh were great men, but the Mohawks' confederacy was a nation of great men. When the French settled in Canada in 1603, the Mohawks, or Iroquois as they called them, were living near to where Montreal now stands. They were at war with the Adirondacks, a very numerous and powerful nation, and were beaten down towards the Lakes; but they recovered themselves, and their opponents were in their turn beaten down to Quebec. The war between the Adirondacks and the Iroquois is full of the most interesting details of courage on both sides. The Iroquois having subdued, and, indeed, exterminated the Adirondacks, turned their arms against several other tribes, whom they vanquished; they then attacked the Ottawas and Hurons, and drove them to the other side of the Mississippi. The Illinois were next subdued, then the Miamies and Shawnees were driven back for the time. Finally, they conquered the Virginian tribes, and warred against the Cherokees, Catawbas, and other nations of the South. Although it was impossible for them to hold the vast extent of country which they had overrun, still it is certain that their very name was so terrible that, from New England to the Mississippi, every town and village would be deserted at their approach.

The chief portion of the Mohawks, under their celebrated leader Brandt, served on the British side in the war of Independence, and at the close of the war, they settled in lands given them by the English, on the banks of Grand river in Canada in the year 1783. At the time they took possession of their land, their numbers amounted to nearly 8,000; but, as is every where the case where the Indians are settled and confined on reserved lands, they have now decreased to about 2,500. A portion of the tribe of Senecas, one of the Mohawk confederacy, joined the Americans; the remnants of them are still located a few miles from Buffalo, in the State of New York. Their chief, Red-jacket, died lately; he was a great warrior and still greater orator.

The most formidable opponents to the five nations were the Delawares, or Lenni Lenape, who lived in Pennsylvania. The Delawares joined the British in the war of Independence.

In the succeeding chapter, I shall give the reader a census of the American Indian tribes which still remain. It will be perceived that they are chiefly comprised of tribes which inhabited the Far-West, and were until lately, almost unknown. Of the New England and Virginian confederacies, once so powerful, not a vestige remains; of the Delawares, 826 still exist west of the Mississippi; of the Shawanees, or Shawnees, once so terrible on the banks of the Ohio, 1,272. In fact, all those Indians whose territory bounded the coast first taken possession of by the white men, have been annihilated. I have often heard it argued, when I was in the United States, that the Indians could not be considered as having any claim to the land, as they did not settle or cultivate it, and it is a general opinion that they lived almost entirely by the proceeds of the chase: but this is not a fact; indeed it is disproved by the early settlers themselves, who acknowledge that if they had not been supplied with corn by the Indians they must have starved. That the Indians did not grow more than was sufficient for their own consumption is very probable, but that they did cultivate the land is most certain; indeed, when the country and soil were favourable, they appear to have cultivated to a great extent. When General Wayne destroyed the settlements of the Miamies and Wyandots, on the Miami river, in 1794, he says in his despatch, “never have I beheld such immense fields of corn in any part of America as possessed by these Indians.” The chase was considered by the Indians as a preparatory school for warriors, and was followed accordingly; indeed, a hunting party and a war party were often one and the same thing, as the hunting grounds were common, and when tribes who were at variance fell in with each other, a conflict invariably ensued. My limits will not permit me to enter into the subject more fully; my object has been, in as few pages as possible, to assist the map in giving the reader some idea of the location of the Aborigines of America. If he would know more of this interesting people, there are many very excellent works concerning them written by Americans, which, were they collected together, would form a most valuable and important history.

Indians.

I will now enter into a short examination of the present position of the remaining Indian tribes. The plan of the American Government has been to compel them to sell their lands and remove west of the Mississippi, to lands of which I doubt that the Americans have any right to claim an acre. That the removal of them is expedient I grant, and that is all that can be said on the subject. That the Indians were fated to melt away before the white men, like snow before the sun, is true; still, it is painful to consider what has taken place from the period of our first landing, when we were received hospitably—saved from starvation by the generous sacrifice of their small stores of grain—permitted to settle upon a small tract of land humbly solicited—and that from the time that the white men once gained a footing on their shores, the Indians have been hunted like wild beasts from hill to hill, from river to river, and from country to country, until nearly the whole of the vast continent may be said to have been wrested from them. This system is still continued, one tribe being forced back westward upon another, till they come into conflict with, and destroy, each other; but the buffalo and other animals, upon which they depend for food, recede with them and gradually disappear. As Christians, we must lament that the track for the advance of Christianity is cleared away by a series of rapine, cruelty, and injustice, at which every one must shudder.

The following is the Report to the American Government, of the various tribes of Indians remaining in the year 1837. It is divided into three parts.

Statement showing the number of Indians now east of the Mississippi; of those that have emigrated from the east to the west of that river; and those within striking distance of the Western frontier.

1.—Name and number of the tribes now east of the Mississippi.

1.—Under treaty stipulations to remove west of the Mississippi.

Winnehagoes	4,500
Ottawas of Ohio	100
Pottawatamies of Indiana	2,950
Chippewas, Ottawas, and Pottawatamies	1,500
Cherokees	14,000
Creeks	1,000
Chickasaws	1,000
Seminoles	5,000
Appalachicolas	400
Ottawas and Chippewas in the Peninsula of Michigan	6,500
—	36,950

2.—*Not under treaty stipulations to remove.*

New York Indians	4,176
Wyandots	575
Miamies	1,100
Menomonies	4,000
Ottawas and Chippewas of the lakes	2,564
—	12,415
—	49,365

2.—*Number of Indians who have emigrated from the east to the west of the Mississippi.*

Chickasaws	549
Chippewas, Ottawas, and Pottawatamies,	2,191
Choctaws	15,000
Quapaws	476

Creeks	20,437
Seminoles	407
Appalachicolas	265
Cherokees	7,911
Kickapoos	588
Delawares	826
Shawnees	1,272
Ottawas	374
Weas	222
Piankeshaws	162
Peorias and Kaskaskias	132
Pottawatamies of Indians	53
Senecas	251
Senecas and Shawnees	211
Total	51,327

3.—Number of the Indigenous Tribes within striking distance of the Western frontier.

Sioux	21,600
Iowas	1,500
Sacs	4,800
Foxes	1,600
Sacs of the Missouri	500
Osages	5,120
Kansas	1,606
Omahas	1,600
Ottoes and Missourias	1,000
Pawnees	12,500
Comanches	19,200

Kioways	1,800
Mandans	3,200
Quapaws	450
Minatarees	2,000
Pagans	30,000
Assinaboins	15,000
Appaches	20,280
Crees	3,000
Arrepahas	3,000
Gros-Ventres	16,800
Eutaws	19,200
Crows	7,200
Caddoes	2,000
Poncas	900
Arickarees	2,750
Cheyennes	3,200
Blackfeet	30,000
Total	231,806

Recapitulation.

Number of Indians now east of the Mississippi 49,365

Number of Indians who have emigrated from east to west side
51,327

Number of indigenous tribes 231,806

Aggregate 332,498

Estimated number of warriors.

Whole number of Indians 332,498

Assuming that every fifth one may be considered a warrior (and this is believed to be a reasonable supposition), the number of warriors will be 66,499

War Department, Office of Indian Affairs, November 22, 1837.

CA Harris, Commissioner.

This force of the Indians, if ever they combined, would be very formidable, and they might certainly sweep away the whole white population west of the Mississippi. That there will hereafter be an attempt of that kind is very probable, as hunger must eventually drive them to it; but any success in their attempt must depend very much upon their leaders, and the possibility of combination. It certainly *appears* to have been an oversight on the part of the American Government, to concentrate the whole of the Indians upon their frontiers in the way which they have done; still they could not well have acted otherwise. The removal of the Cherokees has been the most hazardous part of their proceeding, as they are very superior people; and should the other tribes put themselves under their directions, they would be formidable enemies. There is another circumstance which may render the Indians more serious enemies, which is, that they, having been located on the prairie country, have become Horse Indians, instead of what is termed Wood Indians, and they have a vast country behind them to retreat to in case of necessity. I do not think, however, that there is, at present, much fear to be felt relative to the Indians, although the Cherokees, the Sioux, and some other powerful tribes openly declare their hostile intentions as soon as an opportunity offers for carrying them into execution. That opportunity will not offer unless America is plunged into war with France or this country, and then I am pretty confident that there will be a general rising of the Indians; when, whether they act in concert or not, they will give the Americans more occupation than will be agreeable. The American Government have not been insensible to the danger to which they are exposed from this quarter, and, in 1837, the reports of military men were sent into Congress as to the

best plan of protecting their frontier. Whether those reports are intended to be acted upon I know not; but if so, the present regular army of the United States will not be sufficient for the purpose, the lowest estimation for the garrisons of the proposed forts being 7,000 rank and file, while at present their rank and file on the army-list only amounts to 5,600.

The American forts opposed to the Indians are, at present:—

Fort Gratiot, River St. Clare.

Mackinaw Island Fort.

Fort Brady, St. Marie, Lake Superior.

Fort Howard, Green Bay.

Fort Winnebago, Wisconsin.

Fort Crawford. Prairie des Chiens.

Fort Snelling, St. Peters.

Fort Leavenworth, Missouri.

Fort Madison, Des Moines River.

Jefferson Barracks, Missouri.

Advanced Ports.

Fort Towson, Red River.

Fort Gibson, Arkansas and Grand Junction River.

Fort Adams, Baton Rouge.

There are one or two outposts also on the Arkansas River. If all these forts were properly garrisoned, they would take every

disposable musket in the regular army of the United States; whilst at present they have, in consequence of the protracted Florida war, scarcely sufficient men to do the duty.

In the report of the acting quarter-master general, the following garrisons are proposed for the western frontier:—

Fort Snelling	300 men.
Fort Crawford	300
Upper forks of the Des Moines	400
Fort Leavenworth	1,200
Fort Gibson	1,500
Fort Towson	800
The eight posts of refuge proposed	800
The protection of the four depôts	200
Jefferson barracks, as a corps of reserve	1,500
Total	7,000

To which must be added, for the garrisons of the five Lakes forts, 1,500 at least, making the force necessary for the protection of the boundaries, to amount to 8,500 men. Colonel Gratiot, in his report, computes the force necessary at 12,910 men.

The letter of Mr Poinsett to Congress will throw much light upon this subject, and I shall therefore insert it.

“Department of War,

“December 30, 1837.

“Sir:— In answer to the resolution of the House of Representatives, in relation to the protection of the western frontiers of the United States, I have the honour to transmit the accompanying reports of the chief engineer and the acting quarter-master general, together

with a report of the commissioner of Indian affairs. That expected from General Gaines will be sent as soon as it is received.

“In presenting these documents, which are ably drawn up, and contain full and satisfactory information on all the topics embraced by the resolution, I might have considered my duty fully discharged, had not other plans been previously recommended, which I regard as entirely inefficient, but which have received, in some measure, the sanction of Congress. A survey has been directed to determine the line of a road, which, it is contemplated, shall extend from some point of the Upper Mississippi to Red River, passing west of Missouri and Arkansas; and it is proposed to place a cordon of temporary posts of ordinary construction along it, as a sufficient measure for the defence of that part of the country. In pursuance of the orders of Congress, officers have been appointed to perform that duty, and, upon their report being received, measures will be taken to carry into effect the intentions of Congress, unless, upon a deliberate review of the whole matter, some more eligible plan of defence shall be adopted. My own opinion has been, from the time I first considered the subject, that such a chain of posts, strung along the best road that can be constructed, furnished with all the means to operate, and with competent garrisons to occupy them, is not calculated to afford that protection which the border States have a right to expect from the Government, nor to redeem its pledge to protect the emigrant tribes from the savage and warlike people that surround them. The only possible use of such a road would be to facilitate occasional communications between the posts in time of peace. Supplies would not be transported along it, for they must be brought from the interior. Succours could not reach the posts by that direction, for they would be furnished by the militia within the line; and any attempt to concentrate the forces composing the garrisons in the event of an outbreak, would probably be attended with disastrous consequences; for the troops, whose route must be well known, would be exposed to be attacked and destroyed in detail. The enemy, having nothing to dread on their flanks or rear, might approach this road without risk, and attack the detachments on their

line of march, before they could concentrate their forces so as to offer an effectual resistance.

“After mature reflection, I am of opinion that military posts ought to be established and kept up within the Indian territory, in such positions as to maintain peace among the Indians, and protect the emigrant and feeble tribes against the stronger and more warlike nations that surround them; which the United States are bound to do by treaty stipulations. To withdraw those which now exist there, would be to violate our faith, as there is reason to apprehend that it would be the signal of war. Persons well acquainted with that country assure us that war would break out among the Indians, ‘just so soon as the troops are removed from those posts,’ and all accounts from that quarter confirm that impression.

“Independently of the military protection which the existence of these posts in the interior of the Indian country afford to the emigrating tribes, and the good they are calculated to effect by the beneficial influence the officers are enabled to exert over the surrounding Indians, they more effectually cover and protect the frontier than ten times the number of fortresses, strung along in one line, could do.

“With the very limited knowledge of that country as yet in possession of this department, it appears to me that six or seven permanent exterior posts would be sufficient to preserve the peace of that frontier. It will be necessary, at the same time, to establish, at convenient points, an interior line of posts, to serve as places of refuge for the inhabitants in periods of danger and alarm, until the militia can march to their succour from the interior, and the troops be put in motion upon the rear of the invaders. Eight of these would be amply sufficient, from which patrols might be kept up along the frontier to enforce the intercourse laws. Both descriptions of forts should be so constructed as to be defended by a small garrison, and in a manner that each part may be successfully maintained against a very superior force, both during the time the whole is being completed, and in the event of any portion of it being burnt or destroyed. This arrangement would require the establishment of a

few depôts of arms and supplies, from which communications should be opened to the posts. The accompanying skeleton map presents a view of the relative positions of the posts and depôts, and of the communications from them to the line of defence for the speedy transportation of succours and supplies. A regular force of five thousand men would be sufficient to garrison these posts, and, with a competent reserve at Jefferson barracks, and an effective force at Baton Rouge, would, I think, both ensure the safety of the western frontier, and enable the Government to fulfil all its treaty stipulations, and preserve its faith with the Indians. I would recommend, as an important auxiliary to this system of defence, the organisation of an efficient volunteer force, to be raised in each of the frontier States; the men to be mustered into service for a certain term of time, the officers to be appointed according to their State laws, and to be instructed a certain number of days in each year by the regular officers of the United States army at the posts within the States, and to receive pay during that period. In this manner an efficient corps of officers may be created, and a body of volunteers be at hand to march to the succour of the border settlers and repel the invaders, whenever they are called upon by the proper authority.

“I venture to hope, if these measures are adopted by Congress, and carried into effect at an early day, so as to anticipate any hostile movement of the Indians, peace will be preserved on our Western borders; but if they should, unfortunately, be delayed until the discontent which exists among many of the tribes breaks out into open hostility, and the first movements of that wild and warlike people prove successful, as they infallibly would do in our present unprepared state, it might require double the force and quadruple the means I have here indicated to restore and preserve peace along that extended frontier. All which is respectfully submitted.

“JR Poinsett.

“Honourable James K Polk,

“Speaker of the House of Representatives.”

The acting quarter-master-general, in his report, makes the following observation:—

“The obligations of the Government in reference to the Western frontier are of a very peculiar character. It is first bound, by a common duty, to protect its own border settlements, extending along a line of one thousand miles, against the incursions of numerous savage tribes, separated from those settlements by mere imaginary lines; and it is next bound, by the solemn treaty stipulations, with such of those tribes as have emigrated to that frontier, ‘to protect them at their new residences against all interruptions or disturbances from any other tribes or nations of Indians, or *from* any other person or persons whatsoever.’

“If these obligations are to be scrupulously fulfilled in good faith, which would seem to be due to our character as a nation professing a paternal care over these people, a military force of *thirty thousand men* on the Western frontier would scarcely be adequate to enable the Government to discharge its duties to its own citizens, and redeem these pledges of protection to the Indians.

“It is not my intention, however, to propose such a force. Political expediency, I presume, would not tolerate it, however it might be justified by military considerations. It is merely adverted to here in connexion with the *heavy obligations* which rest upon Government, and which have probably been contracted from time to time, without any very nice calculation of the means that would be necessary to a *faithful discharge of them*. I will, therefore, without enlarging upon this point, proceed to state the *minimum* force that is deemed necessary to give protection to the border settlements, and assist in preserving peace among them and their Indian neighbours along the line of the frontier. These are great and important objects of themselves, without superadding the yet more difficult task of protecting the emigrant tribes, whom our policy has placed beyond the frontier, from the wild and warlike Indians of the Far-West.”

And Colonel Gratiot, in his report, makes the following admission. Speaking of the second, or middle, section, he says:—

*“Second, or Middle Section.—*The country beyond this line is mostly elevated and free from marshy ground; is abundantly watered, thinly wooded, healthy, and has been assigned for the permanent residence of the tribes which have been, or are to be, removed from the States and territories east of the Mississippi, and is still occupied by the Aborigines originally found within its limits. In numbers they count, according to some estimates, 131,000, and can send to the field 26,200 warriors. As yet, no community of feeling except of deep and lasting hatred to the white man, and more particularly to the Anglo-Americans, exists among them; and, unless they coalesce, no serious difficulty need be apprehended from them. Not so, however, should they be induced to unite for purposes offensive and defensive: their strength would then become apparent, create confidence, and, in all probability, induce them to give vent to their long-suppressed desire to revenge past wrongs, which is restrained, as they openly and freely declare, by fear alone. That such a union will be formed at no distant day, we have every reason to believe; and the period may be accelerated by their growing wants, and the policy of Mexico to annoy Texas, and raise an impenetrable barrier in the direction of her frontier.”

That at present the Western frontier is defenceless is undeniable, and the Florida war does not appear to be at all nearer to a conclusion than it was two or three years ago. That the Indians to the west of the Mississippi are not ignorant of what is going on is very certain; and the moral effect arising from the protracted defence of the Seminoles may eventually prove most serious, and be attended with enormous expense to the United States.

The Federal Government takes every precaution to impress the Indians with an idea of the impossibility of their opposing the white men. The agents persuade the chiefs to go down to Washington to see their great father, the President. On these occasions they are accompanied by the Indian agent and interpreter, and, of course, all their expenses are paid. They are lodged at the hotels, taken to all places of public amusement, and provided with conveyances. But the policy of the Government is to cause them to make a circuit

through all the most populous cities, as the crowds attracted by the appearance of the Indians give them an extraordinary and incorrect idea of the American population. Wherever they go they are in a crowd. If they are at the windows of an hotel, still the crowds are immense; and this is what the Government is anxious should take place. I was at Boston when the two deputations of the Sioux and Sacs and Foxes tribes arrived. The two nations being at enmity, the Sioux were conducted there first, and left the town on the arrival of the Sacs and Foxes, or there would probably have been a fight. The Governor received the latter in the Town-hall, and made a speech; I was present. I thought at the time that it was not a speech that I would have made to them, and if I mistook not, it brought up recollections not very agreeable to the chiefs, although they were too politic to express their feelings. But a few years before, their lands east of the Mississippi had been wrested from them in the most unfair way, as I have mentioned in my remarks upon the treatment of the Indians by the American Government.

Governor Everett commenced his speech as follows:—

“Chiefs and warriors of the confederated Sacs and Foxes, you are welcome to our Hall of Council. You have come a far way, from your red friends of the West, to visit your white brethren of the East. We are glad to take you by the hand. We have heard before of the Sac and the Fox tribes: we have heard much of their chiefs, warriors, and great men: we are now glad to see them here. We are of Massachusetts: the red men once resided here: their wigwams were on yonder hill: and their Council Chamber was here. When our fathers came over the great waters, they were a small band, and you were powerful: the red man stood on the rock by the seaside, and looked at them with friendly eyes: he might have pushed them into the water, but took them by the hand, and said welcome, white man. Our fathers were hungry, and the red man gave them corn and venison. Our fathers were cold, and the red man spread his blanket over them and made them warm. We are now great and powerful, but we *will remember* in our prosperity the benefits bestowed by our red brethren in our adversity.”

Up to the present, they certainly have forgotten them!!

But the fate of the red man appears to be nearly decided. What between their wars with each other, the use of spirituous liquors, and the diseases imported by the whites, they dwindle away every day. The most fatal disease to them is the small-pox. The following account, which I have extracted from one of the American papers, was confirmed to me by a letter from Fort Snelling:—

Appalling destruction of North-west Indians by Small-pox.

“We gave yesterday an account of the origin of this epidemic by means of a steam-boat trading on the Missouri. Today we subjoin, from the St. Louis bulletin slip of March 3rd, a detailed account of its ravages. The disease had reached the remote band of the Blackfeet, and thousands of them had fallen victims. They do not blame the traders.

“The Pipe Stem, a chief of great influence, when dying, called his people around him, and his last request was, that they would love their traders, and be always governed by their advice. ‘I may,’ says one of the traders, ‘be blamed for not using measures to arrest the progress of the disease, but without resort to arms on the arrival of the boat with supplies, the Indians could not have been driven from the fort.’

“An express went two days a-head of the boat, but it was of no use preaching to the Indians to fly—they flocked down to the boat as usual when she arrived. The peltry trade in that quarter is ruined for years. The company agent at Fort Union, writes, Nov. 30, that all their prospects on the Upper Missouri are totally prostrated. The epidemic spread into the most distant part of the Assinaboin country, and this tribe were dying by fifties and hundreds a day. The disease appeared to be of a peculiarly malignant cast; some, a few moments after severe attacks of pain in the head and loins, fell down dead, and the bodies turned black immediately after, and swelled to three times their natural size. The companies erected hospitals, but they

were of no use. The carts were constantly employed burying the dead in holes; afterwards, when the earth was frozen, they were consigned to the water. Many of the squaws are left in a miserable condition. The disease has not reached the Sioux, many of whom have been vaccinated.

“The Mandans, numbering 1,600, living in permanent villages 1,600 miles above St. Louis, have all died but thirty-one.

“The Minatarees, or Gros Ventres, living near the Mandans, numbering about 1,000, were, by our last accounts, about one half dead, and the disease still raging.

“The Arickarees, amounting to 3,000, who but lately abandoned a wandering life, and joined the Mandans, were about half dead, and the disease still among them. It is probable they have been reduced in proportion to the Mandans.

“The Assinaboins, a powerful tribe, about 9,000 strong, living entirely by the chase, and ranging north of the Missouri, in the plains below the Rocky Mountains, down towards the Hudson’s Bay Company, on the north Red River, are *literally annihilated*. Their principal trade was at Fort Union, mouth of the Yellow Stone.

“The Crees, living in the same region, numbering 3,000, are nearly all destroyed. The great nation called Blackfeet, who wander and live by the chase, ranging through all the region of the Rocky Mountains, divided into bands—Piegiens, Gros Ventres, Blood Indians, and Blackfeet, amounting in all to 50,000 or 60,000, have deeply suffered. One thousand lodges or families have been destroyed, and the disease was rapidly spreading among the different bands.”

The average number in a lodge is from six to eight persons.

“The boat that brought up the small-pox made her voyage last summer, and the ravages of the distemper appear to have been greatest in October. It broke out among the Mandans, July 15th. Many of the handsome Arickarees who had recovered, seeing the

disfiguration of their features, committed suicide; some by throwing themselves from rocks, others by stabbing, shooting, etcetera. The prairie has become a grave yard; its wild flowers bloom over the sepulchres of Indians. The atmosphere for miles is poisoned by the stench of hundreds of carcasses unburied. The women and children are wandering in groups without food, or howling over the dead. The men are flying in every direction. The proud, warlike, and noble looking Blackfeet are no more. The deserted lodges are seen on the hills, but no smoke issues from them. No sound but the raven's croak, and the wolf's long howl, breaks the awful stillness. The wolves fatten on the dead carcasses. The scene of desolation is described as appalling beyond the powers of imagination to conceive."

That they may give the Americans much trouble, however, previous to their final extermination, is true, and that they are very anxious to revenge themselves, is equally certain. The greatest misfortune which could happen to the United States would be a union or mixture of the negroes with the Indian tribes. If this were to take place, the population would, in all probability, rapidly increase, instead of falling away as it now does; as then the negro population would till the ground sufficiently for the support of themselves and the Indians, as they now do among the Creek and Seminole tribes, who have plenty of cattle and corn. The American Indian in his natural state suffers much from hunger, and this is one cause of the non-increase of their population. What might be effected by the bands now concentrated on the American frontier, if at any future time they should become amalgamated with the negroes, will be fairly estimated by the reader when he has read the account I am about to lay before him of the war in Florida.

Volume Three—Chapter Nine.

Causes of the Florida War.

Most of my countrymen are aware that the Americans have been carrying on a war against the Florida Indians for the last two or three years; the details, however, are not so well known; and as this Florida war ought to be a lesson to the Americans, and may, as a precedent to the other Indians, prove of great importance, I shall enter into the particulars of it. I am moved, indeed, so to do, as it will afford the reader a very fair specimen of the general policy and mode of treatment shewn to the Indians by the American Government. Florida was ceded by Spain to the United States as a set-off against 500,000 dollars, claimed by the Americans for spoliations committed on her commerce. The white population of Florida is not very numerous even now; the census of 1830 gave 18,000 whites and 16,000 slaves, independent of the Florida Indians, or Seminoles. Seminoles is a term for runaways or wanderers; the Indian tribes in Florida being a compound of the old Florida Indians, two varieties of Creeks, who quitted their tribe previous to their removal west of the Mississippi, and Africans who are slaves to the Indians. Their numbers at the commencement of the war were estimated as follows:—

The Mico-sukee Indians, of which Osseola, or Asseola, was one of the principal chiefs, 400 warriors.

Creek and Spanish Indians, 850 warriors.

Negroes, 600 to 700 warriors.

In all about 1900 warriors.

The chief of the whole Seminole nation is Mic-e-no-pah, and next to him in consequence, as orator of the nation, is an Indian of the name of Jumper. It must be observed that these Indians, having slaves, cultivated the ground and had large stocks of cattle. Florida, like all the confines of the United States, had a white population not very creditable to any country, and many of these people went there more with a view of robbing the Indians of their negroes and cattle, and selling them in the Western States, than with any intention of permanently settling in the country.

As soon as the Floridas were ceded by the Spanish, the American Government perceived the expediency of removing the Indians from the territories, and, on the 18th of September 1823, a treaty was entered into with the Indians, by which the Indians, on their part, agreed to remove to the westward after *twenty years* from that date, that is on September 18th, 1843. By the same treaty the American Government secured to the Indians a tract of land in Florida, containing five millions of acres, for their subsistence during the time that they remained in that State; and agreed to pay the Indians certain advances, in consequence of their surrendering all title to the rest of the Florida country, and engaging to confine themselves to the limits of the territory allotted to them.

Nothing could be more plain or simple than the terms of this treaty, which, in consequence of the council being held at this spot, was denominated the treaty of Camp Moultrie.

The third article in the treaty of Camp Moultrie runs as follows:—
“The United States will take the Florida Indians under their care and patronage, and *will afford them protection against all persons whatsoever.*”

One of the great errors committed by the American Government was in binding itself to perform what was not in its power. It could no more protect these Indians against the white marauders than it could prevent the insurgents from attacking Upper Canada. The arm of the Federal Government is too weak to reach its own confines, as will hereafter be shewn by its own acknowledgment. The consequence was that, very soon after the treaty of Camp Moultrie had been signed, the Indians were robbed and plundered by the miscreants who hovered near them for that purpose.

An American author states that two men, Robinson and Wilburn, belonging to Georgia, contrived to steal from one chief twenty slaves, to the value of 15,000 dollars, and carried them to New Orleans. I will however quote a portion of the work.

“Another influential chief, Emachitochustern, commonly called John Walker, was robbed of a number of slaves in a somewhat similar manner. After making an appeal to the government agent, without the least chance of redress, he says: ‘I don’t like to make any trouble or to have any quarrel with white people, but, if they will trespass on my lands and rights, I must defend myself the best way I can, and if they do come again they must bear the consequences. But is there no civil law to protect me? Are the negroes belonging to me to be stolen away publicly in the face of all law and justice? carried off and sold to fill the pockets of these land pirates? Douglass and his company have hired a man, who has two large trained dogs for the purpose, to come here and take off others. He is from Mobile, and follows catching negroes.’

“Colonel John Blount, another estimable chief, was inhumanly beaten by a party of white men, who robbed him of several hundred dollars; he made application to the authorities, but the villains were allowed to escape.

“These facts show how mild and forbearing the Seminoles have acted under the most trying circumstances; and even when their property has been assailed in this way, they have, in numerous instances, refrained from making resistance; their hands were bound, as the severest punishment awaited any attack they might make upon the intruders, even though circumstances justified it. But as the Indian’s evidence could not be received in a court of justice, the white man’s oath would condemn him to the most torturing punishment.”

But in every way were the poor Indians the prey of the white men. The same author says, among many other cases brought forward, “A man, by the name of Floyd, was employed by an Indian woman to recover some negroes for her, and instead of presenting a mere power of attorney for her signature, she found, alas! it was a bill of sale for all her negroes! Another individual was requested by Miconopy, governor of the Seminoles, to draw a piece of writing for him, to which, without suspicion of its character, he attached his

name; it was soon after discovered to be a conveyance of a large tract of land!"

Another source of profit to these scoundrels was the obtaining by fraudulent means from the Indians, orders upon the American Government for the payment of portions of their annuity granted in return for the cession of the territory. "One of the government agents was a delinquent to them for a considerable amount. He robbed the principal interpreter of the nation, a very influential black chief by the name of Abraham, of several hundred dollars, by getting a receipt from him without paying the money, under the plea that it was necessary to send the receipt to Washington, where it was filed to the credit of the agent. Several other Indians of influence were robbed in a similar manner; and when they demanded the money from the succeeding agent, they were told that the government would not pay them. Is not this an unsound principle to adopt in our intercourse with the Indians? Is it just or honourable for us to send our own agents among them, without their approval, and not hold ourselves responsible for their conduct? If we were indebted to a nation, and the funds are sent through an agent to pay over, and he neglects to do so, are we not still liable, and would not a civilised power still hold us responsible?"

I have mentioned these facts to show that the Indians were justified in their want of faith in the white men: they were robbed and pillaged and had no redress; nay, they were imprisoned as thieves for taking away their own cattle which had been stolen from them, although they showed their own marks and brands upon them. Whether the American Government suffered all this spoliation with a view to disgust the Indians and incline them to remove to the westward, the reader will be better able to judge for himself when he has read a few pages more.

The Florida people were now subjected to retaliation, on the part of the Indians, who, finding that they could obtain no redress, naturally took the law into their own hands, and loss of life on both sides was the consequence. This produced petition after petition from the

Florida white population to the government, requesting that the Indians might be moved west prior to 1843, the period agreed upon by the treaty of Camp Moultrie. Colonel Gadsden, a citizen of Florida, was appointed commissioner to treat with the Indians, and on the 8th of April 1832, had an interview with Mic-e-no-pah, and a few other chiefs. The Indians requested thirty days to collect the opinions of the absent chiefs, and on the 8th of May 1832, they met the commissioner, according to appointment, at Payne's Landing. The commissioner had a great deal of difficulty in obtaining their consent to the removal, which was ultimately given upon certain conditions.

By this treaty, the Indians agreed to remove west upon being paid a certain sum for the reserved land; an annuity for a certain number of years; and other advantages, which would occupy too much space to particularise here. The treaty was signed by Mic-e-no-pah, the head chief, Jumper, and thirteen more.

But the treaty was assented to upon one condition, which was, that the Seminoles were *satisfied* with the lands apportioned to them west of the Mississippi. This is acknowledged by Colonel Gadsden, in his letter to the Secretary of War, who says—"There is a condition prefixed to the agreement, without assenting to which the Florida Indians most positively refused to negotiate for their removal west of the Mississippi. Even with the condition annexed, there was a reluctance (which with some difficulty was overcome) on the part of the Indians, to bind themselves by any stipulations before a knowledge of facts and circumstances would enable them to judge of the advantages or disadvantages of the disposition the government of the United States wished to make of them. They were finally induced, however, to assent to the agreement." "The final ratification of the treaty will depend upon the opinion of the seven chiefs selected to explore the country west of the Mississippi river. If that corresponds to the description given, or is equal to the expectations formed of it, there will be no difficulty on the part of the Seminoles."

There was a very unwise delay on the part of the American government after the signing of this second treaty. More than two years were permitted to elapse before any appropriation of land was made for the Indians, who became dissatisfied, and the treaty was by them pronounced to be “a white man’s treaty,” which they did not any longer consider to be binding.

But there were other reasons why the Seminoles did not consider the treaty as binding; they did *not* like the lands allotted to them. A deputation of seven was sent west of the Mississippi: the land they acknowledged was good land, but they found that they were close to the Pawnee territory, and that that tribe was proverbially famous for stealing cattle and horses. It was also the determination of the American Government, as they were considered as a portion of the Creek nation, to settle them near to and incorporate them with that nation. This did not suit them; the Creeks had claimed many of their slaves, and they knew that they had no chance with so superior a force as that of the Creek nation, who would have taken all their slaves from them. As, therefore, the Pawnees would have stolen all their cattle, and the Creeks have taken all their slaves, they considered that utter destitution would be the consequence of the removal as proposed by the American Government. To get over the latter difficulty, the government proposed that the Seminoles should sell their slaves previous to their removing, but this they objected to. The American author I have quoted says:—

“It was then suggested to them that, by a sale of these negroes before they left Florida, they would augment their resources, and could go into their new country without the dread of exciting the cupidity of the Creeks. But these Indians have always evinced great reluctance to parting with slaves: indeed the Indian loves his negro as much as one of his own children, and the sternest necessity alone would drive him to the parting: this recommendation was, therefore, viewed with evident alarm, and as the right of retaining possession of them was guaranteed by the commissioner, strong doubts were raised as to the sincerity of the pledge.

“The Seminole Indians are poor agriculturists and husbandmen, and withal too indolent to till the ground, and, without their negroes, would literally starve: besides, should they dispose of them they could not be replenished in a new country. Again: the opposition of the slaves themselves to being sold to the whites would excite all their energies to prevent emigration, for they dread the idea of being transferred to sugar and cotton plantations, where they must be subject to the surveillance of the overseer. The life of a slave among the Indians, compared with that of negroes under overseers, is one of luxury and ease; the demands upon him are very trifling, scarcely ever exceeding eight or ten bushels from the crop, the remainder being applied to his own profit: they live separate, and often remote, from their owners, and enjoy an equal share of liberty. The negro is also much more provident and ambitious than his master, and the peculiar localities of the country eminently facilitate him in furnishing the Indian with rum and tobacco, which gives him a controlling influence over the latter, and at the same time affords him an immense profit; so that it can be easily imagined that the negroes would in no manner be benefited by the change.”

On the 23rd of October, 1834, being two years and a half after the signing of the second treaty at Payne’s Landing, a council of Indians was again summoned by the agent, who informed them that all they had now to answer were the following questions:—

Will you incorporate yourselves with the Creek nation in the Far-West?

Will you have money for your cattle which you leave here on your arrival there, or will you have cattle in return?

Will you go by water, or by land?

Will you have your next annuity paid in money or in goods?

Upon this, the chiefs retired and held a private council. It is said that Asseola, the principal chief of the tribe of Micosukees, persuaded them strongly to resist going, and declared that he would consider as

his enemy any one who agreed to go. Asseola had not signed the treaty. The next day the council was resumed, and the chiefs made the following replies to the agent.

The first who spoke was Holata Mico, principal war chief. He expressed his wish that there should be no quarrelling, at the same time that he gave his evidence as to the truth of the first book of Moses.

“Holata Mico then rose, and said:— ‘God made all of us, and we all came from one woman, sucked one bubbly; we hope we shall not quarrel; that we will talk until we get through.’

“Miconopy then said—‘When we were at Camp Moultrie we made a treaty, and we were to be paid our annuity for twenty years. That is all I have got to say.’

“Jumper said—‘At Camp Moultrie they told us all difficulties should be buried for twenty years, from the date of the treaty made there; that after this we held a treaty at Payne’s Landing, before the twenty years were out; and they told us we might go and see the country, but that we were not obliged to remove. The land is very good, I saw it, and was glad to see it; the neighbours there are bad people; I do not like them bad Indians, the Pawnees. I went and saw the place; I told the agent that I was a rogue; that he had brought me to the place here alongside, and among the rogues, the bad Pawnees, because I am a rogue. I went to see the land, and the commissioners said that the Seminoles must have that land. When we went west to see the land, we had not sold our land here, and we were told only to go and see it. The Indians there steal horses, and take packs on their horses; they all steal horses from the different tribes; I do not want to go among such people; your talk seems always good, but we don’t feel disposed to go west.’

“Charley Amathia then rose, and said—‘The speakers of the nation are all dead; but I recollect some of their words when they had the meeting at Camp Moultrie. I was not there, but heard that we would be at peace, and that we would have our annuity paid to us for

twenty years. *White people have told me that the treaty at Camp Moultrie, which was made by great men, and not to be broken, had secured them for twenty years; that seven years of that treaty are still unexpired.* I am no half breed, and do not lean on one side. If they tell me to go after the seven years, I say nothing. As to the proposition made us by the agent about removing, I do not say I will not go; but I think that, until the seven years are out, I give no answer. My family I love dearly and sacredly. I do not think it right to take them right off. Our father has often said to me that he loves his children—and they love him. When a man is at home, and got his stock about him, he looks upon it as the subsistence of himself and family. Then when they go off, they reflect and think more seriously than when quiet at home. I do not complain of the agent's talk. My young men and family are all around me. Should I go west, I should lose many on the path. As to the country west, I looked at it; a weak man cannot get there, the fatigue would be so great; it requires a strong man.”

This talk made the agent very angry; he told them that they should stand by the treaty at Payne's Landing; he desired them to retire, and when they came again to act like chiefs and honourable men.

“October 25, 1834. The council convened at 11 o'clock. Interpreters as yesterday.

“The *agent* said to the council, ‘I am ready to receive your answers to the questions which I submitted to you.’

“*Holato Mico*.—‘I have only to repeat what I said yesterday, and to say that the twenty years from the treaty at Moultrie has not yet expired. I never gave my consent to go west; the whites may say so, but I never gave my consent.’

“*Jumper*.—‘We are not satisfied to go until the end of twenty years, according to the treaty at Camp Moultrie. We were called upon to go to the west, beyond the Mississippi. It is a good country; this is a poor country, we know. We had a good deal of trouble to get there; what would it be for all our tribe.’

“*Miconopy*.—‘I say, what I said yesterday, I did not sign the treaty.’

“*Agent*.—‘Abraham, tell Miconopy that I say *he lies*; he did sign the treaty, for here is his name.’”

Miconopy here asserts that he did not sign the treaty, which certainly appears to be a falsehood: but it should be remembered that, by the agent’s own admission, it was only a conditional signature by a portion of the chiefs, provided that they liked the location offered to them; and as they objected to this, the treaty was certainly, in my opinion, null and void. Indeed, the agent had no right to demand the signatures when such an important reservation was attached to the treaty. I do not give the whole of the agent’s reply, as there is so much repetition; the following are extracts:—

“I have told you that you must stand to your bargain. My talk is still the same. You must go west. Your father, the President, who is your friend, will compel you to go. Therefore, be not deluded by any hope or expectation that you will be permitted to remain here. You have expressed a wish to hear my views and opinion upon the whole matter. As a man, and your friend, I will this day deign to reason with you; for I want to show you that your talk of today is the foolish talk of a child.

“Jumper says, they agreed at Payne’s Landing to go and examine the country west, but they were not bound to remove to it until the nation should agree to do so, after the return of the delegation; and he adds, what others of you have said, that the treaty at Camp Moultrie was to stand for twenty years. Such a talk from Jumper surprises me, for he is a man of sense. He understands the treaty at Payne’s Landing, which he signed; he was the first named in that treaty, of the delegation appointed to go west; he knows that that treaty gave him and the members of the delegation authority to decide whether the nation should remove or not.

“The Creeks, Choctaws, Chickasaws and Cherokees, who live in the States, are moving west of the Mississippi river, because they cannot live under the white people’s laws; they are gone and going, and the

Seminole nation are a small handful to their number. Two governments cannot exist under the same boundary of territory. Where Indians remain within the limits of a state or territory until the jurisdiction of a state or territory shall be extended over them, the Indian government, laws and chiefships, are for ever done away—the Indians are subject to the white man's law. The Indian must be tried, whether for debt or crime, in the white man's court; the Indian's law is not to be known there; the Indian's evidence is not to be admitted there; the Indian will, in every thing, be subject to the control of the white man. It is this view of the subject which induces your father, the President, to settle his red children beyond the limits of the states and territories where the white man's law is never to reach you, and where you and your children are to possess the land, while the grass grows and the water runs. He feels for his red children as a father should feel. It is, therefore, that he made the treaty with you at Payne's Landing, and for the same reason he will compel you to comply with your bargain. But let us look a little more closely into your own situation. Suppose (what is however impossible) that you could be permitted so remain here a few years longer, what would be your condition? *This land will soon be surveyed, sold to, and settled by, the whites. There is now a surveyor in the country; the jurisdiction of the territory will soon be extended over this country. Your laws will be set aside, your chiefs will cease to be chiefs; claims for debt and for your negroes would be set up against you by bad white men, or you would perhaps be charged with crimes affecting life; you would be hauled before the white man's court; the claims against you for debt, for your negroes or other property, and the charges of crime preferred against you, would be decided by the white man's law. White men would be witnesses against you; Indians would not be permitted to give evidence; your condition, in a very few years, would be hopeless wretchedness.*"

What an admission from their father, the President, after having, in the third article of the treaty of Camp Moultrie, declared that the United States will afford the Florida Indians *protection against all persons whatsoever!!*

“Thus, you may see, that were it possible for you to remain here a few years longer, you would be reduced to hopeless poverty, and when urged by hunger to ask, perhaps, of the man who thus would have ruined you (and is, perhaps, now tampering with you for the purpose of getting your property) for a crust of bread, you might be called an Indian dog, and be ordered to clear out. (Here *Asseola*, who was seated by Miconopy, urged him to be firm in his resolution.) Your father, the President, sees all these evils, and will save you from them by removing you west; and I will stand up for the last time to tell you, that you must go; and if not willingly, you will be compelled to go. I should have told you that no more annuity will be paid to you here. (*Asseola* replied, that he did not care whether any more was ever paid.) I hope you will, on more mature reflection, act like honest men, and not compel me to report you to your father, the President, as faithless to your engagements.”

“*Asseola* said, the decision of the chiefs was given; that they did not intend to give any other answer.

“*Miconopy* said—‘I do not intend to remove.’

“*The Agent*.—‘I am now fully satisfied that you are wilfully disposed to be entirely dishonest in regard to your engagements with the President, and regret that I must so report you. The talk which I have made to you must and will stand.’”

Thus, indeed, the council and the parties separated. The American government was supine, thinking, probably, that the Indians would not resist much longer; but the Indians, on the other hand, laid up large stores of powder and lead. Six months elapsed, and then the Indians were informed that they were to hear the *last* talk of the father, the President on *this side* of the Mississippi. On the 22nd of April, 1835, the Indians assembled, and had the following communication from General Jackson:—

“*To the Chiefs and Warriors of the Seminole Indians in Florida.*

“My Children: I am sorry to have heard that you have been listening to bad counsels. You know me, and you know that I would not deceive, nor advise you to do any thing that was unjust or injurious. Open your ears and attend to what I shall now say to you. They are the words of a friend, and the words of truth.

“The white people are settling around you. The game has disappeared from your country. Your people are poor and hungry. All this you have perceived for some time. And nearly three years ago, you made an agreement with your friend, Colonel Gadsden, acting on the part of the United States, by which you agreed to cede your lands in Florida, and to remove and join your brothers, the Creeks, in the country west of the Mississippi. You annexed a condition to this agreement, that certain chiefs, named therein, in whom you placed confidence, should proceed to the western country, and examine whether it was suitable to your wants and habits; and whether the Creeks residing there were willing to permit you to unite with them as one people, and if the persons thus sent, were satisfied on these heads, then the agreement made with Colonel Gadsden was to be in full force.

“In conformity with these provisions, the chiefs named by you proceeded to that country, and having examined it, and having become satisfied respecting its character and the favourable disposition of the Creeks, they entered into an agreement with commissioners on the part of the United States, by which they signified their satisfaction on these subjects, and finally ratified the agreement made with Colonel Gadsden.

“I now learn that you refuse to carry into effect the solemn promises thus made by you, and that you have stated to the officers of the United States, sent among you, that you will not remove to the western country.

“My children: I have never deceived, nor will I ever deceive, any of the red people. I tell you that you must go, and that you will go. Even if you had a right to stay, how could you live where you now are? You have sold all your country. You have not a piece as large as a

blanket to sit down upon. What is to support yourselves, your women and children? The tract you have ceded will soon be surveyed and sold, and immediately afterwards will be occupied by a white population. You will soon be in a state of starvation. You will commit depredations upon the property of our citizens. You will be resisted, punished, perhaps killed. Now, is it not better peaceably to remove to a fine, fertile country, occupied by your own kindred, and where you can raise all the necessaries of life, and where game is yet abundant? The annuities payable to you, and the other stipulations made in your favour, will make your situation comfortable, and will enable you to increase and improve. If, therefore, you had a right to stay where you now are, still every true friend would advise you to remove. But you have no right to stay, and you must go. I am very desirous that you should go peaceably and voluntarily. You shall be comfortably taken care of and kindly treated on the road, and when you arrive in your new country, provisions will be issued to you for a year, so that you can have ample time to provide for your future support.

“But lest some of your rash young men should forcibly oppose your arrangements for removal, I have ordered a large military force to be sent among you. I have directed the commanding officer, and likewise the agent, your friend, General Thompson, that every reasonable indulgence be held out to you. But I have also directed that one-third of your people, as provided for in the treaty, be removed during the present season. If you listen to the voice of friendship and truth, you will go quietly and voluntarily. But should you listen to the bad birds that are always flying about you, and refuse to remove, I have then directed the commanding officer to remove you by force. This will be done. I pray the Great Spirit, therefore, to incline you to do what is right.

“Your friend,

“A Jackson.

“*Washington, February 16, 1835.*”

Several of the Indian chiefs replied, wishing for amity but unwilling to quit; but the council was broken up by the agent, who informed them that he had been sent there to enforce the treaty: he had warriors enough to do it, and he would do it. It was the question now whether they would go of their own accord, or by force?

This determination on the part of the agent induced some of the chiefs to waver, and eventually eight principal chiefs and eight sub-chiefs signed the articles agreeing to remove; but Miconopy, the chief of the whole tribes, Jumper, the second in consequence, and three other powerful chiefs, refused. Upon this, the agent took upon himself the most unwarrantable responsibility, by saying, Miconopy was no longer chief of the nation, and that his name and the other opposing chiefs were now struck out of the council of the nation.

That such an act as this was the cause of the greatest irritation to the Seminoles there can be no doubt; and the conduct of the agent was reproved by the Secretary of War, who, in his letter, observes:—

“It is not necessary for me to enter into much detail on the subject presented by you. I understand from Mr Harris, that he communicated to you the President’s views on the subject of the chiefs whom you declined to recognise in all questions connected with the removal of the Seminoles. I understand that the President deemed this course an incorrect one; and it seems to me obviously liable to strong objections. We do not assume the right of determining who shall be the chiefs in the various Indian tribes; this is a matter of internal policy which must necessarily be left to themselves. And if, when we have a grave matter for adjustment with one of the tribes, we undertake to say *it shall be* determined by a particular class of individuals, we certainly should render ourselves obnoxious to censure. It appears to me the proper course, upon important questions, is to treat directly with the tribe itself; and if they depute their chiefs, or any other individual to act for them, we must either recognise such authority or abandon the object in view.”

In June 1835, Asseola, the chief of Micosukees, who did not appear at the council, but who was the most determined opponent of the

treaty, came in to complain of the treatment his people had received from some white men, one of them having been wounded. He received no redress, and saying something offensive to the agent, he was thrown into prison. To obtain his release he promised to sign the treaty, at least, so it is said, and that he did sign it; but this must be considered only as an Indian stratagem: he had been imprisoned without any cause, and it is to be presumed that he thought himself justified in escaping by a corresponding fraud on his own part. The month after this occurrence, some of the tribe of Asseola murdered a government mail-carrier.

The Indians made one more effort: they called a council, and offered to remove to the west of the Mississippi, provided they had lands and an agent for themselves; but this was sternly refused by the government, who sent back as an answer, that their great father, General Jackson, had been "made very angry." The attacks and depredations upon the Indians were now more frequent, and the majority of them determined upon resistance. Only six chiefs, out of all who had signed the treaty, acted to their word and brought in their cattle, etcetera, for the government agent, to be sold previous to their migration. Five of their chiefs removed to the protection of Brooke's Fort, as they feared that the Seminoles would punish them for their revolt. One of them, Charley Amathla, was preparing to follow the others, when Asseola and two other chiefs went to his house and insisted that he should not remove his people. Charley Amathla replied that he had already pledged his word that he would abide by the promise which he made to their great father, and that if his life paid the forfeit, he felt bound to adhere to that promise. He said he had lived to see his nation a ruined and degraded people, and he believed that their only salvation was in removing to the West: that he had made arrangements for his people to go, and had delivered to the agent all their cattle, so that he had no excuse now for not complying with his engagements. One of the chiefs then informed him that the crisis was come: he must either join them in their opposition, or suffer death, and that two hours would be allowed him to consult his people and declare his determination. He replied, that his mind was unalterable, and his people could not make him

break his word; that if he must die he hoped they would grant him time enough to make some arrangements for the good of his people. At this moment Asseola raised his rifle and was about to fire, when Abraham arrested the murderous aim, and requested them all to retire for a council with the other chiefs. Asseola, with a small party, however, separated themselves from the main body of the Indians, and returned to Charley Amathla's, and shot him. Thirteen of Amathla's people immediately escaped to Fort King, while the others, deterred by their fears, remained until the return of the principal band, when they joined the hostile party.

This was a fine trait in the Indian, and proves that the Seminoles are not the faithless people they are represented to be by the government agents. The death of this noble Indian was the signal for the commencement of hostilities; the Indians immediately abandoned all their towns, and, concealing their trail, removed their families to a place of safety, which has ever since baffled all conjecture as to its whereabouts, and its secrecy been a subject of the greatest astonishment.

Volume Three—Chapter Ten.

Florida War.

It is naturally conjectured that the Seminoles retreated to some portion of the vast swamps which surround the Ouithlacoochee river; but certain it is that since the commencement of the war, in December 1835, up to the present time, their retreat has never been discovered. Marauding parties now commenced on the part of the Indians, who took summary vengeance on those who had robbed and maltreated them. The whole country from Fort Brooke to Fort King was in a state of conflagration, and the whites were compelled to abandon everything, and seek protection under the forts. At the outbreak of hostilities the American force in the department did not amount to five hundred men. The militia were called out, but military stores were not at hand, and it was decided that the troops must wait for reinforcements before any attack could be made upon the Indians; the great object was to throw a reinforcement into Fort King.

General Clinch, who commanded at Fort Brooke, having been reinforced with thirty-nine men from Key West, no time was lost in preparing two companies for the above service. On the 24th of December 1835, a force of one hundred men, and eight officers, with a field-piece, under the command of Major Dade, commenced their march.

On the morning of the 28th, when it had proceeded four miles from the encampment of the previous night, this force was attacked by the Indians, whose first volley was very destructive, Major Dade, with almost every man of the advanced guard, falling dead. The Indians were repelled by the troops under Captain Gardner, upon whom the command then devolved, and the Americans proceeded to throw up breastworks; but before they could raise them high enough for efficient protection, the Indians attacked them again. The Americans brought their field-piece into play, but the breastworks not being high enough, the Indians shot down every man who attempted to work

the gun. All the officers, and more than two-thirds of the American troops had fallen, when the survivors found that all their ammunition was expended. The Indians, perceiving this, rushed in, and, with the exception of two men, who, although severely wounded, contrived to conceal themselves, and ultimately to make their escape, not one of the whole detachment was spared.

The force of the Indians is supposed to have been about three hundred and fifty or four hundred. The contest lasted six hours; and it must be admitted that nothing could be more gallant than the defence made by the troops against such a superior force.

On the afternoon of the same day, the Americans had to lament the loss of General Thompson, the Indian agent at Fort King. Imprudently strolling out about three hundred yards from the fort, he was attacked by the Indians, who waited in ambush for him, and, with Lieutenant Smith and three other people belonging to the fort, was shot dead. This party of Indians was headed by Asseola, who had warned General Thompson that the white men should suffer for their treatment of him. His peculiar and shrill war-yell was given as the Indian party retreated, to let the whites know to whom they were indebted for the massacre.

General Clinch having been reinforced at Fort Brooke, (where he had two hundred regular troops,) with five hundred volunteers under the command of General Call, now moved with the whole force of seven hundred men.

On the 30th of December, as they were passing the Ouithlacoochee river, the Indians watched their opportunity, and, when a portion only of the troops had gained the opposite side, commenced an attack, which was vigorously and successfully resisted; the Indians, in little more than an hour, were beaten off. The battle was, however, severe, and the Americans sustained a loss of sixty-three killed and wounded. The Indian force is supposed to have amounted to seven hundred men.

But independently of these conflicts with the militia and regulars, the ravages of the Indians over the whole country are stated to have been most fearful. Women and children were murdered, and the hearth made desolate in every portion of the country. In the more settled parts near St. Augustine, the sugar-cane plantations, with the expensive works attached to them, were destroyed, and in many cases the slaves who were on the plantations were either carried off, or, voluntarily joining the Indians, increased the strength of the enemy. More than a hundred estates were thus laid waste, the average loss upon each estate being computed, independently of the loss of the negroes, at fifty thousand dollars.

The intelligence of this havoc, and the massacre of Major Dade and his whole party, soon reached the neighbouring States, and a requisition for assistance made by General Clinch, was promptly responded to. Meetings were organised at Augusta, Savannah, Darien, and Charleston, and in a few days nearly two thousand volunteers were ready to march to the theatre of war. Indeed, the cause now became the cause of all the slave-holding States, and was taken up with the usual energy of the Americans.

In Louisiana the same spirit was shewn. General Gaines was at that time on a tour of inspection, and had received orders to take charge of the troops assembling on the Mexican frontier; but, at the request of the volunteers, he took the command of *them* until he could receive further orders from Washington. The assistance of the American naval forces were demanded and obtained, and General Gaines having received intelligence that Fort Brooke was invested by the Indians, sent an express to General Clinch at Fort King, to say that he would join him with his forces to relieve the post. The Seminole Indians who had agreed to the treaty, remained firm to their word, and took up arms against their brethren, and a large force was now marching from all directions to the succour of the whites. I ought here to observe, that not only at the commencement, but ever since the war has continued, the difficulty and expense of forwarding supplies have been very great, and the American troops have

undergone the severest privations, as well as great mortality from sickness and disease.

On the 13th February 1836, General Gaines, having arrived at Fort Brooke, reviewed his force, which amounted to between eleven hundred and twelve hundred men, and commenced his march to relieve Fort King, at which post he arrived on the 2nd February, without falling in with any of the Indians. The general then made a detour in pursuit of the enemy. On the 27th, when the force was crossing the Ouithlacoochee River, it was assailed by the Indians, who retired after a skirmish of three-quarters of an hour, the loss of the Americans being very trifling. On the 28th, when again fording the river, the Indians made another attack, which was continued for nearly four hours, and the Americans had to lament the loss of Major Izard, who was killed, and two other officers were wounded. On the 29th, the Indians again attacked, with a force of at least a thousand men, with a view of forcing the American troops from the breastwork which they had thrown up; the Indians, after about two hours' fighting, set fire to the high grass; but, unfortunately for them, the wind suddenly changed, and, instead of burning out the American troops, all their own concealed positions were burnt up and exposed, and they were compelled to retire. The loss on the Indian side was not known, but was supposed to be heavy; that on the part of the Americans amounted to thirty-two killed and wounded. General Gaines, finding that the Indians were so near him, now despatched expresses for a supply of ammunition, being resolved, if possible, to bring them to a general action. The sufferings of the American troops were very severe, and they were killing their horses for subsistence; but the camp was secure, in consequence of the Indians having burnt down all the means of concealment so necessary in their mode of warfare. Notwithstanding which, on the 1st, 2nd, and 3rd of March, the camp was vigorously assailed. On the evening of the 5th, the Indian interpreter came in from the Seminoles, stating that they wished to hold a council, and did not want any more fighting. On the 6th, a truce was held, when Asseola and other chiefs made their appearance, saying, that if the Americans would not cross the river, they would remain on their own side of it, and not commit any more

ravages. This was, in fact, nothing but the original proposal of the Indians, that they should remain upon the land which had been assigned to them by the treaty of Camp Moultrie. The reply of General Gaines was, that he was not authorised to make a treaty with them; their arms must be given up, and they must remain on the other side of the river, until the American Government sent them away west of the Mississippi. While this negotiation was pending, General Clinch arrived with the succour and reinforcements, much to the joy of the American troops, who were half starved. General Gaines, who had heard that General Scott had been appointed to the command in Florida, now resigned that authority to General Clarke, and on the 11th, the troops arrived at Fort Drane. It hardly need be observed, that the treating with the Indians ended in nothing. General Scott having assumed the command, arrived at Fort Drane on the 13th March 1836. He had had previously to contend with heavy rains and almost impracticable roads, and was encumbered with a heavy baggage train; his whole force amounted to nearly 5,000 men. This he divided into a centre and two wings, with a view to scour the whole country, and force the Indians from their retreats; but in vain. The Indians being on the flanks of each division, occasional skirmishes took place; but when the troops arrived to where the Indians were supposed to be, not a man was to be seen, nor could they discover the retreat of their families. Occasionally the Indians attacked the outposts with great vigour, and were bravely repulsed; but the whole army, of 5,000 men, did not kill and capture more than twenty Indians. As far as I can judge, nothing could be better than the arrangements of General Scott, but the nature of the country to which the Indians had retreated, rendered it almost impossible for troops to act. The swamps extended over a great surface of ground; here and there was an island on which the Indians could remain; while to attack them, the troops would have to wade up to their necks for miles, and as soon as they arrived the Indians were gone.

It is not my intention to follow up all the details of the petty warfare which has continued to the present time. General Scott resigned the command, and was succeeded by General Jessopp. On the 20th

October 1837, after nearly a year's skirmishing, Asseola was persuaded to come in, to a council. The flags of truce were hoisted by the Americans, and Asseola, carrying a flag of truce in his hand, and accompanied by other chiefs and about 50 warriors, came in to talk. On their arrival, they were surrounded by bayonets, and made prisoners by the orders of the Federal Government, who, despairing of subduing the Indians, had recourse to this shameful breach of faith. The proud spirit of Asseola could not endure confinement: he died in prison. Other chiefs were kidnapped in the same traitorous manner; but, severe as the loss must have been to the Indians, it did not appear to discourage them. The war was still carried on by those who were left, and, indeed, is still continued; for the ranks of the Indians are said to be filled up by runaway slaves, and some of the Creek Indians who have not yet quitted Georgia. On the 25th of December 1837, a severe battle was fought between the Indians and the American troops, at a spot between Pease Creek and the Big Cypress Swamps; on this occasion the Americans lost Colonels Thompson and Guntry, with twenty-eight killed, and one hundred and eleven wounded. Since that I am not aware that any important combat has taken place; but it is certain that the Seminoles, notwithstanding the loss of their leaders, still hold out and defy the whole power of the United States.

It is asserted in the American papers that the loss of lives on the American side, from the enemy and from disease, amounts to between two and three thousand men, and that the expenses of the war are now estimated at 30,000,000 of dollars. How far these calculations may be correct I cannot pretend to say, but it is notorious that a handful of Indians, estimated, at the commencement of the war, at about 1,900, have contended against armies of four or five times their number, commanded by gallant and able officers; that this small band of Indians, notwithstanding their losses from the weapons of the enemy, and their still greater losses from breach of faith, have now for four years held out against the American Government, and have contrived to *subsist* during that period; and that the retreat of their wives and families has never been discovered, notwithstanding the Americans have a friendly portion of

the Seminoles acting with them. Indeed, if we are to believe the American statements, the war is almost as far from its conclusion now as it was at its commencement. See note 1.

I have hastily narrated the causes and principal events of the war, as they are little known in England. The Americans, even if they expend twice as much money, must persevere, until they have extirpated every Indian, and settled the territory with white people; if they do not, the Florida swamps will become the resort of runaway slaves, and the precedent of what can be done, will encourage a general rising of the slaves in the adjoining States, who will only have to retire to the banks of the Ouithlacoochee and defend themselves. So fatal is the climate to the European, that America even now will probably have to sacrifice life and treasure to a much greater extent before she obtains possession of the territory. I shall conclude by quoting a portion of a letter from the Genevese Traveller which appeared in the *Times* newspaper.

“The war was unrighteous in its commencement, and has been continued for years under circumstances the most profligate. There has not been a single campaign in which the army has not reaped a plentiful harvest of mortification and disgrace. When brought into action both officers and men fought valiantly, but the character of the country, its deep morasses and swamps, and the ignorance of the troops of Indian warfare, have uniformly tended to produce the most disastrous defeats.

“There is not to be found on the page of history, in any country, an instance of a scattered remnant of a tribe, so few in number, defending themselves against the assaults of a disciplined and numerous army, with the same heroism and triumphant results with those of the Seminoles in resisting the American troops. In every campaign the invaders have been at least ten to one against the invaded. At no period have the Indians been able to muster more than 700 or 800 warriors, and it is doubtful whether they have ever had more than half that number, while the American army, when in the field, has uniformly amounted to from 6,000 to 10,000 men.”

Note 1. Although the Federal Government has set its face against the Indians making war with each other (or at least pretends so to do), it would appear by the following notice, that, in their necessity, they have not adhered to the following resolutions:—

Extract of a Letter, date:—

“Fort Brooke, Florida, June 14.

“The Cherokees and Choctaws are soon expected in this country, when there will be a war of extermination and no quarter shown. The affairs here are just the same as two years ago. The war is no nearer ended. But we do hope that the offer of ten dollars for each Seminole scalp will be a great inducement for the Cherokees and Choctaws to cut and slash among them.”

Volume Three—Chapter Eleven.

Reply to the Edinburgh Review.

The art of reviewing may be compared to French cookery; it has no medium—it must either be first-rate or it is worth nothing: nay, the comparison goes much further, as the attempt at either not only spoils the meat, but half poisons the guests. The fact is, good reviewing is of the highest order of literature, for a good reviewer ought to be superior to the party whose writings he reviews. Such men as Southey, Croker, and Lockhart on the one side, Brougham, Fontblanque, and Rintoul on the other, will always command respect in their vocations, however much they may be influenced by political feelings, or however little you may coincide with them in opinion. But, passing over these, and three or four more *cordons bleus*, what are reviewers in general? men of a degree of talent below that of the author whose works they presume to decide upon; the major portion of whom, having failed as authors, are possessed with but one feeling in their disappointment, which is to drag others down to their

own debased level. To effect this, you have malevolence substituted for wit, and high-sounding words for sense; every paltry advantage is taken that can be derived from an intentional misrepresentation of your meaning, and (what is the great secret of all) from unfair quotations of one or two lines, carefully omitting the context—an act of unpardonable dishonesty towards the author, and but too often successful in misleading the reader of the Review. By acting upon this last-mentioned system, there is no book, whatever its merits may be, which cannot be misrepresented to the public: a work espousing atheism may be made to appear wholly moral; or, the Holy Scriptures themselves condemned as licentious and indecent. If such reviewing is fair, a jury may, upon a similar principle, decide upon a case by the evidence in favour of the prosecution; and beauty or deformity in architecture be pronounced upon by the examination of a few bricks taken out from different portions of a building.

That, latterly, the public have been more inclined to judge for themselves, than to pin their faith upon reviews, is certain; nevertheless, when what is termed a "*slashing article*" upon a popular work makes its appearance, the public are too apt to receive it without scrutiny. Satisfied with the general effect, as with that produced in a theatrical representation, they do not bear in mind that that which has the appearance of gold, would prove upon examination to be nothing more than tinsel.

Were all reviewers to be reviewed by authors as well as all authors by reviewers, the authors would have the best of it in the *mélée*. Again, were reviewers obliged to put their names to their several articles, there would be a great difference in their style; but, secure in their *incognito* from the disgrace of exposure, they make no scruple to assert what they well know to be false, and, coward-like, to assail those who have seldom an opportunity, whatever may be their power, to defend themselves. Never, perhaps, was there a better proof of the truth of the foregoing observations than is afforded by the article in the Edinburgh Review upon the first portion of my work

on America; and as I have some pages to spare, I shall now take the unusual liberty of reviewing the Reviewer.

First, let me introduce to the public the writer of the article—Miss Harriet Martineau. My readers may inquire how I can so positively make this assertion? I reply that it is owing to my “craft.” A person who has long dealt in pictures will, without hesitation, tell you the name of the painter of any given work: a shepherd with a flock of three or four hundred sheep under his charge, will know every one of them individually, although to people in general, one sheep is but the counterpart of the others. Thus, there are little varieties of style, manner, and handling of the pen, which become evident to practised writers, although they are not always so to readers. But even if these peculiarities were not sufficient, the manner in which the article is managed (the remarks of Miss Martineau upon the merits of Miss Martineau) in my mind establishes to conviction, that the major portion of the article, if not the whole, has proceeded from her pen. This is a matter of no consequence, and I only mention it that my readers may understand why Miss Martineau, who forms so prominent a feature in the Edinburgh article, will also occasionally appear in mine. My reply, however, is not addressed to her, but to the Edinburgh Reviewer.

I have no doubt the Reviewer will most positively deny that Miss Martineau had any thing to do with the Review of my work: that of course. With his permission, I will relate a little anecdote. “When the Royal George went down at Spithead, an old gentleman, who had a son on board, was bewailing his loss. His friends came to console him. ‘I thought,’ observed one of them, ‘that you had received a letter?’—‘Yes,’ replied the old gentleman, ‘but it was from *Jack himself*.’—‘Well, what more would you have?’—‘Ah,’ replied the old gentleman, ‘had it been from the captain, or from one of his messmates, or, indeed, from anybody else, it would have consoled me; but Jack,—he is such an *incorrigible liar*, that his *very assertion* that he is safe, convinces me that he has gone to the bottom.’”

Now my opinion of the veracity of the Edinburgh Review may be estimated by the above anecdote; the very circumstance of its denial would, with me, be sufficient to establish the fact. But to proceed.

The Review has pronounced the first portion of my work to be light and trifling, and full of errors; it asserts that I have been hoaxed by the Americans; that I am incapable of sound reasoning; cannot estimate human nature; and, finally, requests as a favour that I will write no more. Such are the general heads of the Review.

Now here we have a strange inconsistency, for why should the Edinburgh Review, if the work be really what he asserts it to be, "light and trifling," etcetera, waste so much powder and shot upon a tomtit? Why has he dedicated twenty-seven pages of ponderous verbosity to so light and trifling a work? How seldom is it that the pages of the Quarterly or Edinburgh condescend to notice even the very best of light literature! Do they not, in their majesty, consider it *infra dig.* to review such works, and have not two or three pages bestowed upon them been considered as an immense favour on their part, and a high compliment to the authors? Notwithstanding which, we have here *twenty-seven pages of virulent attack* upon my light and trifling work. Does not the Edinburgh reviewer at once shew that the work is not light and trifling? does he not contradict his own assertions, by the labour and space bestowed upon it? nay, more, is it not strange that he should think it necessary to take the unfair advantage of reviewing a work before it is half finished, and pounce upon the first portion, with the hopes of neutralising the effects which he evidently dreads from the second.

I will answer the question for him. He indulges in his precipitate and unmeasured attacks, because he feels that the work is written in a style that will induce every one to read it; because he feels assured that the occasional, and apparently careless hits at democracy, are only preparatory to others more severe, and that these will come out in the second part, which will be read with as much avidity as the first. He perceives the drift of the work; he feels that it has been purposely made amusing, and that it will be more injurious to the

cause which the Edinburgh Review upholds than a more laboured treatise; that those who would not look at a more serious work will read this, and that the opinions it contains will be widely disseminated, and impressed without the readers being aware of it; moreover, that it will descend to a class of readers who have hitherto been uninformed upon the subject: in short, he apprehends the greater danger to his cause from the work having, as I have said, been made amusing, and from its being in appearance, although not in reality, “light and trifling.”

I candidly acknowledge that the Reviewer is right in his supposition: my great object has been to do serious injury to the cause of democracy. To effect this, it was necessary that I should write a book which should be universally read—not merely by the highly educated portion of the community, for they are able to judge for themselves; but *read by every tradesman and mechanic*; pored over even by milliners’ girls, and boys behind the counter, and thumbed to pieces in every petty circulating library. I wrote the work with this object, and I wrote accordingly. Light and trifling as it may appear to be, every page of it (as I have stated) has been the subject of examination and deliberation: it has given me more trouble than any work I ever wrote; and, my labour having been so far crowned with success, I trust that I shall have “done the State some service.” (See Note 1.) The review in the Edinburgh will neither defeat nor obstruct my purpose, as that publication circulates chiefly among those classes who have already formed their opinions; and I have this advantage over it, that, as for one that reads the Edinburgh Review, fifty will read my work, so will fifty read my reply who will never trouble themselves about the article in the Edinburgh Review.

And now let us enter a little into detail. The Reviewer finds great fault with my introduction, as being wholly irrevelant to the Diary which follows it. I admit, that if it were an introduction to the Diary alone, there then would be some justice in his remark. But such is not the case: an introduction is, I believe, generally understood to refer to the *whole* of the work, not a portion of it; and now that the work is complete, I leave it to the public to decide whether the introduction is

suitable or not, as bearing upon the whole. I believe, also, it is the general custom to place an introduction at the commencement of a work; I never heard of one being introduced into the middle or at the end of it. The fault, therefore, of its imputed irrelevancy is not mine: it is the Reviewer's, who has thought proper to review the work before it was complete. He quotes me, as saying, "*Captain Marryat's object was to examine and ascertain what were the effects of a democratic form of government upon a people which, with all its foreign admixture, may still be considered as English;*" and then, without waiting till I have completed my task, he says, that the present work "has nothing, or next to nothing, to do with such an avowal." Whether such an assertion has any thing to do with the work now that it is completed, I leave the public to decide. The Reviewer has no excuse for this illiberal conduct, for I have said, in my Introduction, "In the arrangement of this work, I have considered it advisable to present to the reader first, those portions of my Diary which may be interesting, and in which are recorded *traits* and *incidents* which will bear strongly upon the commentaries I shall subsequently make;" notwithstanding which the reviewer has the mendacity to assert that, "not until the last paragraph of the last volume, does he learn for the first time that the work is not complete." I will be content with quoting his own words against him—"An habitual story teller prefers *invention* to description."

The next instance of the Reviewer's dishonesty is, his quoting a portion of a paragraph and rejecting the context. He quotes, "I had not been three weeks in the country before I decided upon accepting no more invitations, charily as they were made," and upon this quotation he founds an argument that, as I did not enter into society, I could of course have no means of gaining any knowledge of American character or the American institutions. Now, if the reviewer had had the common honesty to finish the paragraph, the reason why I refused the invitations would have been apparent; "because I found that, although invited, my presence was a restraint upon the company, and every one *was afraid to speak*." Perhaps the sagacity of the Reviewer will explain what information I was likely to gain from people who would not open their mouths. Had he any knowledge of

the Americans, he would admit that they never will venture to give their opinions *in the presence of each other*; it was not that they were afraid of *me*, but of each other, as Monsieur de Tocqueville has very truly pointed out in his work. Moreover, I have now, for the first time, to learn that the best way of arriving at the truth is to meet people who are on their guard, and whose object is to deceive.

There is a malevolent feeling in the assertion, that I have treated *all* other previous writers on America with contempt; and here again he intentionally quotes falsely. My words are “the *majority* of those who have preceded me.” As nearly as I can reckon, there have been about fifty works published on America, out of which there are not *ten* which deserve attention; and the ample quotations I have made from Monsieur de Tocqueville, Captain Hamilton, and others, in corroboration of my own opinions, fully evince the respect I have for their writings. In fact, the whole article is a tissue of falsehood and misrepresentation, and so weak that hardly one of its positions is tenable. Can any thing be more absurd, or more shallow, than to quote the Mississippi scheme and Mr Law as a proof that the French are, as well as the English and Americans, a *speculative nation*: one solitary instance of a portion of the French having, about sixty or seventy years ago, been induced to embark their capital, is brought forward, while the abject supineness of the French population of Lower Canada, in juxta-position with the energy and enterprise of the Americans, has for half a century stared us in the face.

The Reviewer has the kindness repeatedly to inform me that I have been hoaxed by the Americans, and, most unfortunately for himself, he has brought forward the “Original Draft of the Declaration of Independence” as a proof of it. That he would be very glad to prove it to be a hoax, I believe; as it is a sad discovery, and one which the American democrats should have kept secret. That the Americans did hoax Miss Martineau, and that they would have hoaxed me if they could, I admit, but even the Reviewer must acknowledge that they would not *hoax* themselves. Now it so happens, that this document, which has not long been discovered, is in the splendid public library of Philadelphia: it has been carefully preserved in a

double plate-glass frame, so as to be read on both sides without handling; it is expensively mounted, and shewn to every visitor as a great curiosity, as it certainly is, the authenticity of it being undeniable, and acknowledged by the Americans. The paragraph which was expunged is verbatim as I gave it—a paragraph which affords more proof, if further proof were necessary, that Jefferson was one of the most unprincipled men who ever existed. The Reviewer recommends my perusal of the works of this “*great and good man*,” as Miss Martineau calls him. I suspect that I have read more of Mr Jefferson and other American authors than ever the Reviewer has; and I consider the writings of this Father of Democracy, opposed to his private life, to be a remarkable *type* of democracy in *theory* and in *practice*. To borrow a term from the Reviewer, those writings are “*brave words*” to proceed from an infidel, who proved his ardent love of liberty by allowing his own children to be put up to auction at his death, and wear away their existence in misery and bondage. I cannot help here observing a *trifling inconsistency* on the part of the Reviewer. After lauding the Father of Democracy, and recommending me to read his works; after sneering at our aristocracy by observing, “that no *kind* of virtue that we have heard of can suffer much from the loss of a *court* and of an *hereditary nobility*,” after, in short, defending and upholding democracy in every page, all of a sudden the Reviewer turns round and says, “*We are no general admirers of democracy.*” Indeed! if not general, you certainly appear to be *particular* admirers; and if neither general nor particular, may I inquire what the Edinburgh Review has been frothing, fizzing, hissing, and bubbling about, like a tea-kettle in a passion, for these last twenty years?

Never was there a more convincing proof of the boldness and arrogance which Reviewers (trusting to the irresponsibility arising from their concealment) assume, than is afforded by the following passage in the Edinburgh article:—

“*An ardent pursuit of wealth and deep religious feelings go very well together.*”

It is not for me to reply to the Reviewer in this instance; I must hand him over to higher authority. I must oppose the everlasting doctrines of inspiration to the cold, heartless, and arrogant philosophy of an Edinburgh reviewer. In vain are we again and again forewarned in the Scriptures against the love of money; in vain has our Saviour denounced it; in vain have the apostles followed in his steps. Let the Reviewer, if he ever has looked into the Bible, refer to the epistles to the Colossians and to the Ephesians. St. Paul declares that covetousness is *idolatry*. Hear also what he sayeth to Timothy:—

“But they that *wish to be rich* fall into temptation and a snare, and into many foolish and hurtful lusts, which drown men in destruction and perdition.” “For the *love of money is the root of all evil*.”

Our Divine Master is even more explicit, for he says—“No servant can serve two masters; for either he will *hate* the one, and *love* the other; or else he will *hold* to the one, and *despise* the other. Ye cannot serve *God and Mammon*.” Thus says our Lord—now hear the Edinburgh Reviewer.—“An ardent *pursuit of wealth* and *deep religious feelings* go very well together.”

Here the Edinburgh Reviewer has placed himself on the horns of a dilemma. The Holy Writings assert most positively and repeatedly one thing, while he asserts another. If, therefore, he acknowledge the Scriptures, he must at the same time acknowledge his own grievous error, and, I may add, his deep sin: if, on the contrary, he still hold to his own opinion, hath he not denied his faith, and is he not worse than an infidel?

The reviewer sneers at my observation, that “Washington had no power to control the nature of man.” It may be, as he observes, a very *simple* remark; but, at all events, it has one advantage over his own, which is, that it is a very *true* one. Miss Martineau makes an observation in her book, which is quite as great a truism as mine; for she also says that “Human nature is the same everywhere.”

How far I have succeeded in my analysis of human nature it is not for me to decide; but that it is the same every where I will now

venture to support by something more than *assertion* on the part of Miss Martineau.

When I was at Boston, in company with some of the young ladies, the conversation turned upon Miss Martineau, with whom they stated that they had been intimate. Naturally anxious to know more of so celebrated a personage, I asked many questions. I was told much to interest me, and, among other little anecdotes, they said that Miss Martineau used to sit down surrounded by the young ladies, and amuse them with all the histories of her former loves. She would detail to them “how Jack sighed and squeezed her hand; how Tom went down on his knees; how Dick swore and Sam vowed; and how—she was still Miss Martineau.” And thus would she narrate and they listen until the sun went down, and the firefly danced, while the frogs lifted up their voices in full concert.

And I said to myself, “Who would have supposed that this Solon in petticoats would ever have dwelt upon her former days of enthusiasm and hope, or have cherished the reminiscences of love? How true it is that *human nature is the same everywhere*.”

Once more:—

I was conversing with a lady at New York, who informed me that she had seen a letter from Miss M, written to a friend of hers, after her return to England, in which Miss M declared that her door was so besieged with the carriages of the nobility, that it was quite uncomfortable, and that she hardly knew what to do.

Thinks I to myself, I recollect an old story.

“Oh! Grandmother,” cried Tom, running in, out of breath, “there’s at least a thousand cats in our garden.”—“No, no, Tom,” quickly replied, the old lady; “not a thousand, Tom.”—“Well I’m sure there’s five hundred.”—“No, nor five hundred,” replied the old lady, not taking her eyes off her knitting.—“Well, then, grandmother, I’m sure there’s fifty.”—“I don’t think there *are* fifty, Tom.”—“Well, at all events, there’s *our cat and another*.”—“Ah! Tom,” replied the old lady, “that *may* be.”

I believe that the carriage of Lord Brougham is occasionally to be seen at the door of Miss Martineau.

But when I heard this I was pleased, for I said to myself, "So, then, this champion of democracy, this scorner of rank and title, is flattered by the carriages of the nobility crowding at her door;" and, again I said to myself, "*human nature is the same everywhere.*"

But the Reviewer, in his virulence, has not been satisfied with attacking me; he has thought it necessary to libel the whole profession to which I have the honour to belong. He has had the folly and impertinence to make the following remark: "No landsmen can have been on board of a ship a week, without coming to the conclusion that a *sensible house dog* is more like the people he has left at home than most of his new companions, and that it (the house dog) would be nearly as *capable* of solving problems on national character."

Indeed!!

Is it possible that the Reviewer should still remain the dupe of such a vulgar error? That at one time it was the custom to send to sea *the fool of the family*, is certain, and had the Reviewer flourished in those days, he would probably have been the one devoted to the service—but *tempora mutantur*. Is the Reviewer aware that one-half, and certainly the most successful half, of English diplomacy, is now carried on by the admirals and captains, not only in the Mediterranean, but all over the world. Is he aware that when the Foreign Office wishes to do its work cheaply and well, it demands a vessel from the Admiralty, which is made over to that office, and is set down as employed on "particular service:" that during that service the captain acts from instructions given by the Foreign Office alone, and has his cabin piled with voluminous documents; and that, like the unpaid magistracy of England, we sailors do all the best of the work, and have nothing but our trouble for our pains. Nay, even the humble individual who pens this remonstrance was for months on this very service, and, when it was completed, the Foreign Office

expressed to the Admiralty its satisfaction at his conduct during his short diplomatic career.

House dogs! Hear this, ye public of England! A sensible house dog is to be preferred to St. Vincent, Nelson, Collingwood, Exmouth, and all those great men who have aided their country as much with their pen as with their sword; as much by their acuteness and firmness in diplomacy, as by their courage and conduct in action.

Now, Mr Reviewer, don't you feel a little ashamed of yourself? Would you really like to give up your name as the author of this bare-faced libel? Would you like openly to assert that such is your opinion, and that you will stand by it?

No liberal, high-minded man, whatever his politics may have been, has ever refused to do justice to a service which has been the bulwark of England. Lord Brougham has lately published a work containing the lives of celebrated persons in the reign of George the Third. I will just quote a few passages from his life of Lord St. Vincent.

"The present sketches would be imperfect if Lord St. Vincent were passed over in silence, for he was almost as *distinguished* among the *statesmen*, as the *warriors* of the age.

"A *statesman* of profound views and of penetration, hardly *equalled* by any other man of his time.

"But the consummate vigour and wisdom of his proceedings during the dreadful period of the mutiny, are no less a theme of wonder and of praise.

"When the Addington ministry was formed, he was placed at the head of the Admiralty; and now shone forth in all its lustre that great capacity for affairs with which he was endowed by nature, and which ample experience of men, habits of command, and an extended life of deep reflection, had matured.

“The *capacity of a statesman* and the valour of the hero, outshone by the magnanimous heart which beats only to the measures of generosity and justice.”

Here, again, the Reviewer is in what the Yankees would call an “everlasting awkward fix;” for he contradicts Lord Brougham, the patron and sole supporter of his fast-waning review, without the aid of whose admirable pen, it would long ago have gone to its proper place. He must now either admit that he is himself wrong, or that it is Lord Brougham who is in error. He has but to choose.

I have but one more remark to make upon the review itself. At the close of it, the Reviewer observes, that my remarks upon the marine are interesting and useful. How does he know? Upon his own argument, if we house dogs are not competent upon shore matters, he must be equally ignorant of anything connected with our profession; and I therefore consider it a piece of unpardonable presumption on the part of a *land lubber* like him to offer any opinion on the subject.

The Reviewer, whoever it may be, has proved himself wholly incompetent to his task; he has attacked, but has yet to learn the art of parrying, as has been proved by his laying himself so open. His blows have been stopped, and, without giving, he has received severe punishment. I am the more surprised at this, as I really considered that there was a certain tact in the *Edinburgh Review*, which enabled it to know where to direct the blow, so as to make it tell; a species of professional knowledge proper to executioners, reviewers, and cab-drivers, and which may be summed up in the following axiom: “The great art of flogging is, to know where to find a bit of *raw*.”

So little have I felt the castigation intended, that I have had some compunction in administering this discipline to the Reviewer in return. Surely the *Edinburgh Review* can put a better head on, when it takes notice of this second portion of my work? I will give it an anecdote.

A lady of my acquaintance was blessed with a son, then about three years old. She was very indulgent, and he was very much spoiled. At last he became so unmanageable that she felt it was her imperative duty to correct him. She would as soon have cut off her right arm, but that would not have mended the matter, nor the child. So one day, when the young gentleman had been more than usually uproarious, she pulled up his petticoats and administered what *she* considered a most severe infliction. Having so done, with a palpitating heart she sat down to recover herself, miserable that she had been compelled to punish, but attempting to console herself with the reflection that she had done her duty. What then was her surprise to have her reveries interrupted by the young urchin, who, appearing only to have been *tickled*, came up to her, and laying down his head on her lap, pulled up his coats, and cried, "More whipping, Ma; please, more whipping." So weak has been the wrist, whether it be feminine or not, that has applied the punishment, that I also feel inclined to exclaim with the child, "More whipping, (Miss Martineau?) please, more whipping."

The Reviewer has pronounced that "*no author is cleverer than his works*." If no author be cleverer than his works, it is equally certain that *no reviewer is cleverer than his review*. Does the Reviewer recollect the fable of the jackass who put on the lion's skin? Why did he not take warning from the fabled folly of his ancestor and *hold his tongue*? He might still have walked about and have been supposed to be a Reviewer.

He asserts that I am not capable of serious reflection: he is mistaken. I have seldom cut the leaves of the *Edinburgh*, having been satisfied with looking at its outside, and thinking how very appropriate its colours of *blue and yellow* were to the opinions which it advocates. But at times I have been more serious. I have communed with myself as it lay before me, and I have mentally exclaimed:— Here is a work written by men whom the Almighty has endowed with talents, and who will, if there be truth in Scripture, have to answer for the talents committed to their keeping,—yet these men, like madmen, throw about fire, and cry it is only in sport; they

uphold doctrines as pernicious as, unfortunately, they are popular; disseminate error under the most specious guise; wage war against the happiness of their fellow-creatures, unhinging society, breeding discontent, waving the banner of infidelity and rebellion, and inviting to anarchy and bloodshed. To such prostitution of talent to this work of the devil, they are stimulated by their pride and their desire of gain! And I have surmised that hereafter they *will have* their reward; but, remembering that we are forbid to judge, I have checked my thoughts as they have turned upon what might hereafter be the portion below of—an Edinburgh Reviewer.

Note 1. A very acute reviewer has observed of my first portion, that there always appeared as if there was something *left behind and not told*. He was right; I have entered into every subject just as deeply as I dared to venture, without wearying the class of readers for whom, although not avowedly, yet in reality, the work has chiefly been written. The second portion will therefore be found almost as light and trifling as the first.

Volume Three—Chapter Twelve.

Discourse on the Evidences of the American Indians being the Descendants of the Lost Tribes of Israel.

Those who study the Scriptures, either as a matter of duty or pleasure—who seek in them divine revelations, or search for the records of history, cannot be ignorant of the fact that the Jewish nation, at an early period, was divided into twelve tribes, and occupied their ancient heritage under geographical divisions, during the most splendid periods under the kingdoms of Judah and of Israel.

Their early history—the rise, progress, and downfall of the nation—the proud distinction of being the chosen people—their laws, government, and wars—their sovereigns, judges, and temples—their

sufferings, dispersions, and the various prophecies concerning this ancient and extraordinary people, cannot be unknown to you all. For their history is the foundation of religion, their vicissitudes the result of prophecy, their restoration the fulfilment of that great promise made to the Patriarch Abraham, almost I may say in the infancy of nature.

It is also known to you that the Jewish nation was finally overpowered, and nine and a half of the tribes were carried captives to Samaria; two and a half, to wit: Judah, Benjamin, and half Menassah, remained in Judea or in the transjordan cities.

The question before us for consideration is, what has become of the missing or dispersed tribes—to what quarter of the world did they direct their footsteps, and what are the evidences of their existence at this day?

An earthquake may shake and overturn the foundations of a city—the avalanche may overwhelm the hamlet—and the crater of a volcano may pour its lava over fertile plains and populous villages—but a whole nation cannot vanish from the sight of the world, without leaving some traces of its existence, some marks of habits and customs.

It is a singular fact that history is exceedingly confused, or rather, I may say, *dark*, respecting the ultimate dispersion of the tribes among the cities of the Medes. The last notice we have of them is from the second Book of Esdras, which runs thus:

“Whereas thou sawest another peaceable multitude: these are the ten tribes which were carried away prisoners out of their own land in the time of Osea, whom Salmanazar, king of Assyria, led away captive, and he carried them over the waters, so they came unto another land.

“They took this counsel among themselves that they would leave the multitude of the *heathen*, and go into a further country wherein *never mankind dwelt*, that they might there keep their statutes, which they

never kept in their own land (Assyria), and there was a great way to go, namely, a year and a half.”

Esdras, however, has been deemed apocryphal. Much has been said concerning the doubtful character of that writer. He wrote in the first century of the Christian church, and Tertullian, St. Ereneus, Clemens Alexandrius, Pico di Mirandola, and many learned and pious men, had great confidence in his writings. Part of them have been adopted by Protestants, and all considered orthodox by Catholics. With all his old Jewish attachments to the prophecies and traditions, Esdras was nevertheless a convert to Christianity. He was not an inspired writer or a prophet, although he assumed to be one, and followed the course as well as the manner of Daniel.

The Book of Esdras, however, is of great antiquity, and as an historical record is doubtless entitled to great respect.

The precise number which left Babylon and other cities, and took to the desert, cannot be accurately known; but they were exceedingly numerous, for the edict of Ahaserus, which decreed their destruction, embraced 127 provinces, and reached from Ethiopia to the Indies. Benjamin of Tudela, who travelled in the eleventh century through Persia, mentions that in some of the provinces, at the time of that decree, the Jews occupied forty cities, two hundred boroughs, one hundred castles, which contained 300,000 people. I incline to the opinion that 300,000 of the tribes left Persia.

There is no doubt that, in the march from the Euphrates to the north-east coast of Asia, many of the tribes hesitated in pursuing the journey: some remained in Tartary, many went into China. Alverez states in his History of China, that the Jews had been living in that kingdom for more than six hundred years. He might with great probability have said 1,600 years. He speaks of their being very numerous in some of the provinces, and having synagogues in many of the great cities, especially in that of Hinan and in its metropolis Kai-tong-fu, where he represents them to have a magnificent place of worship, and a repository, the Holy Volume, adorned with richly

embroidered curtains, in which they preserve an ancient Hebrew manuscript roll.

They know but little of the Mosaic law, and only repeat the names of David, Abraham, Isaiah, and Jacob. In a Hebrew letter written by the Jews of Cochin-China to their brethren at Amsterdam, they give as the date of their retiring into India, the period when the Romans conquered the Holy Land.

It is clearly evident, therefore, that the tribes, in their progress to a new and undiscovered country, left many of their numbers in China and Tartary, and finally reached the Straits of Behring, where no difficulty prevented their crossing to the north-west coast of America, a distance less than thirty miles, interspersed with the Copper Islands, probably frozen over; and reaching our continent, spread themselves in the course of two thousand years to Cape Horn, the more hardy keeping to the north, to Labrador, Hudson's Bay, and Greenland; the more cultivated fixing their residence in the beautiful climate and rich possessions of Central America, Mexico, and Peru.

But it may here be asked, could the scattered remnants of Israel have had the courage to penetrate through unknown regions, and encounter the hardships and privations of that inhospitable country? Could they have had the fortitude, the decision, the power, to venture on a dreary pilgrimage of eighteen months, the time mentioned by Esdras as the period of their journey? Could they not? What obstacles had hitherto impeded their progress, that had broken down their energies, or impaired their constancy and fidelity?

They knew that their brethren had severed the chains of Egyptian bondage; had crossed in safety the arm of the Red Sea; had sojourned for years in the wilderness; had encamped near Mount Sinai, and had possessed themselves of the Holy Land.

They remembered the kingdoms of Judah and Israel in all their glory; they had witnessed the erection and destruction of their Temple; they had fought and conquered with the Medes, the Assyrians, the Persians, the Greeks, and the Romans. They had encountered

sufferings upon sufferings unmoved; had bowed their necks submissively to the yoke.

Kings, conquerors, nations, Christians, Mahometans, and Heathens, all had united in the design of destroying the nation; but they never despaired—they knew they were the elect and chosen of the Lord. The oath, that He never would abandon his people, had been fulfilled 3,500 years, and, therefore, with the cloud by day and the pillar of fire by night, they abandoned the Heathens and the Persian territory, passed the confines of Tartary and China, and, no doubt, through great sufferings, reached the north-eastern coast of Asia, and came in sight of that continent, wherein, as they had reason to believe, “mankind never before had dwelt.”

On the discovery of America by Columbus, and the discoveries subsequent to his time, various tribes of Indians or savages were found to inhabit this our continent, whose origin was unknown.

It is, perhaps, difficult for the human mind to decide on the character and condition of an extreme savage state. We can readily believe that children abandoned in infancy in a savage country, and surviving this abandonment, to grow up in a state of nature, living on herbs and fruits, and sustaining existence as other wild animals, would be stupid, without language, without intellect, and with no greater instinct than that which governs the brute creation. We can conceive nothing reduced to a more savage condition; with cannibal propensities, an ungovernable ferocity, or a timid apprehension, there can be but a link that separates them from other classes of animal creation. So with herds of men in a savage state, like herds of buffalo or wild horses on our prairies, they are kept together by sounds common amongst themselves, and are utterly unacquainted with the landmarks of civilisation.

This, however, was not the condition of the American Indians when first discovered. They were a singular race of men, with enlarged views of life, religion, courage, constancy, humanity, policy, eloquence, love of their families; with a proud and gallant bearing, fierce in war, and, like the ancients, relentless in victory. Their

hospitality might be quoted as examples among the most liberal of the present day. These were not wild men—these were a different class from those found on the Sandwich and Feegee Islands. The red men of America, bearing as they do the strongest marks of Asiatic origin, have, for more than two thousand years (and divided as they are in upwards of three hundred different nations) been remarkable for their intellectual superiority, their bravery in war, their good faith in peace, and all the simplicity and virtues of their patriarchal fathers, until civilisation, as it is called, had rendered them familiar with all the vices which distinguish the present era, without being able to enforce any of the virtues which are the boast of our present enlightened times.

It is, however, in the religious belief and ceremonies of the Indians that I propose showing some of the evidences of their being, as it is believed, the descendants of the dispersed tribes. The opinion is founded—

1st. In their belief in one God.

2nd. In the computation of time by their ceremonies of the new moon.

3rd. In their divisions of the year in four seasons, answering to the Jewish festivals of the feast of flowers, the day of atonement, the feast of the tabernacle, and other religious holidays.

4th. In the erection of a temple after the manner of our temple, and having an ark of the covenant, and also the erection of altars.

5th. By the divisions of the nation into tribes, with a chief, or grand sachem at their head.

6th. By their laws of sacrifices, ablutions, marriages; ceremonies in war and peace, the prohibitions of eating certain things, fully carrying out the Mosaic institutions;—by their traditions, history, character, appearance, affinity of their language to the Hebrew, and finally, by

that everlasting covenant of heirship exhibited in a perpetual transmission of its seal in their flesh.

If I shall be able to satisfy your doubts and curiosity on these points, you will certainly rejoice with me in discovering that the dispersed of the chosen people are not the lost ones—that the promises held out to them have been thus far realised, and that all the prophecies relative to their future destination will in due time be strictly fulfilled.

It has been the general impression, as before mentioned, that great resemblance existed between some of the religious rites of the Jews, and the peculiar ceremonies of the Indians; and the belief in one Great Spirit has tended to strengthen the impression; yet this mere resemblance only extended so far as to admit of the belief, that they possibly may have descended from the dispersed tribes, or may have been of Tartar or Malay origin.

It was, however, a vague and unsatisfactory suspicion, which, having no tangible evidence, has been rejected, or thrown aside as a mere supposition. All the missionaries and travellers among the Indian tribes since the discovery of America—Adair, Heckwelder, Charliveux, Mckenzie, Bartram, Beltrami, Smith, Penn, Mrs Simon, who has written a very interesting work on this subject, etcetera, have expressed opinions in favour of their being of Jewish origin—the difficulty, however, under which they all laboured was simply this; they were familiar with the religious rites, ceremonies, traditions, and belief of the Indians, but they were not sufficiently conversant with the Jewish rites and ceremonies to show the analogy. It is precisely this link in the chain of evidence that I propose to supply.

It has been said that the Indians, believing in one great Spirit and Fountain of Life, like the Jews, does not prove their descent from the missing tribes, because in a savage state their very ignorance and superstition lead them to confide in the works of some divine superior being. But savages are apt to be idolaters, and personate the deity by some carved figure or image to whom they pay their adoration, and not, like the Indians, having a clear and definite idea

of one great Ruler of the universe, one great Spirit, whose attributes are as well known to them as to us.

But if the continued unerring worship of one God like the Jews prove nothing, where did they acquire the same Hebrew name and appellation of that deity? If tradition had not handed down to them the ineffable name as also preserved by the Jews, how did they acquire it in a wilderness where the word of the Lord was never known?

Adair, in whom I repose great confidence, and who resided *forty* years among them, in his work published in 1775, says, “The ancient heathens worshipped a plurality of gods, but these Indians pay their devoirs to *Lo-ak* (Light) *Ish-ta-koola-aba*, distinctly Hebrew, which means the great supreme beneficent holy Spirit of Fire who resides above.”

“They are,” says Adair, “utter strangers to all the gestures practised by the Pagans in their religious rites—they kiss no idols, nor would they kiss their hands in tokens of reverence or willing obedience.”

“These tribes,” says Adair, “so far from being Atheists, use the great and dreadful name of God, which describes his divine essence, and by which he manifested himself to Moses! and are firmly persuaded that they now live under the immediate government of the Almighty Ruler. Their appellative for God is *Isto-hoolo*, the Hebrew of *Esh-Eshys*, from *Ishto*, *Great*, but they have another appellative, which with them, as with us, is the mysterious essential name of God, which they never mention in common speech, and only when performing their most sacred religious rites, and then they most solemnly divide it in syllables, with intermediate words, so as not to pronounce the ineffable name at once.”

Thus, in their sacred dances at their feast of the first-fruits, they sing *Aleluyah* and *Mesheha*, from the Hebrew of *Masheach*, Messiah, the anointed one.

“Yo mesheha,” “*He* mesheha,” “*Wah* meshehah,” thus making the *Alleluyah*, the Meshiah, the Yehovah.

Can we, for a moment, believe that these sacred well-known Hebrew words found their way by *accident* to the wilderness? Or can it be doubted that, like the fire of the burning bush, which never is extinguished, those words of religious adoration are the sacred relics of tradition, handed down to them from generation to generation? “In the same manner,” says Adair, “they sing on certain other religious celebrations, *ailyo ailyo*, which is the Hebrew *el* for God, by his attribute of omnipotence.” They likewise sing *hewah, hewah*, He chyra, the “immortal soul.” Those words sung at their religious rejoicings are never uttered at any other time, which must have occasioned the loss of their divine hymns. They on some occasions sing *Shilu yo—Shilu he—Shilu wah*. The three terminations make up in their order the four lettered divine name in Hebrew. *Shilu* is evidently *Shaleach*, *Shiloth*, the messenger, “the peace maker.”

The number of Hebrew words used in their religious services is incredible; thus, in chiding anyone for levity during a solemn worship, they say, *Che hakeet Kana*, “you resemble those reprov'd in Canaan,” and, to convey the idea of criminality, they say *Hackset Canaha*, “the sinners of Canaan.” They call lightning *eloah*, and the rumbling of thunder *rowah*, from the Hebrew *ruach*, “spirit.”

Like the Israelites, they divide the year into four seasons, with the same festivals; they calculate by moons, and celebrate, as the Jews do, the *berachah halebana*, the blessing for the new moon.

The Indians have their prophets and high-priests, the same as the Jews had; not hastily selected, but chosen with caution from the most wise and discreet, and they ordain their high-priests by anointing and have a most holy place in their sanctuaries, like the Holy of Holies in the temple. The archimagus, or high-priest, wears, in resemblance to the ancient breast-plate, a white conch-shell ornamented so as to resemble the precious stones on the *Urim*, and instead of the golden plate worn by the Levite on his forehead, bearing the inscription *Kodish Ladonaye*, the Indian binds his brows

with a wreath of swan's feathers, and wears a tuft of white feathers, which he calls *Yatira*.

The Indians have their ark, which they invariably carry with them to battle, well guarded. In speaking of the Indian places of refuge, Adair says, "I observed that if a captive taken, by the reputed power of the holy things of their ark, should be able to make his escape into one of these towns, or even into the winter house of the *Archima gun*, he is delivered from the fiery torture, otherwise inevitable. This, when taken in connection with the many other faint images of Mosaic customs, seems to point at the mercy-seat of the sanctuary. It is also worthy of notice, that they never place the ark on the ground. On hilly ground, where large stones are plenty, they rest it thereon, but on level prairies, upon short logs, where they also seat themselves. And when we consider," continues Adair, "in what a surprising manner the Indians copy after the ceremonial law of the Hebrews, and their strict purity in the war camps; that *opae*, "the leader," obliges all during the first campaign which they have made with the beloved ark, to stand every day, they are not engaged in warfare, from sunrise to sunset, and after a fatiguing day's march and scanty allowance, to drink warm water embittered with rattle-snake root very plentifully, in order to purification; that they have also as strong a faith in the power of their ark as ever the Israelites had in theirs, ascribing the success of one party to their stricter adherence to the law, than the other, we have strong reason to conclude them of Hebrew origin. The Indians have an old tradition, that when they left their own native land, they brought with them a *sanctified rod*, by order of an oracle, which they fixed every evening in the ground, and were to remove from place to place on the continent, towards the sun rising, till it budded in one night's time. I have seen other Indians," says the same writer, "who related the same thing." Instead of the miraculous direction to which they limit it, in their western banishment, it appears more likely that they refer to the ancient circumstance of the rod of Aaron, which, in order to check the murmur of those who conspired against him, was, in his favour, made to bud blossoms and yield almonds at one and the same time. It is a well attested fact, and is here corroborated by

Adair, that in taking female captives, the Indians have often protected them, but never despoiled them of honour.

This statement of Adair, in relation to the ark, is corroborated by several travellers. Major Long, a more recent traveller, in his expedition to the Rocky Mountains, says, in relation to the ark, "It is placed upon a stand, and is never suffered to touch the earth. No person dare open all the coverings. Tradition informs them that curiosity induced three different persons to examine the mysterious shell, who were immediately punished for their profanation by instant blindness." This is the Jewish punishment pronounced for looking on the holy of holies—even now for looking on the descendants of the high priest who alone have the privilege of blessing the people.

The most sacred fast day uniformly kept by the Jews is the day of atonement, usually falling in the month of September or early in October. This is deemed in every part of the world a most solemn fast, and great preparations are made for its celebration. It is in the nature of expiation of sin, of full confession, penitence, and prayer; and is preceded by ablution and preparation of morning prayer for some time.

It is a very sacred fast, which lasts from sunset on one day until the new moon is seen on the succeeding evening. It is not in the nature of a gloomy desponding penance, but rather a day of solemn rejoicing, of hope and confidence, and is respected by those most indifferent to all other festivals throughout the year.

Precisely such a fast, with similar motives, and nearly at the same period of the year, is kept by the Indian natives generally.

Adair, after stating the strict manner in which the Indians observe the revolutions of the moon, and describing the feast of the harvest, and the first offerings of the fruits, gives a long account of the preparations in putting their temple in proper order for the great day of atonement, which he fixes at the time when the corn is full-eared and ripe, generally in the latter end of September. He then proceeds:

“Now one of the waiters proclaims with a loud voice, for all the warriors and beloved men whom the purity of their law admits, to come and enter the beloved square and observe the fast. He also exhorts the women and children, with those who have not been initiated in war, to keep apart according to the law.

“Four sentinels are now placed one at each corner of the holy square, to keep out every living creature as impure, except the religious order, and the warriors who are not known to have violated the law of the first fruit-offering, and that of marriage, since the last year’s expiation. They observe the fast till the rising of the second sun; and be they ever so hungry in the sacred interval, the healthy warriors deem the duty so awful, and disobedience so inexpressibly vicious, that no temptation would induce them to violate it. They at the same time drink plentifully of a decoction of the button snake root, in order to vomit and dense their sinful bodies.”

“In the general fast, the children and men of weak constitutions, are allowed to eat, as soon as they are certain that the sun has begun to decline from his meridian altitude.

“Now every thing is hushed. Nothing but silence all around. The great beloved man, and his beloved waiter, rising up with a reverend carriage, steady countenance and composed behaviour, go into the beloved place, or holiest, to bring them out the beloved fire. The former takes a piece of dry poplar, willow, or white oak, and having cut a hole, but not so deep as to reach through it; he then sharpens another piece, and placing that in the hole, and both between his knees, he drills it briskly for several minutes, till it begins to smoke—or by rubbing two pieces together for a quarter of an hour, he collects by friction the hidden fire, which they all consider as proceeding from the holy spirit of fire.

“The great beloved man, or high priest, addresses the warriors and women; giving all the particular, positive injunctions and negative precepts they yet retain of the ancient law. He uses very sharp language to the women. He then addresses the whole multitude. He enumerates the crimes they have committed, great and small, and

bids them look at the *holy fire* which has forgiven them. He presses on his audience, by the great motives of temporal good and the fear of temporal evil, the necessity of a careful observance of the ancient law, assuring them that the *holy fire* will enable their prophets, the rain makers, to procure them plentiful harvests, and give their war leaders victory over their enemies. He then orders some of the fire to be laid down outside of the holy ground, for all the houses of the various associated towns, which sometimes lay several miles apart.”

Mr Bartram, who visited the southern Indians in 1778, gives an account of the same feast, but in another nation. He says, “that the feast of first-fruits is the principal festival. This seems to end the old and begin the new ecclesiastical year. It commences when their new crops are arrived to maturity. This is their most solemn celebration.”

With respect to the sacrifices, we have had none since the destruction of the temple, but it was customary among the Jews, in the olden time, to sacrifice daily a part of a lamb. This ceremony is strictly observed by the Indians. The hunter, when leaving his wigwam for the chase, puts up a prayer that the great spirit will aid his endeavours to procure food for his wife and children, and when he returns with the red deer, whatever may be the cravings of hunger, he allows none to taste until he has cut part of the flesh, which he throws in the fire as a sacrifice, accompanied with prayer. All travellers speak of this practice among the Indians, so clearly Hebrew in its origin.

The bathings, anointings, ablutions, in the coldest weather, are never neglected by the Indians, and, like the Jews of old, they anoint themselves with bear’s oil.

The Mosaic prohibition of eating unclean animals, and their enumeration, are known to you all. It would be supposed that, amidst the uncertainty of an Indian life, all kinds of food would be equally acceptable. Not so: for, in strict conformity with the Mosaic law, they abstain from eating the blood of any animal, they abominate swine flesh, they do not eat fish without scales, the eel, the turtle or sea-cow: and they deem many animals and birds to be impure. These

facts are noticed by all writers, and particularly by Edwards in his History of the West-Indies. The latter able historian, in noticing the close analogy between the religious rites of the Jews and Indians, says, "that the striking conformity of the prejudices and customs of the Caribbee Indians, to the practices of the Jews, has not escaped the notice of such historians as Gamella, Da Tertre, and others;" and Edwards also states, that the Indians on the Oroonoke, punished their women caught in adultery, by stoning them to death before the assembly of the people.

Among the Mosaical laws is the obligation of one brother to marry his brother's widow, if he die without issue. Major Long says, "if the deceased has left a brother, he takes the widow to his lodge after a proper interval and considers her as his wife."

This is also confirmed by Charliveux.

It would occupy a greater space of time than I can afford, to trace a similitude between all the Indian rites and religious ceremonies, and those of the Jewish nation. In their births, in their separation after the births of their children, in their daily prayers and sacrifices, in their festivals, in their burials, in the employment of mourners, and in their general belief, I see a close analogy and intimate connection, with all the ceremonies and laws which are observed by the Jewish people; making a due allowance for what has been lost, and misunderstood, in the course of upwards of 2,000 years.

A general belief exists among most travellers, that the Indians are the descendants of the missing tribes.

Menassah Ten Israel wrote his celebrated treatise to prove this fact, on the discovery of America.

William Penn, who always acted righteously to wards the Indians, and had never suspected that they had descended from the missing tribes, says, in a letter to his friends in England, "I found them with like countenances to the Hebrew race. I consider these people under a dark night, yet they believe in God and immortality, without the aid

of metaphysics. They reckon by moons, they offer their first ripe fruits, they have a kind of feast of tabernacles, they are said to lay their altars with twelve stones, they mourn a year, and observe the Mosaic law with regard to separation.”

Emanuel de Moraez, in his history of Brazil, declares that America has been peopled by the Carthaginians and Israelites, and as to the Israelites he says, nothing is wanting but circumcision, to constitute a perfect resemblance between them and the Brazilians.

The Reverend Mr Beatty, a very worthy missionary, says, “I have often before hinted, that I have taken great pains to search into the usages and customs of the Indians, in order to see what ground there was for supposing them to be part of the ten tribes, and I must own, to my no small surprise, that a number of their customs appear so much to resemble those of the Jews, that it is a great question with me, whether we can expect to find among the ten tribes, wherever they are at this day, all things considered more of the footsteps of their ancestors than among the different Indian tribes.”

Monsieur de Guignes, an old French historian, in speaking of the discoveries made in America, before the time of Columbus, says, “These researches, which of themselves give us great insight into the origin of the Americans, lead to the determination of the route of the colonies sent to the continent;” and he proceeds to give reasons for his belief, that the greater part of them passed thither “by the most eastern extremities of Asia, where the two continents are only separated by a narrow strait, easy to cross.”

Beltrami, in his discovery of the sources of the Mississippi, after a full and interesting account of the Indians, says, “Different authors have brought them hither from all parts of the world. I was at first induced to join with those who derived them from the Hebrews. It seemed impossible for me to doubt that, by so doing, I should be building on an impregnable foundation.” He then proceeds to prove their Asiatic origin by many interesting facts.

The late Earl of Crawford and Lindsay, published his travels in America, in 1801. "It is curious and pleasing," says he, "in reading the travels of those who have been among these people, to find how their customs comport with the laws of Moses;" and after describing at length their religious rites and ceremonies, his lordship emphatically observes, "It is a sound truth, that the Indians *are* descended from the ten tribes; and time and investigation will more and more enforce its acknowledgment."

It is, however, in Mexico and Peru, that we must look for the most enlightened and the most wealthy of the Indian race. On the representations of Montesini, who travelled in South America, the learned Rabbi Menassah Ten Israel, as I have said before, wrote his famous work *La Esperanza de Israel*, which he published in Amsterdam, in 1650, endeavouring with great zeal to prove, that the Indians in North and South America were the descendants of the missing tribes; and Cromwell, to whom the work was dedicated, was greatly interested in the evidences produced on that occasion. Montesini, travelling through the province of *Quif* found that his Indian guide was a Jew, and pursuing his inquiries, discovered that immense numbers lived behind the Cordilleras. Francis, the name of his guide, admitted to Montesini, that his God was called *Adonal*, and that he acknowledged Abraham, Isaac, and Jacob, as his ancestors, and they claimed to have descended from the tribe of Reuben.

Acosta contends that they have a tradition relative to the deluge; that they preserve the rite of circumcision; they offer the first-fruits, and in Peru they eat the Paschal Lamb; they believe in the resurrection, and clothe the dead with the richest equipage. Lopez de Gomara says, that some of them, and not all, are circumcised. Acosta continues, "the Mexicans point out the various stations as their ancestors advanced into their country, and it is precisely the route which they must have held, had they been emigrants from Asia."

Menassah Ten Israel declares, that the Indians of Mexico had a tradition, that their magnificent place of worship had been built by a

people who wore their beards, and were more ancient than their Incas. In the Universal History of 1748, it is affirmed, that the Mexicans and other American Indians rend their garments, in order the more effectually to express grief—the Hebrew custom at this day.

Lopez de Gomara states, that the Mexicans offer sacrifices of the first-fruits, and, when Cortez approached Mexico, Montezuma shut himself up for the space of eight days in fasting and prayer. Emanuel de Moreas and Acosta say, that the Brazilians marry in their own tribes and families; and Escorbatus affirms, that he frequently heard the southern tribes repeat the sacred notes *Ha-le-lu-yah*. Malvenda states, that several tomb-stones were found in St. Michael's, with ancient Hebrew characters.

When the Spaniards invaded Mexico, the Cholula was considered a holy city by the natives, with magnificent temples, in which the High Priest Quetza-colt preached to man, and would permit no other offerings to the Master of Life than the first-fruits of the harvest. “We know by our traditions,” said the venerable Prince Montezuma to the Spanish General Cortez, “that we who inhabit this country are not the natives but strangers who come from a great distance.”

Don Alonzo Erecella, in his history of Chili, says, the Araucanians acknowledge one Supreme Being, and believe in the immortality of the soul; and the Abbé Clavigero declares, that they have a tradition of the great deluge. The laws and ceremonies of the Peruvians and Mexicans have, no doubt, been corrupted in the course of many ages, both in their sacrifices and worship.

Their great and magnificent temple, evidently in imitation of that erected by Solomon, was founded by Mango Capac, or rather by the Inca Vupanque, who endowed it with great wealth. Clavigero and De Vega, in their very interesting account of this temple say, “what we called the altar was on the east side of the temple. There were many doors to the temple, all of which were plated with gold, and the four walls the whole way round were crowned with a rich golden garland, more than an ell in width. Round the temple were five square pavilions, whose tops were in the form of pyramids. The fifth

was lined entirely with gold, and was for the use of the Royal High-Priest of sacrifices, and in which all the deliberations concerning the temple were held. Some of the doors led to the schools where the Incas listen to the debates of the philosophers, sometimes themselves explaining the laws and ordinances.”

Mexico and Central America abound in curiosities, exemplifying the fact of the Asiatic origin of the inhabitants; and it is not many years ago, that the ruins of a whole city, with a wall nearly seven miles in circumference, with castles, palaces, and temples, evidently of Hebrew or Phoenician architecture, was found on the river Palenque. The thirty-fifth number of the Foreign Quarterly Review contains an interesting account of those antiquities.

The ruins of this city of Guatemala, in Central America, as described by Del Rio in 1782, when taken in conjunction with the extraordinary, I may say, wonderful antiquities spread over the entire surface of that country, awaken recollections in the specimens of architecture which carry us back to the early pages of history, and prove beyond the shadow of doubt, that we who imagined ourselves to be the natives of a new world, but recently discovered, inhabit a continent which rivalled the splendour of Egypt and Syria, and was peopled by a powerful and highly cultivated nation from the old world. When we speak of what is called Mexican antiquities, we must not confound the rude labours of modern times, with the splendid perfections which distinguished the efforts of those who reared the Egyptian pyramids, and built the temples of Thebes and Memphis. It is not Mexican antiquities, but the antiquities of Tultecan; and in addition to the ruins of Palenque, on this *our* continent, there are pyramids larger than those of Sachara in Egypt, at Cholula, Otamba, Paxaca, Mitlan, Tlascola, and on the mountains of Tescoca, together with hieroglyphics, planispheres and zodiacs, a symbolic and Photenic alphabet; papyrus, metopes, triglyphs, and temples and buildings of immense grandeur; military roads, aqueducts, viaducts, posting stations and distances; bridges of great grandeur and massive character, all presenting the most positive evidences of the existence of a powerful enterprising nation, which must have flourished two

thousand years before the Spanish conquest. Take, for example, the description of the temple at Palenque, which Lord Kingsborough, in his travels, not only declares was built by the Jews, and is a copy of Solomon's temple, but which, no doubt, is precisely the model of the temple described by Ezekiel. Travellers speak of it in the following terms:

"It may be appropriately called an ecclesiastical city, rather than a temple. Within its vast precincts there appear to be contained (as indeed was, in some measure, the case with the area that embraced the various buildings of Solomon's temple) a pyramidal tower, various sanctuaries, sepulchres; a small and a large quadrangular court, one surrounded, as we have said, by cloisters; subterranean initiatory galleries beneath; oracles, courts of justice, high places, and cells or dwellings for the various orders of priests. The whole combination of the buildings is encircled by a quadrilateral pilastered portico, embracing a quadrangular area, and resting on a terraced platform. This platform exhibits the same architectural model, which we have described as characterising the single temples. It is composed of three graduated stuccoed terraces, sloping inwards, at an angle of about seventy degrees, in the form of a truncated pyramid. Four central staircases (one facing each of the cardinal points) ascend these terraces in the middle of each lateral façade of the quadrangle; and four gates fronting the same cardinal points, conduct from the top of each staircase into the body of the building, or into the great court. The great entrance, through a pilastered gateway, fronts the east, and descends by a second flight of steps into the cloistered court. On the various pilasters of the upper terrace are the metopes, with singular sculptures. On descending the second staircase into the cloistered court, on one side, appears the triple pyramidal tower, which may be inferred, from the curious distribution of little cells which surround the central room of each story, to have been employed as a place of royal or private sepulture. It would be pronounced a striking and tasteful structure, according to any architectural rule. On another side of the same cloistered court is the detached temple of the chief god, to whom the whole religious building appears to have been devoted, who appears

to have been the great and only god of the nations who worshipped in this temple. Beneath the cloisters, entered by staircases from above, are what we believe to be the initiatory galleries. These opened into rooms, one of which has a stone couch in it, and others are distinguished by unintelligible apparatus carved in stone. The only symbol described as found within these sacred haunts is, however, perfectly Asiatic, and perfectly intelligible; we mean two contending serpents. The remnant of an altar, or high place, occupies the centre of the cloistered quadrangle. The rest of the edifice is taken up with courts, palaces, detached temples, open divans, baths, and streets of priestly cells, or houses, in a greater or less degree of dilapidation."

...

"It is perfectly clear, from the few records of their religious rites which have come down to us, and which are principally derived from the extraordinary rolls of American papyrus, (formed of prepared fibres of the *Maguery*) on which their beautiful hieroglyphical system is preserved (there is one of considerable extent in the Dresden Museum), that they were as simple, perhaps we may add with propriety, as innocent. Not only does it appear that they had no human sacrifices, but no animal sacrifices. Flowers and fruits were the only offerings made to the presiding divinity of their temples."

But who were the Tultequans and Azeteques, the founders of this empire in America; who built the pyramids of Cholula and city of Palenque? *Not the Jews.*

Here we have a most singular diversion from the path on which we originally set out—another extraordinary discovery, marked, too, by events no less extraordinary than amazing.

They were the Canaanites, the scriptural Titans, who, according to the sacred historian, built with walls and towers reaching to the heavens. The builders of the Tower of Babel, the family of the shepherd kings who conquered Egypt, and built the pyramids, and were driven from Syria by Joshua. The men who finally founded Tyre

and Carthage, navigated round the continent of Africa, and sailed in their small craft across the Atlantic, and landed in the Gulf of Mexico.

The *Phoenicians* were the founders of Palenque, Mitlan, Papantla. Quemada, Cholula, Chila, and Antiquerra.

When I studied the history of these people, on the ruins of Carthage, it was said by antiquarians present, that the Carthaginians had a colony at a considerable distance, which they secretly maintained; and when I was at Tangiers, the Mauritania Tangitania of the ancients, I was shown the spot where the pillar was erected, and was standing at the time of Ibnu, the Moorish historian, on which was inscribed, in the Phoenician language, "We are the Canaanites who fled from Joshua, the son of Nun, that notorious robber." From that spot, then ... the pillars of Hercules, now known as the Straits of Gibraltar, they crossed to our continent, and founded a great empire of the Ophite worship, with Syrian and Egyptian symbols. Now, mark the issue. Fifteen hundred years after the expulsion of the Canaanites by Joshua, the ten tribes pass over the Straits of Behring to the continent of America, and poured down upon these people like the Goths and Vandals. The descendants of Joshua a *second* time fell on the Canaanites on another continent, knowing them well as such, and burn their temples, and destroy their gigantic towers and cities.

When Columbus discovered America, he found an innocent people in a demi-savage state, with Jewish traditions, and the only reference to early times was a vague impression that the ruins they saw were built by giants, and a people called wandering masons.

I have the most settled conviction of this theory. The magnificent ruins which are to be seen at this day in Mexico and Central America, were the works of the Phoenicians, and the irruption of the wandering tribes from the north-west coast of America swept that nation away, and have ever since maintained possession of this country, until white men have thinned their ranks, and gradually encroached upon, and usurped a great part of their territory.

The only opposition made to the general declaration of travellers, that the Indians are of Jewish descent, is, that they are red men, and are beardless. Now, take the olive complexion of the Jews in Syria, pass the nation over the Euphrates into a warmer climate, let them mingle with Tartars and Chinese, and after several generations reach this continent, their complexion would undergo some shades of hue and colour; and as to beards, they cannot grow while they are continually plucked, as is the Indian custom. The colour proves nothing against their origin. Take our fellow-citizens on our eastern borders, and compare their florid colour with the sickly hue and sallow complexions of those living on the southern shores, in the palmettoes and everglades, and we shall see a marked distinction, and yet they are members of the same family.

Du Pratz, speaking of the traditions of the Natches tribe, relates that in answer to the question, "Whence come you?" their reply was, "All that we know is that our fathers, to come hither, followed the sun, and came from the place where he rises. They were long in their journey; they were nearly perishing; and were brought to this wilderness of the sun setting without seeking it." Souard says of the Indians of Surinam, on the authority of Nasci, a learned Jew residing there, that the dialect of those Indians common in Guinana is soft, agreeable, and regular, and their substantives are Hebrew. "Their language, in the roots, idioms, and particular construction, has the genius of the Hebrew language, as their orations have the bold, laconic, and figurative style of the Hebrew prophets."

The Reverend Mr Chapman says of the Osages, "it is their universal practice to salute the dawn of every morning with their devotion." A custom always prevailing among pious Jews.

Malvenda and Acosta both affirm, that the natives had a tradition of a jubilee, according to the jubilee of Israel.

Dr Beatty, in speaking of the festival of the first-fruits by the Indians west of the Ohio, says, "at this ceremony *twelve* of their old men divide a deer into twelve parts, and these men hold up the venison and fruits with their faces to the east, acknowledging the bounty of

God to them. A singular and close imitation of the ceremonies and sacrifices of the temple." The doctor further says, "they have another feast which looks like the Passover."

Sir Alexander Mackenzie, in his tour to the north-west coast, says, that "the Chepewyan Indians have a tradition among them, that they originally came from another country, inhabited by very wicked people, and had traversed a great lake which was in one place narrow and shallow, and full of islands, where they had suffered great misery; and a further tradition has it that nine parts of their nation out of ten passed over the river. The Mexicans affirm, that seven tribes or houses passed from the east to the wilderness."

Beltrami says, that the skeletons of the mammoths found in Kentucky and Missouri, and other parts of America, have been ascertained to resemble precisely those which have been found in Siberia and the eastern part of Asia, showing the facility of communication between the two coasts. And here it may be well to state a fact, which is strongly corroborative of the view we have taken, not only of the possibility of passing from one continent to the other, but of the actual and probably constant communication between them. Charlevoix, says, he knew a Catholic priest, called Father Grilion, in Canada, who was recalled to Paris after his mission had been ended, and who was subsequently appointed to a similar mission in China. One day in Tartary, he suddenly encountered a Huron woman with whom he had been well acquainted in Canada, and who informed him that she had been captured, and passed from nation to nation, until she reached the north-west coast, when she crossed into Tartary.

Since delivering the present lecture, I have received a letter from Mr Catlin, the celebrated painter, who for the last five years has been residing among the Indians. Mr Catlin says:

"The first thing that strikes the traveller in an Indian country as evidence of their being of Jewish origin, (and it is certainly a very forcible one,) is the striking resemblance which they generally bear in contour, and expression of head, to those people. In their modes

and customs, there are many striking resemblances, and perhaps as proof, they go much further than mere personal resemblance. Amongst those customs, I shall mention several that have attracted my attention, though probably they have never before been used for the same purpose; and others I may name, which are familiar *to you*, and which it may not be amiss to mention, as I have seen them practised while in their country.

“The universal custom among them of burying their dead with feet to the east, I could conceive to have no other meaning or object than a journey to the east after death—like the Jews who expected to travel under ground after death to the land of Canaan. On inquiry, I found that though they were all going towards the ‘setting sun,’ during their life-times, they expected to travel to the east after death.

“Amongst the tribes, the women are not allowed to enter the medicine lodge; as they were not allowed in Judea to enter the court of Israel. Like the Jewish custom also, they are not allowed to mingle in worship with the men; and at meals, are always separated.

“In their modes, fastings, feastings, or sacrifices, they have also a most striking resemblance. Amongst all the western tribes, who have not been persuaded from those forms by white men, they are still found scrupulously and religiously adhering to, and practising them to the letter. The very many times and modes of sacrificing, remind us forcibly of the customs of the Israelites; and the one in particular, which has been seen amongst several of the tribes, though I did not witness it myself, wherein, like the manner of the ‘peace-offering,’ the firstling and that of the male is offered, and ‘*no bone is to be broken.*’ Such circumstances afford the strongest kind of proofs. All the tribes have a great feast at the dawn of spring, and at those feasts their various sacrifices are made. At the approach of the season of green corn, a feast of the first ears are sacrificed with great solemnity, followed by feasting and dancing: so at the ripening of different kinds of fruit. The first and best piece that is cut from a buffalo is always *Deo Dante*.

“Over the medicine lodge, and also over the lodges of the most distinguished chiefs, are hung on high poles large quantities of fine cloth, white buffalo robes, or other most costly articles which can be procured, there to decay, an offering to the Great Spirit.

“The bunch of willow boughs with which each dancer is supplied, in the Mandan religious ceremonies, the sacrificing and other forms therein observed, certainly render it somewhat analogous to the Israelitish feast of tabernacles.

“The universal practice of ‘*solus cam solo*’ of the women, ablution and anointing with bear’s grease, is strikingly similar to the Jewish custom. Every family has a small lodge expressly for this purpose, and when any one of the family are ready for it, it is erected within a few rods, and meat is carried to her, where she dwells, and cooks and eats by herself, an object of superstitious dread to every person in the village.

“The absence of every species of idolatry amongst the North American Indians, affords also a striking proof of the ceremonial law, and stamps them at once, in one respect, at all events, differing from all other savage tribes of which we have any knowledge.”

What are, I may ask, the characters of these people? On the discovery of America by Columbus, nearly 2,000 years after the dispersion of the Hebrew tribes, the whole continent is found peopled, not with a race of wild men, of cannibals, of savages, but with a race of intellectual, moral, innocent persons, divided into many hundred nations, and spread over 8,000 miles of territory. “I swear to your majesties,” said Columbus, writing to Ferdinand and Isabella, “that there is not a better people in the world than these; more affectionate or mild. They love their neighbours as themselves; their language is the sweetest, the softest and the most cheerful, for they always speak smilingly.” Major Long says, “they are the genuine sons of nature; they have all the virtues nature can give, without the vices of civilisation. They are artless, fearless, and live in constant exercise of moral and Christian virtues, though they know it not.”

Charlevoix gives his testimony in their behalf. "They manifest," says he, "much stability in their engagements, patience in affliction, and submissive acquiescence in what they apprehend the will of Providence. In all this they display a nobleness of soul and constancy of mind, at which we rarely arrive, with all our philosophy and religion."

Du Pratz contends that they have a greater degree of prudence, faithfulness, and generosity than those who would be offended with a comparison with them. "No people," says he, "are more hospitable and free."

Bartram, who lived many years in the Creek nation, says, "Joy, contentment, love and friendship without guile or affectation, seem inherent in them, or predominant in their vital principle, for it leaves them but with their breath. They are," says he, "just, honest, liberal and hospitable to strangers considerate and affectionate to their wives, children, and relations; frugal and persevering, charitable and forbearing."

Who are they? Men do not grow up like stones or trees or rocks; they are not found in herds like wild animals. God, that made man in his own image, gave to the Indians an origin and parentage, like unto the rest of the great family of mankind, the work of his own almighty hand. From whom, then, did our red brethren, the rightful owners of this continent, descend?

There seems to be no difference of opinion that they are of Asiatic origin, and not indigenous to our soil. Nearly all writers and historians concur on this point—they *are* Asiatic—they crossed to the continent of America from Asia; but who are they, and from whom have they descended?

Eldad, who wrote learnedly of the twelve tribes, in 1300, contends, that the tribe of Dan went into Ethiopia, and pretends that the tribes of Naphtali, Gad, and Asher, followed. That they had a king of their own, and could muster 120,000 horse and 100,000 foot. In relation to part of these three tribes, there might have been some truth in it,

for Tigleth Pelieser did compel them to go into Ethiopia. Issachar, he contends, remained with the Medes and Persians. Zebulon extended from the mountains of Pharan to the Euphrates. Reuben dwelt behind Pharan, and spoke Arabic. Ephraim and half Manasseh were thrown on the southern coast. Benjamin of Tudela places Dan, Asher, Naphtali, and Zebulon on the banks of the river Gozan. In the midst of all these contradictory and vague statements, two opinions prevail among Jews and Christians, in early and late periods. One is, that the ten tribes went into Tartary, where they remained; the other, that from Tartary they penetrated into America.

Manasseh Ten Israel, the most learned of the nation, declares that they passed into America. Lescarbot believes that the Indians are the posterity of Ham, expelled by Joshua, and who passed out of the Mediterranean, and were driven by storms to the American coast. Grotius contends, that the inhabitants of the new world were originally from Greenland; and while Basnage frankly admits, that manifest tracts of Judaism are to be found in America, he contends, that the tribes could not have overcome the warlike Scythians and penetrated to this continent, and that they remained in Halak and Heber, and in the cities of the Medes.

Truth, no doubt, lies between these opinions. Many of the tribes passed into Egypt and Ethiopia, many remained in Persia and Tartary; all did not make for the north-west coast, nor was it necessary that all should do so. There were degrees of piety and condition then as now. Restore Jerusalem tomorrow, and all the Jews will not return there. Rabbi Akiba contends, that all the noble families remained in Persia. A number, a considerable number, no doubt, impressed with a solemn belief that if they remained in Persia they would in time become idolators, and lose all the landmarks of their ancient faith, resolved, like those who went out of Egypt, to remain no longer in bondage, and, as Esdrass says, they departed for a country “wherein mankind never before had dwelt”—and the resolution was perfectly feasible. It was a thickly populated country, and by keeping on the borders of China, they would, within the time prescribed, namely, eighteen months, have reached our continent. At

this day there is a constant intercourse between the continents, and a trip to the Rocky Mountains, once so terrifying, is now a mere summer's journey.

If the Indians of America are not the descendants of the missing tribes, again I ask, from whom *are* they descended? From the Egyptians? Wherein, in their belief, is there the least resemblance to the worship of Isis and Osiris, or the Hieroglyphics or historical reminiscences of that very ancient people? Are they a part of the fierce Scythians? Their warlike propensities would prove them to be so; but where among those barbarians do we discover the belief in one Great Spirit, together with the softer virtues, the purity and talents of the Indians? Are they of the Tartar race? Their complexion, "the shadowed livery of the burning sun," might be offered in evidence; they have not the flat head, the angular and twinkling eye, nor the diminutive figure of the Chinese or Tartars.

The Indians have distinct Jewish features, and neither in mind, manners, nor religion, bear any affinity to the Tartar race. I have endeavoured to show this by their traditions, by their religion, by their ceremonies, which retain so much of the ancient worship. But there is one proof more, which, in my mind, removes all doubt. Sir Alexander MacKenzie, in his journal of a tour to the north-west continent of America, declares from his own observation, that the Chippewa Indians practise circumcision, which fact is corroborated by several other travellers amongst the various tribes.

It will scarcely be necessary for me to refer you to the many prophetic warnings relative to the sins, the denunciations, the promises, the dispersion and redemption of the Jewish people, which we find throughout the Bible. With that good book you all are or should be familiar—it is a delightful book, view it in any manner you please. Let the unbeliever sneer and the philosopher doubt, it is certain that the most important events predicted by the prophets *have* come to pass, giving an assurance which is stripped of all doubt, that what remains to be fulfilled, *will* be fulfilled. In what direction are we to look for the missing tribes according to the

prophets? From Jeremiah we learn that they are to come from a country north and west from Judea. From Isaiah, "it is a country far from Judea," and answering also "from the ends of the earth."

In Zachariah we are told, it must be in the western regions, or the country of the going down of the sun; and according to the historian, Esdras, it must be a land wherein mankind never before had dwelt, and, of course, free from the residence of the heathen.

Our prophet Isaiah has a noble reference to the dispersed tribes and their redemption, which may be here appropriately quoted. I use his language, the Hebrew, which from its peculiar associations should be always interesting to you.

And it shall come to pass in that day, that the Lord shall set his hand the *second* time to recover the remnant of his people, which shall be left from Assyria, and from Egypt, and from Pathros, and from Cush, and from Elam, and from Shinar, and from Hamath, and from the islands of the sea.

And he shall set up an ensign for the nations, and shall assemble the outcasts of Israel, and gather together the dispersed of Judah, from the four corners of the earth.

"And there shall be a highway for the remnant of his people, which shall be left from Assyria, like as it was to Israel, in the day that he came up out of the land of Egypt."

May I not with propriety refer, among other evidences, to the cruel persecutions which have uniformly been practised towards the Indians of this continent, not unlike those which the chosen people have suffered for the last eighteen centuries?

"What makes you so melancholy?" said General Knox to the chief of an Indian deputation, that he was entertaining in this city, at the close of the revolutionary war. "I'll tell you, brother," said the aged chief; "I have been looking at your beautiful city—the great water full of ships, the fine country, and see how prosperous you all are. But, then, I

could not help thinking that this fine country *was ours*. Our ancestors lived here. They enjoyed it as their own in peace. *It was the gift of the Great Spirit to them and their children*. At last, white men came in a great canoe. They only asked to let them tie it to a tree, lest the water should carry it away. We consented. They then said some of their people were sick, and they asked permission to land them, and put them under the shade of the trees. The ice then came, and they could not go away. They then begged a piece of land to build wigwams for the winter. We granted it to them. They then asked for corn to keep them from starving. We furnished it out of our own scanty supply. They promised to go away when the ice melted. When this happened, they, instead of going, pointed to the big guns round the wigwams, and said, 'we shall stay here.' Afterwards came more: they brought intoxicating drinks, of which the Indians became fond. They persuaded them to sell their land, and, finally, have driven us back, from time to time, to the wilderness, far from the water, the fish, and the oysters. They have scared away our game—my people are wasting away. We live in the want of all things, while you are enjoying abundance in our fine and beautiful country. This makes me sorry, brother, and I cannot help it."

These persecutions and repeated acts of cruelty and injustice appear to have no termination—the work of destruction, commenced with the Narragansetts, will extend to the Ceminoles, and gradually to the blue waters of the Pacific. Look even now at the contest maintained by a handful of Indians in the everglades of Florida. Do they war against unequal numbers for a crown—for a part of that immense surplus which overflows from the coffers of a country which was once their own? No—they fight for the privilege of dying where the bones of their ancestors lie buried: and yet we, Christians as we call ourselves, deny them that boon, and drive the lords of the soil into the den of the otter.

In referring to the splendid specimens of Indian oratory, where, I would ask, can you find such wisdom, such lofty and pure eloquence, among the Chinese and Tartars, even at this day?

The Indians, like the Hebrews, speak in parables. Of their dialects, there is no doubt that the Algonquins and Huron are the parents of five hundred Indian tongues—they are copious, rich, regular, forcible, and comprehensive; and although here and there strong Hebrew analogies may be found, yet it is reasonable to suppose, that the Indian languages are a compound of all those tongues belonging to the various Asiatic nations through which they passed during their pilgrimage.

Firmly as I believe the American Indian to have been descended from the tribes of Israel, and that our continent is full of the most extraordinary vestiges of antiquity, there is one point, a religious as well as an historical point, in which you may possibly continue to doubt, amidst almost convincing evidences.

If these are the remnants of the nine and a half tribes which were carried into Assyria, and if we are to believe in all the promises of the restoration, and the fulfilment of the prophecies, respecting the final advent of the Jewish nation, what is to become of these our red brethren, whom we are driving before us so rapidly, that a century more will find them lingering on the borders of the Pacific Ocean?

Possibly the restoration may be near enough to include even a portion of those interesting people. Our learned Rabbis have always deemed it sinful to compute the period of the restoration; they believe that when the sins of the nation were atoned for, the miracle of their redemption would be manifested. My faith does not rest wholly in miracles—Providence disposes of events, human agency must carry them out. That benign and supreme power which the children of Israel had never forsaken, has protected the chosen people amidst the most appalling dangers, has saved them from the uplifted sword of the Egyptians, the Assyrians, the Medes, the Persians, the Greeks, and the Romans, and while the most powerful nations of antiquity have crumbled to pieces, we have been preserved, united, and unbroken, the same now as we were in the days of the patriarchs—brought from darkness to light, from the early

and rude periods of learning to the bright reality of civilisation, of arts, of education and of science.

The Jewish people must now do something for themselves; they must move onward to the accomplishment of that great event long foretold—long promised—long expected; and when they *do* move, that mighty power which has for thousands of years rebuked the proscription and intolerance shown to the Jews, by a benign protection of the *whole* nation, will still cover them with his invincible standard.

My belief is, that Syria will revert to the Jewish nation by *purchase*, and that the facility exhibited in the accumulation of wealth, has been a providential and peculiar gift to enable them, at a proper time, to re-occupy their ancient possessions by the purse—string instead of the sword.

We live in a remarkable age, and political events are producing extraordinary changes among the nations of the earth.

Russia, with its gigantic power, continues to press hard on Turkey. The Pacha of Egypt, taking advantage of the improvements and inventions of men of genius, is extending his territory and influence to the straits of Babelmandel on the Red Sea, and to the borders of the Russian empire; and the combined force of Russia, Turkey, Persia, and Egypt, seriously threaten the safety of British possessions in the East Indies. An immediate and balancing power is required to check this thirst of conquest and territorial possession, and to keep in check the advances of Russia in Turkey and Persia, and the ambition and love of conquest of Egypt. This can be done by restoring Syria to its rightful owners, not by revolution or blood, but as I have said, by the purchase of that territory from the Pacha of Egypt, for a sum of money too tempting in its amount for him to refuse, in the present reduced state of his coffers. Twelve or thirteen millions of dollars have been spoken of in reference to the cession of that interesting territory, a sum of no consideration to the Jews, for the good-will and peaceable possession of a land, which to them is above all price. Under the co-operation and protection of England

and France, this re-occupation of Syria within its old territorial limits is at once reasonable and practicable.

By opening the ports of Damascus, Tripoli, Joppa, Acre, etcetera, the whole of the commerce of Turkey, Egypt, and the Mediterranean will be in the hands of those, who, even now in part, control the commerce of Europe. From the Danube, the Dneister, the Ukraine, Wallachia, and Moldavia, the best of agriculturists would revive the former fertility of Palestine. Manufacturers from Germany and Holland; an army of experience and bravery from France and Italy; ingenuity, intelligence, activity, energy, and enterprise from all parts of the world, would, under a just, a tolerant, and a liberal government, present a formidable barrier to the encroachments of surrounding powers, and be a bulwark to the interests of England and France, as well as the rising liberties of Greece.

Once again unfurl the standard of Judah on Mount Zion, the four corners of the earth will give up the chosen people as the sea will give up its dead, at the sound of the last trumpet. Let the cry be 'Jerusalem,' as it was in the days of the Saracen and the lion-hearted Richard of England, and the rags and wretchedness which have for eighteen centuries enveloped the persons of the Jews, crushed as they were by persecution and injustice, will fall to the earth; and they will stand forth. The richest, the most powerful, the most intelligent nation on the face of the globe, with incalculable wealth, and holding in pledge the crowns and sceptres of kings. Placed in possession of their ancient heritage by and with the consent and co-operation of their Christian brethren, establishing a government of peace and good-will on earth, it may then be said, behold the fulfilment of prediction and prophecy: behold the chosen and favoured people of Almighty God, who, in defence of his unity and omnipotence, have been the outcast and proscribed of all nations, and who, for thousands of years, have patiently endured the severest of human sufferings, in the hope of that great advent of which they never have despaired;—and then, when taking their rank once more among the nations of the earth, with the good wishes and affectionate regards of the great family of mankind, they may by their

tolerance, their good faith, their charity, and enlarged liberal views, merit what has been said in their behalf by inspired writers, “Blessed are they who bless Israel.”

The End.

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